

MEMORANDA

OF

DECISIONS RENDERED DURING THE PERIOD EMBRACED IN THIS VOLUME

[146 NE3d 1160, 124 NYS3d 1]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v GEORGE
TSINTZELIS, Appellant.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JOSE
VELEZ, Appellant.

Argued February 12, 2020; decided March 24, 2020

SUMMARY

APPEAL, in the first above-entitled action, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered August 2, 2017. The Appellate Division affirmed a judgment of the Supreme Court, Queens County (James P. Griffin, J.), which had convicted defendant, upon a jury verdict, of criminal mischief in the third degree and petit larceny.

APPEAL, in the second above-entitled action, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered August 8, 2018. The Appellate Division affirmed a judgment of the Supreme Court, Queens County (Barry A. Schwartz, J., at trial; Suzanne J. Melendez, J., at pretrial motions), which had convicted defendant, upon a jury verdict, of burglary in the second degree, petit larceny, and criminal mischief in the fourth degree.

People v Tsintzelis, 153 AD3d 558, reversed.

People v Velez, 164 AD3d 622, reversed.

HEADNOTE

Crimes — Right of Confrontation — Testimonial DNA Evidence

An analyst's hearsay testimony in separate criminal prosecutions as to the DNA profiles developed from the post-arrest buccal swabs and the admission

of those DNA profiles into evidence, over defendants' objections, violated defendants' confrontation rights. The testifying analyst did not participate in the generation of the testimonial DNA profile or use her independent analysis on the raw data to arrive at her own conclusions. The errors were not harmless because, in both cases, the People relied solely on the evidence of the DNA profile generated from the post-arrest buccal swabs to prove defendants' guilt at trial.

APPEARANCES OF COUNSEL

Janet E. Sabel, Legal Aid Society, New York City (Tomoe Murakami Tse of counsel), for appellant in the first above-entitled action.

Melinda Katz, District Attorney, Kew Gardens (Christopher J. Blira-Koessler, Robert J. Masters, John M. Castellano, and Joseph N. Ferdenzi of counsel), for respondent in the first above-entitled action.

Paul Skip Laisure, Appellate Advocates, New York City (Yvonne Shivers of counsel), for appellant in the second above-entitled action.

Melinda Katz, District Attorney, Kew Gardens (Christopher J. Blira-Koessler, Jonathan K. Wi, Robert J. Masters, John M. Castellano, and Joseph N. Ferdenzi of counsel), for respondent in the second above-entitled action.

OPINION OF THE COURT

MEMORANDUM.

In each case the order of the Appellate Division should be reversed and a new trial ordered.

In *People v John*, we held that, when confronted with testimonial DNA evidence at trial, a defendant is entitled to cross-examine “an analyst who witnessed, performed or supervised the generation of defendant’s DNA profile, or who used his or her independent analysis on the raw data” (27 NY3d 294, 315 [2016]). In *People v Austin*, we reiterated that a testifying analyst who did not participate in the generation of a testimonial DNA profile satisfies the Confrontation Clause’s requirements only if the analyst “used his or her independent analysis on the raw data to arrive at his or her own conclusions” (30 NY3d 98, 104 [2017] [internal quotation marks omitted]). The records before us do not establish that the testifying analyst had such a role in either case. Accordingly, because the analyst’s hearsay testimony as to the DNA profiles developed from the post-arrest buccal swabs “easily satisfies the primary purpose test” for determining whether evidence is testimonial

(*see id.*), we conclude that her testimony and the admission of those DNA profiles into evidence, over defendants' objections, violated defendants' confrontation rights.¹

These errors are not harmless. In both cases, the People relied solely on the evidence of the DNA profile generated from the post-arrest buccal swabs to prove defendants' guilt at trial (*see id.* at 104).²

RIVERA, J. (concurring). I concur that the Appellate Division should be reversed because the analyst's respective testimony violated the Confrontation Clause rights of each defendant. In both appeals, the analyst failed to identify the stages of testing with which she was directly involved or the extent of her independent analysis on the raw data generated from the DNA testing. Given the analyst's limited participation in the testing, it was necessary for her to clarify which stages of testing she actually performed and her overall role in the process as a predicate to determining whether she was an "analyst with the requisite personal knowledge" (*People v John*, 27 NY3d 294, 313 [2016]). Her testimony fell short of that constitutional threshold.

The analyst only stated that she visually compared the DNA profiles generated from the defendants' buccal swabs with the respective profiles generated from the crime scene evidence and that she is charged with reviewing each portion of testing prior to approving or finalizing a testing determination.¹ Notably, the analyst did not state what "reviewing" testing practically entailed. This thin testimony failed to establish that the testifying analyst was "an analyst who witnessed, performed or

1. The trial record in each of these cases was made prior to this Court's guidance in *John*, and they are therefore particularly poor vehicles for commenting on the "People's burden to present the proper witnesses and elicit the proper testimony" from the relevant analysts or for delving into the Forensic Biology files, entered into evidence without comment or explanation. The cases similarly present no occasion to chastise the People for purportedly "defer[ring] to assumptions or precedent" (*see* concurring op at 928) by failing to anticipate *John*'s requirements.

2. Given our disposition of these appeals and the intervening changes in New York's criminal discovery laws (*see* CPL 245.20; *see also id.* § 245.60), we need not address defendants' remaining contentions including that they were wrongly denied discovery of the raw DNA data under former CPL 240.20.

1. In *People v Tsintzelis*, the analyst stated that she must "go through each and every testing technique to ensure that everything did pass" in order for her to "sign off on the case file or the report." In *People v Velez*, she said, "[i]n order to make a determination I need to review each and every portion of the testing that did occur in this case."

supervised the generation of defendant's DNA profile, or who used his or her independent analysis on the raw data," as is required by the Confrontation Clause (*John*, 27 NY3d at 315).

The People argue that the information in the admitted Forensic Biology (FB) files—specifically the listing of the analyst's name as a “reviewer” or “analyst” on some testing reports and the appearance of the analyst's initials on each page of the FB files—suffices to show the analyst's critical role in generating the defendants' DNA profiles and independent analysis of the raw data. However, the contents of the FB files belie the People's claims, as the testifying analyst's name does not appear as a “reviewer” or “analyst” at all on several documents related to the final stages of DNA typing, including electrophoresis, editing and control review, for both defendants' buccal swab samples. More importantly, the listing of the analyst's name or initials on any FB file document, including as a “Reviewer,” is meaningless without testimony about what such a designation means. It is the People's burden to present the proper witnesses and elicit the proper testimony from such testifying analysts that establishes their role in testing; the People may not defer to assumptions or precedent in fulfilling this obligation (*see Bullcoming v New Mexico*, 564 US 647, 666 [2011]; *John*, 27 NY3d at 303-305, 312-314; *see also People v Brown*, 13 NY3d 332, 337-338, 340 [2009]).² Indeed, in *People v Austin*, the testifying Office of Chief Medical Examiner crimi-

2. The majority comment on this concurrence is a poor distraction. The majority does not take issue with my description of the analyst's testimony, as it cannot since the Court is unanimous that the testimony is insufficient. Instead, the majority remarks that the cases “are . . . particularly poor vehicles for commenting” on the obligations the prosecution bears under our case law because “[t]he trial record in each of these cases was made prior to this Court's guidance in *John*” (majority mem at 927 n 1). That might be an interesting side point if not for the fact that in the appeals, the People have made incorrect arguments about the sufficiency of thin analyst testimony and FB files, in part based on their misunderstanding of *John*. Further, the Appellate Division decided both cases after *John* (*see* 27 NY3d 294 [2016]; *People v Tsintzelis*, 153 AD3d 558 [2017]; *People v Velez*, 164 AD3d 622 [2018]), and *People v Velez* was decided after *People v Austin* (*see* 30 NY3d 98 [2017]; *People v Velez*, 164 AD3d 622 [2018]). In *People v Velez*, the Appellate Division explicitly relied on *John* for its erroneous decision (164 AD3d at 622). The majority also states that “delving into the [FB] files” is unwarranted (majority mem at 927 n 1). Notwithstanding how the FB files were indeed “entered into evidence without comment or explanation” (majority mem at 927 n 1), the People argued in these appeals that the FB files could serve to show how the analyst was qualified to testify under *John*, signaling that there remains some confusion about what level of evidence in the record is necessary to show that a testifying analyst was indeed an “analyst with the

(n. cont'd)

nalist's "name appear[ed] on some of the laboratory reports" but "he testified that he did not perform the laboratory testing on those samples," exemplifying the deficiencies in blindly deferring to assumptions or even precedent (30 NY3d 98, 102-103 [2017]). I agree with the majority that this error was not harmless on the facts of these respective appeals (majority mem at 927).

Accordingly, the Appellate Division in *People v Tsintzelis* should be reversed because although the Court concluded that the admission of the FB files through the analyst's testimony violated defendant Tsintzelis's confrontation rights, the Court incorrectly found the error was harmless because the FB files were cumulative of the analyst's testimony. In *People v Velez*, the Appellate Division should be reversed as the Court misinterpreted our holding in *John* and erroneously held there was no violation.³

Chief Judge DiFiore and Judges Stein, Fahey, Garcia, Wilson and Feinman concur; Judge Rivera concurs in result in an opinion in which Judge Wilson concurs.

Order reversed and a new trial ordered, in a memorandum.

EDSTAN S. BALGOBIN, Appellant, v STATE OF NEW YORK, Respondent.

Submitted December 9, 2019; decided March 31, 2020

Reported below, 2019 NY Slip Op 70126(U).

Motion for reargument of motion for leave to appeal denied [see 34 NY3d 960 (2019)].

requisite personal knowledge" (*John*, 27 NY3d at 313). For these reasons, clarification of what type of witnesses, testimony and evidence suffice to meet a defendant's Confrontation Clause rights is warranted in these appeals and for future guidance.

3. I too conclude that we need not reach defendants' contention that they were wrongly denied discovery of the raw electronic DNA data under former CPL 240.20 (majority mem at 927 n 2). The automatic discovery statute enacted during the pendency of these appeals applies in future proceedings against these defendants (*see* CPL 245.20).

CAPITAL ONE, NA, Respondent, v FARAH MALEKI AMID, Appellant, et al., Defendants.

Submitted March 2, 2020; decided March 31, 2020

Reported below, 174 AD3d 493.

Motion for leave to appeal denied with \$100 costs and necessary reproduction disbursements. Motion for a stay dismissed as academic.

TOBIAS BERMUDEZ CHAVEZ et al., Respondents, v OCCIDENTAL CHEMICAL CORPORATION, Individually and as a Successor to OTHER OCCIDENTAL CHEMICAL COMPANY OTHER OCCIDENTAL CHEMICAL AGRICULTURAL PRODUCTS INC. OTHER HOOKER CHEMICAL AND PLASTICS OTHER OCCIDENTAL CHEMICAL COMPANY OF TEXAS OTHER BEST FERTILIZER COMPANY, Appellant.

Submitted March 23, 2020; decided March 31, 2020

See 933 F3d 186.

Motion by Product Liability Advisory Council, Inc. for leave to file a brief amicus curiae on consideration of the certified questions herein granted and the proposed brief is accepted as filed. The brief must be submitted in digital format within 20 days.

TOBIAS BERMUDEZ CHAVEZ, et al., Respondents, v OCCIDENTAL CHEMICAL CORPORATION, Individually and as a Successor to OTHER OCCIDENTAL CHEMICAL COMPANY OTHER OCCIDENTAL CHEMICAL AGRICULTURAL PRODUCTS INC. OTHER HOOKER CHEMICAL AND PLASTICS OTHER OCCIDENTAL CHEMICAL COMPANY OF TEXAS OTHER BEST FERTILIZER COMPANY, Appellant.

Submitted March 23, 2020; decided March 31, 2020

See 933 F3d 186.

Motion by Whirlpool Corporation for leave to appear amicus curiae on consideration of the certified questions herein granted only to the extent that the proposed brief is accepted as filed. Two copies of the brief must be served, nine copies filed, and the brief submitted in digital format within 20 days.

TOBIAS BERMUDEZ CHAVEZ, et al., Respondents, v OCCIDENTAL CHEMICAL CORPORATION, Individually and as a Successor to OTHER OCCIDENTAL CHEMICAL COMPANY OTHER OCCIDENTAL CHEMICAL AGRICULTURAL PRODUCTS INC. OTHER HOOKER CHEMICAL AND PLASTICS OTHER OCCIDENTAL CHEMICAL COMPANY OF TEXAS OTHER BEST FERTILIZER COMPANY, Appellant.

Submitted March 23, 2020; decided March 31, 2020

See 933 F3d 186.

Motion by Chamber of Commerce of the United States of America for leave to file a brief amicus curiae on consideration of the certified questions herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served, nine copies filed, and the brief submitted in digital format within 20 days.

DEUTSCHE BANK NATIONAL TRUST COMPANY, as Trustee for HSI ASSET LOAN OBLIGATION TRUST 2007-1, Respondent, v JULIE SPOONER, Appellant, et al., Defendants.

Submitted December 30, 2019; decided March 31, 2020

Reported below, 2019 NY Slip Op 67058(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

GARY DOVE, Respondent, v 143 SCHOOL ST. REALTY CORP. et al., Appellants.

Submitted October 21, 2019; decided March 31, 2020

Reported below, 172 AD3d 1315.

Motion, insofar as it seeks leave to appeal from that portion of the May 2019 Appellate Division order as affirmed the November 2017 Supreme Court order, dismissed upon the ground that such portion of the order does not finally determine the action within the meaning of the Constitution; motion for leave to appeal otherwise denied.

FREEDOM MORTGAGE CORPORATION, Appellant, v HERSCHEL ENGEL, Respondent, et al., Defendants.

Submitted March 23, 2020; decided March 31, 2020

Reported below, 163 AD3d 631.

Motion by American Legal and Financial Network for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served, nine copies filed, and the brief submitted in digital format within 20 days.

In the Matter of KEVIN GRIFFIN, Appellant, v THOMAS P. DINAPOLI, as State Comptroller, et al., Respondents.

Submitted December 30, 2019; decided March 31, 2020

Reported below, 2019 NY Slip Op 85115(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

VERONICA HALA et al., Respondents, v ORANGE REGIONAL MEDICAL CENTER, Respondent, and BARBARA SPREITZER et al., Appellants, et al., Defendant. TERRY H. WINTER et al., Nonparty Respondents.

Submitted December 9, 2019; decided March 31, 2020

Reported below, 178 AD3d 151.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

BIJAN KARIMIAN, Appellant, v STEWART L. KARLIN et al., Respondents.

Submitted November 25, 2019; decided March 31, 2020

Reported below, 173 AD3d 614.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

MUTUAL BENEFITS OFFSHORE FUND, LTD., Respondent, v
EMANUEL ZELTSER et al., Respondents, et al., Defendants.
KAYLEY INVESTMENTS, LTD., Nonparty Appellant.

Submitted October 28, 2019; decided March 31, 2020

Reported below, 172 AD3d 648.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of NATIONAL FUEL GAS SUPPLY CORPORATION, Appellant, v JOSEPH A. SCHUECKLER et al., Respondents.

Submitted March 23, 2020; decided March 31, 2020

Reported below, 167 AD3d 128.

Motion by Niskanen Center for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. The brief must be submitted in digital format within 20 days.

Judge GARCIA taking no part.

THOMAS H. O'NEILL, JR., Respondent, v ROSE R. O'NEILL, Appellant. (Appeal No. 5.)

Submitted October 15, 2019; decided March 31, 2020

Reported below, 174 AD3d 1528.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v TREVIS D. BAKER, Appellant.

Submitted February 24, 2020; decided March 31, 2020

Reported below, 175 AD3d 1113.

Motion for assignment of counsel granted and David C. Schopp, Esq., The Legal Aid Bureau of Buffalo, Inc., 290 Main Street, Suite 350, Buffalo, NY 14202 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v GEORGE BROWN, Appellant.

Submitted March 23, 2020; decided March 31, 2020

Reported below, 177 AD3d 575.

Motion for assignment of counsel granted and Robert S. Dean, Esq., Center for Appellate Litigation, 120 Wall Street, 28th Floor, New York, NY 10005 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v TODD DANIELS, Appellant.

Submitted March 16, 2020; decided March 31, 2020

Reported below, 175 AD3d 1551.

Motion for assignment of counsel granted and Paul Skip Laisure, Esq., Appellate Advocates, 111 John Street, 9th Floor, New York, NY 10038 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v DRURY DUVAL, Appellant.

Submitted March 2, 2020; decided March 31, 2020

Reported below, 179 AD3d 62.

Motion for assignment of counsel granted and Robert S. Dean, Esq., Center for Appellate Litigation, 120 Wall Street, 28th Floor, New York, NY 10005 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JEROME HOLMAN, Appellant.

Submitted March 23, 2020; decided March 31, 2020

Reported below, 66 Misc 3d 134(A), 2019 NY Slip Op 52124(U).

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 granted and motion papers treated as a timely CPL 460.20 application.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v DA-
QUAN LANIER, Appellant.

Submitted March 23, 2020; decided March 31, 2020

Reported below, 173 AD3d 416.

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 granted and motion papers treated as a timely CPL 460.20 application.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v AN-
THONY LORA, Appellant.

Submitted March 2, 2020; decided March 31, 2020

Reported below, 177 AD3d 518.

Motion for assignment of counsel granted and Robert S. Dean, Esq., Center for Appellate Litigation, 120 Wall Street, 28th Floor, New York, NY 10005 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JEF-
FREY R. MAGEE, Appellant.

Submitted February 24, 2020; decided March 31, 2020

Reported below, 175 AD3d 1824.

Motion for assignment of counsel granted and David C. Schopp, Esq., The Legal Aid Bureau of Buffalo, Inc., 290 Main Street, Suite 350, Buffalo, NY 14202 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JOSHUA
L. MILLER, Appellant.

Submitted March 16, 2020; decided March 31, 2020

Reported below, 177 AD3d 1397.

Motion for assignment of counsel granted and David C. Schopp, Esq., The Legal Aid Bureau of Buffalo, Inc., 290 Main Street, Suite 350, Buffalo, NY 14202 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v CARLOS TORRES, Appellant.

Submitted March 2, 2020; decided March 31, 2020

Reported below, 65 Misc 3d 19.

Motion for assignment of counsel granted and Robert S. Dean, Esq., Center for Appellate Litigation, 120 Wall Street, 28th Floor, New York, NY 10005 assigned as counsel to the appellant on the appeal herein.

RONALD J. PRYOR, Appellant, v STATE OF NEW YORK, Respondent.

Submitted December 9, 2019; decided March 31, 2020

Motion for leave to appeal from the July 2018 Court of Claims order dismissed as untimely (*see* CPLR 5513 [b]).

In the Matter of HARINDER JEET SINGH, Appellant, v CITY OF NEW YORK et al., Respondents.

Submitted October 21, 2019; decided March 31, 2020

Reported below, 165 AD3d 593.

Motion for reargument of motion for leave to appeal etc. denied [*see* 33 NY3d 1123 (2019)].

RAKIM SPIVEY, Appellant, v CITY OF NEW YORK et al., Respondents.

Submitted December 16, 2019; decided March 31, 2020

Reported below, 167 AD3d 487.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

MICHAEL G. VALVA, Respondent, v JUSTYNA VALVA, Appellant.

Submitted October 15, 2019; decided March 31, 2020

Reported below, 2019 NY Slip Op 76243(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

CAROLINE WADE, Appellant, v ANTHONY GIACOBBE, Respondent.

Submitted December 30, 2019; decided March 31, 2020

Reported below, 176 AD3d 641.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

SARAH WEINBERG, Appellant, v DAVID KAMINSKY et al., Respondents.

Submitted July 15, 2019; decided March 31, 2020

Reported below, 166 AD3d 428.

Motion, insofar as it seeks leave to appeal from that portion of the Appellate Division order that affirmed the February 2017 Supreme Court order denying preliminary relief, dismissed upon the ground that such portion of the order does not finally determine the action within the meaning of the Constitution; motion for leave to appeal otherwise denied.

In the Matter of PAUL WHITE, Appellant, v ANTHONY J. ANNUCCI, as Acting Commissioner of Corrections and Community Supervision, et al., Respondents.

Submitted December 9, 2019; decided March 31, 2020

Reported below, 168 AD3d 1340.

Motion for reargument denied [*see* 33 NY3d 1137 (2019)].

In the Matter of PAUL WHITE, Appellant, v ANTHONY J. ANNUCCI, as Acting Commissioner of Corrections and Community Supervision, Respondent.

Submitted December 9, 2019; decided March 31, 2020

Reported below, 170 AD3d 1372.

Motion for reargument denied [*see* 33 NY3d 1137 (2019)].

SUMMER ZERVOS, Respondent, v DONALD J. TRUMP, Appellant.

Submitted February 10, 2019; decided March 31, 2020

Reported below, 171 AD3d 110.

Motion to vacate stay denied.

In the Matter of the Claim of SHLOMO S. ZION, Appellant. COMMISSIONER OF LABOR, Respondent.

Submitted December 23, 2019; decided March 31, 2020

Reported below, 175 AD3d 1683.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

[146 NE3d 1160, 124 NYS3d 1]

CHERYL H. DANIELS, Respondent, v NEW YORK CITY TRANSIT AUTHORITY, Appellant.

Decided March 24, 2020

SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered April 23, 2019. The Appellate Division affirmed a judgment of the Supreme Court, New York County (Arthur F. Engoron, J.), entered upon a jury verdict, which had awarded damages in favor of plaintiff and against defendant.

Daniels v New York City Tr. Auth., 171 AD3d 601, reversed.

HEADNOTES

Evidence — Opinion Evidence — Expert Testimony Regarding Non-mandatory Standards

1. The trial court in plaintiff's personal injury action against defendant transit authority properly admitted plaintiff's expert testimony regarding nonmandatory gap standards promulgated by the American Public Transit Association and the Public Transportation Safety Board.

Trial — Evidence — Admitting Evidence of Prior Accidents was Abuse of Discretion

2. Supreme Court abused its discretion as a matter of law in plaintiff's personal injury action against defendant transit authority by admitting evidence of prior accidents at New York City subway stations involving the gap between the train car and platform in the absence of a showing that the relevant conditions of those accidents were substantially the same as plaintiff's accident.

APPEARANCES OF COUNSEL

New York City Transit Law Department, Brooklyn (*Harriet Wong* and *Lawrence Heisler* of counsel), for appellant.

Pollack, Pollack, Isaac & DeCicco, LLP, New York (*Brian J. Isaac* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

[1, 2] On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order reversed, with costs, and a new trial ordered. In these circumstances, the trial court properly admitted plaintiff's expert testimony regarding nonmandatory gap standards promulgated by the American Public Transit Association and the Public Transportation Safety Board (*see De Long v County of Erie*, 60 NY2d 296, 307 [1983]). However, Supreme Court abused its discretion as a matter of law by admitting evidence of prior accidents at New York City subway stations involving the gap between the train car and platform in the absence of a showing that the relevant conditions of those accidents were substantially the same as plaintiff's accident (*see Hyde v County of Rensselaer*, 51 NY2d 927, 929 [1980]; *Gilliard v Long Is. R.R. Co.*, 45 NY2d 996, 997 [1978]).

Concur: Chief Judge DiFiore and Judges Rivera, Stein, Fajehy, Garcia, Wilson and Feinman.

APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL

(March 1, 2020 through March 31, 2020)

People v Abreu (Fabio)	2d Dept: 177 AD3d 589 (Queens)	denied 3/16/20 (DiFiore, Ch. J.)
People v Abreu (Fabio)	2d Dept: 177 AD3d 588 (Queens)	denied 3/26/20 (DiFiore, Ch. J.)
People v Aleynikov	1st Dept: 176 AD3d 444 (NY)	denied 3/12/20 (Stein, J.)
People v Almonte	3d Dept: 179 AD3d 1222 (Clinton)	denied 3/4/20 (Rivera, J.)
People v Alsaaidi	4th Dept: 173 AD3d 1836 (Monroe)	denied 3/9/20 (Stein, J.)
People v Alverado	4th Dept: 178 AD3d 1465 (Monroe)	denied 3/31/20 (Fahey, J.)
People v Alverado-Mateo	4th Dept: 178 AD3d 1465 (Monroe)	denied 3/31/20 (Fahey, J.)
People v Anderson	1st Dept: 179 AD3d 420 (Bronx)	denied 3/12/20 (Fahey, J.)
People v Anonymous	1st Dept: 179 AD3d 403 (Bronx)	denied 3/30/20 (DiFiore, Ch. J.)
People v Austin	1st Dept: 179 AD3d 447 (NY)	denied 3/12/20 (Feinman, J.)
People v Avent	4th Dept: 178 AD3d 1403 (Erie)	denied 3/16/20 (Stein, J.)
People v Ayala	1st Dept: 179 AD3d 586 (Bronx)	denied 3/30/20 (DiFiore, Ch. J.)
People v Balbuenatorres	2d Dept: 179 AD3d 828 (Suffolk)	denied 3/17/20 (Garcia, J.)
People v Ballowe	4th Dept: 178 AD3d 1444 (Erie)	denied 3/12/20 (Wilson, J.)
People v Barreto	1st Dept: 179 AD3d 605 (NY)	denied 3/30/20 (DiFiore, Ch. J.)
People v Batista	2d Dept: 180 AD3d 698 (Queens)	denied 3/30/20 (Garcia, J.)
People v Beaubrun	2d Dept: 179 AD3d 829 (Queens)	denied 3/31/20 (Fahey, J.)
People v Bowers	2d Dept: 175 AD3d 1549 (Queens)	denied reconsideration 3/4/20 (Rivera, J.)
People v Braithwaite	2d Dept: 178 AD3d 1069 (Kings)	denied 3/11/20 (Wilson, J.)
People v Brown	4th Dept: 178 AD3d 1378 (Erie)	denied 3/10/20 (Stein, J.)
People v Buckland	4th Dept: 178 AD3d 1458 (Erie)	denied 3/3/20 (DiFiore, Ch. J.)
People v Burdo	3d Dept: 179 AD3d 1355 (Clinton)	denied 3/30/20 (Garcia, J.)
People v Camara	App Term, 1st Dept: 66 Misc 3d 137(A) (NY)	denied 3/17/20 (Feinman, J.)

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People v Cloonan	3d Dept: 166 AD3d 1063 (Albany)	denied 3/12/20 (Wilson, J.)
People v Cole	App Term, 1st Dept: 65 Misc 3d 159(A) (NY)	denied 3/12/20 (Wilson, J.)
People v Conway	3d Dept: 179 AD3d 1218 (Schenectady)	denied 3/11/20 (Garcia, J.)
People v Couse	3d Dept: 178 AD3d 1207 (Otsego)	denied 3/2/20 (DiFiore, Ch. J.)
People v Crawford	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 66 Misc 3d 133(A) (Kings)	denied 3/31/20 (Fahey, J.)
People v Davis	1st Dept: 179 AD3d 529 (NY)	denied 3/30/20 (Garcia, J.)
People v Daye	App Term, 1st Dept: 66 Misc 3d 135(A) (Bronx)	denied 3/11/20 (Garcia, J.)
People v Dayshawn V.	2d Dept: 179 AD3d 847 (Queens)	denied 3/17/20 (Garcia, J.)
People v Devorce	2d Dept: 178 AD3d 846 (Westchester)	denied 3/12/20 (Garcia, J.)
People v Diaz	App Term, 1st Dept: 66 Misc 3d 132(A) (Bronx)	denied 3/4/20 (Rivera, J.)
People v Doe	4th Dept: 175 AD3d 1851 (Monroe)	denied reconsideration 3/10/20 (Fahey, J.)
People v Dozier	4th Dept: 179 AD3d 1447 (Erie)	denied 3/18/20 (Feinman, J.)
People v Drake	3d Dept: 179 AD3d 1221 (Ulster)	denied 3/11/20 (Garcia, J.)
People v Esguerra	2d Dept: 178 AD3d 722 (Queens)	denied 3/11/20 (Wilson, J.)
People v Espino	1st Dept: 179 AD3d 491 (NY)	denied 3/11/20 (Garcia, J.)
People v Facciarossa	App Term, 2d Dept, 9th & 10th Jud Dists: 66 Misc 3d 133(A) (Suffolk)	denied 3/17/20 (Garcia, J.)
People v Gingles	1st Dept: 178 AD3d 553 (NY)	denied 3/4/20 (Rivera, J.)
People v Gittens	2d Dept: 178 AD3d 1070 (Kings)	denied 3/10/20 (Stein, J.)
People v Gonzalez	1st Dept: 178 AD3d 440 (Bronx)	denied 3/11/20 (Garcia, J.)
People v Grassi	2d Dept: 179 AD3d 1094 (Kings)	denied 3/31/20 (Fahey, J.)
People v Greaves	2d Dept: 178 AD3d 1072 (Suffolk)	denied 3/12/20 (Feinman, J.)
People v Griner	4th Dept: 178 AD3d 1436 (Monroe)	denied 3/12/20 (Feinman, J.)
People v Hale	1st Dept: 178 AD3d 548 (NY)	denied 3/12/20 (Wilson, J.)
People v Hardin	2d Dept: 177 AD3d 1001 (Queens)	granted 3/3/20 (Stein, J.)

People v Harriott	App Div, 1st Dept: 2019 NY Slip Op 84530(U) (NY)	denied 3/10/20 (Stein, J.)
People v Harris	App Term, 1st Dept: 66 Misc 3d 137(A) (NY)	denied 3/10/20 (Rivera, J.)
People v Harrison	App Div, 3d Dept: 2020 NY Slip Op 60542(U) (Franklin)	dismissed 3/27/20 (DiFiore, Ch. J.)
People v Hawkins	4th Dept: 179 AD3d 1547 (Monroe)	denied 3/30/20 (Garcia, J.)
People v Hayes	2d Dept: 179 AD3d 835 (Orange)	denied 3/10/20 (Fahey, J.)
People v Herrera	2d Dept: 179 AD3d 836 (Queens)	denied 3/16/20 (Stein, J.)
People v Horne	1st Dept: 179 AD3d 467 (Bronx)	denied 3/11/20 (Wilson, J.)
People v Hosannah	2d Dept: 178 AD3d 1074 (Nassau)	denied 3/17/20 (Feinman, J.)
People v Jean	2d Dept: 179 AD3d 947 (Kings)	denied 3/10/20 (Fahey, J.)
People v Jie Chen	2d Dept: 178 AD3d 1070 (Kings)	denied 3/10/20 (Fahey, J.)
People v Jones (Kareem)	1st Dept: 177 AD3d 444 (NY)	denied 3/30/20 (DiFiore, Ch. J.)
People v Jones (Lawrence)	2d Dept: 179 AD3d 948 (Kings)	denied 3/18/20 (Garcia, J.)
People v Jones (Prather)	3d Dept: 176 AD3d 1397 (Albany)	denied 3/31/20 (Fahey, J.)
People v Joyner	App Term, 1st Dept: 66 Misc 3d 136(A) (NY)	denied 3/12/20 (Fahey, J.)
People v Kapasakis	1st Dept: 179 AD3d 435 (NY)	denied 3/17/20 (Rivera, J.)
People v Keizer	2d Dept: 179 AD3d 716 (Kings)	denied 3/13/20 (DiFiore, Ch. J.)
People v Kim	2d Dept: 179 AD3d 840 (Queens)	denied 3/17/20 (Garcia, J.)
People v Lagoa	2d Dept: 179 AD3d 717 (Kings)	denied 3/30/20 (Garcia, J.)
People v Lashley	1st Dept: 178 AD3d 506 (NY)	granted 3/27/20 (Rivera, J.)
People v LaTouche (Valery)	App Div, 2d Dept: 2019 NY Slip Op 74507(U) (Rockland)	dismissed 3/27/20 (DiFiore, Ch. J.)
People v LaTouche (Valery)	App Div, 2d Dept: 2019 NY Slip Op 85918(U) (Rockland)	dismissed 3/27/20 (DiFiore, Ch. J.)
People v Linares	App Div, 2d Dept: 2019 NY Slip Op 85817(U) (Nassau)	dismissed 3/4/20 (Rivera, J.)
People v Lopez (Donald)	1st Dept: 179 AD3d 506 (NY)	denied 3/12/20 (Wilson, J.)
People v Lopez (Jaime)	2d Dept: 179 AD3d 719 (Westchester)	denied 3/11/20 (Fahey, J.)
People v Lopez (Rodolfo)	2d Dept: 174 AD3d 544 (Kings)	denied 3/4/20 (DiFiore, Ch. J.)

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People v Mahoney	4th Dept: 175 AD3d 1034 (Oswego)	denied 3/17/20 (Garcia, J.)
People v Markwick	4th Dept: 178 AD3d 1439 (Jefferson)	denied 3/30/20 (Garcia, J.)
People v Martinez	2d Dept: 178 AD3d 1079 (Queens)	denied 3/2/20 (DiFiore, Ch. J.)
People v McCants	4th Dept: 179 AD3d 1558 (Monroe)	denied 3/30/20 (Garcia, J.)
People v McFadden	4th Dept: 175 AD3d 1851 (Monroe)	denied reconsideration 3/10/20 (Fahey, J.)
People v McField	1st Dept: 172 AD3d 616 (NY)	dismissed 3/4/20 (Rivera, J.)
People v McLean	1st Dept: 178 AD3d 546 (Bronx)	denied 3/2/20 (Stein, J.)
People v Mendez	2d Dept: 178 AD3d 734 (Queens)	denied 3/11/20 (Fahey, J.)
People v Moco	1st Dept: 176 AD3d 644 (NY)	denied reconsideration 3/17/20 (Garcia, J.)
People v Montes	3d Dept: 178 AD3d 1283 (Albany)	denied reconsideration 3/16/20 (Stein, J.)
People v Moss	4th Dept: 178 AD3d 1435 (Monroe)	denied 3/12/20 (Wilson, J.)
People v Muhammad	1st Dept: 179 AD3d 415 (NY)	denied 3/2/20 (Stein, J.)
People v Munroe	1st Dept: 179 AD3d 440 (Bronx)	denied 3/11/20 (Wilson, J.)
People v Nikhman	2d Dept: 179 AD3d 951 (Kings)	denied 3/4/20 (Rivera, J.)
People v Nunez-Garcia	2d Dept: 178 AD3d 1087 (Nassau)	denied 3/12/20 (Feinman, J.)
People v Ortega	App Div, 1st Dept: 2019 NY Slip Op 84367(U) (NY)	denied 3/12/20 (Wilson, J.)
People v Palaguachi	1st Dept: 178 AD3d 555 (NY)	denied 3/10/20 (Fahey, J.)
People v Panzano	1st Dept: 179 AD3d 556 (NY)	denied 3/12/20 (Fahey, J.)
People v Pham	4th Dept: 178 AD3d 1438 (Monroe)	denied 3/12/20 (Feinman, J.)
People v Phan	4th Dept: 178 AD3d 1438 (Monroe)	denied 3/12/20 (Feinman, J.)
People v Pine	App Div, 3d Dept: 2020 NY Slip Op 60510(U) (Greene)	dismissed 3/30/20 (Garcia, J.)
People v Popal (Farid)	App Div, 2d Dept: 2020 NY Slip Op 60224(U) (Queens)	dismissed 3/11/20 (Fahey, J.)
People v Popal (John)	App Div, 2d Dept: 2020 NY Slip Op 60224(U) (Queens)	dismissed 3/11/20 (Fahey, J.)

People v Quezada	App Term, 1st Dept: 65 Misc 3d 141(A) (NY)	denied 3/16/20 (Stein, J.)
People v Ramos (Ivan)	App Div, 3d Dept: 2019 NY Slip Op 80009(U) (Montgomery)	dismissed 3/10/20 (Feinman, J.)
People v Ramos (Ivan)	App Div, 3d Dept: 2019 NY Slip Op 85975(U) (Montgomery)	dismissed 3/10/20 (Feinman, J.)
People v Ramos (Juan)	2d Dept: 179 AD3d 842 (Kings)	denied 3/17/20 (Garcia, J.)
People v Randall	1st Dept: 179 AD3d 431 (Bronx)	denied 3/12/20 (Feinman, J.)
People v Rathburn	4th Dept: 178 AD3d 1421 (Ontario)	denied 3/4/20 (Rivera, J.)
People v Robinson (David)	2d Dept: 176 AD3d 876 (Queens)	granted 3/3/20 (Stein, J.)
People v Robinson (Maurice)	1st Dept: 179 AD3d 568 (Bronx)	denied 3/11/20 (Fahey, J.)
People v Rodriguez (Nelson)	App Div, 2d Dept: 2019 NY Slip Op 85456(U) (Kings)	dismissed 3/11/20 (Garcia, J.)
People v Rodriguez (Rafaelito)	2d Dept: 179 AD3d 844 (Suffolk)	denied 3/11/20 (Wilson, J.)
People v Romero	App Div, 2d Dept: 2019 NY Slip Op 84300(U) (Queens)	dismissed 3/10/20 (Rivera, J.)
People v Rose	1st Dept: 178 AD3d 487 (Bronx)	denied 3/12/20 (Wilson, J.)
People v Salim	1st Dept: 179 AD3d 615 (NY)	denied 3/31/20 (Fahey, J.)
People v Salinas	2d Dept: 180 AD3d 813 (Queens)	denied 3/10/20 (Rivera, J.)
People v Santana	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 66 Misc 3d 126(A) (Queens)	denied 3/16/20 (DiFiore, Ch. J.)
People v Scarlett	4th Dept: 178 AD3d 1424 (Ontario)	denied 3/10/20 (Fahey, J.)
People v Schmidinger	4th Dept: 177 AD3d 1397 (Onondaga)	denied 3/10/20 (Fahey, J.)
People v Shannon	2d Dept: 178 AD3d 960 (Queens)	denied 3/17/20 (Stein, J.)
People v Shaw	App Div, 2d Dept: 2019 NY Slip Op 87042(U) (Orange)	dismissed 3/10/20 (Fahey, J.)
People v Sleet	1st Dept: 179 AD3d 468 (NY)	denied 3/12/20 (Wilson, J.)
People v Slocum	3d Dept: 178 AD3d 1131 (Washington)	denied 3/31/20 (Fahey, J.)
People v Smith (Damion)	4th Dept: 177 AD3d 1344 (Erie)	denied 3/12/20 (Wilson, J.) (Appeal No. 2)
People v Smith (Guillermo)	1st Dept: 179 AD3d 473 (NY)	denied 3/4/20 (Garcia, J.)
People v Smith (Tyrone)	1st Dept: 179 AD3d 620 (NY)	denied 3/17/20 (Feinman, J.)
People v Sosa-Marquez	2d Dept: 177 AD3d 1003 (Nassau)	denied 3/12/20 (Feinman, J.)

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People v Tantaio	4th Dept: 178 AD3d 1391 (Onondaga)	denied 3/11/20 (Garcia, J.)
People v Taylor	2d Dept: 179 AD3d 845 (Westchester)	denied 3/4/20 (Rivera, J.)
People v Tebout	2d Dept: 179 AD3d 1099 (Suffolk)	denied 3/17/20 (Feinman, J.)
People v Thomas	4th Dept: 178 AD3d 1461 (Erie)	denied 3/12/20 (Wilson, J.)
People v Thompson (David)	1st Dept: 179 AD3d 560 (NY)	denied 3/18/20 (Garcia, J.)
People v Thompson (Tykaine)	1st Dept: 179 AD3d 474 (NY)	denied 3/10/20 (Fahey, J.)
People v Todd	App Div, 2d Dept: 2019 NY Slip Op 85769(U) (Queens)	dismissed 3/11/20 (Wilson, J.)
People v Tyndall	2d Dept: 179 AD3d 846 (Kings)	denied 3/31/20 (Fahey, J.)
People v Valentin	App Term, 1st Dept: 66 Misc 3d 136(A) (NY)	denied 3/12/20 (Feinman, J.)
People v VanGorden	4th Dept: 178 AD3d 1423 (Steuben)	denied 3/11/20 (Garcia, J.)
People v Varner	App Term, 1st Dept: 66 Misc 3d 137(A) (NY)	denied 3/12/20 (Feinman, J.)
People v Vera	2d Dept: 179 AD3d 848 (Suffolk)	denied 3/12/20 (Fahey, J.)
People v Votra	4th Dept: 173 AD3d 1643 (Oswego)	denied 3/12/20 (Wilson, J.)
People v Walter V.	2d Dept: 178 AD3d 968 (Suffolk)	denied 3/30/20 (DiFiore, Ch. J.)
People v Warmley	4th Dept: 179 AD3d 1537 (Cattaraugus)	denied 3/30/20 (Garcia, J.)
People v White	4th Dept: 179 AD3d 1444 (Onondaga)	denied 3/30/20 (Garcia, J.)
People v William P.	App Term, 1st Dept: 66 Misc 3d 137(A) (Bronx)	denied 3/26/20 (DiFiore, Ch. J.)
People v Williams	App Div, 2d Dept: 2019 NY Slip Op 87043(U) (Westchester)	dismissed 3/13/20 (Rivera, J.)
People v Wilson	4th Dept: 179 AD3d 1527 (Monroe)	denied 3/30/20 (DiFiore, Ch. J.)
People v Woods	App Div, 3d Dept: 2019 NY Slip Op 86967(U) (Albany)	dismissed 3/2/20 (Stein, J.)

APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL**Decisions of Appellate Division Justices ***

(March 1, 2020 through March 31, 2020)

People v Smith (Gary)	2d Dept: 174 AD3d 835 (Suffolk)	granted 3/11/2020 (Rivera, J.)
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* Includes only applications that were granted.

In the Matter of CALVERTON MANOR, LLC, Appellant, v TOWN
OF RIVERHEAD et al., Respondents.

Submitted December 23, 2019; decided April 2, 2020

Reported below, 160 AD3d 833.

Motion for leave to appeal dismissed upon the ground that
the order sought to be appealed from does not finally determine
the proceeding within the meaning of the Constitution.

In the Matter of CALVERTON MANOR, LLC, Appellant, v TOWN
OF RIVERHEAD et al., Respondents.

Submitted December 23, 2019; decided April 2, 2020

Reported below, 160 AD3d 838.

Motion for leave to appeal dismissed upon the ground that
the order sought to be appealed from does not finally determine
the proceeding within the meaning of the Constitution.

CHRISTOPHER J.G. et al., as Parents and Natural Guardians of
A.G., an Infant, Appellants, v DERICO OF EAST AMHERST
CORP., Doing Business as McDONALD'S, et al., Respondents.

Submitted February 3, 2020; decided April 2, 2020

Reported below, 173 AD3d 1787.

Motion to vacate this Court's December 27, 2019 dismissal
order granted [*see* 34 NY3d 1074 (2019)].

CHURCH OF JESUS CHRIST OF LATTER-DAY SAINTS, SERVANT: XIU
JIAN SUN, THE SPIRITUAL ADAM, Appellant, v CHARLES F.
SANDERS et al., Respondents, et al., Defendants.

CHURCH OF JESUS CHRIST OF LATTER-DAY SAINTS, SERVANT: XIU
JIAN SUN, THE SPIRITUAL ADAM, Appellant, v OREN L. ZEVE,
Respondent.

Submitted January 13, 2020; decided April 2, 2020

Reported below, 176 AD3d 405.

On the Court's own motion, appeal dismissed, without costs, upon the ground that no appeal lies as of right from the unanimous order of the Appellate Division absent the direct involvement of a substantial constitutional question. Motion by respondents for sanctions etc. denied.

RIVKA COHEN, Respondent, v TZVI COHEN, Appellant.

Decided April 2, 2020

Reported below, 177 AD3d 848.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

CORNING FEDERAL CREDIT UNION, Respondent, v AMERICAN MADE TIRES, INC., et al., Defendants, and STEVEN GEORGI-LIS, Appellant.

Submitted February 10, 2020; decided April 2, 2020

Reported below, 167 AD3d 1359.

Motion for reargument of motion for leave to appeal denied [see 34 NY3d 906 (2019)].

In the Matter of DESTINY S. et al. CATTARAUGUS COUNTY DEPARTMENT OF SOCIAL SERVICES, Respondent; AMY W., Appellant.

Submitted December 16, 2019; decided April 2, 2020

Reported below, 177 AD3d 1314.

Motion for leave to appeal denied. Motion for poor person relief dismissed as academic. Motion for a stay dismissed as academic.

EMIGRANT FUNDING CORPORATION, Respondent, v PERSIO A. NUNEZ, Appellant, et al., Defendants.

EMIGRANT FUNDING CORPORATION, Respondent, v PERSIO A. NUNEZ, Appellant, et al., Defendants.

Submitted December 30, 2019; decided April 2, 2020

Reported below, 2019 NY Slip Op 60865(U).

Motion for reargument denied [see 34 NY3d 942 (2019)].

In the Matter of FREDLINE JOURDAIN, Respondent, v NEW YORK
STATE DIVISION OF HOUSING AND COMMUNITY RENEWAL, Re-
spondent, and GEORGETOWN LEASING, LLC, Appellant.

Submitted January 6, 2020; decided April 2, 2020

Reported below, 159 AD3d 41.

Motion for reargument of motion for leave to appeal denied
[see 34 NY3d 1009 (2019)].

TEDDY LEWIS, Appellant, v STATE OF NEW YORK, Respondent.

Submitted January 21, 2020; decided April 2, 2020

Reported below, 2019 NY Slip Op 72700(U).

Motion for reargument of motion for leave to appeal denied
[see 34 NY3d 1012 (2019)].

NELLA MANKO, Appellant, v DAVID A. GABAY, Esq., et al., Re-
spondents.

Submitted February 24, 2020; decided April 2, 2020

Reported below, 175 AD3d 488; 175 AD3d 489.

Motion for reconsideration of this Court's December 17, 2019
dismissal order denied [see 34 NY3d 1025 (2019)]. Motion,
insofar as it seeks leave to appeal from the Appellate Division
orders affirming the October 2015 and April 2016 Supreme
Court orders, dismissed upon the ground that such orders do
not finally determine the action within the meaning of the
Constitution; motion for leave to appeal otherwise denied. Mo-
tion for poor person relief dismissed as academic.

NELLA MANKO, Appellant, v DAVID A. GABAY, Esq., et al., Re-
spondents.

Submitted February 24, 2020; decided April 2, 2020

Reported below, 175 AD3d 487.

Motion for reconsideration of this Court's December 17, 2019 dismissal order denied [*see* 34 NY3d 1025 (2019)]. Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

Chief Judge DiFIORE taking no part.

JIM J. MASH, Respondent, v HEYANGJING SHI, Appellant, et al.,
Respondent.

Submitted January 27, 2020; decided April 2, 2020

Reported below, 2019 NY Slip Op 69528(U).

Motion for leave to appeal dismissed upon the ground that this Court does not have jurisdiction to entertain it (*see* NY Const, art VI, § 3; CPLR 5602). Motion for poor person relief dismissed as academic.

In the Matter of ONEIDA COUNTY DEPARTMENT OF SOCIAL SERVICES, Respondent, v RUSSELL R., Appellant.

Submitted December 2, 2019; decided April 2, 2020

Reported below, 175 AD3d 1793.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

CHRISTINE PATOUHAS, Respondent, v PHILIP PATOUHAS, Appellant.

Submitted December 30, 2019; decided April 2, 2020

Reported below, 172 AD3d 1221.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

Judge STEIN taking no part.

REHANA QAZI, Respondent, v BARKUZZAMAN QAZI, Appellant.

Submitted January 6, 2020; decided April 2, 2020

Reported below, 2019 NY Slip Op 77733(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of ROCHESTER GENESEE REGIONAL TRANSPORTATION AUTHORITY, Respondent, v JOHN R. STENSRUD et al., Appellants, et al., Respondent.

Submitted December 23, 2019; decided April 2, 2020

Reported below, 162 AD3d 1495.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

Judge FAHEY taking no part.

KAREN J. RUDOLF, Appellant, et al., Plaintiff, v SARAH E. SOLOMON et al., Respondents.

Submitted December 23, 2019; decided April 2, 2020

Reported below, 172 AD3d 773.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

JOSEPH A.F. SADOWSKI, Appellant, v DAVID W. HARMON, Respondent.

Submitted December 30, 2019; decided April 2, 2020

Reported below, 31 NY3d 1044; 2019 NY Slip Op 84081(U); 2019 NY Slip Op 74664(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

ELENA STRUJAN, Appellant, v GLENCORD BUILDING CORP., et al.,
Respondents.

Submitted January 21, 2020; decided April 2, 2020

Reported below, 2019 NY Slip Op 77456(U).

Motion for reconsideration of this Court's December 19, 2019
dismissal order denied [*see* 34 NY3d 1039 (2019)].

JORGE VELEZ, as Administrator of the Estate of JOSE
LANDACAY, Deceased, et al., Appellants, v MR. DEMOLITION,
INC., et al., Defendants, and 1855 EP HOLDINGS, LLC, et
al., Respondents.

Submitted December 30, 2019; decided April 2, 2020

Reported below, 172 AD3d 1140.

Motion for leave to appeal dismissed upon the ground that
the order sought to be appealed from does not finally determine
the action within the meaning of the Constitution.

JING JUE ZHENG, Appellant, v NEW YORK CITY HOUSING AUTHOR-
ITY, Respondent.

Submitted February 3, 2020; decided April 2, 2020

Motion for leave to appeal etc. dismissed upon the ground
that it does not lie (*see* NY Const, art VI, § 3 [b]; CPLR 5602).

In the Matter of JING JUE ZHENG, Appellant, v CLARK RICHARD-
SON, Respondent.

Submitted February 3, 2020; decided April 2, 2020

Motion for leave to appeal etc. dismissed upon the ground
that it does not lie (*see* NY Const, art VI, § 3 [b]; CPLR 5602).

[147 NE3d 585, 124 NYS3d 315]

In the Matter of MICHAEL F. McGUIRE, a Judge of the County
and Surrogate's Courts, Sullivan County.

Decided April 30, 2020

SUMMARY

CONSIDERATION, by the Court of Appeals, on its own motion,
pursuant to New York Constitution, article VI, § 22 and Judi-

ciary Law § 44 (8), of whether the Honorable Michael F. McGuire should be suspended from the offices of Judge of County Court and Surrogate's Court of Sullivan County, and whether suspension should be with or without pay.

HEADNOTE

Judges — Suspension from Office

The Court of Appeals, on its own motion, pursuant to New York Constitution, article VI, § 22 and Judiciary Law § 44 (8), suspended a Family Court and Surrogate's Court Judge from office, with pay, effective immediately, pending review of a determination of the State Commission on Judicial Conduct.

APPEARANCES OF COUNSEL

O'Connell & Aronowitz PC, Albany (*Stephen Coffey* of counsel), for petitioner.

Robert H. Tembeckjian, New York City (*Celia Zahner* of counsel), for New York State Commission on Judicial Conduct, respondent.

OPINION OF THE COURT

On the Court's own motion, it is determined that the Honorable Michael F. McGuire is suspended, with pay, effective immediately, from the offices of Judge of County and Surrogate's Courts, Sullivan County, pursuant to New York Constitution, article VI, § 22 and Judiciary Law § 44 (8), pending review of a determination of the State Commission on Judicial Conduct.

Concur: Chief Judge DiFiore and Judges Rivera, Stein, Fahy, Garcia, Wilson and Feinman.

[147 NE3d 583, 124 NYS3d 313]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v DONNA MIDDLETON, Appellant.

Argued March 17, 2020; decided April 30, 2020

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Washington County Court (Kelly S. McKeighan, J.), entered July 25, 2018. The order affirmed a judgment of the Justice Court of the Town of Fort Ann, Washington County (Dane L. Clark Sr., J., at plea and sentencing; Dane L. Clark Sr., J., and Robert J. Putorti Jr., J., on mo-

tions), which had convicted defendant, upon her plea of guilty, of attempted official misconduct.

HEADNOTE

Crimes — Official Misconduct — Correctional Facility Employee's Intentional Disclosure of Information to Inmate in Violation of Employee Manual

The information charging defendant with official misconduct was not jurisdictionally defective, where the allegations that, while working as a substance abuse treatment program aide at a correctional facility, she disclosed information to an inmate about an “unusual incident” in violation of the employee manual she had signed established both that defendant “commit[ted] an act relating to [her] office but constituting an unauthorized exercise of [her] official functions,” and that she knew that the disclosure to the inmate was unauthorized (Penal Law § 195.00). The information, supported by defendant’s admissions in her statement to police, sufficiently alleged that she knowingly left documents regarding the unusual incident which she had printed on a facility computer in a place where they could be accessed by an inmate who defendant knew was not authorized to receive them. From those allegations, coupled with defendant’s admissions in her statement regarding inappropriate contact with and favors conducted for inmates involved in the unusual incident and the disclosure, one could reasonably infer that defendant committed the unauthorized disclosure with the intent to benefit herself or the inmates involved. A “benefit” is defined as “any gain or advantage to the beneficiary and includes any gain or advantage to a third person pursuant to the desire or consent of the beneficiary” (Penal Law § 10.00 [17]). Accordingly, the People were not required to specify in the information whether defendant intended to benefit herself or the inmates, because either or both would have satisfied this element of the statute and both theories were supported by defendant’s statement to police.

APPEARANCES OF COUNSEL

Brafman & Associates, P.C., New York City (*Mark M. Baker* and *Stuart Gold* of counsel), for appellant.

New York Prosecutors Training Institute, Inc., Albany (*Lauren D. Konsul* and *Wendy Evans Lehmann* of counsel), and *J. Anthony Jordan*, District Attorney, Fort Edward, for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of County Court should be affirmed.

Defendant was charged by information with one count of official misconduct pursuant to Penal Law § 195.00. As relevant here, that statute provides that a public servant is guilty of official misconduct when, “with intent to obtain a benefit or deprive another person of a benefit[, the public servant] commits an act relating to [the public servant’s] office but constitut-

ing an unauthorized exercise of [the public servant's] official functions, knowing that such act is unauthorized" (*id.* § 195.00 [1]). Thus, "[i]n order to be guilty of official misconduct for malfeasance a defendant (1) must commit an act that constitutes an unauthorized exercise of [the defendant's] official functions, (2) knowing that the act is unauthorized, (3) with the intent to obtain a benefit or deprive another of a benefit" (*People v Flanagan*, 28 NY3d 644, 657 [2017]).

Contrary to defendant's contentions, the information was not jurisdictionally defective. The information was jurisdictionally valid because it contained "nonconclusory factual allegations that, if assumed to be true, address[ed] each element of the crime charged, thereby affording reasonable cause to believe that defendant committed that offense" (*People v Matthew P.*, 26 NY3d 332, 335-336 [2015] [internal quotation marks omitted]; see *People v Kalin*, 12 NY3d 225, 228-229 [2009]).

The information alleged that on March 25, 2015, while working as an alcohol and substance abuse treatment program aide at Great Meadows Correctional Facility, defendant disclosed information to an inmate regarding an "unusual incident" that occurred at the facility on March 9, 2015, in violation of the employee manual that defendant signed on May 28, 2013. If true, those factual allegations establish both that defendant committed an act relating to her office but constituting an unauthorized exercise of her official functions, and that defendant knew that the disclosure to the inmate was unauthorized (see Penal Law § 195.00 [1]). Defendant's statement to police, attached to the information as a supporting deposition (see CPL 100.40 [1] [b], [c]), also contained defendant's admission that she printed paperwork regarding the unusual incident on a facility computer, which paperwork the inmate then took to his cell. The information, supported by defendant's admissions in her statement to police, sufficiently alleged that defendant knowingly left those documents in a place where they could be accessed by an inmate who defendant knew was not authorized to receive them.

With respect to the third element—that defendant must act with the intent to obtain a benefit or deprive another of a benefit—defendant's intent may be reasonably inferred from her conduct and the surrounding circumstances (see *People v Hatton*, 26 NY3d 364, 370 [2015]). As explained, the information, with defendant's statement attached as a supporting deposition, sufficiently alleged that defendant disclosed information

to an inmate that the inmate was not authorized to have, and that defendant knew that this disclosure was unauthorized. From those allegations, coupled with defendant's admissions in her statement regarding inappropriate contact with and favors conducted for inmates involved in the unusual incident and the disclosure, one can reasonably infer that defendant committed the unauthorized disclosure with the intent to benefit herself or the inmates involved. Notably, a "benefit" is defined as "any gain or advantage to the beneficiary and includes any gain or advantage to a third person pursuant to the desire or consent of the beneficiary" (Penal Law § 10.00 [17]). In this case, the People were not required to specify in the information whether defendant intended to benefit herself or the inmates, because either or both would satisfy this element of the statute and both theories are supported by defendant's statement to police (*see generally People v Charles*, 61 NY2d 321, 327-328 [1984]).

Defendant's remaining arguments are not jurisdictional challenges to the sufficiency of the information and are forfeited by defendant's guilty plea (*see Kalin*, 12 NY3d at 229 n 2; *People v Casey*, 95 NY2d 354, 367 [2000]).

Concur: Chief Judge DiFiore and Judges Rivera, Stein, Fahy, Garcia, Wilson and Feinman.

Order affirmed, in a memorandum.

In the Matter of TAKODA G. and Others. ONTARIO COUNTY
DEPARTMENT OF SOCIAL SERVICES CHILD PROTECTIVE UNIT,
Respondent; JUAN T., Appellant.

Submitted February 3, 2020; decided April 30, 2020

Reported below, 177 AD3d 1345.

Motion for leave to appeal dismissed upon the ground that this Court does not have jurisdiction to entertain it. Motion for poor person relief dismissed as academic.

THE PEOPLE OF THE STATE OF NEW YORK ex rel. ANTHONY HILL,
Appellant, v CHRISTOPHER MILLER, as Superintendent of
Great Meadow Correctional Facility, Respondent.

Submitted February 10, 2020; decided April 30, 2020

Reported below, 175 AD3d 790.

Motion for reargument of motion for leave to appeal denied [see 34 NY3d 907 (2019)].

Judge FEINMAN taking no part.

In the Matter of ALIYAH HINES, Respondent, v PETERSON JEAN BAPTISTE, Appellant.

Submitted January 13, 2020; decided April 30, 2020

Reported below, 178 AD3d 825.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v SHARON LASHLEY, Respondent.

Submitted April 27, 2020; decided April 30, 2020

Reported below, 178 AD3d 506.

Motion for assignment of counsel granted and Robert S. Dean, Esq., Center for Appellate Litigation, 120 Wall Street, 28th Floor, New York, NY 10005 assigned as counsel to the respondent on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ANTHONY LORA, Appellant.

Decided April 30, 2020

Reported below, 177 AD3d 518.

Appeal dismissed, by the Court of Appeals sua sponte, upon the ground that the reversal by the Appellate Division was not “on the law alone or upon the law and such facts which, but for the determination of law, would not have led to reversal” (CPL 450.90 [2] [a]).

ARUN NAIR, Appellant, v CITY OF NEW YORK, Respondent, et al., Defendants.

Submitted January 13, 2020; decided April 30, 2020

Reported below, 167 AD3d 761.

Motion for reargument of motion for leave to appeal denied [see 34 NY3d 1012 (2019)].

NATIONSTAR MORTGAGE, LLC, Respondent, v MARTIN DEKOM, Appellant, et al., Defendants.

Submitted November 5, 2018; decided April 30, 2020

Reported below, 161 AD3d 995.

Motion, insofar as it seeks leave to appeal from the portion of the Appellate Division order that affirmed the December 2014 Supreme Court judgment, denied; motion for leave to appeal otherwise dismissed upon the ground that the remaining portions of the Appellate Division order do not finally determine the action within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

In the Matter of JAMES PETTUS et al., Appellants, v BOARD OF DIRECTORS et al., Respondents.

Decided April 30, 2020

Reported below, 2019 NY Slip Op 83545(U).

Appeal dismissed without costs, by the Court of Appeals sua sponte, upon the ground that it does not lie (*see* NY Const, art VI, § 3 [b]; CPLR 5601).

DEEPIKA REDDY, Appellant, v GILLES R.R. ABITBOL, Respondent.

Decided April 30, 2020

Reported below, 2020 NY Slip Op 61232(U).

Appeal dismissed without costs, by the Court of Appeals sua sponte, upon the ground that the order appealed from does not finally determine the action within the meaning of the Constitution.

DEEPIKA REDDY, Appellant, v WSYR NEWSCHANNEL 9 et al., Respondents.

Decided April 30, 2020

Reported below, 2020 NY Slip Op 61201(U).

Appeal dismissed without costs, by the Court of Appeals sua sponte, upon the ground that the order appealed from does not finally determine the action within the meaning of the Constitution.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v DAVID
ROBINSON, Appellant.

Submitted March 30, 2020; decided April 30, 2020

Reported below, 176 AD3d 876.

Motion for assignment of counsel granted and Paul Skip Laisure, Esq., Appellate Advocates, 111 John Street, 9th Floor, New York, NY 10038 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v LANCE
RODRIGUEZ, Appellant.

Submitted April 6, 2020; decided April 30, 2020

Reported below, 176 AD3d 1111.

Motion for assignment of counsel granted and Paul Skip Laisure, Esq., Appellate Advocates, 111 John Street, 9th Floor, New York, NY 10038 assigned as counsel to the appellant on the appeal herein.

SHORE TOWERS, INC., Respondent, v GAIL ABT, Appellant.

Submitted January 27, 2020; decided April 30, 2020

Reported below, 2019 NY Slip Op 85235(U)

Motion for leave to appeal dismissed upon the ground that this Court does not have jurisdiction to entertain this motion for leave to appeal from the order of the Appellate Division entered in this proceeding commenced in the Civil Court of the City of New York (*see* NY Const, art VI, § 3 [b] [7]; CPLR 5602 [a]).

THE PEOPLE OF THE STATE OF NEW YORK ex rel. DERRICK THOMPSON, Appellant, v WILLIAM KEYSER, as Superintendent of Sullivan Correctional Facility, Respondent.

Submitted December 30, 2019; decided April 30, 2020

Reported below, 173 AD3d 1586.

Motion for reargument of motion for leave to appeal denied [see 34 NY3d 904 (2019)].

THE PEOPLE OF THE STATE OF NEW YORK ex rel. DAVID WILLIAMS, Appellant, v THE PEOPLE OF THE STATE OF NEW YORK, Respondent.

Decided April 30, 2020

Appeal dismissed without costs, by the Court of Appeals sua sponte, upon the ground that no appeal lies to this Court from an order of an individual Justice of the Appellate Division (see NY Const, art VI, § 3 [b]; CPLR 5601).

[147 NE3d 1129, 124 NYS3d 591]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ELIJAH FOSTER-BEY, Appellant.

Argued February 12, 2020; decided March 31, 2020

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered February 7, 2018. The Appellate Division affirmed a judgment of the Supreme Court, Kings County (Joel M. Goldberg, J.), which had convicted defendant, upon a jury verdict, of assault in the first degree and criminal possession of a weapon in the second degree.

People v Foster-Bey, 158 AD3d 641, affirmed.

HEADNOTES

Crimes — Evidence — DNA Identification Tests — Admission of Low Copy Number DNA Evidence and Analysis Using Forensic Statistical Tool without *Frye* Hearing

1. In a criminal prosecution, the trial court abused its discretion as a matter of law in admitting low copy number DNA evidence and the results of an analysis conducted using the proprietary forensic statistical tool linking defendant to the gun used in a shooting without first holding a *Frye* hearing, given defendant's showing that there was uncertainty regarding whether such proof was generally accepted in the relevant scientific community at the time of his motion to preclude that evidence.

Crimes — Harmless and Prejudicial Error — Admission of Low Copy Number DNA Evidence and Analysis Using Forensic Statistical Tool without *Frye* Hearing

2. In defendant's prosecution for shooting a police officer, the trial court's errors in admitting low copy number DNA evidence and forensic statistical tool results linking defendant to the gun used in the shooting were harmless in light of the eyewitness testimony as to the shooting and defendant's admission to his involvement in that incident. The incident was described for the jury by the victim as well as another police officer eyewitness. Two more police witnesses, respectively, linked defendant to the gun and established that defendant admitted to having shot the victim.

APPEARANCES OF COUNSEL

Paul Skip Laisure, Appellate Advocates, New York City (*Dina Zloczower* of counsel), for appellant.

Eric Gonzalez, District Attorney, Brooklyn (*Seth M. Lieberman* and *Leonard Joblove* of counsel), for respondent.

Weil, Gotshal & Manges LLP, New York City (*Konrad Cailteux* and *Carolyn R. Davis* of counsel), and *Innocence Project, Inc.*, New York City (*M. Chris Fabricant* of counsel), for The Innocence Project, amicus curiae.

Jones Day, New York City (*Meir Feder* and *Donald L.R. Goodson* of counsel), for Office of the Appellate Defender, Inc., and others, amici curiae.

The Legal Aid Society, New York City (*David Loftis*, *J. David Pollock* and *Terri S. Rosenblatt* of counsel), and *Hughes Hubbard & Reed LLP*, New York City (*William Beausoleil*, *Marc Weinstein*, *Miles Orton* and *Sabrine Tribié* of counsel), for The Legal Aid Society, amicus curiae.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed.

This case was argued with *People v Cadman Williams* (35 NY3d 24 [2020] [decided herewith]) and, although the underlying

ing facts of the respective matters are different, the analysis and the result are the same. In this case defendant shot a New York City police officer twice in the leg in an incident that was described for the jury by the victim as well as another police officer eyewitness. Two more police witnesses, respectively, linked defendant to the gun and established that defendant admitted to having shot the subject police officer, albeit accidentally per his claim.

In addition to that evidence, the People intended to link defendant to the gun not through a standard DNA analysis, which could not connect defendant to the gun, but through low copy number (LCN) and forensic statistical tool (FST) evidence. Defendant sought an order precluding that evidence, but the trial court denied that application without first holding a *Frye* hearing. Similar to *Williams*, defendant relied on a scholarly writing from Dr. Bruce Budowle in contending that LCN evidence had not been deemed generally acceptable in the relevant scientific community, and that the Office of Chief Medical Examiner (OCME) was the only government facility employing that method for analysis of evidence to be used in a criminal prosecution. Further similar to *Williams*, defendant contended that the FST had not been generally accepted within the scientific community inasmuch as it had not been validated by anything or anyone other than OCME. The motion court denied defendant's application in a terse ruling that relied on *People v Garcia* (39 Misc 3d 482 [Sup Ct, Bronx County 2013]) and *People v Megnath* (27 Misc 3d 405 [Sup Ct, Queens County 2010]). The Appellate Division followed suit (158 AD3d 641 [2d Dept 2018]).

[1, 2] Our analysis tracks that set forth in *Williams* (35 NY3d at 37-42) in that it was an abuse of discretion as a matter of law to admit LCN and FST evidence without first holding a *Frye* hearing given defendant's showing that there was uncertainty regarding whether such proof was generally accepted in the relevant scientific community at the time of the subject motion. We also conclude, however, that the error here was harmless in light of the eyewitness testimony as to the shooting and defendant's admission to his involvement in that incident (*see generally People v Crimmins*, 36 NY2d 230, 241-242 [1975]).

Chief Judge DiFiore (concurring). I concur for the reasons stated in my concurring opinion in *People v Williams* (35 NY3d 24 [2020] [decided herewith]), and agree with the majority that any error in the court's denial of the *Frye* hearing (*Frye v*

United States, 293 F 1013 [DC Cir 1923]) was harmless, given the overwhelming evidence of defendant’s identity as the shooter. Although defendant’s motion papers were relatively sparse, a factual issue was sufficiently joined as here the multiple-source DNA sample at issue was 16.3 picograms—below the apparent 25 picogram threshold validated by Office of Chief Medical Examiner’s internal studies and approved for use by the DNA subcommittee and the Commission on Forensic Science—and, at the time of the motion practice in April 2013, no prior determination on the general acceptability of forensic statistical tool (FST) evidence in the relevant scientific community had been issued after a *Frye* hearing. Therefore, the court’s “complete deference” to the decision in *People v Garcia* (39 Misc 3d 482 [Sup Ct, Bronx County 2013], *affd* 170 AD3d 462 [1st Dept 2019], *lv denied* 33 NY3d 1069 [2019]), which held, without a *Frye* hearing, that both low copy number testing results and FST evidence were generally accepted in the scientific community and admissible, was not a sufficient basis to deny the *Frye* hearing (*see Williams*, 35 NY3d at 53 [concurring op]).

Judges RIVERA, STEIN, FAHEY and WILSON concur; Chief Judge DiFIORE concurs in result in an opinion in which Judges GARCIA and FEINMAN concur.

Order affirmed, in a memorandum.

BROOKLYN CENTER FOR PSYCHOTHERAPY, INC., Appellant, v PHILADELPHIA INDEMNITY INSURANCE COMPANY, Respondent.

Decided May 7, 2020

See 955 F3d 305.

Certification of a question by the United States Court of Appeals for the Second Circuit, pursuant to section 500.27 of the Rules of Practice of the Court of Appeals (22 NYCRR 500.27), accepted and the issues presented are to be considered after briefing and argument.

Concur: Chief Judge DiFIORE and Judges RIVERA, STEIN, FAHEY, GARCIA, WILSON and FEINMAN.

In the Matter of CHAD CAMPBELL, Appellant, v TINA M. STANFORD, Respondent.

Submitted January 21, 2020; decided May 7, 2020

Reported below, 173 AD3d 1012.

Motion for leave to appeal dismissed upon the ground that the issues presented have become moot.

In the Matter of CHAD CAMPBELL, Appellant, v TINA M. STANFORD, Respondent.

Submitted February 24, 2020; decided May 7, 2020

Reported below, 173 AD3d 1012.

Motion by the Parole Preparation Project for leave to appear amicus curiae on the motion for leave to appeal herein granted and the brief is accepted as filed.

In the Matter of CHAD CAMPBELL, Appellant, v TINA M. STANFORD, Respondent.

Submitted February 24, 2020; decided May 7, 2020

Reported below, 173 AD3d 1012.

Motion by The Sentencing Project for leave to appear amicus curiae on the motion for leave to appeal herein granted and the brief is accepted as filed.

JOSEPH DEGIDIO, Respondent, v CITY OF NEW YORK et al., Appellants-Respondents, et al., Defendants. METROPOLITAN TRANSPORTATION AUTHORITY et al., Third-Party Appellants, v HOFFMAN EQUIPMENT COMPANY, Third-Party Respondent, and J&E INDUSTRIES, LLC, Third-Party Respondent.

Submitted November 25, 2019; decided May 7, 2020

Reported below, 176 AD3d 452.

Motion by City of New York et al., insofar as it seeks leave to appeal as against J&E Industries, LLC, denied; motion for leave to appeal otherwise dismissed upon the ground that the order sought to be appealed from does not finally determine the action as to the remaining parties and is not an order of the type provided for in CPLR 5602 (a) (2). Motion by Metropolitan Transportation Authority et al. for leave to appeal as against J&E Industries, LLC denied.

In the Matter of G.P., Appellant, v N.Y. STATE DIVISION OF HUMAN RIGHTS et al., Respondents.

Submitted February 3, 2020; decided May 7, 2020

Reported below, 172 AD3d 639.

Motion for reargument of motion for leave to appeal denied [see 34 NY3d 906 (2019)].

VICTORIA E. GRIBBIN, Appellant, v WILLIAM J. GRIBBIN II, Respondent. VERONICA RENTA IRWIN, Nonparty Respondent.

Submitted January 27, 2020; decided May 7, 2020

Reported below, 2019 NY Slip Op 85624(U).

Motion for leave to appeal dismissed upon the ground that no appeal lies from the Appellate Division order dismissing an appeal from an order entered upon default (*see* CPLR 5511).

C. LOUISE HEPWORTH, Respondent, v DOUGLAS J. HEPWORTH et al., Appellants. DOUGLAS J. HEPWORTH et al., Third-Party Appellants, v MICHAEL CHARLES, Third-Party Respondent.

Submitted January 13, 2020; decided May 7, 2020

Reported below, 178 AD3d 416.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of MICHAEL S., Respondent, v SULTANA R., Appellant.

In the Matter of MICHAEL S., Repondent, v SULTANA R., Respondent.

Submitted January 27, 2020; decided May 7, 2020

Reported below, 163 AD3d 464.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceedings within the meaning of the Constitution.

In the Matter of SCOTT MYERS, Appellant, v MUNICIPALITY OF GREENE COUNTY et al., Respondents.

Submitted February 18, 2020; decided May 7, 2020

Reported below, 2019 NY Slip Op 79360(U).

Motion for reargument of motion for leave to appeal denied [see 34 NY3d 1090 (2020)].

STEPHANIE OLSON, Respondent, v DAVID OLSON, Appellant.

Submitted January 13, 2020; decided May 7, 2020

Reported below, 177 AD3d 567.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v DRURY DUVAL, Appellant.

Submitted March 23, 2020; decided May 7, 2020

Reported below, 179 AD3d 62.

Motion to unseal denied.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v RICHARD B. GAWORECKI, Appellant.

Submitted March 16, 2020; decided May 7, 2020

Reported below, 174 AD3d 1143.

Motion to vacate this Court's February 6, 2020 preclusion order granted.

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v DARRIN
McGHEE, Respondent.

Submitted February 3, 2020; decided May 7, 2020

Reported below, 180 AD3d 26.

Motion to dismiss appeal denied.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v MANUEL
MORALES, Appellant.

Submitted May 4, 2020; decided May 7, 2020

Reported below, 176 AD3d 1235.

Motion for assignment of counsel granted and Janet E. Sabel, Esq., The Legal Aid Society, 199 Water Street, New York, NY 10038 assigned as counsel to the appellant on the appeal herein.

In the Matter of CHARLES ROCHESTER, Appellant, v CITY OF
NEW YORK POLICE DEPARTMENT-FOIL et al., Respondents.

Submitted January 13, 2020; decided May 7, 2020

Reported below, 2019 NY Slip Op 85389(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

CHARLENE SIMMONS, Appellant, v TRANS EXPRESS INC., Respondent.

Decided May 7, 2020

See 955 F3d 325.

Certification of a question by the United States Court of Appeals for the Second Circuit, pursuant to section 500.27 of Rules of Practice of the Court of Appeals (22 NYCRR 500.27), accepted and the issues presented are to be considered after briefing and argument.

Concur: Chief Judge DiFiore and Judges Rivera, Stein, Fahy, Garcia, Wilson and Feinman.

In the Matter of the Claim of MARK ST. REMY, Appellant, v
SIEMENS CORP. et al., Respondents. WORKERS' COMPENSA-
TION BOARD, Respondent.

Submitted February 3, 2020; decided May 7, 2020

Reported below, 178 AD3d 1255.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

XUE JIE HE, Appellant, v HAIRONG XUE, Respondent.

Submitted January 27, 2020; decided May 7, 2020

Reported below, 62 Misc 3d 126(A), 2018 NY Slip Op 51849(U).

Motion for leave to appeal dismissed upon the ground that this Court does not have jurisdiction to entertain it (*see* NY Const, art VI, § 3; CPLR 5602). Motion for poor person relief etc. dismissed as academic.

APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL

(April 1, 2020 through April 30, 2020)

People v Abodalo	2d Dept: 178 AD3d 1067 (Nassau)	denied 4/15/20 (Stein, J.)
People v Adam D.	1st Dept: 180 AD3d 549 (Bronx)	denied 4/28/20 (Fahey, J.)
People v Amakye	App Term, 1st Dept: 65 Misc 3d 128(A) (Bronx)	denied reconsideration 4/30/20 (DiFiore, Ch. J.)
People v Anazco	App Term, 1st Dept: 66 Misc 3d 139(A) (NY)	denied 4/9/20 (Wilson, J.)
People v Anderson	2d Dept: 179 AD3d 942 (Dutchess)	denied 4/27/20 (Feinman, J.)
People v Anglin	2d Dept: 178 AD3d 839 (Kings)	denied 4/23/20 (Rivera, J.)
People v Bah	App Term, 1st Dept: 66 Misc 3d 138(A) (NY)	denied 4/23/20 (Rivera, J.)
People v Baker	2d Dept: 179 AD3d 827 (Kings)	denied 4/15/20 (Stein, J.)
People v Ballard	App Term, 2d Dept, 9th & 10th Jud Dists: 66 Misc 3d 133(A) (Suffolk)	denied 4/9/20 (Wilson, J.)

People v Bell	1st Dept: 179 AD3d 554 (NY)	denied 4/22/20 (Garcia, J.)
People v Bell-Bradley	4th Dept: 179 AD3d 1539 (Erie)	denied 4/23/20 (Rivera, J.)
People v Bennett	1st Dept: 180 AD3d 437 (NY)	denied 4/29/20 (Stein, J.)
People v Betances	3d Dept: 179 AD3d 1225 (Tompkins)	denied 4/28/20 (DiFiore, Ch. J.)
People v Biaselli	4th Dept: 179 AD3d 1533 (Orleans)	granted 4/9/20 (Wilson, J.)
People v Blackshell (Johnny)	4th Dept: 178 AD3d 1355 (Monroe)	denied 4/23/20 (Rivera, J.) (Appeal No. 1)
People v Blackshell (Johnny)	4th Dept: 178 AD3d 1358 (Monroe)	denied 4/23/20 (Rivera, J.) (Appeal No. 2)
People v Blackshell (Johnny)	4th Dept: 178 AD3d 1358 (Monroe)	denied 4/23/20 (Rivera, J.) (Appeal No. 3)
People v Blanford	3d Dept: 179 AD3d 1388 (Broome)	denied 4/28/20 (Fahey, J.)
People v Boylan	App Div, 2d Dept: 2020 NY Slip Op 61663(U) (Suffolk)	dismissed 4/8/20 (Fahey, J.)
People v Brown (Gerald)	4th Dept: 180 AD3d 1341 (Onondaga)	denied 4/21/20 (Fahey, J.)
People v Brown (Stafford)	2d Dept: 180 AD3d 1063 (Kings)	denied 4/29/20 (Garcia, J.)
People v Bryant (Sabastian)	1st Dept: 180 AD3d 472 (NY)	denied 4/27/20 (Rivera, J.)
People v Bryant (Shelton)	1st Dept: 180 AD3d 442 (NY)	denied 4/23/20 (Garcia, J.)
People v Cagan	1st Dept: 179 AD3d 504 (Bronx)	denied 4/23/20 (Rivera, J.)
People v Caldwell	App Div, 2d Dept: 2020 NY Slip Op 61662(U) (Suffolk)	dismissed 4/8/20 (Fahey, J.)
People v Camarano	App Div, 1st Dept: 2020 NY Slip Op 62708(U) (NY)	denied 4/30/20 (Fahey, J.)
People v Capella	1st Dept: 180 AD3d 498 (NY)	denied 4/30/20 (DiFiore, Ch. J.)
People v Cardona	2d Dept: 177 AD3d 647 (Putnam)	denied 4/26/20 (Wilson, J.)
People v Chalupa	App Term, 1st Dept: 66 Misc 3d 139(A) (Bronx)	denied 4/9/20 (Wilson, J.)
People v Chapman	4th Dept: 179 AD3d 1526 (Erie)	denied 4/30/20 (DiFiore, Ch. J.)
People v Cheatham	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 66 Misc 3d 149(A) (Kings)	denied 4/23/20 (Rivera, J.)
People v Christie (Paul)	1st Dept: 176 AD3d 618 (NY)	denied 4/27/20 (Feinman, J.)
People v Christie (Terel)	2d Dept: 180 AD3d 802 (Kings)	denied 4/22/20 (Garcia, J.)

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People v Chuck	2d Dept: 179 AD3d 942 (Dutchess)	denied 4/27/20 (Feinman, J.)
People v Clavell	2d Dept: 176 AD3d 844 (Queens)	denied 4/29/20 (Stein, J.)
People v Clemmons	2d Dept: 177 AD3d 899 (Dutchess)	denied 4/21/20 (Fahey, J.)
People v Coffee	4th Dept: 175 AD3d 1850 (Monroe)	denied reconsideration 4/9/20 (Wilson, J.)
People v Cooper	2d Dept: 179 AD3d 832 (Kings)	denied 4/22/20 (Garcia, J.)
People v Cortes	1st Dept: 179 AD3d 513 (NY)	denied 4/23/20 (Rivera, J.)
People v Cox	1st Dept: 180 AD3d 506 (NY)	denied 4/9/20 (Wilson, J.)
People v Crittenden	4th Dept: 179 AD3d 1543 (Monroe)	denied 4/9/20 (Wilson, J.)
People v Daoust (David)	4th Dept: 178 AD3d 1420 (Niagara)	denied 4/15/20 (Stein, J.) (Appeal No. 1)
People v Daoust (David)	4th Dept: 178 AD3d 1424 (Niagara)	denied 4/15/20 (Stein, J.) (Appeal No. 2)
People v Davis (Bobby)	4th Dept: 179 AD3d 1507 (Monroe)	denied 4/27/20 (Rivera, J.)
People v Davis (Erica)	4th Dept: 177 AD3d 1323 (Erie)	denied 4/9/20 (Wilson, J.)
People v Delbrey	3d Dept: 179 AD3d 1292 (Washington)	denied 4/21/20 (Fahey, J.)
People v Dima	County Ct, 12/6/19 (Onondaga)	denied 4/9/20 (Wilson, J.)
People v Dove (Donald)	App Div, 3d Dept: 2020 NY Slip Op 60537(U) (Broome)	dismissed 4/9/20 (Wilson, J.)
People v Dove (Donald)	App Div, 3d Dept: 2020 NY Slip Op 60538(U) (Broome)	dismissed 4/9/20 (Wilson, J.)
People v Dove (Donald)	App Div, 3d Dept: 2020 NY Slip Op 60539(U) (Broome)	dismissed 4/9/20 (Wilson, J.)
People v Dunkley	2d Dept: 177 AD3d 767 (Suffolk)	denied 4/27/20 (Feinman, J.)
People v Eady	4th Dept: 179 AD3d 1452 (Monroe)	denied 4/23/20 (Garcia, J.)
People v Edwards	3d Dept: 180 AD3d 1111 (Madison)	denied 4/30/20 (DiFiore, Ch. J.)
People v Evans	1st Dept: 179 AD3d 549 (NY)	denied 4/29/20 (Stein, J.)
People v Favors	4th Dept: 180 AD3d 1375 (Erie)	denied 4/27/20 (Feinman, J.)
People v Ferdinand	2d Dept: 179 AD3d 716 (Kings)	denied 4/9/20 (Wilson, J.)
People v Fernandez	1st Dept: 179 AD3d 574 (NY)	denied 4/28/20 (DiFiore, Ch. J.)

People v Figueroa	App Div, 2d Dept: 2020 NY Slip Op 63651(U) (Kings)	dismissed 4/27/20 (Feinman, J.)
People v Finster	4th Dept: 136 AD3d 1279 (Oneida)	denied reconsideration 4/23/20 (Rivera, J.)
People v Fisher	App Term, 2d Dept, 9th & 10th Jud Dists: 66 Misc 3d 140(A) (Suffolk)	denied 4/15/20 (Stein, J.)
People v Flagg	App Div, 1st Dept: 2019 NY Slip Op 84820(U) (NY)	denied 4/15/20 (Stein, J.)
People v Florio	2d Dept: 179 AD3d 834 (Nassau)	denied 4/28/20 (Fahey, J.)
People v Folk	2d Dept: 179 AD3d 946 (Kings)	denied 4/27/20 (Feinman, J.)
People v Folks	App Div, 1st Dept: 2020 NY Slip Op 60033(U) (Bronx)	denied 4/29/20 (Garcia, J.)
People v Frias	2d Dept: 180 AD3d 704 (Kings)	denied 4/23/20 (Rivera, J.)
People v Fuentes	2d Dept: 180 AD3d 803 (Kings)	denied 4/28/20 (DiFiore, Ch. J.)
People v Gabriel	App Div, 3d Dept: 2020 NY Slip Op 62834(U) (Rensselaer)	dismissed 4/22/20 (Garcia, J.)
People v Gamble	1st Dept: 179 AD3d 580 (Bronx)	denied 4/27/20 (Feinman, J.)
People v Gentil	2d Dept: 177 AD3d 999 (Queens)	denied 4/15/20 (Stein, J.)
People v Gilmore (Furman)	3d Dept: 177 AD3d 1029 (Greene)	denied 4/23/20 (Garcia, J.)
People v Gilmore (Junior)	3d Dept: 177 AD3d 1029 (Greene)	denied 4/23/20 (Garcia, J.)
People v Glanville	2d Dept: 180 AD3d 803 (Queens)	denied 4/28/20 (DiFiore, Ch. J.)
People v Glaude	2d Dept: 178 AD3d 729 (Kings)	denied 4/15/20 (Stein, J.)
People v Graves	4th Dept: 163 AD3d 16 (Seneca)	denied 4/15/20 (Stein, J.)
People v Green	1st Dept: 178 AD3d 603 (NY)	denied 4/8/20 (Fahey, J.)
People v Groome	1st Dept: 180 AD3d 613 (Bronx)	denied 4/27/20 (Feinman, J.)
People v Hamilton	2d Dept: 180 AD3d 1068 (Dutchess)	denied 4/25/20 (Feinman, J.)
People v Harris	3d Dept: 177 AD3d 1199 (Schenectady)	denied 4/29/20 (Stein, J.)
People v Hayden-Larson	4th Dept: 179 AD3d 1549 (Erie)	denied 4/9/20 (Wilson, J.)
People v Hayes	App Div, 1st Dept: 2020 NY Slip Op 61643(U) (NY)	dismissed 4/23/20 (Garcia, J.)
People v Herrera	2d Dept: 179 AD3d 1094 (Kings)	denied 4/27/20 (Rivera, J.)

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People v Hicks	1st Dept: 180 AD3d 597 (NY)	denied 4/27/20 (Rivera, J.)
People v Hill	4th Dept: 178 AD3d 1451 (Niagara)	denied 4/23/20 (Rivera, J.)
People v Idrovo	2d Dept: 179 AD3d 1095 (Queens)	denied 4/9/20 (Wilson, J.)
People v Irizarry	App Term, 2d Dept, 9th & 10th Jud Dists: 66 Misc 3d 133(A) (Suffolk)	denied 4/15/20 (Stein, J.)
People v J	3d Dept: 179 AD3d 1395 (Albany)	denied 4/21/20 (Fahey, J.)
People v Jackson	2d Dept: 180 AD3d 930 (Nassau)	denied 4/28/20 (Fahey, J.)
People v Jalloh	1st Dept: 181 AD3d 437 (Bronx)	denied 4/27/20 (Rivera, J.)
People v James	2d Dept: 179 AD3d 1095 (Orange)	denied 4/26/20 (Wilson, J.)
People v Jerrick (Olivair)	2d Dept: 179 AD3d 948 (Kings)	denied 4/15/20 (Stein, J.)
People v Jerrick (Oliver)	2d Dept: 179 AD3d 948 (Kings)	denied 4/15/20 (Stein, J.)
People v Jordan	1st Dept: 180 AD3d 567 (NY)	denied 4/23/20 (Rivera, J.)
People v Karadag	2d Dept: 181 AD3d 620 (Suffolk)	denied 4/29/20 (Garcia, J.)
People v Kyra J.	2d Dept: 180 AD3d 929 (Kings)	denied 4/21/20 (DiFiore, Ch. J.)
People v Laboy	1st Dept: 178 AD3d 491 (Bronx)	denied 4/23/20 (Rivera, J.)
People v Lasher	App Div, 3d Dept: 2020 NY Slip Op 60535(U) (Schenectady)	denied 4/23/20 (Rivera, J.)
People v Latimore	4th Dept: 179 AD3d 1551 (Monroe)	denied 4/30/20 (DiFiore, Ch. J.)
People v Laws	4th Dept: 177 AD3d 1404 (Wayne)	granted 4/29/20 (Garcia, J.)
People v Leasure	2d Dept: 177 AD3d 770 (Queens)	denied 4/29/20 (Stein, J.)
People v Livingston	App Term, 1st Dept: 66 Misc 3d 148(A) (NY)	denied 4/29/20 (Garcia, J.)
People v Lewis	4th Dept: 177 AD3d 1351 (Ontario)	denied reconsideration 4/23/20 (Garcia, J.)
People v Liverman	2d Dept: 180 AD3d 932 (Kings)	denied 4/15/20 (DiFiore, Ch. J.)
People v Lobao	3d Dept: 178 AD3d 1238 (Albany)	denied 4/30/20 (DiFiore, Ch. J.)
People v Lopez	2d Dept: 180 AD3d 932 (Queens)	denied 4/23/20 (Rivera, J.)
People v Major	1st Dept: 178 AD3d 607 (NY)	denied 4/15/20 (Stein, J.)

People v Martinez	1st Dept: 180 AD3d 190 (NY)	denied 4/28/20 (Fahey, J.)
People v McCoy	2d Dept: 180 AD3d 715 (Suffolk)	denied 4/23/20 (Rivera, J.)
People v Meir	4th Dept: 178 AD3d 1452 (Erie)	denied 4/27/20 (Feinman, J.)
People v Molina	1st Dept: 180 AD3d 564 (NY)	denied 4/19/20 (Wilson, J.)
People v Molski	4th Dept: 179 AD3d 1540 (Oswego)	denied 4/27/20 (Feinman, J.)
People v Morales	2d Dept: 176 AD3d 1235 (Queens)	granted 4/9/20 (Wilson, J.)
People v Morrison	4th Dept: 179 AD3d 1454 (Ontario)	denied 4/23/20 (Rivera, J.)
People v Mosler	App Div, 1st Dept: 2020 NY Slip Op 60360(U) (NY)	denied 4/29/20 (Stein, J.)
People v Mullins	1st Dept: 180 AD3d 622 (Bronx)	denied 4/30/20 (Fahey, J.)
People v Muse	County Ct, 2/5/20 (Erie)	denied 4/27/20 (Feinman, J.)
People v Nelson	4th Dept: 178 AD3d 1395 (Monroe)	denied 4/23/20 (Rivera, J.)
People v Newsome	4th Dept: 180 AD3d 1338 (Monroe)	denied 4/23/20 (Garcia, J.)
People v Noel	2d Dept: 176 AD3d 844 (Queens)	denied 4/29/20 (Stein, J.)
People v Oakley	App Term, 2d Dept, 9th & 10th Jud Dists: 66 Misc 3d 142(A) (Westchester)	denied 4/27/20 (Feinman, J.)
People v Ogando	2d Dept: 178 AD3d 955 (Queens)	granted 4/1/20 (Fahey, J.)
People v Oldham	App Term, 1st Dept: 66 Misc 3d 140(A) (NY)	denied 4/27/20 (Feinman, J.)
People v Orell G.	2d Dept: 180 AD3d 803 (Kings)	denied 4/28/20 (Fahey, J.)
People v Osbourne	2d Dept: 178 AD3d 956 (Queens)	denied 4/9/20 (Wilson, J.)
People v Osorio	4th Dept: 179 AD3d 1512 (Onondaga)	denied 4/27/20 (Feinman, J.)
People v Ozuna	3d Dept: 177 AD3d 1040 (Ulster)	denied 4/30/20 (DiFiore, Ch. J.)
People v Panetta	App Term, 2d Dept, 9th & 10th Jud Dists: 66 Misc 3d 145(A) (Orange)	denied 4/27/20 (Rivera, J.)
People v Patel	App Div, 1st Dept: 2020 NY Slip Op 60044(U) (NY)	denied 4/28/20 (DiFiore, Ch. J.)
People v Perez-Medina	4th Dept: 179 AD3d 1458 (Niagara)	denied 4/23/20 (Garcia, J.)
People v Pleasant	2d Dept: 175 AD3d 1435 (Westchester)	denied 4/15/20 (Stein, J.)
People v Proctor	App Term, 1st Dept: 66 Misc 3d 136(A) (NY)	denied 4/9/20 (Wilson, J.)

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People v Quinones	App Div, 3d Dept: 2020 NY Slip Op 60540(U) (Sullivan)	dismissed 4/23/20 (Rivera, J.)
People v Ramirez	4th Dept: 180 AD3d 1378 (Monroe)	denied 4/23/20 (Garcia, J.)
People v Ramnath	1st Dept: 179 AD3d 589 (Bronx)	denied 4/23/20 (Rivera, J.)
People v Ramos (Bobby)	2d Dept: 178 AD3d 1090 (Kings)	denied 4/29/20 (Stein, J.)
People v Ramos (Chauncey)	App Div, 2d Dept: 2019 NY Slip Op 85058(U) (Westchester)	denied reconsideration 4/28/20 (Fahey, J.)
People v Ramos (Juan)	3d Dept: 179 AD3d 1395 (Albany)	denied 4/21/20 (Fahey, J.)
People v Rattary	1st Dept: 180 AD3d 565 (NY)	denied 4/30/20 (DiFiore, Ch. J.)
People v Rice	1st Dept: 180 AD3d 409 (NY)	denied 4/15/20 (Stein, J.)
People v Richardson	App Div, 3d Dept: 2019 NY Slip Op 83636(U) (Albany)	denied 4/23/20 (Rivera, J.)
People v Rideout	4th Dept: 177 AD3d 1377 (Monroe)	denied 4/28/20 (DiFiore, Ch. J.)
People v Rivera (Carmelo)	2d Dept: 180 AD3d 939 (Westchester)	denied 4/30/20 (Fahey, J.)
People v Rivera (Jorge)	1st Dept: 180 AD3d 617 (Bronx)	denied 4/29/20 (Stein, J.)
People v Rodriguez (Andres)	1st Dept: 176 AD3d 579 (NY)	denied reconsideration 4/9/20 (Wilson, J.)
People v Rodriguez (Edward)	4th Dept: 180 AD3d 1343 (Monroe)	denied 4/9/20 (Wilson, J.)
People v Rodriguez (Jose)	1st Dept: 180 AD3d 415 (NY)	denied 4/23/20 (Garcia, J.)
People v Rodriguez (William)	1st Dept: 180 AD3d 594 (NY)	denied 4/15/20 (DiFiore, Ch. J.)
People v Rodriguez (Yancarlos)	1st Dept: 180 AD3d 590 (Bronx)	denied 4/28/20 (Fahey, J.)
People v Rosario	2d Dept: 179 AD3d 952 (Westchester)	denied 4/23/20 (Rivera, J.)
People v Sall	1st Dept: 180 AD3d 471 (NY)	denied 4/9/20 (Wilson, J.)
People v Sanders	4th Dept: 180 AD3d 1327 (Erie)	denied 4/23/20 (Garcia, J.)
People v Sanon	3d Dept: 179 AD3d 1151 (Albany)	denied 4/9/20 (Wilson, J.)
People v Santana	3d Dept: 179 AD3d 1299 (Montgomery)	denied 4/21/20 (Fahey, J.)
People v Saunders	3d Dept: 176 AD3d 1384 (Broome)	denied 4/15/20 (Stein, J.)

People v Scarbrough	4th Dept: 175 AD3d 1851 (Niagara)	denied reconsideration 4/8/20 (Fahey, J.)
People v Seburia	3d Dept: 180 AD3d 1249 (Chemung)	denied 4/27/20 (Rivera, J.)
People v Service	App Div, 1st Dept: 2018 NY Slip Op 70066(U) (NY)	denied 4/9/20 (Wilson, J.)
People v Shamsuddin	App Div, 3d Dept: 2020 NY Slip Op 61352(U) (Albany)	denied 4/9/20 (Wilson, J.)
People v Sheenie	1st Dept: 179 AD3d 580 (Bronx)	denied 4/27/20 (Feinman, J.)
People v Shepard	1st Dept: 180 AD3d 488 (Bronx)	denied 4/23/20 (Rivera, J.)
People v Shorter	4th Dept: 179 AD3d 1445 (Onondaga)	denied 4/27/20 (Feinman, J.)
People v Shoy	1st Dept: 178 AD3d 621 (Bronx)	denied 4/15/20 (Stein, J.)
People v Simmonds	2d Dept: 175 AD3d 1440 (Queens)	denied 4/15/20 (Stein, J.)
People v Simmons	4th Dept: 180 AD3d 1328 (Onondaga)	denied 4/23/20 (Garcia, J.)
People v Simonton	County Ct, 1/22/20 (Yates)	dismissed 4/8/20 (Fahey, J.)
People v Sloley	3d Dept: 179 AD3d 1308 (Greene)	denied 4/23/20 (Rivera, J.)
People v Smith	1st Dept: 178 AD3d 524 (Bronx)	granted 4/30/20 (DiFiore, Ch. J.)
People v Solomon	2d Dept: 178 AD3d 966 (Suffolk)	denied 4/15/20 (Stein, J.)
People v Steele	App Div, 1st Dept: 2019 NY Slip Op 79574(U) (Bronx)	denied 4/27/20 (Feinman, J.)
People v Stenson	4th Dept: 179 AD3d 1449 (Monroe)	denied 4/15/20 (Stein, J.)
People v Strachn	App Term, 1st Dept: 66 Misc 3d 138(A) (NY)	denied 4/29/20 (Stein, J.)
People v Strauss	4th Dept: 179 AD3d 1487 (Onondaga)	denied 4/29/20 (Garcia, J.)
People v Sylvestre	2d Dept: 178 AD3d 863 (Nassau)	denied 4/15/20 (Stein, J.)
People v Taylor (Keith)	1st Dept: 180 AD3d 502 (NY)	denied 4/23/20 (Garcia, J.)
People v Taylor (Michael)	App Div, 3d Dept: 2019 NY Slip Op 68938(U) (Ulster)	denied 4/21/20 (Fahey, J.)
People v Thomas (Arkim)	2d Dept: 180 AD3d 813 (Queens)	denied 4/29/20 (Stein, J.)
People v Thomas (John)	2d Dept: 178 AD3d 967 (Kings)	denied 4/15/20 (Stein, J.)
People v Thomas (Louis)	1st Dept: 179 AD3d 587 (NY)	denied 4/9/20 (Wilson, J.)
People v Thompson	4th Dept: 180 AD3d 1356 (Yates)	denied 4/28/20 (Fahey, J.)

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People v Torres	2d Dept: 179 AD3d 846 (Rockland)	denied 4/23/20 (Garcia, J.)
People v Vasquez-Uceda	App Term, 2d Dept, 9th & 10th Jud Dists: 66 Misc 3d 149(A) (Nassau)	denied 4/23/20 (Rivera, J.)
People v Veerasamy	2d Dept: 179 AD3d 1103 (Queens)	denied 4/15/20 (Stein, J.)
People v Velazquez	App Term, 1st Dept: 66 Misc 3d 136(A) (Bronx)	denied 4/8/20 (Fahey, J.)
People v Wagnac	2d Dept: 180 AD3d 813 (Kings)	denied 4/15/20 (DiFiore, Ch. J.)
People v Walker	App Div, 1st Dept: 2020 NY Slip Op 60032(U) (NY)	denied 4/23/20 (Rivera, J.)
People v Walley	3d Dept: 176 AD3d 1513 (Schenectady)	granted 4/29/20 (Garcia, J.)
People v Washington	1st Dept: 179 AD3d 522 (Bronx)	denied 4/23/20 (Garcia, J.)
People v White (Erik)	1st Dept: 180 AD3d 406 (NY)	denied 4/27/20 (Feinman, J.)
People v White (Gerald)	County Ct, 1/9/20 (Wayne)	denied 4/23/20 (Garcia, J.)
People v Williams (David)	App Div, 1st Dept: 2020 NY Slip Op 61021(U) (NY)	dismissed 4/15/20 (Stein, J.)
People v Williams (Derek)	County Ct, 2/11/20 (Erie)	denied 4/21/20 (DiFiore, Ch. J.)
People v Williams (Melvin)	App Div, 1st Dept: 2020 NY Slip Op 61021(U) (NY)	dismissed 4/15/20 (Stein, J.)
People v Williams (Tyheem)	2d Dept: 180 AD3d 814 (Kings)	denied 4/27/20 (Feinman, J.)
People v Woodard	4th Dept: 179 AD3d 1504 (Monroe)	denied 4/9/20 (Wilson, J.)
People v Wynder	App Div, 1st Dept: 2019 NY Slip Op 85873(U) (NY)	denied 4/9/20 (Wilson, J.)

In the Matter of STEPHEN JASIKOFF, Appellant, v COMMISSIONERS OF THE WESTCHESTER COUNTY BOARD OF ELECTIONS, Respondents.

Decided May 19, 2020

Reported below, 183 AD3d 669.

Appeal dismissed without costs, by the Court of Appeals sua sponte, upon the ground that no substantial constitutional question is directly involved.

In the Matter of STEPHEN JASIKOFF, Appellant, v COMMISSIONERS OF THE WESTCHESTER COUNTY BOARD OF ELECTIONS, Respondents. DALE BARBARIA et al., Nonparty Respondents.

Decided May 19, 2020

Reported below, 183 AD3d 670.

Appeal dismissed without costs, by the Court sua sponte, upon the ground that no substantial constitutional question is directly involved.

In the Matter of ANTHONY R. PARASCANDO et al., Appellants, v ABRAHAM MONHEIT, Respondent, et al., Respondents.

Submitted May 19, 2020; decided May 19, 2020

Reported below, 183 AD3d 671.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

ISIDRO ABASCAL-MONTALVO, Appellant, v CITY OF NEW YORK, Respondent.

Submitted March 9, 2020; decided June 9, 2020

Reported below, 179 AD3d 620.

On the Court's own motion, appeal dismissed, without costs, upon the ground that no appeal lies as of right from the unanimous order of the Appellate Division absent the direct involvement of a substantial constitutional question (*see* CPLR 5601). Motion for leave to appeal denied. Motion for poor person relief dismissed as academic.

In the Matter of BABY BOY W., Also Known as MUHAMED UMAR W., an Infant. JESSICA W., Appellant; ADMINISTRATION FOR CHILDREN'S SERVICES, Respondent.

Submitted February 10, 2020; decided June 9, 2020

Reported below, 170 AD3d 538.

On the Court's own motion, appeal, insofar as against petitioner Administration for Children's Services, dismissed, without costs, as untimely (*see* CPLR 5513 [a]; *Eaton v State of New York*, 76 NY2d 824 [1990]); appeal otherwise dismissed, without costs, upon the ground that no appeal lies as of right from the unanimous order of the Appellate Division absent the direct involvement of a substantial constitutional question (*see* CPLR 5601). Motion, insofar as it seeks leave to appeal as against petitioner Administration for Children's Services, dismissed as untimely (*see* CPLR 5513 [b]; *Eaton v State of New York*, 76 NY2d 824 [1990]); motion for leave to appeal otherwise denied. Motion for poor person relief dismissed as academic.

MARK A. BASKIN, Appellant, v MABCO TRANSIT, INC., et al.,
Respondents, et al., Defendant.

Decided June 9, 2020

Reported below, 176 AD3d 1539.

Appeal dismissed without costs, by the Court of Appeals sua sponte, upon the ground that no substantial constitutional question is directly involved.

In the Matter of ELIOT F. BLOOM, a Suspended Attorney, Appellant. GRIEVANCE COMMITTEE FOR THE TENTH JUDICIAL DISTRICT, Respondent.

Decided June 9, 2020

Reported below, 180 AD3d 128.

Appeal dismissed without costs, by the Court of Appeals sua sponte, upon the ground that no substantial constitutional question is directly involved.

In the Matter of CHON-MICHAEL S., Also Known as CHON M.S., an Infant. SHANICE A., Appellant; THE NEW YORK FOUNDLING HOSPITAL, Respondent.

Submitted March 30, 2020; decided June 9, 2020

Reported below, 180 AD3d 615.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

CITY OF ONEONTA, Respondent, v MELANIA PERVU et al., Appellants.

Submitted January 6, 2020; decided June 9, 2020

On the Court's own motion, appeal transferred, without costs, to the Appellate Division, Third Department, upon the ground that a direct appeal does not lie when questions other than the constitutional validity of a statutory provision are involved (*see* NY Const, art VI, §§ 3 [b] [2]; 5 [b]; CPLR 5601 [b] [2]). Motion for leave to appeal dismissed upon the ground that this Court does not have jurisdiction to entertain it (*see* NY Const, art VI, § 3; CPLR 5602).

In the Matter of MARTIN DAVIS, Also Known as MORTON DAVIDSON, Deceased. ROGER DAVIS, Appellant; TERESA PADILLA, Respondent.

Decided June 9, 2020

Reported below, 180 AD3d 894.

Appeal dismissed without costs, by the Court of Appeals sua sponte, upon the ground that the order appealed from does not finally determine the proceeding within the meaning of the Constitution.

MARGARET DOE, Appellant, v BLOOMBERG L.P. et al., Defendants, and MICHAEL BLOOMBERG, Respondent.

Submitted May 4, 2020; decided June 9, 2020

Reported below, 178 AD3d 44.

Motion by National Employment Lawyers Association-New York for leave to appear amicus curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed. The brief must be submitted in digital format within 20 days.

STEVEN EPSTEIN et al., Respondents, v PRATT & D'ANGELO, INC.,
Appellant.

Submitted January 27, 2020; decided June 9, 2020

Reported below, 2019 NY Slip Op 64982(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

ESTATE DEVELOPMENT CO., LLC, et al., Respondents, v NICOLAE
PERVU et al., Appellants.

Submitted February 10, 2020; decided June 9, 2020

On the Court's own motion, appeal transferred, without costs, to the Appellate Division, Third Department, upon the ground that a direct appeal does not lie when questions other than the constitutional validity of a statutory provision are involved (*see* NY Const, art VI, §§ 3 [b] [2]; 5 [b]; CPLR 5601 [b] [2]). Motion for leave to appeal dismissed upon the ground that this Court does not have jurisdiction to entertain it (*see* NY Const, art VI, § 3; CPLR 5602).

KEVIN MARTIN, Appellant, et al., Plaintiff, v TOTAL REALTY ASSOCIATE, INC., Respondent.

Submitted January 6, 2020; decided June 9, 2020

Reported below, 2019 NY Slip Op 82247(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution. Motion for poor person relief dismissed as academic. Motion for a stay dismissed as academic.

In the Matter of PATROLMEN'S BENEVOLENT ASSOCIATION OF THE
CITY OF NEW YORK, Appellant, v BILL DE BLASIO et al.,
Respondents.

Submitted February 10, 2020; decided June 9, 2020

Reported below, 171 AD3d 636.

Motion for leave to appeal dismissed as untimely (*see* CPLR 5513 [b]; 2103 [b] [2]).

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ZESTRA HARDIN, Appellant.

Submitted June 1, 2020; decided June 9, 2020

Reported below, 177 AD3d 1001.

Motion for assignment of counsel granted and Janet E. Sabel, Esq., The Legal Aid Society, 199 Water Street, New York, NY 10038 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v HILLARY HEYNE, Appellant.

Submitted May 18, 2020; decided June 9, 2020

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 granted and motion papers treated as a timely CPL 460.20 application.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v NOLIS OGANDO, Appellant.

Submitted May 18, 2020; decided June 9, 2020

Reported below, 178 AD3d 955.

Motion for assignment of counsel granted and Paul Skip Laisure, Esq., Appellate Advocates, 111 John Street, 9th Floor, New York, NY 10038 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v GERMAN ROSADO-THOMAS, Also Known as “MAN MAN,” Appellant.

Submitted June 1, 2020; decided June 9, 2020

Reported below, 181 AD3d 1166.

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 granted and motion papers treated as a timely CPL 460.20 application.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v RUSSELL SMITH, Appellant.

Submitted June 1, 2020; decided June 9, 2020

Reported below, 178 AD3d 524.

Motion for assignment of counsel granted and Robert S. Dean, Esq., Center for Appellate Litigation, 120 Wall Street, 28th Floor, New York, NY 10005 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK ex rel. ROBERT S. DEAN, Appellant, v MICHAEL CAPRA et al., Respondents.

Submitted June 1, 2020; decided June 9, 2020

Motion for leave to appeal dismissed upon the ground that no appeal lies from the order of an individual Justice of the Appellate Division (*see* NY Const, art VI, § 3; CPLR 5602).

THE PEOPLE OF THE STATE OF NEW YORK ex rel. JOSEPH HAYON, Appellant, v SUSAN KICKBUSH, Respondent.

Decided June 9, 2020

Appeal transferred without costs, by the Court of Appeals, sua sponte, to the Appellate Division, Fourth Department, upon the ground that a direct appeal does not lie when questions other than the constitutional validity of a statutory provision are involved (*see* NY Const, art VI, §§ 3 [b] [2]; 5 [b]; CPLR 5601 [b] [2]).

THE PEOPLE OF THE STATE OF NEW YORK ex rel. EDWARD SMITH, Appellant, v AMY LAMANNA, Respondent.

Submitted June 1, 2020; decided June 9, 2020

On the Court's own motion, appeal dismissed, without costs, upon the ground that no appeal lies from the order of an individual Justice of the Appellate Division (*see* NY Const, art VI, § 3 [b]; CPLR 5601). Motion for leave to appeal dismissed upon the ground that no appeal lies from the order of an individual Justice of the Appellate Division (*see* NY Const, art VI, § 3 [b]; CPLR 5602). Motion for poor person relief dismissed as academic.

In the Matter of AMIYNA ROCK, Appellant, v NEW YORK CITY HOUSING AUTHORITY, Respondent.

Decided June 9, 2020

Appeal dismissed without costs, by the Court of Appeals sua sponte, as untimely taken (*see* CPLR 5513 [a]).

DEBORAH ROSENTHAL, Respondent, v ROBERT ROSENTHAL, Appellant.

Decided June 9, 2020

Appeal transferred without costs, by the Court of Appeals sua sponte, to the Appellate Division, Second Department, upon the ground that a direct appeal does not lie when questions other than the constitutional validity of a statutory provision are involved (*see* NY Const, art VI, §§ 3 [b] [2]; 5 [b]; CPLR 5601 [b] [2]).

BHUPENDRA K. SHAH, Appellant, v STATE OF NEW YORK, Respondent.

Decided June 9, 2020

Reported below, 178 AD3d 871.

Appeal, insofar as taken from so much of the Appellate Division order as dismissed the appeal from that portion of the Court of Claims order denying reargument, dismissed without costs, by the Court of Appeals sua sponte, upon the ground that such portion of the order does not finally determine the action within the meaning of the Constitution; appeal otherwise dismissed without costs, by the Court of Appeals sua sponte, upon the ground that no appeal lies as of right from the unanimous order of the Appellate Division absent the direct involvement of a substantial constitutional question (*see* CPLR 5601).

SHARESTATES INVESTMENTS, LLC, Respondent, v ANYEKACHE HERCULES et al., Respondents, and JAMES JULIUS, Appellant, et al., Defendants.

Submitted February 10, 2020; decided June 9, 2020

Reported below, 178 AD3d 1111.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

THERESA SKILLINGS, Appellant, v CITY OF NEW YORK, Respondent.

Submitted February 18, 2020; decided June 9, 2020

Reported below, 2019 NY Slip Op 77395(U).

Motion for reargument of motion for leave to appeal denied [see 34 NY3d 1088 (2020)]. Motion for poor person relief dismissed as academic.

SUTTON 58 ASSOCIATES LLC, Appellant, v PHILIP PILEVSKY et al., Respondents.

Submitted May 26, 2020; decided June 9, 2020

Reported below, 168 AD3d 477.

Motion by New York Bankers Association for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served, an original and nine copies filed, and the brief submitted in digital format within 20 days.

SUTTONGATE HOLDINGS LIMITED, Respondent, v LACONM MANAGEMENT N.V. et al., Appellants, et al., Defendants.

LACONM MANAGEMENT N.V. et al, Appellants, v WAVERLY INVESTMENTS, LTD., et al., Respondents.

Submitted December 30, 2019; decided June 9, 2020

Reported below, 173 AD3d 618.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

WELLS FARGO BANK, N.A., Successor by Merger to WACHOVIA MORTGAGE, FSB, Respondent, v JOSEPH P. LEONARDO et al., Appellants, et al., Defendants.

Submitted February 24, 2020; decided June 9, 2020

Reported below, 167 AD3d 814.

Motion for reargument of motion for leave to appeal denied [see 34 NY3d 908 (2020)].

ALEXANDER C.E., Respondent, v ANNE Y.E., Appellant.

Submitted March 30, 2020; decided June 11, 2020

Reported below, 176 AD3d 529.

Motion for reargument of motion for leave to appeal denied [see 34 NY3d 908 (2020)].

D.G., Appellant, v STATE OF NEW YORK, Respondent.

Submitted February 10, 2020; decided June 11, 2020

Reported below, 2019 NY Slip Op 85948(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

In the Matter of DRY HARBOR NURSING HOME et al., Appellants, v HOWARD ZUCKER, as Commissioner of Health, et al., Respondents.

Submitted January 27, 2020; decided June 11, 2020

Reported below, 175 AD3d 770.

Motion, insofar as it seeks leave to appeal from so much of the Appellate Division order as affirmed Supreme Court's partial dismissal of the petition/complaint, denied; motion for leave to appeal otherwise dismissed upon the ground that the remainder of the Appellate Division order does not finally determine the proceeding/action within the meaning of the Constitution.

THOMAS GILEWICZ, Appellant, v BRYLIN HOSPITAL, Also Known as BRYLIN HOSPITALS, et al., Respondents.

Submitted February 10, 2020; decided June 11, 2020

Reported below, 162 AD3d 1585.

Motion for reargument of motion for leave to appeal denied.

In the Matter of LUIS S., Consecutive No. 21916, for Discharge from Central New York Psychiatric Center Pursuant to Mental Hygiene Law § 10.09, Appellant, v STATE OF NEW YORK et al., Respondents.

Submitted April 13, 2020; decided June 11, 2020

Reported below, 166 AD3d 1550.

Motion to dismiss appeal granted and appeal dismissed, without costs, upon the ground that the issues presented have become moot.

LINDA MACKLOWE, Appellant, v HARRY MACKLOWE, Respondent.

Submitted February 18, 2020; decided June 11, 2020

Reported below, 176 AD3d 470.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

ROSABEL OQUENDO, Appellant, v CITY OF NEW YORK, Respondent.

Submitted February 18, 2020; decided June 11, 2020

Reported below, 146 AD3d 480.

Motion, insofar as it seeks leave to appeal from that portion of the Appellate Division order that affirmed Supreme Court's denial of appellant's motion to renew, dismissed upon the ground that such portion of the order does not finally determine the action within the meaning of the Constitution; motion for leave to appeal otherwise denied.

IN the Matter of ALONZO OWENS, Appellant, v NEW YORK CITY HUMAN RESOURCES ADMINISTRATION, DEPARTMENT OF SOCIAL SERVICES, OFFICE OF CHILD SUPPORT ENFORCEMENT, SUPPORT COLLECTION UNIT, Respondent.

Submitted March 30, 2020; decided June 11, 2020

Reported below, 177 AD3d 546.

Motion for reconsideration of this Court's February 13, 2020 dismissal order denied [*see* 34 NY3d 1141 (2020)]. Motion for leave to appeal denied.

USMAN OYIBO, Appellant, v HUNTINGTON HOSPITAL MEDICAL CENTER, et al., Respondents.

Submitted February 18, 2020; decided June 11, 2020

Reported below, 2019 NY Slip Op 85653(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JOSE PEREZ, Appellant.

Submitted May 11, 2020; decided June 11, 2020

Reported below, 162 AD3d 1083.

Motion for reargument denied [*see* 35 NY3d 85 (2020)].

TIMOTHY REIF et al., Respondents, v RICHARD NAGY et al., Appellants.

Submitted February 24, 2020; decided June 11, 2020

Motion for leave to appeal dismissed upon the ground that the judgment sought to be appealed from does not finally determine the action within the meaning of the Constitution (*see Burke v Crosson*, 85 NY2d 10, 18 n 5 [1995]).

ROSEMARY RUIZ et al., Respondents, v DARREN CORPORATION et al., Respondents, and REVIZ ASLAMAZASHVILI et al., Appellants.

Submitted March 9, 2020; decided June 11, 2020

Reported below, 175 AD3d 545.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

TRIADOU SPV S.A., Respondent, v CF 135 FLAT LLC et al., Appellants.

Submitted March 30, 2020; decided June 11, 2020

Reported below, 175 AD3d 1133.

Motion for reargument of motion for leave to appeal denied [*see* 34 NY3d 1151 (2020)].

[149 NE3d 30, 125 NYS3d 337]

DANIEL COLLAZO et al., Appellants, v NETHERLAND PROPERTY ASSETS LLC et al., Respondents.

Argued January 7, 2020; decided April 2, 2020

SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered November 28, 2017. The Appellate Division affirmed an order of the Supreme Court, New York County (David Benjamin Cohen, J.; op 2017 NY Slip Op 31709[U] [2017]), which had (1) granted defendants' motion to dismiss plaintiffs' cause of action under General Business Law § 349 on the ground that it fails to state a claim upon which

relief can be granted, and the complaint's remaining claims on the ground that the New York State Division of Housing and Community Renewal has primary jurisdiction over such claims; and (2) dismissed the action.

Collazo v Netherland Prop. Assets LLC, 155 AD3d 538, modified.

HEADNOTES

Landlord and Tenant — Rent Regulation — Concurrent Jurisdiction of Supreme Court and Division of Housing and Community Renewal over Rent Overcharge Claims

1. In an action by plaintiff tenants seeking a declaration that their apartments were subject to rent stabilization laws, damages and recovery of overcharges stemming from defendant landlords' receipt of tax benefits under the Rent Stabilization Law notwithstanding that plaintiffs' apartments were registered as permanently exempt, high rent vacancies, Supreme Court erred in finding that it lacked jurisdiction over plaintiffs' claims. The provisions of the Housing Stability and Tenant Protection Act of 2019 that relate to the enforcement of certain claims state that "[t]he courts and the [New York State Division of Housing and Community Renewal] shall have concurrent jurisdiction, subject to the tenant's choice of forum" and therefore applied to the primary jurisdiction issue raised on appeal (L 2019, ch 36, § 1, part F, §§ 1, 3, amending Emergency Tenant Protection Act of 1974 [L 1974, ch 576, § 4] § 12 [a] [1] [f]; [b] [McKinney's Uncons Laws of NY § 8632 (a) (1) (f); (b)]). Plaintiffs' choice of forum controlled under the circumstances presented, and the claims should have been adjudicated in Supreme Court.

Consumer Protection — Deceptive Acts and Practices — Misrepresentation of Apartment's Exemption from Rent Regulation Following Deregulation

2. Supreme Court properly dismissed plaintiff tenant's General Business Law § 349 claim alleging that defendant landlords represented to the public at large that the apartments in question were exempt from rent regulation, as plaintiffs failed to allege more than bare legal conclusions regarding the existence of prohibited consumer-oriented "deceptive acts or practices" (General Business Law § 349 [a]). The statute cannot fairly be understood to mean that everyone who acts unlawfully, and does not admit the transgression, is being "deceptive" within the meaning of section 349. Assuming that a claim may lie under General Business Law § 349 based upon a landlord's alleged misrepresentation to the public that an apartment was exempt from rent regulation following deregulation in violation of the Rent Stabilization Law, plaintiffs alleged only that defendants failed to admit that they violated the Rent Stabilization Law in deregulating plaintiffs' apartments—three of which were, in fact, never deregulated—rather than any affirmative conduct that would tend to deceive consumers.

APPEARANCES OF COUNSEL

Himmelstein, McConnell, Gribben, Donoghue & Joseph LLP, New York City (*Ronald S. Languedoc* and *Jesse Gribben* of counsel), for appellants.

Katsky Korins LLP, New York City (*Adrienne B. Koch*, *Mark Walfish*, *Elan R. Dobbs* and *Haley E. Adams* of counsel), and

Kucker & Bruh, LLP, New York City (*James R. Marino* of counsel), for respondents.

Legal Services NYC, Brooklyn (*Edward Josephson* of counsel), and *Seymour James, The Legal Aid Society*, New York City (*Judith Goldiner, Jennifer Levy* and *Ellen Davidson* of counsel), for Legal Services NYC and others, amici curiae.

Rosenberg & Estis, P.C., New York City (*Jeffrey Turkel* of counsel), for Rent Stabilization Association of NYC, Inc., and another, amici curiae.

Jeanette Zelhof, Mobilization for Justice, New York City (*Evan Denerstein* and *Carolyn E. Coffey* of counsel), and *CAMBA Legal Services, Inc.*, Brooklyn (*Matthew Schedler* of counsel), for Brooklyn Bar Association Volunteer Lawyers Project and others, amici curiae.

Letitia James, Attorney General, New York City (*Ester Mukhayeva, Barbara D. Underwood* and *Steven C. Wu* of counsel), for New York State Division of Housing and Community Renewal and another, amici curiae.

Newman Ferrara LLP, New York City (*Roger Sachar, Lucas A. Ferrara* and *Jarred I. Kassenoff* of counsel), for Lawrence Chaifetz and others, amici curiae.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be modified, without costs, in accordance with this memorandum and as so modified affirmed.

Plaintiffs are 30 current or former tenants of 18 apartments in a building currently owned and operated by defendants. The building is subject to the Rent Stabilization Law. From 1990-2016, defendants and their predecessors received J-51 tax benefits pursuant to Administrative Code of City of NY § 11-243. Nevertheless, 15 of the apartments at issue were registered as permanently exempt, high rent vacancies—i.e., were deregulated—during that time period (*see* Rent Stabilization Law of 1969 [Administrative Code of City of NY] former § 26-504.2 [a]). Following guidance issued by the New York State Division of Housing and Community Renewal (DHCR) in 2016, defendants reregistered the 15 apartments as rent-stabilized.

Plaintiffs commenced this action in 2016, seeking a declaration that their apartments are subject to rent stabilization laws, and recovery for overcharges, treble damages and at-

torney's fees, as well as damages pursuant to General Business Law § 349. Plaintiffs averred that, following the issuance of this Court's decision in *Roberts v Tishman Speyer Props., L.P.* (13 NY3d 270 [2009]), defendants knew, or reasonably should have known, that high rent vacancy deregulation was not available with respect to apartments in buildings for which a landlord was receiving J-51 benefits. Plaintiffs also alleged that defendants violated General Business Law § 349 by engaging in deceptive, consumer-oriented acts—namely, representing to the public at large that the apartments in question were exempt from rent regulation.

In lieu of answering, defendants moved to dismiss the complaint. They sought dismissal of the General Business Law cause of action for failure to state a claim upon which relief could be granted, and dismissal of the remaining claims on the ground that DHCR had primary jurisdiction over those claims and they should be reviewed in that forum. Supreme Court granted defendants' motion (2017 NY Slip Op 31709[U] [Sup Ct, NY County 2017]), and the Appellate Division affirmed (155 AD3d 538 [1st Dept 2017]). This Court thereafter granted plaintiffs leave to appeal (31 NY3d 910 [2018]).

[1] Initially, we reject defendants' arguments regarding the inapplicability to the primary jurisdiction issue raised on this appeal of the provisions of the Housing Stability and Tenant Protection Act of 2019 that relate to the enforcement of certain claims and state that "[t]he courts and [DHCR] shall have concurrent jurisdiction, subject to the tenant's choice of forum" (L 2019, ch 36, § 1, part F, §§ 1, 3, amending Emergency Tenant Protection Act of 1974 [L 1974, ch 576, § 4] § 12 [a] [1] [f]; [b] [McKinney's Uncons Laws of NY § 8632 (a) (1) (f); (b)]). Here, plaintiffs' choice of forum controls and these claims should be adjudicated in Supreme Court.

[2] Turning to plaintiffs' General Business Law claim, section 349 prohibits "[d]eceptive acts or practices in the conduct of any business, trade or commerce or in the furnishing of any service in this state" (General Business Law § 349 [a]). We have held that this statute "cannot fairly be understood to mean that everyone who acts unlawfully, and does not admit the transgression, is being 'deceptive'" within the meaning of section 349 (*Schlessinger v Valspar Corp.*, 21 NY3d 166, 172 [2013]). For purposes of this appeal, we assume without deciding that a claim may lie under General Business Law § 349 based upon a landlord's alleged misrepresentation to the public

that an apartment was exempt from rent regulation following deregulation in violation of the Rent Stabilization Law. Here, however, plaintiffs alleged only that defendants failed to admit that they violated the Rent Stabilization Law in deregulating plaintiffs' apartments—three of which were, in fact, never deregulated—rather than any affirmative conduct that would tend to deceive consumers. Inasmuch as plaintiffs failed to allege more than “bare legal conclusions” (*Connaughton v Chipotle Mexican Grill, Inc.*, 29 NY3d 137, 141 [2017] [internal quotation marks omitted]) regarding the existence of consumer-oriented, deceptive acts (*see generally Oswego Laborers' Local 214 Pension Fund v Marine Midland Bank*, 85 NY2d 20, 24-25 [1995]), their General Business Law claim was properly dismissed.

RIVERA, J. (dissenting in part). I agree with the majority that under the Housing Stability and Tenant Protection Act of 2019, which applies here, “plaintiffs’ choice of forum controls,” meaning their claims must be adjudicated in Supreme Court (majority mem at 990; L 2019, ch 36, § 1, part F, §§ 1, 3, amending Emergency Tenant Protection Act of 1974 [L 1974, ch 576, § 4] § 12 [a] [1] [f]; [b] [McKinney’s Uncons Laws of NY § 8632 (a) (1) (f); (b)]). However, I part ways with the majority’s consideration of plaintiffs’ claim under section 349 of the General Business Law.

To state a claim under General Business Law § 349 a plaintiff must allege that the defendant engaged in consumer-oriented conduct that is materially misleading and that caused the plaintiff to suffer injury (*City of New York v Smokes-Spirits.Com, Inc.*, 12 NY3d 616, 621 [2009]). The courts below dismissed plaintiffs’ complaint based on their erroneous understanding that conduct between a landlord and tenant is inherently “private” rather than consumer-oriented in nature (2017 NY Slip Op 31709[U], *3 [Sup Ct, NY County 2017], *affd* 155 AD3d 538 [1st Dept 2017], citing *Aguaiza v Vantage Props., LLC*, 69 AD3d 422, 423 [1st Dept 2010]). We have never endorsed such a per se rule—as to the real estate industry or any other. Indeed, the blanket approach espoused below is contrary to General Business Law § 349 and not supported by our case law.

In the landlord-tenant context, as elsewhere, a party may assert a claim under General Business Law § 349 based upon a landlord’s alleged consumer-oriented misrepresentations. As we confirmed in *Schlessinger v Valspar Corp.* (21 NY3d 166

[2013]), General Business Law § 349 does not apply to every improper action, but only to “conduct that tends to deceive consumers” (*id.* at 172). In a proper case, nothing prevents a plaintiff from asserting a claim based on a misrepresentation that an apartment was exempt from rent regulation following deregulation in violation of the Rent Stabilization Law: section 349 contemplates that a cause of action under that section may overlap with other statutory prohibitions and remedies (*see* General Business Law § 349 [g] [“This section shall apply to all deceptive acts or practices declared to be unlawful, whether or not subject to any other law of this state”]; *Riordan v Nationwide Mut. Fire Ins. Co.*, 977 F2d 47, 52 [2d Cir 1992]).

I see no need to go further. In my view, whether plaintiffs’ complaint alleges consumer-oriented deception within the scope of General Business Law § 349 under our established liberal pleading standards should be decided by Supreme Court in the first instance (*see Leon v Martinez*, 84 NY2d 83, 87-88 [1994]; *cf. Matter of Red Hook/Gowanus Chamber of Commerce v New York City Bd. of Stds. & Appeals*, 5 NY3d 452, 461-462 [2005]).

Chief Judge DiFIORE and Judges STEIN, FAHEY, GARCIA, WILSON and FEINMAN concur; Judge RIVERA dissents in part in an opinion.

Order modified, without costs, in accordance with the memorandum herein and, as so modified, affirmed.

**APPEALS DISMISSED PURSUANT TO RULES OF PRACTICE OF
COURT OF APPEALS OR ON CONSENT**

(May 1, 2020 through May 31, 2020)

Right Hous. Solutions v
State of New York

Ct Cl, 1/22/20

5/29/20

APPEALS WITHDRAWN AND DISCONTINUED

(May 1, 2020 through May 31, 2020)

Nunez v Nunez

1st Dept: 175 AD3d 1160

5/19/20

APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL

(May 1, 2020 through May 31, 2020)

People v Baker	1st Dept: 180 AD3d 526 (Bronx)	denied 5/29/20 (Stein, J.)
People v Bell	1st Dept: 179 AD3d 462 (NY)	denied 5/14/20 (DiFiore, Ch. J.)
People v Bello	2d Dept: 179 AD3d 720 (Queens)	denied 5/18/20 (Rivera, J.)
People v Bloodworth	4th Dept: 179 AD3d 1534 (Onondaga)	denied 5/14/20 (DiFiore, Ch. J.)
People v Brunner	App Div, 1st Dept: 2020 NY Slip Op 61750(U) (NY)	denied 5/3/20 (Wilson, J.)
People v Cecchini	App Div, 4th Dept: 2020 NY Slip Op 60645(U) (Erie)	denied 5/14/20 (DiFiore, Ch. J.)
People v Cueva	1st Dept: 180 AD3d 466 (NY)	denied 5/7/20 (Rivera, J.)
People v Dais	1st Dept: 180 AD3d 417 (NY)	denied 5/27/20 (Stein, J.)
People v DeFelice	2d Dept: 180 AD3d 700 (Suffolk)	denied 5/17/20 (Wilson, J.)
People v Dosamantes	1st Dept: 180 AD3d 518 (NY)	denied 5/28/20 (Fahey, J.)
People v Dwight	1st Dept: 180 AD3d 586 (NY)	denied 5/7/20 (Stein, J.)
People v Finch	4th Dept: 180 AD3d 1362 (Cattaraugus)	denied 5/3/20 (Wilson, J.)
People v Germain	1st Dept: 181 AD3d 454 (NY)	denied 5/18/20 (Rivera, J.)
People v Gonzalez	1st Dept: 177 AD3d 569 (Bronx)	denied 5/14/20 (DiFiore, Ch. J.)
People v Grace	2d Dept: 179 AD3d 1092 (Kings)	denied 5/7/20 (Stein, J.)
People v Green	4th Dept: 179 AD3d 1516 (Ontario)	denied 5/28/20 (DiFiore, Ch. J.)
People v Hayes	1st Dept: 180 AD3d 423 (NY)	denied 5/28/20 (DiFiore, Ch. J.)
People v Henry	1st Dept: 180 AD3d 581 (NY)	denied 5/13/20 (Stein, J.)
People v Hernandez	3d Dept: 180 AD3d 1234 (Broome)	denied 5/29/20 (Stein, J.)
People v Hoyt	4th Dept: 180 AD3d 1345 (Monroe)	denied 5/13/20 (Stein, J.)
People v Jackson	2d Dept: 180 AD3d 805 (Kings)	denied 5/7/20 (Rivera, J.)
People v Jimenez	App Term, 1st Dept: 66 Misc 3d 138(A) (Bronx)	denied 5/27/20 (Stein, J.)
People v Johnson (Dashawn)	1st Dept: 180 AD3d 548 (Bronx)	denied 5/5/20 (Fahey, J.)
People v Johnson (Robert)	3d Dept: 183 AD3d 77 (Sullivan)	denied 5/21/20 (Rivera, J.)

People v Jones	1st Dept: 178 AD3d 613 (NY)	denied 5/28/20 (Fahey, J.)
People v Kosmetatos (John)	4th Dept: 178 AD3d 1433 (Onondaga)	denied 5/31/20 (DiFiore, Ch. J.) (Appeal No. 1)
People v Kosmetatos (John)	4th Dept: 178 AD3d 1435 (Onondaga)	denied 5/31/20 (DiFiore, Ch. J.) (Appeal No. 2)
People v Kourouma	1st Dept: 180 AD3d 477 (Bronx)	denied 5/7/20 (Stein, J.)
People v Kunizaki	App Term, 1st Dept: 66 Misc 3d 146(A) (NY)	denied 5/12/20 (Fahey, J.)
People v Licausi	2d Dept: 179 AD3d 841 (Suffolk)	denied 5/3/20 (Wilson, J.)
People v Love	4th Dept: 179 AD3d 1541 (Onondaga)	denied 5/13/20 (Stein, J.)
People v Lundy (Quincy)	4th Dept: 178 AD3d 1389 (Onondaga)	denied 5/7/20 (Stein, J.) (Appeal No. 1)
People v Lundy (Quincy)	4th Dept: 178 AD3d 1391 (Onondaga)	denied 5/7/20 (Stein, J.) (Appeal No. 2)
People v McCoy	4th Dept: 174 AD3d 1379 (Erie)	denied reconsideration 5/14/20 (DiFiore, Ch. J.)
People v McKelvey	1st Dept: 180 AD3d 494 (NY)	denied 5/21/20 (Rivera, J.)
People v Meadows	3d Dept: 180 AD3d 1244 (Chemung)	denied 5/28/20 (DiFiore, Ch. J.)
People v Mejia	1st Dept: 176 AD3d 509 (NY)	denied 5/30/20 (DiFiore, Ch. J.)
People v Miller	County Ct, 12/9/19 (Erie)	denied 5/13/20 (Stein, J.)
People v Neal	4th Dept: 180 AD3d 1345 (Monroe)	denied 5/29/20 (Stein, J.)
People v Ousley	App Term, 1st Dept: 65 Misc 3d 150(A) (Bronx)	denied 5/18/20 (Rivera, J.)
People v Parker	2d Dept: 180 AD3d 1072 (Dutchess)	denied 5/14/20 (DiFiore, Ch. J.)
People v Parton	4th Dept: 180 AD3d 1337 (Onondaga)	denied 5/13/20 (Stein, J.)
People v Patel (Amit)	2d Dept: 179 AD3d 1097 (Queens)	denied 5/7/20 (DiFiore, Ch. J.)
People v Patel (Amit)	2d Dept: 179 AD3d 1098 (Queens)	denied 5/7/20 (DiFiore, Ch. J.)
People v Richards (Daniel)	4th Dept: 177 AD3d 1280 (Ontario)	denied 5/28/20 (Fahey, J.)
People v Richards (Timothy)	3d Dept: 176 AD3d 1496 (Chemung)	denied 5/13/20 (Stein, J.)

MEMORANDA

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People v Rivera	App Term, 1st Dept: 66 Misc 3d 5 (NY)	denied 5/7/20 (Stein, J.)
People v Rodriguez	App Div, 2d Dept: 2020 NY Slip Op 60967(U) (Queens)	dismissed 5/7/20 (Stein, J.)
People v Rumph	4th Dept: 177 AD3d 1383 (Cattaraugus)	denied 5/7/20 (Stein, J.)
People v Sabin	3d Dept: 179 AD3d 1401 (Cortland)	denied 5/29/20 (Stein, J.)
People v Sanchez	2d Dept: 179 AD3d 720 (Queens)	denied 5/18/20 (Rivera, J.)
People v Saveljevs (Alekses)	2d Dept: 180 AD3d 943 (Kings)	denied 5/28/20 (DiFiore, Ch. J.)
People v Saveljevs (Alekses)	2d Dept: 180 AD3d 943 (Kings)	denied 5/28/20 (DiFiore, Ch. J.)
People v Scott	4th Dept: 180 AD3d 1345 (Monroe)	denied 5/29/20 (Stein, J.)
People v Smith	2d Dept: 180 AD3d 1075 (Queens)	denied 5/29/20 (Stein, J.)
People v Terborg	4th Dept: 178 AD3d 1469 (Monroe)	denied 5/14/20 (DiFiore, Ch. J.)
People v Thompson	2d Dept: 179 AD3d 720 (Orange)	denied 5/14/20 (DiFiore, Ch. J.)
People v Torres	1st Dept: 179 AD3d 543 (NY)	denied 5/7/20 (Rivera, J.)
People v Urena	1st Dept: 180 AD3d 581 (NY)	denied 5/3/20 (Wilson, J.)
People v Valentine	App Term, 1st Dept: 63 Misc 3d 158(A) (NY)	denied 5/5/20 (Fahey, J.)
People v Valle	App Term, 1st Dept: 66 Misc 3d 146(A) (Bronx)	denied 5/13/20 (Stein, J.)
People v Williams (Danny)	County Ct, 1/6/20 (Genesee)	denied 5/28/20 (Fahey, J.)
People v Williams (Jashua)	4th Dept: 179 AD3d 1502 (Onondaga)	denied 5/28/20 (DiFiore, Ch. J.)
People v Work	4th Dept: 180 AD3d 1383 (Erie)	denied 5/24/20 (Wilson, J.)

APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL

Decisions of Appellate Division Justices *

(May 1, 2020 through May 31, 2020)

People v Perez	3d Dept: 183 AD3d 934 (Albany)	granted 5/26/20 (Colangelo, J.)
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* Includes only applications that were granted.

ADAR BAYS, LLC, Respondent, v GENE SYS ID, INC., Formerly
Known as RX SALES, INC., Appellant.

Decided June 23, 2020

See 962 F3d 86.

Certification of questions by the United States Court of Appeals for the Second Circuit, pursuant to section 500.27 of the Rules of Practice of the Court of Appeals (22 NYCRR 500.27), accepted and the issues presented are to be considered after briefing and argument.

Concur: Chief Judge DiFiore and Judges Rivera, Stein, Fahy, Garcia, Wilson and Feinman.

In the Matter of AYDDEN OO. and Others, Alleged to be Neglected Children. CORTLAND COUNTY DEPARTMENT OF SOCIAL SERVICES, Respondent; JONI PP., Appellant.

Submitted March 30, 2020; decided June 23, 2020

Reported below, 180 AD3d 1208.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

In the Matter of JESSICA CHASE, Respondent, v SILVIA CHASE, Respondent, and ROSE CHASE, Appellant, PATRICIA MOONEY-TIRAO, Respondent. (Proceeding No. 1)

In the Matter of JOSEPH S. DRESSNER, ESQ., Attorney for the Child, on Behalf of the Minor Child, Respondent, v PATRICIA A. MOONEY-TIRAO et al., Respondents and ROSE M. CHASE, Appellant. (Proceeding No. 2)

In the Matter of ROSE M. CHASE, Appellant, v SILVIA CHASE et al., Respondents. (Proceeding No. 3)

Submitted April 13, 2020; decided June 23, 2020

Reported below, 181 AD3d 1322; 181 AD3d 1323.

Motion, insofar as it seeks leave to appeal in Proceeding Nos. 1 and 2, dismissed upon the ground that movant is not a party aggrieved (*see* CPLR 5511); motion for leave to appeal otherwise denied. Motion for poor person relief dismissed as academic.

JOHN B. ELLISON, Appellant, v CHARTIS CLAIMS, INC., et al.,
Respondents.

Submitted January 21, 2020; decided June 23, 2020

Reported below, 178 AD3d 665.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

ESTATE OF MARGARET KAINER et al., Appellants, v UBS AG et al.,
Respondents, et al., Defendants.

Submitted January 30, 2019; decided June 23, 2020

Reported below, 175 AD3d 403.

Motion, insofar as it seeks leave to appeal as against defendants UBS AG, UBS Global Asset Management (Americas), Inc., Norbert Stiftung f/k/a Norbert Levy Stiftung, and Edgar Kircher, granted; motion, insofar as it seeks leave to appeal against defendant Christie's, Inc., dismissed upon the ground that the order sought to be appealed from does not finally determine the action as to that defendant within the meaning of the Constitution.

FAST TRACK INVESTMENT COMPANY, LLC, a Delaware Limited
Liability Company, Respondent, v RICHARD PHILIP SAX,
Individually and as Principal for The Law Offices of
Richard Sax, et al., Appellants.

Decided June 23, 2020

See 962 F3d 455.

Certification of questions by the United States Court of Appeals for the Ninth Circuit, pursuant to section 500.27 of the Rules of Practice of the Court of Appeals (22 NYCRR 500.27), accepted and the issues presented are to be considered after briefing and argument.

Concur: Chief Judge DiFiore and Judges Rivera, Stein, Fahy, Garcia, Wilson and Feinman.

FIRST AMERICAN TITLE INSURANCE COMPANY, Respondent, v MARIE L. CHAVANNES et al. Appellants.

Submitted December 2, 2019; decided June 23, 2020

Reported below, 176 AD3d 678; 176 AD3d 681.

Motion, insofar as Marvin Comond seeks leave to appeal on behalf of Marie L. Chavannes, dismissed upon the ground that Marvin Comond is not the authorized legal representative of Marie L. Chavannes. Motion by Marvin Comond on his own behalf, insofar as it seeks leave to appeal from the October 2019 Appellate Division order that resolved the appeals from the April 2013 Supreme Court order and the May 2013 Supreme Court order and judgment, dismissed upon the ground that Marvin Comond is not a party aggrieved having not appealed to the Appellate Division from those papers (*see* CPLR 5511); motion, insofar as it seeks leave to appeal from the October 2019 Appellate Division order that resolved Marvin Comond's appeal from the January 2017 Supreme Court order denying reargument and renewal, dismissed upon the ground that such order does not finally determine the action within the meaning of the Constitution.

In the Matter of FORECLOSURE OF TAX LIENS. COUNTY OF ORANGE, Appellant; TAMMY BURTON GOLDMAN, Respondent.

Submitted December 30, 2019; decided June 23, 2020

Reported below, 165 AD3d 1112.

On the Court's own motion, appeal dismissed, without costs, upon the ground that no substantial constitutional question is directly involved. Motion for leave to appeal denied.

HAMILTON EQUITY GROUP, LLC, as Assignee of HSBC Bank USA, National Association, Respondent, v HECTOR A. MARICHAL, P.C., et al., Appellants, et al., Defendants.

Submitted March 9, 2020; decided June 23, 2020

Reported below, 177 AD3d 1347; 174 AD3d 1517.

Motion, insofar as it seeks leave to appeal from the November 2019 Appellate Division order and that portion of the July 2019 Appellate Division order as affirmed the denial of defendants' motion to renew, dismissed upon the ground that the former order and portion of the latter order do not finally determine the action within the meaning of the Constitution; motion for leave to appeal otherwise denied.

In the Matter of KEITH A.H. ADMINISTRATION FOR CHILDREN'S SERVICES, Respondent; ANDREW H., Appellant. (Proceeding No. 1.)

In the Matter of ANTHONY S.H. ADMINISTRATION FOR CHILDREN'S SERVICES, Respondent; ANDREW H., Appellant. (Proceeding No. 2.)

Submitted April 6, 2020; decided June 23, 2020

Reported below, 180 AD3d 902.

Motion, insofar as it seeks leave to appeal from that portion of the Appellate Division order that affirmed the December 2018 Family Court order denying the motion to vacate, dismissed upon the ground that such portion of the Appellate Division order does not finally determine the proceedings within the meaning of the Constitution; motion for leave to appeal otherwise denied. Motion for poor person relief dismissed as academic. Motion for a stay dismissed as academic.

In the Matter of LAMONTE J., a Person Alleged to be a Juvenile Delinquent, Appellant.

Submitted February 18, 2020; decided June 23, 2020

Reported below, 179 AD3d 683.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

MICHELLE LAUNDERS, Respondent, v JOEL STEINBERG, Appellant.

Decided June 23, 2020

Reported below, 180 AD3d 431.

Appeal dismissed, without costs, by the Court of Appeals sua sponte, upon the ground that it does not lie.

LONG ISLAND PINE BARRENS SOCIETY, INC., et al., Respondents,
v COUNTY OF SUFFOLK et al., Appellants.

Submitted March 9, 2020; decided June 23, 2020

Reported below, 173 AD3d 1154.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of MADISYNN W. and Another, Infants. ESPRIT L., Appellant; SHELTERING ARMS CHILDREN & FAMILY SERVICES, Respondent.

Submitted March 2, 2020; decided June 23, 2020

Reported below, 180 AD3d 407.

Motion for leave to appeal denied. Motion for poor person relief dismissed as academic. Motion for a stay dismissed as academic.

In the Matter of NOEL SEAN CJ IVAN W., Also Known as NOEL W. LITTLE FLOWER CHILDREN AND FAMILY SERVICES OF NEW YORK, Respondent; DANICA W., Appellant.

Submitted March 2, 2020; decided June 23, 2020

Reported below, 179 AD3d 1078.

Motion for leave to appeal denied. Motion for poor person relief dismissed as academic. Motion for a stay dismissed as academic.

HECTOR ORTIZ, in His Capacity as Temporary Administrator of the Estate of VICKY ORTIZ, Individually and on Behalf of All Others Similarly Situated, Appellant, v CIOX HEALTH LLC, Successor in Interest to IOD INC., et al., Respondents.

Decided June 23, 2020

See 961 F3d 155.

Certification of question by the United States Court of Appeals for the Second Circuit, pursuant to section 500.27 of the Rules of Practice of the Court of Appeals (22 NYCRR 500.27), accepted and the issue presented is to be considered after briefing and argument.

Concur: Judges RIVERA, STEIN, FAHEY, WILSON and FEINMAN. Chief Judge DiFIORE and Judge GARCIA taking no part.

EITA (ITTY) PRUSS, Respondent, v INFINITI OF MANHATTAN, INC., et al., Appellants, et al., Defendants.

Submitted February 10, 2020; decided June 23, 2020

Reported below, 180 AD3d 163.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of ROBERTA REARDON, as Commissioner of Labor, Respondent, v GLOBAL CASH CARD, INC., Appellant, et al., Respondent.

Decided June 23, 2020

Reported below, 179 AD3d 1228.

Appeal dismissed without costs, by the Court of Appeals sua sponte, upon the ground that no substantial constitutional question is directly involved.

In the Matter of JAVIER RUIZ, Respondent, v ALISHA CARIE, Appellant. (Proceeding No. 1.)

In the Matter of ALISHA CARIE, Respondent, v JAVIER RUIZ, Appellant. (Proceeding No. 2.)

Submitted March 9, 2020; decided June 23, 2020

Reported below, 179 AD3d 1069.

Motion for leave to appeal denied. Motion for poor person relief dismissed as academic. Motion for a stay dismissed as academic.

TRM ARCHITECTURE, DESIGN AND PLANNING, P.C., Appellant, v DESTINY USA HOLDINGS, LLC, et al., Respondents. (Appeal No. 1.)

Submitted February 18, 2020; decided June 23, 2020

Reported below, 178 AD3d 1443.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

VERA ARTHUR, Appellant, v GABRIELE GALLETTI, Respondent.

Submitted March 30, 2020; decided June 25, 2020

Reported below, 176 AD3d 412.

Motion for leave to appeal dismissed as untimely. The prior motion for leave to appeal made to the Appellate Division was untimely (*see* Arthur Karger, Powers of the New York Court of Appeals § 12:3 at 436-437 [3d ed rev 2005]).

CRYSTAL RUN ASSOCIATES, LLC, Appellant, v STATE OF NEW YORK, Respondent.

Submitted April 6, 2020; decided June 25, 2020

Reported below, 169 AD3d 764.

Motion for reargument of motion for leave to appeal denied [*see* 34 NY3d 909 (2020)].

DEUTSCHE BANK TRUST COMPANY, Respondent, DOREEN BULLEN, Appellant, et al., Defendants. NMD REALTY HOLDINGS, LLC, Nonparty Respondent.

Submitted March 9, 2020; decided June 25, 2020

Reported below, 179 AD3d 893.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

PAULA L. GIBBS, Appellant, v STATE FARM FIRE AND CASUALTY COMPANY, Respondent. (Appeal No. 1.)

PAULA L. GIBBS, Appellant, v STATE FARM FIRE AND CASUALTY COMPANY, Respondent. (Appeal No. 2.)

PAULA L. GIBBS, Appellant, v STATE FARM FIRE AND CASUALTY COMPANY, Respondent. (Appeal No. 3.)

Submitted March 30, 2020; decided June 25, 2020

Reported below, 175 AD3d 1818; 175 AD3d 1819 (Appeal Nos. 2 & 3).

Motion for leave to appeal dismissed upon the ground that the orders sought to be appealed from do not finally determine the action within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

In the Matter of GIOHNA R. and Another. ONONDAGA COUNTY DEPARTMENT OF CHILDREN AND FAMILY SERVICES, Respondent; JOHN R., Appellant-Respondent; TRACY R., Respondent-Appellant.

Submitted March 23, 2020; decided June 25, 2020

Reported below, 179 AD3d 1508.

Motion by John R. for leave to appeal denied. Motion by Tracy R. for leave to appeal dismissed upon the ground that the proceeding as against her and the motion have abated because of her death.

JACQUELINE S., Respondent, v ZARKO S., Appellant.

ZARKO S., Respondent, v JACQUELINE S., Appellant.

Submitted April 6, 2020; decided June 25, 2020

Reported below, 166 AD3d 484.

Motion for reargument of motion for leave to appeal denied [see 33 NY3d 1062 (2019)]. Cross motion for the imposition of sanctions denied.

RAHAMIM KATTAN et al., Appellants, v 119 CHRISTOPHER LLC,
Respondent.

Submitted March 16, 2020; decided June 25, 2020

Reported below, 180 AD3d 566.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

NELLA MANKO, Appellant, v BERNARD H. BROOME, Esq., et al.,
Respondents, et al., Defendants.

Submitted April 20, 2020; decided June 25, 2020

Reported below, 175 AD3d 482.

Motion for reargument of so much of this Court's February 18, 2020 order as decided the motion for leave to appeal from the August 7, 2019 Appellate Division order denied [see 34 NY3d 1149 (2020)]. Motion for poor person relief dismissed as academic.

Chief Judge DiFIORE taking no part.

NELLA MANKO, Appellant, v DAVID A. GABAY et al., Respon-
dents.

Submitted April 20, 2020; decided June 25, 2020

Reported below, 2019 NY Slip Op 72032(U); 2019 NY Slip Op 61791(U); 2018 NY Slip Op 84974(U); 2018 NY Slip Op 77660(U).

Motion for reargument of so much of this Court's February 18, 2020 order as decided the motion for leave to appeal from the July 13, 2018; October 1, 2018; January 30, 2019; and June 6, 2019 Appellate Division orders denied [see 34 NY3d 1149 (2020)]. Motion for poor person relief dismissed as academic.

Chief Judge DiFIORE taking no part.

NELLA MANKO, Appellant, v LENOX HILL ANESTHESIOLOGY,
PLLC, et al., Respondents.

Submitted April 20, 2020; decided June 25, 2020

Reported below, 2019 NY Slip Op 70982(U).

Motion for reargument of so much of this Court's February 18, 2020 order as decided the motion for leave to appeal from a May 22, 2019 Appellate Division order denied [*see* 34 NY3d 1150 (2020)]. Motion for poor person relief dismissed as academic.

Chief Judge DiFIORE taking no part.

NELLA MANKO, Appellant, v ELTON STRAUSS et al., Respondents.

Submitted May 26, 2020; decided June 25, 2020

Motion for leave to appeal dismissed upon the ground that the March 2020 letter is not a judgment or order from which an appeal to this Court may be taken (*see* CPLR 5512 [a]). Motion for poor person relief dismissed as academic.

Chief Judge DiFIORE taking no part.

In the Matter of MYRA MAYO, Appellant, v NEW YORK STATE
DIVISION OF TAX APPEALS, TAX APPEALS TRIBUNAL, et al.,
Respondents.

Submitted March 23, 2020; decided June 25, 2020

Reported below, 172 AD3d 1554.

Motion for reargument of motion for leave to appeal denied [*see* 34 NY3d 1140 (2020)].

In the Matter of MARIA MIRANDA, Deceased. PORZIO, BROMBERG
& NEWMAN, P.C., Respondent; ESTATE OF MARIA MIRANDA,
Appellant.

Submitted March 16, 2020; decided June 25, 2020

Reported below, 174 AD3d 900.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

MICHELLE NAPPI, Appellant, v COMMUNITY ACCESS, INC., et al.,
Respondents.

Submitted March 30, 2020; decided June 25, 2020

Reported below, 169 AD3d 535.

Motion for reargument of motion for leave to appeal denied
[see 34 NY3d 910 (2020)].

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JOSEPH
HAYON, Appellant.

Submitted June 1, 2020; decided June 25, 2020

On the Court's own motion, appeal dismissed, without costs,
upon the ground that it does not lie (*see* NY Const, art VI, § 3
[b]). Motion for poor person relief etc. dismissed as academic.

THE PEOPLE OF THE STATE OF NEW YORK ex rel. JOSEPH HAYON,
Appellant, v BRANDON SMITH, as Superintendent of Greene
Correctional Facility, Respondent.

Submitted May 18, 2020; decided June 25, 2020

Reported below, 2020 NY Slip Op 62852(U).

On the Court's own motion, appeal dismissed, without costs,
upon the ground that the order appealed from does not finally
determine the proceeding within the meaning of the Constitu-
tion. Motion for leave to appeal dismissed upon the ground
that the order sought to be appealed from does not finally
determine the proceeding within the meaning of the Constitu-
tion and is not an order of the type provided for in CPLR 5602
(a) (2). Motion for poor person relief etc. dismissed as aca-
demic.

STEVEN PLAVIN, Appellant, v GROUP HEALTH INCORPORATED, Respondent.

Submitted May 4, 2020; decided June 25, 2020

See 2019 WL 1965741, 2019 US App LEXIS 13573.

Motion for reargument denied [*see* 35 NY3d 1 (2020)].

AMES RAY, Appellant-Respondent, v CHRISTINA RAY, Respondent-Appellant.

Submitted March 23, 2020; decided June 25, 2020

Reported below, 180 AD3d 472.

Motions for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of PAMELA ROBINSON, Appellant, v ERIE COUNTY DEPARTMENT OF SOCIAL SERVICES, Respondent.

Submitted March 23, 2020; decided June 25, 2020

Reported below, 179 AD3d 1463.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

[149 NE3d 431, 125 NYS3d 670]

In the Matter of ERIC BENSON, Appellant, v NEW YORK STATE BOARD OF PAROLE, Respondent.

Decided June 9, 2020

SUMMARY

APPEAL from a judgment of the Appellate Division of the Supreme Court in the Third Judicial Department, entered October 31, 2019, in a proceeding pursuant to CPLR article 78 (transferred to the Appellate Division by order of the Supreme Court, entered in Albany County). The Appellate Division, with two Justices dissenting, (1) confirmed a determination of re-

spondent, which had rescinded petitioner's open parole release date and imposed a hold period of nine months; and (2) dismissed the petition.

Matter of Benson v New York State Bd. of Parole, 176 AD3d 1548, affirmed.

HEADNOTE

Parole — Rescission — Judicial Intervention

Judicial intervention in respondent parole board's determination to rescind petitioner's parole release was not warranted, where petitioner failed to make a showing of irrationality bordering on impropriety with regard to the determination.

APPEARANCES OF COUNSEL

Brooklyn Defender Services, Brooklyn (*Alfred O'Connor* of counsel), for appellant.

Letitia James, Attorney General, New York City (*Frank Brady, Barbara D. Underwood* and *Andrea Oser* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed, without costs.

Judicial intervention in Parole Board determinations is warranted "only when there is a showing of irrationality bordering on impropriety" (*Matter of Silmon v Travis*, 95 NY2d 470, 476 [2000] [internal quotation marks omitted]). Petitioner failed to make such a showing here with regard to the Parole Board's determination to rescind his parole release.

Our decision in *Matter of Costello v New York State Bd. of Parole* (23 NY3d 1002 [2014]) does not compel a contrary result. *Costello* was decided "under the particular circumstances of [that] case," which circumstances are distinguishable from the present case (*id.* at 1004).

Chief Judge DiFiore and Judges Stein, Fahey, Garcia and Feinman concur; Judges Rivera and Wilson dissent for reasons stated in the dissenting opinion of Presiding Justice Elizabeth A. Garry at the Appellate Division (*see Matter of Benson v New York State Bd. of Parole*, 176 AD3d 1548, 1553-1555 [3d Dept 2019, Garry, P.J., dissenting]).

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order affirmed, without costs, in a memorandum.

[149 NE3d 429, 125 NYS3d 668]

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v JAMES BALL, Respondent.

Decided June 9, 2020

SUMMARY

APPEAL, by permission of a Justice of the Appellate Division of the Supreme Court in the Fourth Judicial Department, from an order of that Court, entered August 22, 2019. The Appellate Division affirmed an order of the Onondaga County Court (Thomas J. Miller, J.), which had granted defendant's motion to dismiss the indictment.

In defendant's prosecution for fatally shooting decedent during an altercation at defendant's home, the Appellate Division concluded that County Court properly dismissed the indictment based on the People's failure to instruct the grand jury with respect to the justifiable use of physical force pursuant to Penal Law § 35.20 (3) as requested in a letter from defendant, which the People failed to deliver to the grand jury foreperson. The Court also concluded that an instruction regarding the justification defense pursuant to Penal Law § 35.20 (3) was warranted, and the prosecutor's failure to provide that instruction impaired the integrity of the grand jury proceeding. Furthermore, the Court concluded that error was not cured by the instruction regarding the justification defense under Penal Law § 35.15.

People v Ball, 175 AD3d 987, affirmed.

HEADNOTE

Grand Jury — Defective Proceeding

In defendant's prosecution for fatally shooting decedent during an altercation at defendant's home, an Appellate Division order which affirmed a County Court order dismissing the indictment was affirmed for reasons stated in the memorandum at the Appellate Division.

APPEARANCES OF COUNSEL

William J. Fitzpatrick, District Attorney, Syracuse (*Kenneth H. Tyler, Jr.*, of counsel), for appellant.

D.J. & J.A. Cirando, PLLC, Syracuse (*John A. Cirando* of counsel), for respondent.

OPINION OF THE COURT

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order affirmed, for reasons stated in the memorandum at the Appellate Division (*see People v Ball*, 175 AD3d 987 [4th Dept 2019]).

Concur: Chief Judge DiFiore and Judges Rivera, Stein, Fahy, Garcia, Wilson and Feinman.

[149 NE3d 429, 125 NYS3d 668]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v WILLIE HARRIS, Appellant.

Decided June 9, 2020

SUMMARY

APPEAL, by permission of a Justice of the Appellate Division of the Supreme Court in the First Judicial Department, from an order of that Court, entered June 25, 2019. The Appellate Division affirmed a judgment of the Supreme Court, New York County (William A. Wetzel, J.), which had convicted defendant, upon his plea of guilty, of criminal possession of stolen property in the fourth degree.

People v Harris, 174 AD3d 185, reversed.

HEADNOTE

Crimes — Appeal — Matters Reviewable — Issue Not Decided Adversely to Defendant

In defendant's prosecution for criminally possessing stolen property, the Appellate Division erred in determining that exigent circumstances justified the warrantless search of a suitcase defendant was carrying at the time of his arrest, as Supreme Court denied defendant's suppression motion on other grounds and made no findings regarding the existence of exigent circumstances. CPL 470.15 (1) is a legislative restriction on the Appellate Division's power to review issues either decided in an appellant's favor, or not ruled upon, by the trial court. The statute bars the Appellate Division from affirming a judgment, sentence or order on a ground not decided adversely to the appellant by the trial court. This restriction applies in equal force to the Court of Appeals, which itself has no broader review powers. Because the suppression court did not deny the motion on the ground that there were exigent circumstances, that issue was not decided adversely to defendant and it could not be invoked by the Appellate Division.

APPEARANCES OF COUNSEL

Janet E. Sabel, The Legal Aid Society, New York City (Michael C. Taglieri of counsel), for appellant.

Cyrus R. Vance, Jr., District Attorney, New York City (Aaron Zucker of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be reversed and this case remitted to Supreme Court for further proceedings in accordance with this memorandum.

Defendant was convicted, upon a guilty plea, of criminal possession of stolen property in the fourth degree (Penal Law § 165.45 [1]). Prior to his conviction, defendant moved to suppress physical evidence found inside a suitcase that he was carrying at the time of his arrest, relying on *People v Gokey* (60 NY2d 309 [1983]), and arguing that exigent circumstances were needed to justify a warrantless search of the closed suitcase. Supreme Court determined that *Gokey* did not apply and, therefore, made no findings regarding the existence of exigent circumstances. The Appellate Division affirmed on a different ground, determining, as both defendant and the People argued, that *Gokey* did apply and accepting the People's argument that exigent circumstances—namely, the protection of evidence or the safety of the police or the public—justified the search (174 AD3d 185 [1st Dept 2019]). A dissenting Justice granted leave to appeal, and we now reverse and remit.

“Upon an appeal to an intermediate appellate court from a judgment, sentence or order of a criminal court, such intermediate appellate court may consider and determine any question of law or issue of fact involving error or defect in the criminal court proceedings which may have adversely affected the appellant” (CPL 470.15 [1]). “This provision is ‘a legislative restriction on the Appellate Division’s power to review issues either decided in an appellant’s favor, or not ruled upon, by the trial court’ ” (*People v Nicholson*, 26 NY3d 813, 825 [2016], quoting *People v LaFontaine*, 92 NY2d 470, 474 [1998]). The statute “ ‘bars the Appellate Division from affirming a judgment, sentence or order on a ground not decided *adversely* to the appellant by the trial court’ ” (*id.* [brackets omitted], quoting *People v Concepcion*, 17 NY3d 192, 195 [2011]). This “restriction applies in equal force to this Court which itself has ‘no broader review powers’ ” (*id.*, quoting *Concepcion*, 17 NY3d at 195).

Here, the Appellate Division did not err in determining that *Gokey* was applicable, the only reviewable issue before it. However, “[b]ecause the suppression court did not deny the motion on the ground that there were exigent circumstances, that issue was not decided adversely to defendant and it could not be invoked by the Appellate Division” (*People v Muhammad*, 17 NY3d 532, 547 [2011]). Accordingly, the Appellate Division erred in deciding that issue.

Chief Judge DiFiore and Judges Rivera, Stein, Fahey, Garcia, Wilson and Feinman concur.

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order reversed and case remitted to Supreme Court, New York County, for further proceedings in accordance with the memorandum herein.

[149 NE3d 918, 126 NYS3d 80]

JESSE COLE, Respondent, v SAMANTHA COLE, Appellant.

Decided June 23, 2020

SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered May 1, 2019. The Appellate Division modified, on the law and in the exercise of discretion, a judgment of the Supreme Court, Orange County (Catherine M. Bartlett, J.), entered upon a decision of that court, made after a nonjury trial, which, to the extent appealed from, had awarded plaintiff physical custody of the parties’ children and failed to include a provision that required the parties to pay their pro rata share of the children’s future unreimbursed health care expenses. The modification consisted of adding a provision directing the parties to pay their respective pro rata share of the children’s future unreimbursed health care expenses. The Appellate Division remitted the matter to Supreme Court for a determination of each party’s pro rata share of the children’s future unreimbursed health care expenses and affirmed the judgment as modified.

Cole v Cole, 172 AD3d 680, affirmed.

HEADNOTE

Appeal — Preservation of Issue for Review — Sworn Petition Alleging Domestic Violence

In a matrimonial action, defendant failed to preserve for review her arguments regarding Domestic Relations Law § 240 (1) (a). As a result, the parties never litigated, and Supreme Court did not pass upon, or make any findings with respect to, whether a withdrawn family offense petition constitutes “a sworn petition” for purposes of the statute or whether defendant proved allegations of domestic violence “by a preponderance of the evidence” (Domestic Relations Law § 240 [1] [a])—issues that were essential to the arguments defendant raised on appeal.

APPEARANCES OF COUNSEL

Hasapidis Law Offices, South Salem (*Annette G. Hasapidis* of counsel), for appellant.

Carol Lipton, Brooklyn, for respondent.

Ronna L. DeLoe, Larchmont, Attorney for the Children.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed, with costs.

Defendant failed to preserve her arguments regarding Domestic Relations Law § 240 (1) (a). As a result, the parties never litigated, and Supreme Court did not pass upon, or make any findings with respect to, whether a withdrawn family offense petition constitutes “a sworn petition” for purposes of this statute or whether defendant proved allegations of domestic violence “by a preponderance of the evidence” (Domestic Relations Law § 240 [1] [a])—issues that are essential to the arguments defendant now raises. Record evidence supports the affirmed custody award.

Defendant’s remaining arguments are either unpreserved or without merit.

RIVERA, J. (dissenting). When a party in a custody dispute “alleges in a sworn . . . pleading that the other party has committed an act of domestic violence against the party making the allegation . . . and such allegations are proven by a preponderance of the evidence,” Domestic Relations Law § 240 (1) (a) requires the court to “consider the effect of such domestic violence upon the best interests of the child” and to state its conclusions “on the record.” Here, defendant mother challenges an award of custody to plaintiff father, arguing Supreme Court failed to consider her allegations of domestic violence. In

father's underlying divorce action, the court admitted into evidence mother's family offense petition alleging father's abuse during their relationship, as well as mother's testimony describing specific incidences of father's violence and additional corroborating evidence. Mother thus preserved her claim that the court failed to consider the effects of domestic violence on the best interests of their two young children in granting father primary physical custody, as required by Domestic Relations Law § 240 (1) (a).

Because the issue is preserved, I would reverse and remit to Supreme Court for a new best interest of the child analysis consistent with the framework of Domestic Relations Law § 240 (1) (a), and any development of the record as needed.

I.

Domestic violence continues to plague society, and is a persistent threat to individual safety, family well-being, and the public welfare. Its impact is national in scope: over one third of women in the United States will experience violence in their lifetime from their intimate partner (National Center for Injury Prevention and Control, National Intimate Partner and Sexual Violence Survey: 2010 Summary Report at 38 [2011] [finding 35.6% of U.S. women experience rape, physical violence, or stalking by their intimate partners during their lifetimes, including 5.9% in the year prior to the survey]). Despite research, public education, advocacy, and legislative initiatives intended to address abuse by former and current intimate partners this type of violence continues to affect members of all our diverse communities (*see e.g.* Violence Against Women Act of 1994, 34 USC § 12301 *et seq.*, as added by Pub L 103-322, tit IV, 108 US Stat 1902; L 1992, ch 463 [creating New York State Office for the Prevention of Domestic Violence]; U.S. Department of Justice, Office of Justice Programs, Bureau of Justice Statistics, Family Violence Statistics: Including Statistics on Strangers and Acquaintances at 10-11 [2005] [discussing widespread incidence of domestic violence across age, race, and gender lines]). Reports of an increase in domestic violence incidences in New York under the shelter-at-home directives for the novel coronavirus public health emergency have reminded all of us of the dangers faced by survivors and their families and the need to eliminate structural impediments to social services and legal assistance for survivors (*see* New York State Council on Women and Girls, COVID-19 Domestic Violence Task Force Recommendations at 1 [2020]).

Today, we have a greater understanding of the dynamics of abusive relationships, and how institutional gender bias heightens the barriers that survivors of domestic violence face, increasing the risk of harm to them and their children. Increased appreciation and concern for the challenges faced by survivors comes after decades of advocacy demanding, among other things, a change in the culture of law enforcement and just treatment in the courts (*see e.g.* Elizabeth M. Schneider, *Domestic Violence Law Reform in the Twenty-First Century: Looking Back And Looking Forward*, 42 Fam LQ 353 [2008]; Susan Schechter et al., *Effective Intervention in Domestic Violence & Child Maltreatment Cases: Guidelines for Policy and Practice: Recommendations from the National Council of Juvenile & Family Court Judges Family Violence Department* [1999]). Recently, in an impressive demonstration of organizing, the Me Too movement has effectively used social media to call for change and engage survivors of sexual violence at unprecedented levels (*see e.g.* Anna Codrea-Rado, *#MeToo Floods Social Media with Stories of Harassment and Assault*, NY Times, Oct. 16, 2017, <https://www.nytimes.com/2017/10/16/technology/metoo-twitter-facebook.html>; Lesley Wexler et al., *#MeToo, Time's Up, and Theories of Justice*, 2019 U Ill L Rev 45 [2019]; Jamillah Bowman Williams et al., *#MeToo as Catalyst: A Glimpse into 21st Century Activism*, 2019 U Chi Legal F 371 [2019]). Yet change in the legal culture has been slow. For example, while the majority of states now “require the trial judge to consider domestic violence as part of the best interest determination,” “gender bias in the justice system” tends to result in “devaluation of domestic violence” in custody determinations (Dana Harrington Conner, *Abuse and Discretion: Evaluating Judicial Discretion in Custody Cases Involving Violence against Women*, 17 Am U J Gender Soc Pol’y & L 163, 188-190 [2009]; Prentice L. White, *You May Never See Your Child Again: Adjusting the Batterer’s Visitation Rights to Protect Children from Future Abuse*, 13 Am U J Gender Soc Pol’y & L 327, 330-331 [2005] [discussing courtroom dynamics that can lead courts to “misunderstand the abused mother”]; Joan S. Meier, *Domestic Violence, Child Custody, and Child Protection: Understanding Judicial Resistance and Imagining the Solutions*, 11 Am U J Gender Soc Pol’y & L 657 [2003] [discussing the tendency of courts to discount the accounts of victims of domestic violence and possible reasons for this tendency]; Lois A. Weithorn, *Protecting Children from Exposure to Domestic Violence: The Use and Abuse of Child Maltreatment*,

53 Hastings LJ 1 [2001]; Lynne R. Kurtz, *Protecting New York's Children: An Argument for the Creation of a Rebuttable Presumption against Awarding a Spouse Abuser Custody of a Child*, 60 Alb L Rev 1345 [1997]; Amy Haddix, *Unseen Victims: Acknowledging the Effects of Domestic Violence on Children through Statutory Termination of Parental Rights*, 84 Calif L Rev 757 [1996]).

New York similarly has struggled with how to address domestic violence and the obstacles survivors face in the courts. Calls for institutional study with an eye towards systemic change have long come from members of New York's legal profession. Those calls led Chief Judge Cooke of the Court of Appeals to announce in 1984 the formation of the New York Task Force on Women in the Courts. The Task Force was authorized to "examine the courts and identify gender bias and, if found, make recommendations for its alleviation" (*Report of the New York Task Force on Women in the Courts*, 15 Fordham Urban LJ 11, 16 [1986-1987] [hereinafter *Task Force Report*]).

In accordance with its broad mandate, in 1986, the Task Force issued a comprehensive report on the status of women in the legal system, including the treatment of women litigants and lawyers.¹ At the same time that the anti-domestic violence movement was growing in visibility and impact, the Task Force turned to the courts' response to violence against women (*see generally* State of New York, Task Force on Domestic Violence, Domestic Violence: Second Report to the Governor and the Legislature [Nov. 1982]; *Task Force Report*, 15 Fordham Urban LJ at 28-29 [discussing legislative response to domestic violence, including amendments to article 8 of the Family Ct Act "for the purpose of attempting to stop the violence, end the family disruption and obtain protection"], quoting Family Ct Act § 812 [2] [b]). The report concluded that "[j]udges, law enforcement officials and court personnel often misconceive the nature and effect of violence against women. Women's claims are too often met with incredulity or are ascribed to ulterior motives. The courts appear indifferent and women are denied effective relief" (*Task Force Report*, 15 Fordham Urban LJ at 31). With respect to family court matters, the report further explained that "[j]udges making custody and visitation determinations too often fail to consider a man's violent conduct towards his wife and its well documented detrimental effect on

1. The report is an official report of the Unified Court System of the State of New York.

children” (*id.* at 48; *see id.* at 40-43).² Among other things, the Task Force recommended that the legislature “[e]nact legislation that . . . [p]rovides that abuse of one’s spouse is evidence of parental unfitness for custody and a basis for termination of visitation or a requirement of supervised visitation” (*id.* at 49).

The Task Force’s findings led to changes in this State’s judiciary. The Unified Court System created a Judicial Committee on Women in the Courts “to secure the equal justice, equal treatment, and equal opportunity that” the Task Force Report “found were often denied women” (New York State Unified Court System, Judicial Committee on Women in the Courts, Welcome, <http://ww2.nycourts.gov/ip/womeninthecourts/index.shtml> [last accessed June 15, 2020]). New York now has specialized courts with expertise in domestic violence matters (New York State Unified Court System, Domestic Violence [DV] & Integrated Domestic Violence [IDV] Courts, <http://ww2.nycourts.gov/Admin/OPP/dv-idv/index.shtml> [last accessed June 15, 2020]).

It took a decade, but the Task Force findings and recommended legislation also led to the eventual amendment of the Domestic Relations Law and Family Court Act to ensure that judicial custody and visitation determinations fully accounted for the effects of domestic violence on children. As relevant here, Domestic Relations Law § 240 (1) (a) provides that,

“[w]here either party to an action concerning custody of or a right to visitation with a child alleges in a sworn petition or complaint or sworn answer, cross-petition, counterclaim or other sworn responsive pleading that the other party has committed an act of domestic violence against the party

2. The reference to heterosexual couples reflects the language of that era (*see generally* Ruthann Robson, *Lavender Bruises: Intra-Lesbian Violence, Law and Lesbian Legal Theory*, 20 Golden Gate U L Rev 567, 568 [1990] [discussing “the confusion between sexuality and violence that confounds legal treatments of” violence between lesbians]). Times have changed. We are more likely today to use the inclusive term “gender-based violence,” which includes a broader spectrum of partner violence, sexual violence (including trafficking), and violence against women as well as people who identify as women or are gender non-conforming (*see* Rhonda Copelon, *Recognizing the Egregious in the Everyday: Domestic Violence As Torture*, 25 Colum Hum Rts L Rev 291, 292 n 1 [1994]). The term recognizes the harm that gender-based violence does to everybody, including men and children. Our laws reflect this evolution in our societal views. For example, New York adopted marriage equality and our domestic violence laws apply to same sex couples (*see* Social Services Law § 459-a [2] [b]; Domestic Relations Law § 10-a).

making the allegation or a family or household member of either party, . . . and such allegations are proven by a preponderance of the evidence, the court must consider the effect of such domestic violence upon the best interests of the child, together with such other facts and circumstances as the court deems relevant in making a direction pursuant to this section and state on the record how such findings, facts and circumstances factored into the direction.”

As the legislative history makes clear, this section was enacted based on the Task Force’s findings that judges were not properly considering allegations of domestic violence in custody and visitation proceedings (*see* Assembly Mem in Support at 1, Bill Jacket, L 1996, ch 85 at 10). Relying on the Task Force Report and additional research, the Assembly’s Memorandum in Support found that “judges too often disregard a father’s violence against a mother and award joint or sole custody to abusive fathers” (*id.*). This was because “[j]udges erroneously assume that the beating of a child’s parent is not a detriment to the child or that the problem will end upon separation or divorce” (*id.*, citing Linda R. Keenan, *Domestic Violence and Custody Litigation: The Need for Statutory Reform*, 13 Hofstra L Rev 407, 410 [1985]). Rather, abuse by a spouse “injures children both directly and indirectly” and is “a form of non-physical child abuse” (*id.*). In fact, “[a]buse of a parent is detrimental to children regardless of whether the children are physically abused themselves or whether they actually witness the violence to the parent” (*id.*). The legislature further noted that “children raised in a violent home have reactions of shock, fear and guilt,” and “have impaired self-esteem and developmental and socialization difficulties” (Assembly Mem in Support at 2, Bill Jacket, L 1996, ch 85 at 11, citing Bonnie Westra and Harold Martin, *Children of Battered Women*, 10 Maternal-Child Nursing J 41, 49 [1981]).³ It is in neither a child’s nor society’s best interest for the child to be placed with a perpetrator of domestic abuse because to do so

3. Some more recent decisions from this State’s courts do not appear to consider this reality (*see e.g. Matter of Daphne G.*, 308 AD2d 132, 134 [1st Dept 2003] [holding that “(t)he father’s assault of the mother in the child’s absence does not, by itself, expose the child to a substantial risk of harm so as to constitute proof of neglect”]; *but see id.* at 136-137 [Ellerin, J., dissenting] [discussing research showing that “domestic violence may harm a child who does not personally witness it”]).

exposes the child to an increased risk of being directly abused, and it can perpetuate “the cyclical nature of family violence”: “[c]hildren who are raised in violent homes learn to use physical violence as an outlet for anger and are more likely to use violence to resolve conflicts” (*id.*). The legislature also sought to respond to a recent case in which the Appellate Division reversed a Family Court order that had awarded primary physical custody to a father specifically *because* the mother was in a battered women’s shelter, and purportedly did not have enough space for the couple’s children (Assembly Mem in Support at 1, Bill Jacket, L 1996, ch 85 at 10, citing *Matter of Blake v Blake*, 106 AD2d 916 [4th Dept 1984]). Accordingly, the legislature determined that it would respond to the Task Force recommendations by mandating consideration of domestic violence in custody determinations (Assembly Mem in Support at 3, Bill Jacket, L 1996, ch 85 at 12).⁴ Prior to this legislation, New York was among a small minority of states that did not statutorily mandate consideration of domestic violence in custody determinations (*see* Mem of National Org for Women in Support, Bill Jacket, L 1996, ch 85 at 28; Letter from Tompkins County Task Force for Battered Women, dated May 14, 1996, Bill Jacket, L 1996, ch 85 at 29; Letter from Joan Zorza, Editor, Domestic Violence Rep, dated Apr. 25, 1996, Bill Jacket, L 1996, ch 85 at 31).

The language enacted does not specifically say whether domestic violence allegations must be made and proved in the custody action itself or in any sworn statement. The legislature was aware of this very issue, as the Department of Social Services noted the same (*see* Letter from NY St Dept of Soc Servs, dated May 17, 1996, Bill Jacket, L 1996, ch 85 at 18-19). Thus, the legislature, in line with its policy concerns, must have intended a broad interpretation of the statute’s coverage. Otherwise, the legislature would have included appropriate language to limit the application of the section to allegations made in *the* sworn pleadings in the instant action, rather than “a” sworn pleading (*Town of Aurora v Village of E. Aurora*, 32 NY3d 366, 379 [2018] [“what is omitted or not included in a statute was intended by the legislature to be omitted or

4. At the time, some stakeholders, while supporting the legislation, thought it did not go far enough. They advocated for a presumption against an award of custody to perpetrators of domestic violence (*see* Letter of Support from NY St Exec Dept, Div for Youth, dated May 14, 1996, Bill Jacket, L 1996, ch 85 at 21; Letter from Assn of Bar of City of NY, dated May 7, 1996, L 1996, ch 85 at 27).

excluded” (internal quotation marks and brackets omitted)]; *Matter of SIN, Inc. v Department of Fin. of City of N.Y.*, 71 NY2d 616, 621 [1988] [holding that where legislature did not choose to use “words of limitation or modification,” court presumes language is intended to “be given its full significance”]; McKinney’s Cons Laws of NY, Book 1, Statutes § 114 [same]; *see also* McKinney’s Cons Laws of NY, Book 1, Statutes § 321 [“Generally, remedial statutes are liberally construed to carry out the reforms intended and to promote justice”]).

The legislative history also includes statements approving the requirement that the allegations be proved by a preponderance of the evidence because this threshold burden would minimize the risk of unsubstantiated claims of abuse. The standard “simply requires [that] the trier of fact . . . believe that the existence of a fact is more probable than its nonexistence before [the trier of fact] may find in favor of the party who has the burden to persuade the [trier of fact] of the fact’s existence” (*Concrete Pipe & Products of Cal., Inc. v Construction Laborers Pension Trust for Southern Cal.*, 508 US 602, 622 [1993] [internal quotation marks omitted]; *accord Matter of Beautisha B. [Racquirine A.]*, 115 AD3d 854, 854 [2d Dept 2014]; *Matter of Nathaniel II.*, 18 AD3d 1038, 1038-1039 [3d Dept 2005]; 2 Robert P. Mosteller et al., McCormick on Evidence § 339 [8th ed, Jan. 2020 Update]).

In sum, any sworn statement in one of the listed documents satisfies the first prong of Domestic Relations Law § 240 (1) (a) that an allegation of abuse be made by one party to an action concerning custody or visitation. The court must then address the second prong and determine whether the allegations have previously been proved, or are proved in the pending action, by a preponderance of the evidence. Logically, this includes explaining if the party failed to satisfy the burden of proof. But if the allegations are substantiated, the court must consider them in making its determination, which under well-established law, requires the court to consider the abuse as a factor in deciding what is in the best interests of the children (*see S.L. v J.R.*, 27 NY3d 558, 562 [2016] [“in assessing questions of child custody, courts must ‘make every effort to determine what is for the best interest of the child, and what will best promote its welfare and happiness’ ”], quoting *Eschbach v Eschbach*, 56 NY2d 167, 171 [1982]).

II.

At the bench trial on father's action for divorce seeking custody of their two young children, the court admitted into evidence a family offense petition mother filed against father, in which she made sworn allegations of domestic violence. Mother testified in the divorce action that after obtaining an order of protection against father, she withdrew the petition without prejudice in exchange for father's agreement to voluntarily leave the marital residence. Mother further testified about the alleged domestic abuse. When father sought to limit her testimony to the statements in the family offense petition, the Attorney for the Child argued to the court that "[w]e all know that domestic violence is an element to be used in the determination of the best interests of the children," and that "[i]t would be a travesty" if the evidence was not admitted. The court admitted mother's testimony, along with supporting evidence. Father did not present evidence contradicting mother's testimony.

Supreme Court awarded the parties joint legal custody and awarded primary physical custody of the young children to father, concluding it was in the best interests of the children for father to have physical custody largely because "the children ha[d] expressed a firm preference for residing with" father, based on "reasons [that were] germane and [were] supported by evidence of record." The court made no findings of domestic violence or a lack of proof on the issue, nor did it so much as mention mother's allegations and render a credibility determination.

The Appellate Division affirmed, in an order that does not address mother's Domestic Relations Law § 240 (1) (a) claims,⁵ and similarly lacks discussion of her domestic violence allegations (172 AD3d 680 [2d Dept 2019]). We granted leave (34 NY3d 905 [2019]) and mother now renews her allegations that Supreme Court's decision fails to comport with the Domestic Relations Law.

III.

Mother made a sworn allegation in the family offense petition that father committed acts of violence against her. Thereafter, the petition was admitted into evidence at father's divorce

5. The Appellate Division's sole statutory reference is Domestic Relations Law § 240 (1-b) (c) (5), concerning the parties' pro rata contributions to the children's future unreimbursed health care expenses.

proceeding in which he sought custody of their children. She further testified to the alleged abuse and provided additional evidence to corroborate her allegations. Other than noting that mother withdrew the petition, father did not controvert her claims in any way. Accordingly, under Domestic Relations Law § 240 (1) (a), the court was required to consider mother's allegations to determine whether she established them by a preponderance of the evidence. However, because the court's decision makes no mention of those allegations, the record does not permit us to determine whether, as mother claims on appeal, the court failed to comply with its statutory mandate. Under the circumstances, the proper course is to reverse and remit to that court to make a record as to whether mother has established father's domestic violence by a preponderance of the evidence, and if so, then "the court must consider the effect of such domestic violence upon the best interests of the child[ren], together with such other facts and circumstances as the court deems relevant in making a direction . . . and state on the record how such findings, facts and circumstances factored into the direction" (Domestic Relations Law § 240 [1] [a]).

The majority erroneously concludes that mother did not preserve her claims. In general, "[t]o preserve an argument for review by this Court, a party must 'raise the specific argument' in Supreme Court 'and ask the court to conduct that analysis' in the first instance" (*U.S. Bank N.A. v DLJ Mtge. Capital, Inc.*, 33 NY3d 84, 89 [2019] [brackets omitted], quoting *Matter of New York City Asbestos Litig.*, 27 NY3d 1172, 1176 [2016]). That said, "a party who without success has either expressly or impliedly sought or requested a particular ruling or instruction, is deemed to have thereby protested the court's ultimate disposition of the matter or failure to rule or instruct accordingly sufficiently to raise a question of law with respect to such disposition or failure regardless" (CPL 470.05 [2]).

As the discussion above illustrates, the court was presented with sworn allegations of father's domestic violence, thus triggering the court's obligation under Domestic Relations Law § 240 (1) (a) to consider whether the allegations were proved by a preponderance of the evidence. The statute gives no indication but that it is self-executing—that it operates, like any other procedural rule, without the need for a party to parrot its language to the trial court. Further, there is no credible argument that the court was unaware that domestic violence is a

statutorily prescribed factor in its best interest of the children analysis, given that this standard is well-established; Domestic Relations Law § 240 (1) (a) is almost 25 years old; domestic violence is now commonly understood as negatively impacting children; and the obvious purpose of mother's testimonial and other evidence, which further supported the sworn statements in the family offense petition, was for the court to consider the alleged domestic violence in making its custody determination. Anyway, even if our rules of preservation were interpreted—in contravention of our case law—to impose the onerous requirement of an on-the-record assertion at trial that this standard applies, the Attorney for the Children made that same argument, saying outright that “[w]e all know that domestic violence is an element to be used in the determination of the best interests of the children.”

Our preservation rules require only that a party raise their claim at the first opportunity, which in this case was before the Appellate Division, after the trial court issued its custody determination.⁶ Mother did just that, arguing on appeal that the trial court failed to properly consider her allegations of domestic violence in its best interest of the children analysis, that she had proved the allegations by a preponderance of the evidence and that father did not admit evidence to controvert her allegations of abuse.

Notably, everyone appearing before us—mother, father, and the Attorney for the Children (who argues in support of reversal based, in part, on the court's failure to consider the domestic violence allegations)—assumes mother's claim is properly before this Court. Indeed, father argues only that mother failed to establish her domestic violence allegations by a preponderance of the evidence, not that those allegations were not presented at trial. There simply is no preservation bar to mother's assertions on this appeal. By way of comparison and clarification, there would be a preservation problem if on this appeal father interposed a challenge to the application of Domestic Relations Law § 240 (1) (a). He makes no such claim and it would not be reviewable if he did, because at trial, he conceded that mother could testify as to her allegations in the

6. Mother argued to the Appellate Division that the trial court issued its decision on the custody issue on August 8, 2017, a full week before the August 15 deadline for posttrial memoranda that it set at the conclusion of trial. The majority fails to take this into account in applying its novel and harsh preservation rule.

family offense petition, a document he had successfully moved to admit into evidence in his case-in-chief. He also did not object when the Attorney for the Children argued that the court was obligated to consider mother's allegations as part of its best interests of the children analysis.

The majority holding burdens survivors of domestic violence with a preservation rule that is contrary to law and serves no practical purpose. While our task is to ensure the intent of the legislature is given effect, the majority's rule undermines the statutory mandate that judges properly consider allegations of abuse proved by a preponderance of the evidence, and the effect of domestic violence on a child, when deciding custody and visitation. In accordance with that mandate, if a court concludes the allegations are not sufficiently proved, the court must say so, but it cannot, as here, refrain from addressing the issue at all. The whole point of Domestic Relations Law § 240 (1) (a) is to ensure custody and visitation determinations are well-informed and guided by society's understanding of the impact of domestic violence on a child placed in the care of an abusive parent, by requiring judicial consideration of domestic violence allegations. Affirming on this silent record does little to further that goal. Unfortunately, due to the majority decision here, legislative action to reinstate the court's obligations is the only recourse to ensure survivors are heard.

For the reasons I have discussed, I would reverse and remit to Supreme Court for further proceedings in accordance with the Domestic Relations Law as described herein.

Chief Judge DiFiore and Judges Stein, Fahey, Garcia and Feinman concur; Judge Rivera dissents in an opinion, in which Judge Wilson concurs.

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order affirmed, with costs, in a memorandum.

APPEALS WITHDRAWN AND DISCONTINUED

(June 1, 2020 through June 30, 2020)

Christopher J.G. v Derico of E.
Amherst Corp.

4thd Dept: 173 AD3d 1787

6/8/20

APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL

(June 1, 2020 through June 30, 2020)

People v Abelow*	3d Dept: 179 AD3d 39 (Rensselaer)	denied 5/18/20 (Rivera, J.)
People v Acevedo	App Term, 2d Dept, 9th & 10th Jud Dists: 67 Misc 3d 136(A) (Orange)	denied 6/17/20 (Stein, J.)
People v Adejumo	4th Dept: 182 AD3d 1047 (Erie)	denied 6/25/20 (Feinman, J.)
People v Aleynikov	1st Dept: 176 AD3d 444 (NY)	denied reconsideration 6/10/20 (Stein, J.)
People v Ash	2d Dept: 176 AD3d 1090 (Kings)	denied 6/4/20 (Feinman, J.)
People v Bailey	4th Dept: 181 AD3d 1172 (Erie)	denied 6/23/20 (DiFiore, Ch. J.)
People v Banks	3d Dept: 181 AD3d 973 (Chemung)	denied 6/11/20 (Garcia, J.)
People v Berry	County Ct, 1/28/20 (Genesee)	denied 6/24/20 (Fahey, J.)
People v Best	2d Dept: 179 AD3d 1088 (Queens)	denied 6/7/20 (Wilson, J.)
People v Bond	4th Dept: 178 AD3d 1437 (Oneida)	denied 6/29/20 (DiFiore, Ch. J.)
People v Booth	County Ct, 11/12/19 (Oneida)	denied reconsideration 6/30/20 (Fahey, J.)
People v Box	4th Dept: 181 AD3d 1238 (Jefferson)	denied 6/10/20 (Stein, J.)
People v Brickhouse	3d Dept: 181 AD3d 1057 (Ulster)	denied 6/10/20 (DiFiore, Ch. J.)
People v Brown	2d Dept: 177 AD3d 763 (Nassau)	denied 6/7/20 (Wilson, J.)
People v Burden	App Term, 2d Dept, 9th & 10th Jud Dists: 66 Misc3d 149(A) (Suffolk)	denied 6/9/20 (DiFiore, Ch. J.)
People v Byrd	4th Dept: 181 AD3d 1183 (Monroe)	denied 6/23/20 (DiFiore, Ch. J.)
People v Cahill	4th Dept: 181 AD3d 1283 (Onondaga)	denied 6/23/20 (Feinman, J.)
People v Cambranae	1st Dept: 180 AD3d 557 (Bronx)	denied 6/25/20 (Rivera, J.)
People v Carey	4th Dept: 178 AD3d 1469 (Erie)	denied 6/4/20 (Feinman, J.)
People v Casablanca	2d Dept: 179 AD3d 1091 (Rockland)	denied 6/8/20 (Feinman, J.)
People v Casado	2d Dept: 178 AD3d 1070 (Kings)	denied 6/8/20 (Feinman, J.)
People v Cepeda	1st Dept: 182 AD3d 524 (NY)	denied 6/29/20 (Garcia, J.)

* Omitted from May 2020 list.

People v Ciardiello	App Term, 2d Dept, 9th & 10th Jud Dists: 66 Misc 3d 149(A) (Westchester)	denied 6/11/20 (Garcia, J.)
People v Cole	4th Dept: 179 AD3d 1505 (Monroe)	denied 6/23/20 (Stein, J.)
People v Coleman	4th Dept: 178 AD3d 1377 (Monroe)	denied 6/25/20 (Feinman, J.)
People v Contreras	2d Dept: 183 AD3d 759 (Kings)	denied 6/25/20 (Feinman, J.)
People v Cooks	App Div, 1st Dept: 2020 NY Slip Op 60175(U) (Bronx)	denied 6/29/20 (Garcia, J.)
People v Corby	1st Dept: 178 AD3d 550 (NY)	denied 6/8/20 (Rivera, J.)
People v Corron	4th Dept: 180 AD3d 1330 (Onondaga)	denied 6/8/20 (Feinman, J.)
People v Cortland	App Term, 2d Dept, 9th & 10th Jud Dists: 66 Misc 3d 141(A) (Westchester)	denied 6/4/20 (Feinman, J.)
People v Crandall	3d Dept: 181 AD3d 1091 (Hamilton)	denied 6/24/20 (Fahey, J.)
People v Crogan	4th Dept: 181 AD3d 1212 (Niagara)	denied 6/23/20 (Stein, J.)
People v Cuttler	3d Dept: 180 AD3d 1221 (Sullivan)	denied 6/21/20 (Wilson, J.)
People v Daggett	County Ct, 10/15/19 (Ontario)	denied 6/14/20 (Wilson, J.)
People v Davis	2d Dept: 178 AD3d 844 (Westchester)	denied reconsideration 6/30/20 (Fahey, J.)
People v DeRaffele	App Term, 2d Dept, 9th & 10th Jud Dists: 66 Misc 3d 41 (Westchester)	denied reconsideration 6/23/20 (Feinman, J.)
People v Devallon	2d Dept: 182 AD3d 608 (Kings)	denied 6/24/20 (Fahey, J.)
People v Dixon	4th Dept: 181 AD3d 1190 (Livingston)	denied 6/25/20 (DiFiore, Ch. J.)
People v Duarte	1st Dept: 181 AD3d 416 (Bronx)	denied 6/24/20 (Fahey, J.)
People v Edwards	3d Dept: 181 AD3d 1054 (Broome)	denied 6/23/20 (Feinman, J.)
People v Ellis	3d Dept: 182 AD3d 791 (Broome)	denied 6/29/20 (Fahey, J.)
People v Five	3d Dept: 180 AD3d 1222 (Schenectady)	denied 6/2/20 (Rivera, J.)
People v Fray	App Term, 1st Dept: 67 Misc 3d 131(A) (Bronx)	denied 6/25/20 (Rivera, J.)
People v Garcia	1st Dept: 170 AD3d 462 (Bronx)	denied 6/1/20 (Rivera, J.)
People v Gavrilov	2d Dept: 178 AD3d 727 (Kings)	denied 6/25/20 (Rivera, J.)
People v General	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 67 Misc 3d 129(A) (Kings)	denied 6/23/20 (Feinman, J.)

MEMORANDA

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People v Gizowski	4th Dept: 182 AD3d 989 (Chautauqua)	denied 6/23/20 (Feinman, J.)
People v Glasgow	1st Dept: 182 AD3d 419 (Bronx)	denied 6/30/20 (Garcia, J.)
People v Goddard	2d Dept: 180 AD3d 804 (Kings)	denied 6/23/20 (Feinman, J.)
People v Gordineer	1st Dept: 181 AD3d 505 (NY)	denied 6/29/20 (Fahey, J.)
People v Gordon	4th Dept: 181 AD3d 1299 (Oneida)	denied 6/23/20 (Feinman, J.)
People v Gray	4th Dept: 181 AD3d 1326 (Monroe)	denied 6/23/20 (Feinman, J.)
People v Harriott	2d Dept: 181 AD3d 863 (Orange)	denied 6/29/20 (Garcia, J.)
People v Harris	4th Dept: 179 AD3d 1558 (Erie)	denied 6/9/20 (DiFiore, Ch. J.)
People v Hawkins	App Term, 2d, 11th & 13th Jud Dists: 66 Misc 3d 145(A) (Kings)	denied 6/24/20 (Fahey, J.)
People v Heimroth	3d Dept: 181 AD3d 967 (Rensselaer)	denied 6/23/20 (DiFiore, Ch. J.)
People v Herrera-Machuca	2d Dept: 181 AD3d 901 (Nassau)	denied 6/4/20 (Fahey, J.)
People v Herz-Oliva	App Term, 1st Dept: 66 Misc 3d 151(A) (NY)	denied 6/8/20 (Feinman, J.)
People v Hodge	4th Dept: 179 AD3d 1461 (Oswego)	denied 6/29/20 (Feinman, J.)
People v Houston	1st Dept: 181 AD3d 477 (NY)	denied 6/30/20 (Garcia, J.)
People v Innab	2d Dept: 182 AD3d 142 (Suffolk)	denied 6/9/20 (DiFiore, Ch. J.)
People v Jastrzebski	County Ct: 66 Misc 3d 171 (Sullivan)	denied reconsideration 6/30/20 (Fahey, J.)
People v Johnson	1st Dept: 181 AD3d 519 (NY)	denied 6/18/20 (DiFiore, Ch. J.)
People v Jones (Laquill)	4th Dept: 178 AD3d 1448 (Erie)	denied reconsideration 6/30/20 (Garcia, J.)
People v Jones (Lawrence)	2d Dept: 179 AD3d 948 (Kings)	denied reconsideration 6/29/20 (Garcia, J.)
People v Kamenev	2d Dept: 179 AD3d 837 (Kings)	denied 6/23/20 (Feinman, J.)
People v Kennedy	App Term, 1st Dept: 67 Misc 3d 127(A) (Bronx)	denied 6/23/20 (Feinman, J.)
People v King	4th Dept: 181 AD3d 1233 (Monroe)	denied 6/23/20 (Feinman, J.)
People v Lanier	1st Dept: 173 AD3d 416 (Bronx)	denied 6/25/20 (DiFiore, Ch. J.)

People v Laudan	County Ct, 3/12/20 (Erie)	denied 6/29/20 (DiFiore, Ch. J.)
People v Lawrence	2d Dept: 180 AD3d 1070 (Queens)	denied 6/29/20 (Garcia, J.)
People v Lee	1st Dept: 181 AD3d 407 (NY)	denied 6/23/20 (Stein, J.)
People v Lennon	1st Dept: 179 AD3d 536 (Bronx)	denied 6/8/20 (Feinman, J.)
People v Letzelter	4th Dept: 181 AD3d 1204 (Ontario)	denied 6/18/20 (DiFiore, Ch. J.)
People v Logan	4th Dept: 178 AD3d 1386 (Yates)	denied 6/23/20 (DiFiore, Ch. J.)
People v Lopez	App Term, 2d Dept, 9th & 10th Jud Dists: 65 Misc 3d 156(A) (Westchester)	denied reconsideration 6/2/20 (Rivera, J.)
People v Love	2d Dept: 182 AD3d 561 (Queens)	denied 6/30/20 (Fahey, J.)
People v Lundquist	2d Dept: 180 AD3d 806 (Suffolk)	denied 6/23/20 (Feinman, J.)
People v Mack	1st Dept: 181 AD3d 427 (NY)	denied 6/14/20 (Wilson, J.)
People v Magee	4th Dept: 182 AD3d 996 (Erie)	denied 6/23/20 (Feinman, J.)
People v Martin	4th Dept: 181 AD3d 1316 (Erie)	denied 6/25/20 (Rivera, J.)
People v Martinez	2d Dept: 180 AD3d 809 (Queens)	denied 6/8/20 (Feinman, J.)
People v McClinton	2d Dept: 180 AD3d 712 (Queens)	denied 6/24/20 (Fahey, J.)
People v McCoy	1st Dept: 182 AD3d 457 (Bronx)	denied 6/29/20 (Fahey, J.)
People v Menelao	App Term, 1st Dept: 66 Misc 3d 147(A) (NY)	denied 6/2/20 (Stein, J.)
People v Mercado	1st Dept: 181 AD3d 433 (Bronx)	denied 6/30/20 (Garcia, J.)
People v Meyers	4th Dept: 182 AD3d 1037 (Steuben)	denied 6/29/20 (DiFiore, Ch. J.)
People v Mills	2d Dept: 181 AD3d 718 (Westchester)	denied 6/1/20 (Rivera, J.)
People v Mojica	1st Dept: 181 AD3d 433 (Bronx)	denied 6/30/20 (Garcia, J.)
People v Moore	County Ct, 1/21/20 (Monroe)	denied 6/30/20 (Feinman, J.)
People v Moses	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 67 Misc 3d 128(A) (Queens)	denied 6/23/20 (Feinman, J.)
People v Muse	County Ct, 2/5/20 (Erie)	denied reconsideration 6/30/20 (Feinman, J.)
People v Orellana	1st Dept: 181 AD3d 457 (Bronx)	denied 6/30/20 (Stein, J.)

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People v Pascall	2d Dept:164 AD3d 1265 (Kings)	denied 6/25/20 (Rivera, J.)
People v Perez	1st Dept: 182 AD3d 454 (Bronx)	denied 6/26/20 (DiFiore, Ch. J.)
People v Pimentel	1st Dept: 182 AD3d 425 (NY)	denied 6/23/20 (DiFiore, Ch. J.)
People v Pinkney	1st Dept: 182 AD3d 478 (NY)	denied 6/29/20 (Garcia, J.)
People v Piwowar	4th Dept: 181 AD3d 1151 (Erie)	denied 6/8/20 (Feinman, J.)
People v Ramos	1st Dept: 182 AD3d 520 (Bronx)	denied 6/25/20 (Feinman, J.)
People v Rankin	4th Dept: 181 AD3d 1293 (Monroe)	denied 6/29/20 (DiFiore, Ch. J.)
People v Reibel	4th Dept: 181 AD3d 1268 (Erie)	denied 6/29/20 (Garcia, J.)
People v Richards	App Term, 1st Dept: 67 Misc 3d 132(A) (Bronx)	denied 6/29/20 (Garcia, J.)
People v Sharker	App Term, 1st Dept: 66 Misc 3d 146(A) (Bronx)	denied 6/11/20 (Garcia, J.)
People v Sidorski	App Term, 2d Dept, 9th & 10th Jud Dist: 66 Misc 3d 151(A) (Suffolk)	denied* 6/29/20 (Feinman, J.)
People v Snider	1st Dept: 180 AD3d 552 (NY)	denied 6/10/20 (Stein, J.)
People v Sonam	2d Dept: 180 AD3d 717 (Queens)	denied 6/29/20 (Feinman, J.)
People v Spencer	4th Dept: 181 AD3d 1257 (Monroe)	denied 6/25/20 (Rivera, J.)
People v Stewart	1st Dept: 181 AD3d 466 (NY)	denied 6/11/20 (Garcia, J.)
People v Tayeh	2d Dept: 181 AD3d 726 (Queens)	denied 6/23/20 (Stein, J.)
People v Terwilliger	4th Dept: 182 AD3d 1044 (Cayuga)	denied 6/29/20 (Garcia, J.)
People v Thelismond	2d Dept: 180 AD3d 1076 (Kings)	denied 6/23/20 (Feinman, J.)
People v Thora	3d Dept: 181 AD3d 1054 (Broome)	denied 6/23/20 (Feinman, J.)
People v Torres (Isaias)	2d Dept: 179 AD3d 1102 (Queens)	granted 6/17/20 (Feinman, J.)
People v Torres (Rafael)	2d Dept: 177 AD3d 785 (Orange)	denied 6/30/20 (Fahey, J.)
People v Torres (Ricky)	1st Dept: 183 AD3d 453 (Bronx)	denied 6/25/20 (Feinman, J.)

* Denied, with leave to renew within 30 days after the Court of Appeals renders a decision in *People v Iverson* (63 Misc 3d 163[A], 2019 NY Slip Op 50930[U] [App Term, 2d Dept, 9th & 10th Jud Dists 2019], *lv granted* 34 NY3d 981 [2019]) and *People v Cucceraldo* (64 Misc 3d 30 [App Term, 2d Dept, 9th & 10th Jud Dists 2019], *lv granted* 34 NY3d 979 [2019]).

People v Velte	County Ct, 10/24/19 (Oneida)	denied reconsideration 6/30/20 (Fahey, J.)
People v Wade	1st Dept: 181 AD3d 477 (NY)	denied 6/30/20 (Garcia, J.)
People v Walton	4th Dept: 178 AD3d 1459 (Monroe)	denied 6/30/20 (Stein, J.)
People v Ward	1st Dept: 180 AD3d 543 (NY)	denied 6/24/20 (Fahey, J.)
People v Watkins	3d Dept: 180 AD3d 1222 (Schenectady)	denied 6/2/20 (Rivera, J.)
People v Williams	2d Dept: 181 AD3d 621 (Suffolk)	denied 6/11/20 (Garcia, J.)
People v Willingham	3d Dept: 182 AD3d 803 (Albany)	denied 6/29/20 (Fahey, J.)

APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL

Decisions of Appellate Division Justices*

(June 1, 2020 through June 30, 2020)

People v Edwards	3d Dept: 182 AD3d 929 (Schenectady)	granted 6/26/20 (Lynch, J.)
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[150 NE3d 27, 126 NYS3d 449]

In the Matter of RICHARD ARROYO, Respondent, v JAMES P. O'NEILL, as Police Commissioner of the City of New York, et al., Appellants.

Decided June 25, 2020

SUMMARY

APPEAL, by permission of the Appellate Division of the Supreme Court in the First Judicial Department, from an order of that Court, entered September 17, 2019, in a proceeding pursuant to CPLR article 78 (transferred to the Appellate Division by order of the Supreme Court, entered in New York County). The Appellate Division modified, on the law, and otherwise confirmed, a determination of respondent Police Commissioner of the City of New York, which, after a hearing, had terminated petitioner's employment as a New York City police officer. The modification consisted of vacating the penalty of dismissal and forfeiture of petitioner's retirement benefits. The Appellate Division remanded the proceeding to respondents for determination of a lesser penalty. The following

* Includes only applications that were granted.

question was certified by the Appellate Division: “Was the order of this Court, which modified the order of the Police Commissioner to the extent of vacating the penalty imposed and remanding the matter to the respondents for determination of a lesser penalty, properly made?”

Matter of Arroyo v O’Neill, 175 AD3d 1150, reversed.

HEADNOTE

Civil Service — Police — Discipline of Police

In a proceeding to review a determination terminating petitioner’s employment as a police officer, an order of the Appellate Division, which vacated the penalty of dismissal and forfeiture of petitioner’s retirement benefits and remanded the matter to respondents for determination of a lesser penalty, was reversed and the petition dismissed because, under the circumstances of the case, the penalty imposed did not shock one’s sense of fairness.

APPEARANCES OF COUNSEL

James E. Johnson, Corporation Counsel, New York City (*Lorenzo Di Silvio, Richard Dearing and Ingrid R. Gustafson* of counsel), for appellants.

Worth, Longworth & London, LLP, New York City (*Howard B. Sterinbach* of counsel), for respondent.

OPINION OF THE COURT

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order reversed, with costs, petition dismissed in its entirety, and certified question answered in the negative. Under the circumstances of this case, the penalty imposed does not shock one’s sense of fairness (*see Matter of Kelly v Safir*, 96 NY2d 32, 40 [2001]; *Matter of Pell v Board of Educ. of Union Free School Dist. No. 1 of Towns of Scarsdale & Mamaroneck, Westchester County*, 34 NY2d 222, 233 [1974]).

Concur: Chief Judge DiFiore and Judges Rivera, Stein, Fahey, Garcia, Wilson and Feinman.

[150 NE3d 356, 126 NYS3d 690]

In the Matter of JASON FROEHLICH, Appellant, v NEW YORK STATE DEPARTMENT OF CORRECTIONS AND COMMUNITY SUPERVISION, Respondent.

Decided June 25, 2020

SUMMARY

APPEAL from an order of the Appellate Division of the Supreme Court in the Third Judicial Department, entered January 30, 2020. The Appellate Division, with two Justices dissenting, affirmed a judgment of the Supreme Court, Albany County (Debra J. Young, J.), entered in a proceeding pursuant to CPLR article 78, which had dismissed petitioner's application to review a determination of respondent denying petitioner a two-year leave of absence pursuant to Civil Service Law § 71.

Matter of Froehlich v New York State Dept. of Corr. & Community Supervision, 179 AD3d 1408, appeal dismissed.

HEADNOTE**Appeal — Court of Appeals — Dismissal**

An appeal from an Appellate Division order, which affirmed a Supreme Court order dismissing petitioner's application to review a determination of respondent denying petitioner a two-year leave of absence pursuant to Civil Service Law § 71, was dismissed by the Court of Appeals upon the ground that the two-Justice dissent at the Appellate Division was not on a question of law (*see* CPLR 5601 [a]).

APPEARANCES OF COUNSEL

Lippes Mathias Wexler Friedman LLP, Albany (*Thomas D. Latin* of counsel), for appellant.

Letitia James, Attorney General, Albany (*Joseph M. Spadola, Barbara D. Underwood, Andrea Oser* and *Julie M. Sheridan* of counsel), for respondent.

OPINION OF THE COURT

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), appeal dismissed, with costs, upon the ground that the two-Justice dissent at the Appellate Division is not on a question of law (*see* CPLR 5601 [a]).

Concur: Chief Judge DiFiore and Judges Rivera, Stein, Fajehy, Garcia, Wilson and Feinman.

[150 NE3d 360, 126 NYS3d 694]

In the Matter of WAYNE SEON, Respondent, v NEW YORK STATE
DEPARTMENT OF MOTOR VEHICLES et al., Appellants.

Argued June 2, 2020; decided June 25, 2020

SUMMARY

APPEAL from a judgment of the Appellate Division of the Supreme Court in the First Judicial Department, entered March 29, 2018, in a proceeding pursuant to CPLR article 78 (transferred to the Appellate Division by order of the Supreme Court, entered in Bronx County). The Appellate Division, with two Justices dissenting, (1) granted the petition to annul respondent Department of Motor Vehicles' determination which, after a hearing, upheld the suspension of petitioner's driver's license for a period of six months based upon a violation of Vehicle and Traffic Law § 1146; (2) annulled and vacated respondent's determination; and (3) reinstated petitioner's driver's license.

Matter of Seon v New York State Dept. of Motor Vehs., 159 AD3d 607, reversed.

HEADNOTE

Motor Vehicles — Revocation or Suspension of Operator's License — Failure to Exercise Due Care with Serious Physical Injury to Pedestrian Resulting

Respondent Department of Motor Vehicles' determination that clear and convincing evidence demonstrated that petitioner bus driver caused serious physical injury to a pedestrian while failing to exercise due care in violation of Vehicle and Traffic Law § 1146 (c) was supported by substantial evidence. The evidence at the administrative hearing included an investigative report from the accident-reconstruction specialist who investigated the incident, a report from a police officer who responded to the scene, and a statement provided by petitioner after the accident. The accident-reconstruction specialist also testified at the hearing, reiterating his report's conclusion concerning the victim's injuries.

APPEARANCES OF COUNSEL

Letitia James, Attorney General, New York City (*Linda Fang, Scott A. Eisman, Barbara D. Underwood* and *Judith N. Vale* of counsel), for appellants.

Armienti, DeBellis & Rhoden, LLP, New York City (*Vanessa M. Corchia* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The judgment of the Appellate Division should be reversed, with costs, the petition denied, and the determination of the New York State Department of Motor Vehicles reinstated.

In November 2014, a New York City Transit bus driven by petitioner struck the victim, an 88-year-old pedestrian. At the time of the accident, the victim was in a marked crosswalk

with the right-of-way, and petitioner was making a right turn. The bus ran “over the [victim’s] legs . . . with the front passenger’s side tire,” pinning him under the bus. The victim was transported to the hospital, where he died less than four weeks later.

A summons was issued to petitioner alleging that he caused serious physical injury to a pedestrian while failing to exercise due care (*see* Vehicle and Traffic Law § 1146 [c]). The Administrative Law Judge found that the charge was established by clear and convincing evidence. The DMV’s Traffic Violations Bureau Appeals Board affirmed, and petitioner’s license was suspended for six months (*see* Vehicle and Traffic Law § 510 [2] [b] [xiv]). Petitioner commenced this CPLR article 78 proceeding challenging the DMV’s determination. A divided Appellate Division granted the petition, annulled and vacated the agency determination, and reinstated petitioner’s license (159 AD3d 607 [1st Dept 2018]). The DMV respondents appealed. We now reverse.

The evidence at the administrative hearing included an investigative report from the accident-reconstruction specialist who investigated the incident, a report from a police officer who responded to the scene, and a statement provided by petitioner after the accident. The accident-reconstruction specialist also testified at the hearing, reiterating his report’s conclusion concerning the victim’s injuries. On this record, the agency’s determination—that clear and convincing evidence demonstrated that petitioner caused serious physical injury while failing to exercise due care in violation of Vehicle and Traffic Law § 1146 (c)—is supported by substantial evidence (*see Matter of McKenzie v Fisher*, 39 NY2d 103, 104-105 [1976]; *see also 300 Gramatan Ave. Assoc. v State Div. of Human Rights*, 45 NY2d 176, 182 [1978]; Siegel & Connors, NY Prac § 560 at 1075 [6th ed 2018]).

Petitioner’s remaining arguments are either unpreserved or without merit.

Concur: Chief Judge DiFiore and Judges Rivera, Stein, Fahey, Garcia, Wilson and Feinman.

Judgment reversed, with costs, petition denied and determination of the New York State Department of Motor Vehicles reinstated, in a memorandum.

[150 NE3d 356, 126 NYS3d 690]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v DARRYL
HEMPHILL, Appellant.

Decided June 25, 2020

SUMMARY

APPEAL, by permission of a Justice of the Appellate Division of the Supreme Court in the First Judicial Department, from an order of that Court, entered June 11, 2019. The Appellate Division affirmed a judgment of the Supreme Court, Bronx County (Steven L. Barrett, J.), which had convicted defendant, upon a jury verdict, of murder in the second degree.

People v Hemphill, 173 AD3d 471, affirmed.

HEADNOTES**Crimes — Murder — Sufficiency of Evidence — Third-Party Culpability Defense**

1. In defendant's murder prosecution in which the defense was third-party guilt, the evidence presented at trial was sufficient to support his conviction. While there was evidence of third-party culpability, a rational jury nevertheless could have concluded that defendant was guilty. The jury was free to reject defendant's claims about the witnesses' initial identifications of someone else as the shooter. Moreover, the People were not obligated to present evidence to the grand jury that someone else was initially identified as the shooter.

Crimes — Fair Trial — Evidentiary Rulings

2. The trial court in defendant's murder prosecution did not abuse its discretion in its evidentiary rulings concerning evidence relating to defendant's claim of third-party culpability, counsel's attempted impeachment of a witness, and admission of photographs of the victim's body. The trial court did not abuse its discretion by admitting evidence that the allegedly culpable third party pleaded guilty to possessing a firearm other than the murder weapon. Nor did the court abuse its discretion in its treatment of a controversy concerning counsel's attempt to impeach a witness with her prior grand jury testimony. Counsel failed to request that the witness be recalled for questioning relating to the particular appearance on which counsel relied. The trial court also acted within its discretion in admitting photographs of the victim's body as not simply introduced to inflame the jury, and in determining that their relevance was not outweighed by danger of undue prejudice to defendant.

APPEARANCES OF COUNSEL

Robert S. Dean, Center for Appellate Litigation, New York City (*Claudia Trupp* of counsel), for appellant.

Darcel D. Clark, District Attorney, Bronx (*Noah J. Chamoy* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed.

Defendant appeals from the judgment of Supreme Court, Bronx County convicting him after trial of murder in the second degree and sentencing him to 25 years to life in prison. The defense was third-party guilt. On appeal, defendant renews his challenges to the sufficiency of the evidence, the integrity of the grand jury proceedings and various trial rulings.

[1] While there was evidence of third-party culpability, a rational jury nevertheless could have concluded that defendant was guilty (*see People v Danielson*, 9 NY3d 342, 349 [2007]). The jury was free to reject defendant's claims about the witnesses' initial identifications of someone else as the shooter (*cf. Ando v Woodberry*, 8 NY2d 165, 171 [1960]). Contrary to defendant's claim that the indictment should be dismissed based on the prosecutor's failure to alert the grand jury to exculpatory evidence that implicated another, the People were not obligated to present evidence that someone else was initially identified as the shooter (*see People v Mitchell*, 82 NY2d 509 [1993]; *People v Lancaster*, 69 NY2d 20, 25-26 [1986]).

[2] With respect to the other claims raised by defendant, we note that trial courts possess broad discretion to make evidentiary rulings and control the course of cross-examination (*see People v Rouse*, 34 NY3d 269, 278-279 [2019]; *People v Jones*, 24 NY3d 623, 629 [2014]). Here, the trial court did not abuse its discretion by admitting evidence that the allegedly culpable third party pleaded guilty to possessing a firearm other than the murder weapon. Nor did the court abuse its discretion in its treatment of a controversy concerning counsel's attempt to impeach a witness with her prior grand jury testimony. Notably, counsel failed to request that the witness be recalled for questioning relating to the particular appearance on which counsel relied. Similarly, the trial court acted well within its discretion in admitting photographs of the victim's body as not simply introduced to inflame the jury (*see People v Stevens*, 76 NY2d 833, 835 [1990]), and in determining that their relevance was not outweighed by danger of undue prejudice to defendant (*see People v Primo*, 96 NY2d 351, 355 [2001]). The trial court's other evidentiary rulings were similarly within the court's discretion, as was the court's denial of defense counsel's same-day oral request to adjourn sentencing to investigate grounds for a possible motion to set aside the verdict (*cf. People v Spears*, 64 NY2d 698, 699-700 [1984]).

Defendant's remaining contentions are unpreserved or without merit.

FAHEY, J. (dissenting). I would reverse. The trial court abused its discretion in denying defense counsel's request to call as a witness the court reporter in a 2007 grand jury proceeding.

I.

The underlying events began with a street fight in April 2006 between two men, including trial witness Ronnell Gilliam, on the one side, and a group of three men and two women, including trial witness Brenda Gonzalez, on the other. Gilliam's accomplice was described by eyewitnesses as a thin black man wearing a blue shirt or sweater. After the fight broke up, a slim black man in a blue top returned to (or arrived on) the scene with a gun and opened fire. The gunfire killed a two-year-old passenger in a minivan that happened to be in the vicinity.

An eyewitness named Michelle Gist, who had observed the initial fight, but not the shooting, told the police that Gilliam and his best friend Nicholas Morris had been at the scene. Morris was arrested, and ammunition consistent with the type of bullets used in the shooting was found at his apartment. Gonzalez and two of her companions identified Morris in a lineup as the shooter. Meanwhile, at Gilliam's apartment, the police had found a blue sweater inside a plastic bag.

Gilliam turned himself in and spoke with the police. He identified Morris as the shooter. Later, Gilliam returned to the police station, recanted his identification of Morris, and now stated that the shooter had been defendant Darryl Hemphill. During this second interview, Gilliam received a phone call from Morris.

Grand juries were convened in 2006 and 2007, at which witnesses identified Morris as the shooter. At the 2006 grand jury proceedings, held on the basis of the evidence against Morris, Gonzalez did not identify Morris *by name* as the shooter. At the 2007 grand jury proceedings, Gonzalez expressly identified Morris by name as the shooter.

Morris went to trial for the killing. After a mistrial and a negative DNA swab of the sweater found in Gilliam's home, the People decided to abandon prosecution of Morris. Then, after the DNA on the sweater was found to match Hemphill instead, defendant was arrested.

At the second trial, Gilliam testified, pursuant to a cooperation agreement, that defendant had been the shooter. Gist

identified defendant as the thin black man present at the initial fight, but she was impeached with her prior statements to the police that Morris, not Hemphill, had been at the scene. Gonzalez and the others in her party described the shooter as a tall, thin black man in a blue sweater or shirt, without identifying Hemphill specifically.

Defense counsel cross-examined Gonzalez by, among other things, reading her 2007 grand jury testimony, in which she had testified that there was no doubt in her mind that she had seen Morris fire the shot that killed the child. Counsel momentarily confused the dates of the two grand jury proceedings and asked Gonzalez to recall her “2006” grand jury testimony, in which she had not identified Morris by name as the shooter. Gonzalez denied giving the testimony that defense counsel read to the jury. In addition, defense counsel put broader questions to Gonzalez, such as “Did you ever tell . . . any district attorney that there was no doubt in your mind that Nicholas Morris fired that shot . . . ?”, to which Gonzalez untruthfully replied, “No I didn’t.”

The trial court then permitted the People to call the 2006 grand jury court reporter to testify that Gonzalez in 2006 had not been asked the questions and had not given the answers that defense counsel had read in court (when reading from Gonzalez’s 2007 grand jury testimony). In response, defense counsel sought to introduce testimony from the 2007 court reporter that the questions had in fact been asked and answered in 2007. The trial court did not grant counsel’s request, and instead suggested that defense counsel recall Gonzalez, question her about her 2007 testimony, and then call the 2007 court reporter if necessary. Defense counsel declined this alternative to the request.

On summation, the prosecutor argued that defense counsel had “tried to get Brenda Gonzalez to admit she said things before the grand jury in 2006 that she never said” and that the People had called the reporter “to prevent the facts from being manipulated.” During deliberations, the jury repeatedly asked to rehear the testimony from the 2006 grand jury reporter. At this point, the parties discussed the fact that the trial court had precluded the defense from calling the 2007 grand jury court reporter, and the trial court told defense counsel, “[o]kay. I understand your position. You have an exception.”

II.

Defendant preserved for our review the issue whether counsel should have been permitted simply to call the reporter (see CPL 470.05 [2] [“a party who without success has . . . sought or requested a particular ruling or instruction, is deemed to have thereby protested the court’s ultimate disposition of the matter or failure to rule or instruct accordingly sufficiently to raise a question of law with respect to such disposition or failure”]). Indeed, the majority agrees. While it is true, as the majority notes, that “counsel failed to request that [Gonzalez] be recalled for questioning” on her 2007 grand jury appearance (majority op at 1036), the majority does not assert that defendant failed to preserve his challenge to the trial court’s ruling on calling the court reporter.

III.

The trial court committed reversible error and denied defendant a fair trial by refusing to allow defense counsel to call the 2007 grand jury court reporter, without recalling Gonzalez. This would have enabled the defense to impeach Gonzalez by confirming that she had in fact identified Morris, by name, as the shooter in 2007. Notably, Gonzalez was asked whether she had ever told a district attorney that Morris was the shooter, and denied doing so, even though she had testified as much in 2007. The trial court issued its ruling despite the fact that the People were permitted to call the 2006 court reporter to testify, in effect, that defense counsel’s questioning was disingenuous.

The trial court’s refusal to allow defense counsel to correct the record by calling the 2007 court reporter was prejudicial. The ruling left the jury with the impression that the defense had fabricated grand jury testimony, even though it was Gonzalez whose testimony was false. The jury was prevented from learning that Gonzalez had identified Morris as the shooter, by name and under oath, at the 2007 grand jury proceeding. This was error. Although “trial courts have broad discretion to keep the proceedings within manageable limits and to curtail exploration of collateral matters,” evidence that tends to show that a witness is fabricating her testimony “is never collateral and may not be excluded on that ground” (*People v Hudy*, 73 NY2d 40, 56 [1988]). Put another way, “there is no risk of diversionary excursions into collateral matters where ‘[t]he substance of th[e] contradiction goes to a material, core issue in the case’ ” (*People v Bradley*, 99 AD3d 934, 937 [2d Dept 2012], quoting *People v Cade*, 73 NY2d 904, 905 [1989]).

For these reasons, I dissent.

Chief Judge DiFIORE and Judges RIVERA, STEIN, GARCIA, WILSON and FEINMAN concur; Judge FAHEY dissents in an opinion.

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order affirmed, in a memorandum.

[150 NE3d 848, 127 NYS3d 45]

In the Matter of JOSELIN MEJIA et al., Respondents, v BOARD OF ELECTIONS IN THE CITY OF NEW YORK, Appellant.

In the Matter of MOHAMMED MUJUMDER et al., Respondents, v BOARD OF ELECTIONS IN THE CITY OF NEW YORK, Appellant.

Submitted May 20, 2020; decided May 21, 2020

SUMMARY

APPEAL, in the first above-entitled proceeding, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered May 14, 2020. The Appellate Division (1) reversed, on the law, an order of the Supreme Court, Bronx County (John W. Carter, J.; op 2020 NY Slip Op 31780[U] [2020]), which had denied petitioners' petition to validate the designating petitions of Joselin Mejia and other candidates seeking to be placed on the ballot for the Democratic Party primary election to be held on June 23, 2020; and (2) granted the petition.

APPEAL, in the second above-entitled proceeding, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered May 14, 2020. The Appellate Division (1) reversed, on the law and the facts, an order of the Supreme Court, Bronx County (John W. Carter, J.; op 2020 NY Slip Op 31779[U] [2020]), which had denied petitioners' petition to validate the designating petitions of Mohammed Mujumder and other candidates seeking to be placed on the ballot for the Democratic Party primary election to be held on June 23, 2020; and (2) granted the petition.

Matter of Mejia v Board of Elections in the City of N.Y., 183 AD3d 477, reversed.

Matter of Mujumder v Board of Elections in the City of N.Y., 183 AD3d 478, reversed.

HEADNOTE

Elections — Designating Petitions — Cover Sheets

In two Election Law proceedings, the Appellate Division erred in granting petitioners' petitions to validate their designating petitions, since the failure to timely file a cover sheet accompanying a designating petition constitutes a fatal defect.

APPEARANCES OF COUNSEL

James E. Johnson, Corporation Counsel, New York City (*Elina Druker* of counsel), for appellant.

Maldonado & Cruz, PLLC, Bronx (*Angel Cruz* of counsel), for respondents.

OPINION OF THE COURT

MEMORANDUM.

In each proceeding, the order of the Appellate Division should be reversed, without costs, and the petition to validate the designating petitions denied. For the reasons stated in *Matter of Seawright v Board of Elections in the City of N.Y.* (35 NY3d 227 [2020] [decided herewith]), the failure to timely file a cover sheet accompanying a designating petition constitutes a fatal defect.

For each case: Order reversed, without costs, and petition to validate the designating petitions denied, in a memorandum.

Chief Judge DiFiore and Judges Stein, Fahey, Garcia and Feinman concur; Judge Wilson dissents for reasons stated in his dissenting opinion in *Matter of Seawright v Board of Elections in the City of N.Y.* and *Matter of Hawatmeh v New York State Bd. of Elections* (35 NY3d 227 [2020] [decided today]); Judge Rivera taking no part.

APPEALS DISMISSED PURSUANT TO RULES OF PRACTICE OF COURT OF APPEALS OR ON CONSENT

(July 1, 2020 through July 31, 2020)

Frederick M.O., Matter of	App Div, 2d Dept: 2020 NY Slip Op 63070(U)	7/14/20
People v Laws	4th Dept: 177 AD3d 1404	7/17/20

APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL

(July 1, 2020 through July 31, 2020)

People v Alexander	App Term, 1st Dept: 67 Misc 3d 126(A) (NY)	denied 7/24/20 (Rivera, J.)
People v Allah	App Div, 4th Dept, 3/4/20 (Cayuga)	dismissed 7/30/20 (DiFiore, Ch. J.)
People v Alleyne	2d Dept: 183 AD3d 834 (Kings)	denied 7/29/20 (Fahey, J.)
People v Alman	2d Dept: 181 AD3d 694 (Nassau)	denied 7/5/20 (Wilson, J.)
People v Almodovar	1st Dept: 182 AD3d 417 (Bronx)	denied 7/15/20 (Garcia, J.)
People v Altheiser	App Div, 3d Dept: 2020 NY Slip Op 65645(U) (Schenectady)	dismissed 7/28/20 (Garcia, J.)
People v Aquino	2d Dept: 184 AD3d 656 (Kings)	denied 7/29/20 (Garcia, J.)
People v Baines	1st Dept: 178 AD3d 476 (NY)	denied 7/19/20 (Wilson, J.)
People v Baltazar	4th Dept: 183 AD3d 1266 (Livingston)	denied 7/14/20 (Feinman, J.)
People v Baptiste	1st Dept: 183 AD3d 499 (NY)	denied 7/20/20 (DiFiore, Ch. J.)
People v Batiste	2d Dept: 181 AD3d 816 (Richmond)	denied 7/22/20 (Garcia, J.)
People v Belanger	App Term, 1st Dept: 67 Misc 3d 132(A) (NY)	denied 7/5/20 (Wilson, J.)
People v Beverly	County Ct, 5/12/20 (Rensselaer)	denied 7/15/20 (Fahey, J.)
People v Blair	3d Dept: 184 AD3d 946 (Albany)	denied 7/20/20 (Rivera, J.)
People v Bonton	App Div, 2d Dept: 2020 NY Slip Op 63648(U) (Kings)	dismissed 7/26/20 (Wilson, J.)
People v Boria	App Term, 2d Dept, 9th & 10th Jud Dists: 2019 NY Slip Op 84230(U) (Rockland)	denied 7/19/20 (Wilson, J.)
People v Bowry	4th Dept: 181 AD3d 1298 (Monroe)	denied 7/5/20 (Wilson, J.)
People v Boyd	App Div, 4th Dept, 3/26/20 (Oneida)	dismissed 7/23/20 (DiFiore, Ch. J.)
People v Brandenburg	2d Dept: 184 AD3d 584 (Queens)	denied 7/17/20 (Feinman, J.)

MEMORANDA

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People v Brickhouse	2d Dept: 179 AD3d 943 (Westchester)	denied 7/5/20 (Wilson, J.)
People v Brooks	4th Dept: 183 AD3d 1231 (Erie)	denied 7/15/20 (Garcia, J.)
People v Brownlee	4th Dept: 181 AD3d 1265 (Monroe)	denied 7/14/20 (Feinman, J.)
People v Bruno	1st Dept: 180 AD3d 496 (NY)	denied 7/5/20 (Wilson, J.)
People v Buchannan	2d Dept: 181 AD3d 615 (Nassau)	denied 7/20/20 (Rivera, J.)
People v Burgos	1st Dept: 184 AD3d 495 (NY)	denied 7/22/20 (Feinman, J.)
People v Burnell	3d Dept: 183 AD3d 931 (Clinton)	denied 7/1/20 (Feinman, J.)
People v Burwell	3d Dept: 183 AD3d 173 (Albany)	denied 7/22/20 (Fahey, J.)
People v Buyund (Donovan)	2d Dept: 179 AD3d 161 (Kings)	granted 7/15/20 (Stein, J.)
People v Buyund (Donovan)	2d Dept: 179 AD3d 161 (Kings)	denied 7/15/20 (Stein, J.)
People v Cadogan	App Term, 1st Dept: 67 Misc 3d 137(A) (NY)	denied 7/22/20 (Garcia, J.)
People v Camacho	2d Dept: 179 AD3d 831 (Kings)	denied 7/19/20 (Wilson, J.)
People v Campbell	4th Dept: 182 AD3d 1004 (Livingston)	denied 7/1/20 (Feinman, J.) (Appeal No. 1)
People v Caraway	1st Dept: 182 AD3d 492 (NY)	denied 7/19/20 (Wilson, J.)
People v Celestine	2d Dept: 183 AD3d 912 (Kings)	denied 7/29/20 (Fahey, J.)
People v Christian	2d Dept: 181 AD3d 704 (Suffolk)	denied 7/21/20 (Stein, J.)
People v Cole	4th Dept: 183 AD3d 1261 (Erie)	denied 7/21/20 (Garcia, J.)
People v Collins	App Div, 4th Dept: 2020 NY Slip Op 61215(U) (Monroe)	dismissed 7/17/20 (Feinman, J.)
People v Connors	2d Dept: 182 AD3d 607 (Suffolk)	denied 7/28/20 (Garcia, J.)
People v Cook	1st Dept: 182 AD3d 487 (Bronx)	denied 7/30/20 (Feinman, J.)
People v Cribb (Gerald)	4th Dept: 181 AD3d 1218 (Monroe)	denied 7/15/20 (Fahey, J.)
People v Cribb (Gerard)	4th Dept: 181 AD3d 1218 (Monroe)	denied 7/15/20 (Fahey, J.)
People v Danzy	3d Dept: 182 AD3d 920 (Albany)	denied 7/5/20 (Wilson, J.)
People v Davis (Brian)	County Ct , 4/27/20 (Oneida)	denied 7/28/20 (Garcia, J.)
People v Davis (Kevin)	App Div, 1st Dept: 2020 NY Slip Op 63012(U) (NY)	denied 7/15/20 (Fahey, J.)

People v Davis (Nari)	1st Dept: 183 AD3d 446 (NY)	denied 7/20/20 (Rivera, J.)
People v Davis (Ramal)	App Div, 2d Dept: 2020 NY Slip Op 64845(U) (Kings)	dismissed 7/20/20 (Rivera, J.)
People v Delgado	4th Dept: 183 AD3d 1236 (Monroe)	denied 7/15/20 (Fahey, J.)
People v Dennis	4th Dept: 181 AD3d 1283 (Niagara)	denied 7/20/20 (Rivera, J.)
People v DeSantis	2d Dept: 183 AD3d 666 (Kings)	denied 7/24/20 (DiFiore, Ch. J.)
People v Deverow	2d Dept: 180 AD3d 1064 (Queens)	granted 7/13/20 (Wilson, J.)
People v Diaz	1st Dept: 180 AD3d 485 (NY)	denied 7/15/20 (Garcia, J.)
People v Dunbar (Naaron)	4th Dept: 183 AD3d 1263 (Onondaga)	denied 7/20/20 (Rivera, J.) (Appeal No. 1)
People v Dunbar (Naaron)	4th Dept: 183 AD3d 1265 (Onondaga)	denied 7/20/20 (Rivera, J.) (Appeal No. 2)
People v Edey	1st Dept: 183 AD3d 430 (NY)	denied 7/30/20 (DiFiore, Ch. J.)
People v Elmore	2d Dept: 175 AD3d 1423 (Queens)	denied 7/16/20 (Feinman, J.)
People v Escobar	4th Dept: 181 AD3d 1194 (Onondaga)	denied 7/20/20 (Rivera, J.)
People v Estevez	2d Dept: 181 AD3d 619 (Kings)	denied 7/8/20 (Rivera, J.)
People v Fareau	2d Dept: 182 AD3d 609 (Kings)	denied 7/15/20 (Garcia, J.)
People v Feggins	App Term, 1st Dept: 67 Misc 3d 136(A) (NY)	denied 7/17/20 (DiFiore, Ch. J.)
People v Fernandez	1st Dept: 180 AD3d 528 (NY)	granted 7/1/20 (Fahey, J.)
People v Fleetwood	App Term, 1st Dept: 67 Misc 3d 137(A) (NY)	denied 7/24/20 (DiFiore, Ch. J.)
People v Floyd	2d Dept: 183 AD3d 639 (Kings)	denied 7/20/20 (Garcia, J.)
People v Foreman	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 67 Misc 3d 131(A) (Kings)	denied 7/20/20 (Garcia, J.)
People v Francisco	1st Dept: 181 AD3d 541 (NY)	denied 7/5/20 (Wilson, J.)
People v Francois	1st Dept: 181 AD3d 439 (Bronx)	denied 7/15/20 (Stein, J.)
People v Galvan	App Term, 1st Dept: 67 Misc 3d 136(A) (NY)	denied 7/28/20 (Garcia, J.)
People v Garcia (Elias)	2d Dept: 184 AD3d 585 (Kings)	denied 7/17/20 (Feinman, J.)
People v Garcia (Genaro)	App Term, 1st Dept: 67 Misc 3d 131(A) (Bronx)	denied 7/15/20 (Fahey, J.)

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People v Garcia (Pablo)	1st Dept: 170 AD3d 462 (Bronx)	denied reconsideration 7/20/20 (Rivera, J.)
People v Gaston	1st Dept: 183 AD3d 488 (NY)	denied 7/22/20 (Fahey, J.)
People v Geron	App Div, 1st Dept: 2020 NY Slip Op 64418(U) (NY)	denied 7/15/20 (Stein, J.)
People v Gomez	1st Dept: 183 AD3d 544 (NY)	denied 7/29/20 (Fahey, J.)
People v Grant (Madi)	2d Dept: 185 AD3d 608 (Nassau)	denied 7/28/20 (DiFiore, Ch. J.)
People v Grant (Madi)	2d Dept: 185 AD3d 608 (Nassau)	withdrawn 7/28/20 (DiFiore, Ch. J.)
People v Grant (Madi)	2d Dept: 183 AD3d 562 (Nassau)	denied 7/13/20 (DiFiore, Ch. J.)
People v Green	4th Dept: 179 AD3d 1516 (Ontario)	denied reconsideration 7/24/20 (DiFiore, Ch. J.)
People v Griffith	4th Dept: 181 AD3d 1170 (Cayuga)	denied 7/8/20 (Rivera, J.)
People v Gutierrez	2d Dept: 183 AD3d 641 (Queens)	denied 7/17/20 (Feinman, J.)
People v Guzy	App Div, 3d Dept: 2020 NY Slip Op 66531(U) (Chenango)	denied 7/28/20 (Rivera, J.)
People v Hall	4th Dept: 182 AD3d 1023 (Monroe)	denied 7/22/20 (Feinman, J.)
People v Hargrave	4th Dept: 181 AD3d 1218 (Monroe)	denied 7/15/20 (Fahey, J.)
People v Harrington	4th Dept: 182 AD3d 1000 (Monroe)	denied 7/31/20 (DiFiore, Ch. J.)
People v Hayes	2d Dept: 180 AD3d 1068 (Nassau)	denied 7/28/20 (Feinman, J.)
People v Healy	4th Dept: 182 AD3d 1014 (Erie)	denied 7/15/20 (Garcia, J.)
People v Heyne	County Ct, 12/12/19 (Broome)	denied 7/14/20 (Feinman, J.)
People v Hidalgo	1st Dept: 181 AD3d 418 (Bronx)	denied 7/5/20 (Wilson, J.)
People v Hoedouglas	2d Dept: 183 AD3d 840 (Suffolk)	denied 7/28/20 (Garcia, J.)
People v Holman (Jerome)	App Term, 1st Dept: 66 Misc 3d 134(A) (NY)	denied 7/8/20 (Rivera, J.)
People v Holman (Serrice)	App Term, 1st Dept: 67 Misc 3d 133(A) (NY)	denied 7/9/20 (DiFiore, Ch. J.)
People v Horton	3d Dept: 181 AD3d 986 (Tompkins)	denied 7/8/20 (Rivera, J.)

People v Houze	3d Dept: 177 AD3d 1184 (Albany)	denied reconsideration 7/12/20 (Wilson, J.)
People v Ifill	1st Dept: 183 AD3d 539 (NY)	denied 7/29/20 (Fahey, J.)
People v Ingram	2d Dept: 183 AD3d 637 (Kings)	denied 7/15/20 (Garcia, J.)
People v Jackson (Anthony)	2d Dept: 183 AD3d 566 (Dutchess)	denied 7/28/20 (DiFiore, Ch. J.)
People v Jackson (Hugh)	4th Dept: 182 AD3d 1034 (Niagara)	denied 7/12/20 (Wilson, J.)
People v Jackson (Kalief)	1st Dept: 183 AD3d 416 (NY)	denied 7/24/20 (DiFiore, Ch. J.)
People v Jean	1st Dept: 183 AD3d 405 (NY)	denied 7/26/20 (Wilson, J.)
People v Johnson (Chad)	App Div, 2d Dept: 2020 NY Slip Op 66618(U) (Suffolk)	dismissed 7/30/20 (Feinman, J.)
People v Johnson (Floyd)	4th Dept: 182 AD3d 1036 (Erie)	denied 7/5/20 (Wilson, J.)
People v Johnson (Holiday)	4th Dept: 183 AD3d 1256 (Erie)	denied 7/19/20 (Wilson, J.)
People v Jones (Mark)	2d Dept: 183 AD3d 914 (Kings)	denied 7/22/20 (Garcia, J.)
People v Jones (Victor)	1st Dept: 183 AD3d 465 (NY)	denied 7/8/20 (Rivera, J.)
People v Kareem F.	2d Dept: 183 AD3d 636 (Kings)	denied 7/9/20 (DiFiore, Ch. J.)
People v Knight	1st Dept: 184 AD3d 468 (NY)	denied 7/31/20 (DiFiore, Ch. J.)
People v Lablidi	2d Dept: 183 AD3d 914 (Kings)	denied 7/22/20 (Fahey, J.)
People v Lawton	3d Dept: 179 AD3d 1383 (Rensselaer)	denied 7/8/20 (Rivera, J.)
People v Lewis (Joyce)	4th Dept: 180 AD3d 1335 (Ontario)	denied 7/5/20 (Wilson, J.)
People v Lewis (Tiquan)	2d Dept: 182 AD3d 610 (Putnam)	denied 7/20/20 (Rivera, J.)
People v Little	4th Dept: 183 AD3d 1269 (Steuben)	denied 7/15/20 (Stein, J.)
People v Long	4th Dept: 183 AD3d 1275 (Erie)	denied 7/24/20 (DiFiore, Ch. J.)
People v Lorandos	App Div, 2d Dept: 2020 NY Slip Op 62213(U) (Rockland)	dismissed 7/14/20 (Feinman, J.)
People v Lostumbo	4th Dept: 182 AD3d 1007 (Onondaga)	denied 7/28/20 (DiFiore, Ch. J.)
People v Lymel B.	2d Dept: 183 AD3d 758 (Kings)	denied 7/29/20 (Fahey, J.)
People v "Man Man"	4th Dept: 181 AD3d 1166 (Erie)	denied 7/20/20 (Rivera, J.)

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People v Martinez (Carlos)	App Term, 1st Dept: 66 Misc 3d 147(A) (Bronx)	denied 7/14/20 (DiFiore, Ch. J.)
People v Martinez (Cesar)	App Term, 1st Dept: 66 Misc 3d 152(A) (Bronx)	denied 7/8/20 (Rivera, J.)
People v Martz	3d Dept: 181 AD3d 979 (Hamilton)	denied 7/20/20 (Rivera, J.)
People v McCracken	4th Dept: 183 AD3d 1269 (Genesee)	denied 7/12/20 (Wilson, J.)
People v McDonald	App Term, 1st Dept: 66 Misc 3d 150(A) (NY)	denied 7/5/20 (Wilson, J.)
People v McNeil	2d Dept: 181 AD3d 716 (Rockland)	denied 7/5/20 (Wilson, J.)
People v Meadows	3d Dept: 183 AD3d 1016 (Chemung)	denied 7/10/20 (DiFiore, Ch. J.)
People v Mebuin	1st Dept: 181 AD3d 469 (NY)	denied 7/5/20 (Wilson, J.)
People v Miller	4th Dept: 183 AD3d 1268 (Steuben)	denied 7/15/20 (Garcia, J.)
People v Minus	1st Dept: 181 AD3d 508 (NY)	denied 7/20/20 (Rivera, J.)
People v Morgan-Smith	3d Dept: 182 AD3d 923 (Washington)	denied 7/26/20 (Wilson, J.)
People v Morris	4th Dept: 183 AD3d 1254 (Onondaga)	denied 7/24/20 (Rivera, J.)
People v Muhammad	1st Dept: 182 AD3d 462 (Bronx)	denied 7/5/20 (Wilson, J.)
People v Ndreka	1st Dept: 184 AD3d 460 (Bronx)	denied 7/30/20 (Garcia, J.)
People v Newman	2d Dept: 183 AD3d 601 (Queens)	denied 7/30/20 (DiFiore, Ch. J.)
People v Norman	4th Dept: 183 AD3d 1240 (Chautauqua)	denied 7/28/20 (Garcia, J.)
People v Ortiz	2d Dept: 183 AD3d 841 (Kings)	denied 7/20/20 (Rivera, J.)
People v Othman	2d Dept: 183 AD3d 666 (Kings)	denied 7/20/20 (Rivera, J.)
People v Ousmane	2d Dept: 183 AD3d 762 (Queens)	denied 7/23/20 (Garcia, J.)
People v Parson	App Term, 1st Dept: 67 Misc 3d 132(A) (Bronx)	denied 7/30/20 (Stein, J.)
People v Paulin	2d Dept: 181 AD3d 824 (Orange)	denied 7/23/20 (DiFiore, Ch. J.)
People v Pena	2d Dept: 183 AD3d 639 (Queens)	denied 7/15/20 (Garcia, J.)
People v Perez (Feliciano)	2d Dept: 184 AD3d 773 (Kings)	denied 7/29/20 (Garcia, J.)
People v Perez (Manuel)	1st Dept: 184 AD3d 533 (NY)	denied 7/20/20 (Rivera, J.)
People v Pettigrew	App Term, 1st Dept: 67 Misc 3d 140(A) (NY)	denied 7/30/20 (Feinman, J.)

People v Pray	2d Dept: 183 AD3d 842 (Suffolk)	denied 7/17/20 (Feinman, J.)
People v Quinn	4th Dept: 182 AD3d 1019 (Monroe)	denied 7/15/20 (Stein, J.)
People v Ramirez	1st Dept: 182 AD3d 495 (Bronx)	denied 7/8/20 (Rivera, J.)
People v Ramos	2d Dept: 182 AD3d 612 (Kings)	denied 7/22/20 (Feinman, J.)
People v Randolph	2d Dept: 180 AD3d 716 (Richmond)	denied 7/15/20 (Garcia, J.)
People v Redmond	4th Dept: 182 AD3d 1020 (Onondaga)	denied 7/28/20 (Feinman, J.)
People v Reeves	2d Dept: 180 AD3d 936 (Kings)	denied 7/28/20 (Feinman, J.)
People v Rickertt	1st Dept: 181 AD3d 429 (NY)	denied 7/22/20 (DiFiore, Ch. J.)
People v Ritter	County Ct, 5/11/20 (Broome)	denied 7/14/20 (Feinman, J.)
People v Robinson	1st Dept: 184 AD3d 429 (NY)	denied 7/31/20 (DiFiore, Ch. J.)
People v Rosado-Thomas	4th Dept: 181 AD3d 1166 (Erie)	denied 7/20/20 (Rivera, J.)
People v Rose	2d Dept: 181 AD3d 826 (Queens)	denied 7/15/20 (Fahey, J.)
People v Ruiz	1st Dept: 183 AD3d 409 (NY)	denied 7/8/20 (Rivera, J.)
People v Sallard	4th Dept: 175 AD3d 1839 (Onondaga)	granted 7/24/20 (Rivera, J.)
People v Saulters	App Div, 4th Dept, 3/3/20 (Niagara)	dismissed 7/30/20 (Stein, J.)
People v Saunders	App Div, 2d Dept: 2020 NY Slip Op 64132(U) (Kings)	dismissed 7/14/20 (Feinman, J.)
People v Sayles	2d Dept: 181 AD3d 725 (Kings)	denied 7/12/20 (Wilson, J.)
People v Schaefer	App Div, 4th Dept, 5/13/20 (Niagara)	dismissed 7/21/20 (Stein, J.)
People v Scott	2d Dept: 183 AD3d 604 (Queens)	denied 7/30/20 (DiFiore, Ch. J.)
People v Shamsuddin	App Div, 3d Dept: 2020 NY Slip Op 61352(U) (Albany)	denied reconsideration 7/12/20 (Wilson, J.)
People v Sherman	4th Dept: 182 AD3d 987 (Monroe)	denied 7/22/20 (Feinman, J.)
People v Sidibe	App Term, 1st Dept: 67 Misc 3d 126(A) (NY)	denied 7/15/20 (Fahey, J.)
People v Simone	2d Dept: 183 AD3d 637 (Queens)	denied 7/20/20 (Rivera, J.)
People v Simpson (Tahj)	4th Dept: 182 AD3d 1046 (Monroe)	denied 7/20/20 (Rivera, J.)

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People v Simpson (Tashj)	4th Dept: 182 AD3d 1046 (Monroe)	denied 7/20/20 (Rivera, J.)
People v Simpson (Theodore)	App Div, 1st Dept, 2/25/20 (Bronx)	denied 7/20/20 (Rivera, J.)
People v Smith	1st Dept: 181 AD3d 490 (Bronx)	denied 7/15/20 (Fahey, J.)
People v Sow	2d Dept: 183 AD3d 637 (Queens)	denied 7/19/20 (Wilson, J.)
People v Stallone	App Div, 2d Dept: 2020 NY Slip Op 64815(U) (Suffolk)	dismissed 7/20/20 (Rivera, J.)
People v Stanford	1st Dept: 182 AD3d 433 (NY)	denied 7/30/20 (Rivera, J.)
People v Steele	2d Dept: 183 AD3d 920 (Kings)	denied 7/22/20 (Garcia, J.)
People v Stephany	4th Dept: 183 AD3d 1262 (Livingston)	denied 7/21/20 (Garcia, J.)
People v Stocking	4th Dept: 178 AD3d 1454 (Steuben)	denied 7/20/20 (Garcia, J.)
People v Strauss	4th Dept: 179 AD3d 1487 (Onondaga)	denied reconsideration 7/21/20 (Garcia, J.)
People v Sumpter	1st Dept: 183 AD3d 459 (NY)	denied 7/15/20 (Fahey, J.)
People v Swett	App Term, 2d Dept, 9th & 10th Jud Dists: 67 Misc 3d 130(A) (Westchester)	denied 7/1/20 (Feinman, J.)
People v Swinton	App Term, 1st Dept: 67 Misc 3d 126(A) (NY)	denied 7/15/20 (Garcia, J.)
People v Taglianetti	4th Dept: 183 AD3d 1233 (Chautauqua)	denied 7/29/20 (Fahey, J.)
People v Tannen	1st Dept: 182 AD3d 482 (NY)	denied 7/28/20 (Garcia, J.)
People v Terborg	4th Dept: 178 AD3d 1469 (Monroe)	denied reconsideration 7/30/20 (DiFiore, Ch. J.)
People v Vale (Richard)	2d Dept: 177 AD3d 685 (Westchester)	denied reconsideration 7/15/20 (Fahey, J.)
People v Vale (Richard)	App Div, 2d Dept: 2020 NY Slip Op 65336(U) (Westchester)	dismissed 7/15/20 (Fahey, J.)
People v Valentin	4th Dept: 183 AD3d 1271 (Onondaga)	denied 7/16/20 (Rivera, J.)
People v Vilbrin	3d Dept: 183 AD3d 1012 (Washington)	denied 7/28/20 (Rivera, J.)
People v Watson	3d Dept: 183 AD3d 1191 (Ulster)	denied 7/14/20 (Feinman, J.)
People v Williams (Frederick)	App Div, 3d Dept: 2020 NY Slip Op 66506(U) (Columbia)	dismissed 7/29/20 (Garcia, J.)
People v Williams (Jason)	4th Dept: 181 AD3d 1298 (Monroe)	denied 7/5/20 (Wilson, J.)

People v Wilson	2d Dept: 183 AD3d 922 (Kings)	denied 7/20/20 (Rivera, J.)
People v Wingfield (Jerome)	4th Dept: 181 AD3d 1253 (Niagara)	denied 7/8/20 (Rivera, J.) (Appeal No. 1)
People v Wingfield (Jerome)	4th Dept: 181 AD3d 1254 (Niagara)	denied 7/8/20 (Rivera, J.) (Appeal No. 2)
People v Youngs	4th Dept: 183 AD3d 1228 (Herkimer)	denied 7/15/20 (Stein, J.)

[151 NE3d 949, 128 NYS3d 175]

MAMIDOU BARRY, as Administrator of the Estate of MARIAMA BAH, Deceased, Respondent, v CHRISTOPHER C. LEE, M.D., et al., Appellants.

Decided September 1, 2020

SUMMARY

APPEAL, by permission of the Appellate Division of the Supreme Court in the First Judicial Department, from an order of that Court, entered December 26, 2019. The Appellate Division (1) reversed, on the law, a judgment of the Supreme Court, Bronx County (Joseph E. Capella, J.), which had dismissed the complaint; (2) vacated the judgment; (3) denied defendants' motion for summary judgment dismissing the complaint; and (4) reinstated the complaint. The appeal to the Appellate Division brought up for review a prior order of that Supreme Court (op 2019 NY Slip Op 33825[U] [2019]), which had granted defendants' motion for summary judgment dismissing the complaint. The following question was certified by the Appellate Division: "Was the order of this Court, which reversed the judgment of the Supreme Court, Bronx County, entered April 16, 2019 dismissing the complaint, and denied defendants' motion for summary judgment and reinstated the complaint, properly made?"

Barry v Lee, 180 AD3d 103, affirmed.

HEADNOTE

Judgments — Summary Judgment — Triable Issues of Fact

An order of the Appellate Division, which had reversed a Supreme Court judgment dismissing the complaint and denied defendants' motion for sum-

mary judgment and reinstated the complaint, was affirmed, where triable questions of fact precluded summary judgment in favor of defendants. Plaintiff's submissions rebutted defendants' prima facie showing of entitlement to summary judgment and raised triable issues of fact.

APPEARANCES OF COUNSEL

Wilson, Elser, Moskowitz, Edelman & Dicker LLP, New York City (*Judy C. Selmeci* of counsel), for appellants.

Landers & Cernigliaro, P.C., Carle Place (*Stanley A. Landers* of counsel), for respondent.

OPINION OF THE COURT

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order affirmed, with costs, and certified question answered in the affirmative. Plaintiff's submissions rebutted defendants' prima facie showing of entitlement to summary judgment and raised triable issues of fact. On this record, triable questions of fact preclude summary judgment in favor of defendants.

Concur: Judges RIVERA, STEIN, FAHEY, WILSON and FEINMAN. Chief Judge DiFIORE and Judge GARCIA dissent for reasons stated in the dissenting opinion of Justice Anil C. Singh at the Appellate Division (*see Barry v Lee*, 180 AD3d 103, 108-114 [2019, Singh, J., dissenting]).

In the Matter of JOSEPH M. FERRANDINO et al., Respondents, v
NORMAN A. SAMMUT, Appellant, et al., Respondents. (And
Another Proceeding.)

Submitted August 10, 2020; decided August 24, 2020

Reported below, 185 AD3d 992.

Motion for leave to appeal denied. Motion for a stay dismissed
as academic.

In the Matter of ANONYMOUS, a Resigned Attorney, Appellant;
GRIEVANCE COMMITTEE FOR THE SECOND, ELEVENTH, AND
THIRTEENTH JUDICIAL DISTRICTS, Respondent.

Decided August 27, 2020

Appeal dismissed without costs, by the Court of Appeals sua sponte, upon the ground that the order appealed from does not finally determine the proceeding within the meaning of the Constitution.

MARGARET DOE, Appellant, v BLOOMBERG, L.P., et al., Defendants, and MICHAEL BLOOMBERG, Respondent.

Submitted July 13, 2020; decided August 27, 2020

Reported below, 178 AD3d 44.

Motion by Partnership for New York City for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. The brief must be submitted in digital format within 20 days.

ESTATE OF THEODORE LIPIN et al., Respondents, v JOAN C. LIPIN, Appellant.

Decided August 27, 2020

Reported below, 184 AD3d 464.

Appeal dismissed, by the Court of Appeals sua sponte, upon the ground that it does not lie (*see* NY Const, art VI, § 3 [b]; CPLR 5601).

In the Matter of ROLAND GREEN, Respondent, v DARWIN LACLAIR, as Superintendent of Franklin Correctional Facility, Appellant.

Submitted June 1, 2020; decided August 27, 2020

Reported below, 182 AD3d 877.

Motion for leave to appeal granted. Motion for a stay denied as unnecessary (*see* CPLR 5519 [a] [1]).

In the Matter of JAYDA M.L. SCO FAMILY OF SERVICES, Respondent; DIANE L., Appellant. (And Two Other Proceedings.)

Submitted May 26, 2020; decided August 27, 2020

Reported below, 182 AD3d 601.

Motion for leave to appeal denied. Motion for poor person relief dismissed as academic. Motion for a stay dismissed as academic.

In the Matter of KEENAN S. and Another, Infants. KEITH S., Appellant; ADMINISTRATION FOR CHILDREN'S SERVICES, Respondent.

Submitted June 22, 2020; decided August 27, 2020

Reported below, 180 AD3d 500.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

Judge FEINMAN taking no part.

JOAN C. LIPIN, Appellant, v DANSKE BANK et al., Respondents, et al., Defendants.

Decided August 27, 2020

Reported below, 184 AD3d 464.

Appeal dismissed, by the Court of Appeals sua sponte, upon the ground that it does not lie (*see* NY Const, art VI, § 3 [b]; CPLR 5601).

In the Matter of MARIA NAZOR et al., Appellants, v NEW YORK CITY LOFT BOARD et al., Respondents. (And a Related Action.)

Submitted May 18, 2020; decided August 27, 2020

Reported below, 179 AD3d 609.

Motion, insofar as it seeks leave to appeal from that portion of the Appellate Division order that affirmed Supreme Court's February 2018 and October 2018 orders, dismissed upon the ground that such portion of the order does not finally determine the action within the meaning of the Constitution; motion for leave to appeal otherwise denied.

Judge FEINMAN taking no part.

In the Matter of GEORGE R. OSBORNE, a Resigned Attorney, Appellant; ATTORNEY GRIEVANCE COMMITTEE FOR THE FIRST JUDICIAL DEPARTMENT, Respondent.

Decided August 27, 2020

Reported below, 2020 NY Slip Op 64438(U).

Appeal, insofar as taken from that portion of the Appellate Division order denying the motion to transfer, dismissed without costs, by the Court of Appeals sua sponte, upon the ground that such portion of the order does not finally determine the proceeding within the meaning of the Constitution; appeal otherwise dismissed without costs, by the Court of Appeals sua sponte, upon the ground that no substantial constitutional question is directly involved.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v
DASHAWN DEVEROW, Appellant.

Submitted August 24, 2020; decided August 27, 2020

Reported below, 180 AD3d 1064.

Motion for assignment of counsel granted and Paul Skip Laisure, Esq., Appellate Advocates, 111 John Street, 9th Floor, New York, NY 10038 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v SALVADOR FERNANDEZ, Appellant.

Submitted July 27, 2020; decided August 27, 2020

Reported below, 180 AD3d 528.

Motion for assignment of counsel granted and Robert S. Dean, Esq., Center for Appellate Litigation, 120 Wall Street, 28th Floor, New York, NY 10005 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v NICOLE HODGDON, Respondent.

Submitted August 17, 2020; decided August 27, 2020

Reported below, 175 AD3d 65.

Motion by Patricia Weiss, Esq. for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served, an original and nine copies filed, and the brief submitted in digital format within 20 days.

Chief Judge DiFiore taking no part.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ERIC IBARGUEN, Appellant.

Submitted June 29, 2020; decided August 27, 2020

Reported below, 173 AD3d 1207.

Motion by New York Civil Liberties Union for leave to appear amicus curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed. Two copies of the brief must be served, an original and nine copies filed, and the brief submitted in digital format within 20 days.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ISAIAS TORRES, Appellant.

Submitted August 10, 2020; decided August 27, 2020

Reported below, 179 AD3d 1102.

Motion for assignment of counsel granted and Janet E. Sabel, Esq., The Legal Aid Society, 199 Water Street, New York, NY 10038 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v ZAQUAN WALLEY, Respondent.

Submitted August 10, 2020; decided August 27, 2020

Reported below, 176 AD3d 1513.

Motion for assignment of counsel granted and G. Scott Walling, Esq., 1972 New Scotland Road #1013, Slingerlands, NY 12159 assigned as counsel to the respondent on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK ex rel. CHANCE MC-CURDY, Appellant, v WARDEN, WESTCHESTER COUNTY CORRECTIONAL FACILITY, et al., Respondents.

Submitted July 13, 2020; decided August 27, 2020

Reported below, 164 AD3d 692.

Motion by Prisoners' Legal Services of New York for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served, nine copies filed, and the brief submitted in digital format within 20 days.

THE PEOPLE OF THE STATE OF NEW YORK ex rel. RICHARD MILLS, Appellant, v JOHN COLVIN, etc., Respondent. (And Another Proceeding.)

Submitted May 11, 2020; decided August 27, 2020

Reported below, 179 AD3d 1459 (Appeal No. 1); 179 AD3d 1460 (Appeal No. 2); 179 AD3d 1460 (Appeal No. 3).

Motion for leave to appeal insofar as it seeks leave to appeal from the Appellate Division orders affirming the August 28, 2017 and August 7, 2018 Supreme Court judgments dismissing the proceedings, denied; motion for leave to appeal from the remaining Appellate Division order dismissed upon the ground that such order does not finally determine a proceeding within the meaning of the Constitution.

THE PEOPLE OF THE STATE OF NEW YORK ex rel. FRANCIS SMYTHE, Appellant, v CHRISTOPHER MILLER, as Superintendent of Great Meadow Correctional Facility, Respondent.

Submitted May 26, 2020; decided August 27, 2020

Reported below, 182 AD3d 894.

On the Court's own motion, appeal dismissed, without costs, upon the ground that no appeal lies as of right from the unanimous order of the Appellate Division absent the direct involvement of a substantial constitutional question (*see* CPLR 5601). Motion for leave to appeal denied.

In the Matter of YON RENEE WOODSON AWOONOR RENNER, Appellant, v ERNEST AWOONOR RENNER, Respondent. (And Other Proceedings.)

Submitted May 26, 2020; decided August 27, 2020

Reported below, 2020 NY Slip Op 64467(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceedings within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

In the Matter of SARATOGA COUNTY DEPARTMENT OF SOCIAL SERVICES, on Behalf of MARYSE PATENAUDE, Respondent, v JOHNNY MORIN, Appellant.

Decided August 27, 2020

Reported below, 182 AD3d 742.

Appeal, insofar as taken from the April 2020 Appellate Division order, dismissed without costs, by the Court of Appeals sua sponte, upon the ground that the order appealed from does not finally determine the proceeding within the meaning of the Constitution; appeal, insofar as taken from the May 2018 and October 2018 Family Court orders, dismissed without costs, by the Court of Appeals sua sponte, upon the ground that no appeal lies from such orders (*see* NY Const, art VI, § 3 [b]; CPLR 5601).

JEAN-PASCAL SIMON, Appellant, v FRANCI INVEST, S.A., et al., Defendants, FRENCH AMERICAN SURGERY CENTER, INC., et al., Respondents.

Decided August 27, 2020

Reported below, 2020 NY Slip Op 63486(U); 178 AD3d 436.

Appeal, insofar as taken from the February 2020 Appellate Division order dismissed without costs, by the Court of Appeals sua sponte, upon the ground that such order does not finally determine the action within the meaning of the Constitution; appeal, insofar as taken from the December 2019 Appellate Division order as against defendant VVC, Inc. d/b/a Cicero Consulting Associates, dismissed without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved; appeal, insofar as otherwise taken from the December 2019 Appellate Division order, dismissed without costs, by the Court of Appeals, sua sponte, upon the ground that the order does not otherwise finally determine the action within the meaning of the Constitution.

JUAN VARGAS, Respondent, v DEUTSCHE BANK NATIONAL TRUST COMPANY, Appellant.

Submitted June 22, 2020; decided August 27, 2020

Reported below, 168 AD3d 630.

Motion by Francis M. Caesar, Esq. for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served, nine copies filed, and the brief submitted in digital format within 20 days.

Judge GARCIA taking no part.

JENNIFER WHITE et al., Appellants, v ANDREW CUOMO, as Governor of the State of New York, et al., Respondents.

Submitted June 29, 2020; decided August 27, 2020

Reported below, 181 AD3d 76.

Motion by FanDuel, Inc. et al. for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served, an original and nine copies filed, and the brief submitted in digital format within 20 days.

ACE SECURITIES CORP., Appellant, v DB STRUCTURED PRODUCTS,
INC., Respondent.

Submitted May 18, 2020; decided September 1, 2020

Reported below, 177 AD3d 493.

Motion by National Credit Union Administration Board et al. for leave to appear amici curiae on the motion for leave to appeal herein granted and the brief is accepted as filed.

Judge GARCIA taking no part.

STEVEN BLAKE, Appellant, v BROOKFIELD PROPERTIES ONE WFC
Co., LLC, et al., Respondents, et al., Defendant.

Submitted March 16, 2020; decided September 1, 2020

Reported below, 180 AD3d 422.

Motion, insofar as it seeks leave to appeal as against defendant Holt Construction Corp., denied; motion for leave to appeal otherwise dismissed upon the ground that as to the remaining defendants the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

LUCIANO BONANNI et al., Respondents, v HORIZONS INVESTORS
CORP. et al., Appellants, and ALLAN HAUSKNECHT Respon-
dent, et al., Defendants.

Submitted March 30, 2020; decided September 1, 2020

Reported below, 179 AD3d 995.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

NANCY J. BRADY et al., Appellants, v TIMOTHY J. CONTANGELO,
Respondent.

Submitted May 4, 2020; decided September 1, 2020

Reported below, 177 AD3d 1388.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution (*see Cuadrado v New York City Tr. Auth.*, 14 NY3d 748 [2010] [*lv dismissed*]).

SUSAN M. COBAUGH et al., Appellants, v STATE OF NEW YORK et al., Respondents.

Submitted May 18, 2020; decided September 1, 2020

Reported below, 2019 NY Slip Op 78567(U).

Motion for reargument of motion for leave to appeal denied [*see* 34 NY3d 1147 (2020)].

Chief Judge DiFIORE taking no part.

ERRANT GENE THERAPEUTICS, LLC, Appellant, v SLOAN-KETTERING INSTITUTE FOR CANCER RESEARCH et al., Respondents.

Submitted April 27, 2020; decided September 1, 2020

Reported below, 176 AD3d 459.

Motion for leave to appeal dismissed upon the ground that the orders sought to be appealed from do not finally determine the action within the meaning of the Constitution.

NELLA MANKO, Appellant, v LENOX HILL HOSPITAL, Respondent.

Submitted July 27, 2020; decided September 1, 2020

Motion for leave to appeal dismissed upon the ground that the May 2020 and June 2020 letters sought to be appealed from are not judgments or orders from which an appeal to this Court may be taken (*see* CPLR 5512 [a]). Motion for ancillary relief dismissed upon the ground that the Court does not have jurisdiction to entertain it (*see* NY Const, art VI, § 3). Motion for poor person relief dismissed as academic.

Chief Judge DiFIORE taking no part.

JIM J. MASH, Respondent, v HEYANGJING SHI, Appellant, et al.,
Respondent.

Submitted May 18, 2020; decided September 1, 2020

Reported below, 2019 NY Slip Op 69528(U).

Motion for reargument of motion for leave to appeal denied
[see 35 NY3d 949 (2020)].

In the Matter of MENTAL HYGIENE LEGAL SERVICE, on Behalf of
OLIVIA CC., an Infant, Appellant, v KERRY DELANEY, as
Acting Commission of the Office for People with Develop-
mental Disabilities, et al., Respondents, et al., Respondent.

Submitted February 18, 2020; decided September 1, 2020

Reported below, 176 AD3d 24.

Motion by New York Chapter of the National Academy of El-
der Law Attorneys for leave to appear amicus curiae on the
motion for leave to appeal herein granted and the brief is ac-
cepted as filed.

THE PEOPLE OF THE STATE OF NEW YORK ex rel. ANDRE T. MC-
CANTS, Appellant, v TODD BAXTER, Respondent.

Submitted May 18, 2020; decided September 1, 2020

Motion for leave to appeal dismissed upon the ground that
no appeal lies from an order of an individual Justice of the Ap-
pellate Division (*see* NY Const, art VI, § 3 [b]; CPLR 5602).

In the Matter of QWIL PBC et al., Respondents, v JONATHAN
LANDOW et al., Appellants.

Submitted May 11, 2020; decided September 1, 2020

Reported below, 180 AD3d 593.

Motion, insofar as it seeks leave to appeal from that portion
of the Appellate Division order as affirmed so much of the July
15, 2019 Supreme Court order as granted pre-arbitration at-
tachment, dismissed upon the ground that such portion of the
order does not finally determine the proceeding within the
meaning of the Constitution; motion for leave to appeal from
the remaining portion of the Appellate Division order affirming
the July 15, 2019 Supreme Court order otherwise denied.

LOIS REID, Appellant, v UNIVERA HEALTHCARE et al., Respondents.

Submitted May 11, 2020; decided September 1, 2020

Reported below, 178 AD3d 1406.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

Judge FAHEY taking no part.

S.A., Respondent, v R.H., Appellant.

Submitted May 4, 2020; decided September 1, 2020

Reported below, 181 AD3d 520.

Motion, insofar as it seeks leave to appeal from that portion of the Appellate Division order that affirmed the June 2018 Supreme Court order, denied; motion for leave to appeal otherwise dismissed upon the ground that the remaining portion of the Appellate Division order does not finally determine the action within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

PEARL SHIFER, Respondent, v DAVID SHIFER, Defendant, and SARA STERN, Appellant, et al., Defendants.

Submitted May 11, 2020; decided September 1, 2020

Reported below, 165 AD3d 721.

Motion for reargument denied [*see* 34 NY3d 1144 (2020)].

U.S. BANK NATIONAL ASSOCIATION, as Trustee, Appellant, v CREATIVE ENCOUNTERS LLC et al., Respondents, et al., Defendant.

Decided September 1, 2020

Reported below, 183 AD3d 1086.

Appeal dismissed without costs, by the Court of Appeals sua sponte, upon the ground that the order appealed from does not finally determine the action within the meaning of the Constitution.

US BANK NATIONAL ASSOCIATION, Appellant, v UBS REAL ESTATE SECURITIES, INC., Respondent.

Submitted March 30, 2020; decided September 1, 2020

Reported below, 177 AD3d 493.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution (*see McDermott v Manhattan Eye, Ear & Throat Hosp.*, 15 NY2d 20, 23 n 2 [1964]).

Judge GARCIA taking no part.

US BANK NATIONAL ASSOCIATION, Appellant, v UBS REAL ESTATE SECURITIES, INC., Respondent.

Submitted May 18, 2020; decided September 1, 2020

Reported below, 177 AD3d 493.

Motion by National Credit Union Administration Board et al. for leave to appear amici curiae on the motion for leave to appeal herein granted and the brief is accepted as filed.

Judge GARCIA taking no part.

APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL

(August 1, 2020 through August 31, 2020)

People v Ace	3d Dept: 183 AD3d 1014 (Schenectady)	denied 8/25/20 (Feinman, J.)
People v Ahluwalia (Santinderpal)	1st Dept: 184 AD3d 540 (NY)	denied 8/28/20 (DiFiore, Ch. J.)
People v Ahluwalia (Satinderpal)	1st Dept: 184 AD3d 540 (NY)	denied 8/28/20 (DiFiore, Ch. J.)
People v Amico	App Term, 2d Dept, 9th & 10th Jud Dists: 67 Misc 3d 139(A) (Westchester)	denied 8/19/20 (Stein, J.)

People v Ampah	App Term, 1st Dept: 66 Misc 3d 150(A) (NY)	denied 8/3/20 (Rivera, J.)
People v Anderson (Kathon)	2d Dept: 180 AD3d 923 (Kings)	granted 8/4/20 (Fahey, J.)
People v Anderson (Malik)	3d Dept: 184 AD3d 1020 (Schenectady)	denied 8/31/20 (Feinman, J.)
People v Baber	3d Dept: 182 AD3d 794 (Warren)	denied 8/3/20 (Feinman, J.)
People v Bacigalupo	App Term, 1st Dept: 67 Misc 3d 139(A) (NY)	denied 8/19/20 (Stein, J.)
People v Banos	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 68 Misc 3d 1 (Queens)	denied 8/26/20 (DiFiore, Ch. J.)
People v Beligotti-Fenti	County Ct, 5/8/20 (Monroe)	denied 8/20/20 (Garcia, J.)
People v Bhuiyan	2d Dept: 181 AD3d 699 (Queens)	denied 8/18/20 (Fahey, J.)
People v Blanche	3d Dept: 183 AD3d 1196 (Albany)	denied 8/28/20 (Fahey, J.)
People v Blount	1st Dept: 183 AD3d 470 (Bronx)	denied 8/6/20 (Rivera, J.)
People v Bond	4th Dept: 178 AD3d 1437 (Oneida)	denied reconsideration 8/28/20 (DiFiore, Ch. J.)
People v Booker	2d Dept: 184 AD3d 772 (Nassau)	denied 8/25/20 (Garcia, J.)
People v Boubacar	App Term, 1st Dept: 67 Misc 3d 138(A) (Bronx)	denied 8/27/20 (Garcia, J.)
People v Brown (Matthew)	County Ct, 3/3/20 (Cortland)	denied 8/11/20 (Fahey, J.)
People v Brown (Sammy)	4th Dept: 181 AD3d 1301 (Jefferson)	denied 8/28/20 (DiFiore, Ch. J.)
People v Brown (Tommy)	4th Dept: 169 AD3d 1488 (Seneca)	denied 8/31/20 (DiFiore, Ch. J.)
People v Brown (Tyrell)	2d Dept: 181 AD3d 701 (Richmond)	denied 8/31/20 (Feinman, J.)
People v Brown (Willie)	App Term, 1st Dept: 67 Misc 3d 131(A) (Bronx)	denied 8/6/20 (Fahey, J.)
People v Burns	2d Dept: 183 AD3d 835 (Queens)	denied 8/31/20 (Fahey, J.)
People v Calderon	App Div, 4th Dept, 2/21/20 (Monroe)	dismissed 8/16/20 (Wilson, J.)
People v Canton	2d Dept: 184 AD3d 706 (Queens)	denied 8/18/20 (Fahey, J.)
People v Carlson	4th Dept: 184 AD3d 1139 (Cattaraugus)	denied 8/31/20 (Feinman, J.)
People v Carney	2d Dept: 181 AD3d 703 (Suffolk)	denied 8/4/20 (Fahey, J.)
People v Chin	App Term, 1st Dept: 67 Misc 3d 137(A) (NY)	denied 8/6/20 (Rivera, J.)

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People v Christopher B.	2d Dept: 184 AD3d 657 (Kings)	denied 8/31/20 (Feinman, J.)
People v Chunn	2d Dept: 181 AD3d 706 (Queens)	denied 8/18/20 (Feinman, J.)
People v Cortez	2d Dept: 181 AD3d 820 (Rockland)	denied 8/31/20 (Rivera, J.)
People v Crum	1st Dept: 184 AD3d 454 (NY)	denied 8/27/20 (Garcia, J.)
People v Cruz	2d Dept: 181 AD3d 899 (Suffolk)	denied 8/16/20 (Wilson, J.)
People v Daniel A.	2d Dept: 183 AD3d 909 (Kings)	denied 8/10/20 (DiFiore, Ch. J.)
People v Daugherty	1st Dept: 181 AD3d 545 (NY)	denied 8/16/20 (Wilson, J.)
People v DeFelice	2d Dept: 180 AD3d 700 (Suffolk)	denied reconsideration 8/18/20 (Wilson, J.)
People v Degracia	2d Dept: 173 AD3d 1199 (Queens)	withdrawn 8/11/20 (Garcia, J.)
People v Dickinson	3d Dept: 182 AD3d 783 (Warren)	denied 8/16/20 (Wilson, J.)
People v Dixon (Joseph)	2d Dept: 184 AD3d 854 (Kings)	denied 8/28/20 (Fahey, J.)
People v Dixon (Rysheek)	2d Dept: 183 AD3d 837 (Kings)	denied 8/31/20 (Stein, J.)
People v Dove	App Div, 3d Dept: 2020 NY Slip Op 67096(U) (Tompkins)	dismissed 8/7/20 (DiFiore, Ch. J.)
People v Drayton	3d Dept: 183 AD3d 1008 (Sullivan)	denied 8/25/20 (Wilson, J.)
People v Escalona- Martinez	App Term, 1st Dept: 67 Misc 3d 136(A) (NY)	denied 8/9/20 (Wilson, J.)
People v Everett	1st Dept: 183 AD3d 417 (NY)	denied 8/16/20 (Wilson, J.)
People v Exum	2d Dept: 183 AD3d 638 (Kings)	denied 8/19/20 (Stein, J.)
People v Flores	2d Dept: 176 AD3d 859 (Kings)	denied 8/31/20 (Stein, J.)
People v Fonville	2d Dept: 184 AD3d 855 (Queens)	denied 8/20/20 (Garcia, J.)
People v Forney	3d Dept: 183 AD3d 1113 (Schuyler)	denied 8/27/20 (Garcia, J.)
People v Frierson	1st Dept: 167 AD3d 550 (Bronx)	denied 8/10/20 (Stein, J.)
People v Fuqua	4th Dept: 184 AD3d 1093 (Wyoming)	denied 8/24/20 (Feinman, J.)
People v Garno	4th Dept: 184 AD3d 1106 (Yates)	denied 8/28/20 (DiFiore, Ch. J.)
People v Gibbs	2d Dept: 183 AD3d 761 (Kings)	denied 8/18/20 (Fahey, J.)

People v Gibson	3d Dept: 185 AD3d 1101 (Broome)	denied 8/18/20 (Feinman, J.)
People v Gillard	1st Dept: 184 AD3d 519 (NY)	denied 8/30/20 (Wilson, J.)
People v Gilmore	2d Dept: 183 AD3d 838 (Kings)	denied 8/31/20 (DiFiore, Ch. J.)
People v Giscombe	2d Dept: 184 AD3d 856 (Kings)	denied 8/20/20 (Garcia, J.)
People v Goberman	2d Dept: 183 AD3d 912 (Queens)	denied 8/31/20 (Rivera, J.)
People v Goodman	2d Dept: 184 AD3d 585 (Kings)	denied 8/18/20 (Feinman, J.)
People v Grose	App Div, 2d Dept: 2020 NY Slip Op 67520(U) (Kings)	dismissed 8/18/20 (Fahey, J.)
People v Guaman	2d Dept: 184 AD3d 857 (Queens)	denied 8/23/20 (Wilson, J.)
People v Guillermo N.	1st Dept: 184 AD3d 481 (NY)	denied 8/6/20 (Fahey, J.)
People v Guillermo P.	1st Dept: 184 AD3d 481 (NY)	denied 8/6/20 (Fahey, J.)
People v Gumbs	3d Dept: 182 AD3d 701 (Rensselaer)	denied 8/28/20 (DiFiore, Ch. J.)
People v Hansen	App Div, 2d Dept: 2020 NY Slip Op 66937(U) (Suffolk)	dismissed 8/18/20 (Fahey, J.)
People v Harris	4th Dept: 182 AD3d 992 (Livingston)	denied 8/18/20 (DiFiore, Ch. J.)
People v Heimroth	3d Dept: 181 AD3d 967 (Rensselaer)	denied reconsideration 8/18/20 (DiFiore, Ch. J.)
People v Henderson	2d Dept: 184 AD3d 768 (Orange)	denied 8/18/20 (Feinman, J.)
People v Hendricks	App Div, 4th Dept: 2018 NY Slip Op 65564(U) (Monroe)	dismissed 8/16/20 (Wilson, J.)
People v Henry	2d Dept: 184 AD3d 857 (Kings)	denied 8/31/20 (Rivera, J.)
People v Hernandez	1st Dept: 181 AD3d 530 (NY)	denied 8/24/20 (Feinman, J.)
People v Hester	App Term, 1st Dept: 67 Misc 3d 127(A) (Bronx)	denied 8/9/20 (Wilson, J.)
People v Holmes	1st Dept: 184 AD3d 439 (Bronx)	denied 8/16/20 (Wilson, J.)
People v Howlett	1st Dept: 185 AD3d 432 (NY)	denied 8/27/20 (Garcia, J.)
People v Hunter (Edward)	2d Dept: 184 AD3d 667 (Richmond)	denied 8/20/20 (Rivera, J.)
People v Hunter (Nashaun)	2d Dept: 184 AD3d 754 (Westchester)	denied 8/12/20 (Rivera, J.)
People v Iacovino	2d Dept: 184 AD3d 857 (Westchester)	denied 8/31/20 (Feinman, J.)

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People v Jackson (Daryl)	2d Dept: 180 AD3d 805 (Kings)	denied reconsideration 8/31/20 (Rivera, J.)
People v Jackson (Erwin)	2d Dept: 183 AD3d 565 (Nassau)	denied 8/9/20 (Wilson, J.)
People v James	App Div, 2d Dept: 2020 NY Slip Op 66482(U) (Suffolk)	dismissed 8/25/20 (Rivera, J.)
People v Jenkins	4th Dept: 184 AD3d 1150 (Erie)	denied 8/25/20 (Rivera, J.)
People v Joaquin	1st Dept: 185 AD3d 452 (Bronx)	denied 8/26/20 (DiFiore, Ch. J.)
People v Johnson (Brian)	1st Dept: 183 AD3d 401 (NY)	denied 8/11/20 (Fahey, J.)
People v Johnson (Elijah)	1st Dept: 184 AD3d 545 (NY)	denied 8/31/20 (Feinman, J.)
People v Jordan	4th Dept: 181 AD3d 1248 (Erie)	denied 8/9/20 (Wilson, J.)
People v Joseph	1st Dept: 184 AD3d 414 (NY)	denied 8/18/20 (Wilson, J.)
People v Kalabakas	3d Dept: 183 AD3d 1133 (Albany)	denied 8/24/20 (Feinman, J.)
People v Kang	2d Dept: 183 AD3d 640 (Queens)	denied 8/16/20 (Wilson, J.)
People v Ketchmore	3d Dept: 183 AD3d 1014 (Schenectady)	denied 8/25/20 (Feinman, J.)
People v Kovalsky	2d Dept: 183 AD3d 914 (Dutchess)	denied 8/7/20 (Stein, J.)
People v Lashley	1st Dept: 184 AD3d 426 (NY)	denied 8/19/20 (Stein, J.)
People v Lawrence	2d Dept: 184 AD3d 587 (Queens)	denied 8/19/20 (Stein, J.)
People v LeClair	3d Dept: 182 AD3d 919 (Clinton)	denied 8/10/20 (Stein, J.)
People v Leiva	2d Dept: 184 AD3d 731 (Queens)	denied 8/18/20 (Wilson, J.)
People v Leneau	App Div, 2d Dept: 2020 NY Slip Op 65697(U) (Kings)	dismissed 8/12/20 (Rivera, J.)
People v Liepke	4th Dept: 184 AD3d 1109 (Onondaga)	denied 8/31/20 (DiFiore, Ch. J.)
People v Liggins	2d Dept: 185 AD3d 721 (Kings)	denied 8/31/20 (Rivera, J.)
People v Livingston	App Div, 3d Dept: 2020 NY Slip Op 65646(U) (Washington)	dismissed 8/6/20 (Fahey, J.)
People v Loftus	2d Dept: 183 AD3d 631 (Dutchess)	denied 8/16/20 (Wilson, J.)
People v Long	2d Dept: 178 AD3d 1078 (Kings)	denied 8/16/20 (Wilson, J.)
People v Looney	App Term, 2d Dept, 9th & 10th Jud Dists: 67 Misc 3d 135(A) (Nassau)	denied 8/19/20 (Stein, J.)

People v Lotto	3d Dept: 185 AD3d 1101 (Broome)	denied 8/18/20 (Feinman, J.)
People v M	3d Dept: 184 AD3d 1020 (Schenectady)	denied 8/31/20 (Feinman, J.)
People v Marcus	4th Dept: 184 AD3d 1143 (Onondaga)	denied 8/27/20 (Garcia, J.)
People v Mason	2d Dept: 183 AD3d 639 (Kings)	denied 8/16/20 (Wilson, J.)
People v Maynard	1st Dept: 167 AD3d 550 (Bronx)	denied 8/10/20 (Stein, J.)
People v McAvoy	2d Dept: 181 AD3d 888 (Suffolk)	denied 8/17/20 (Feinman, J.)
People v McFadden	2d Dept: 181 AD3d 854 (Nassau)	denied 8/19/20 (Stein, J.)
People v Melendez	2d Dept: 183 AD3d 597 (Orange)	denied 8/6/20 (Fahey, J.)
People v Melo	1st Dept: 182 AD3d 431 (NY)	denied 8/31/20 (DiFiore, Ch. J.)
People v Mena	App Div, 2d Dept: 2020 NY Slip Op 66483(U) (Kings)	dismissed 8/16/20 (Wilson, J.)
People v Merritt	4th Dept: 115 AD3d 1250 (Erie)	denied reconsideration 8/31/20 (Rivera, J.)
People v Miller	App Div, 3d Dept: 2020 NY Slip Op 67096(U) (Tompkins)	dismissed 8/7/20 (DiFiore, Ch. J.)
People v Miyong Kim	App Term, 1st Dept: 67 Misc 3d 140(A) (NY)	denied 8/31/20 (Fahey, J.)
People v Moore	App Div, 4th Dept, 2/24/20 (Monroe)	dismissed 8/10/20 (Stein, J.)
People v Morehouse	3d Dept: 183 AD3d 1180 (Washington)	denied 8/20/20 (Garcia, J.)
People v Mosquera	2d Dept: 181 AD3d 723 (Queens)	denied 8/18/20 (Feinman, J.)
People v Murray	1st Dept: 184 AD3d 426 (NY)	denied 8/19/20 (Stein, J.)
People v Nobles	1st Dept: 183 AD3d 451 (Bronx)	denied 8/31/20 (Feinman, J.)
People v Noel	County Ct, 5/27/20 (Monroe)	denied 8/25/20 (Garcia, J.)
People v O'Connor	4th Dept: 184 AD3d 1137 (Monroe)	denied 8/25/20 (Garcia, J.)
People v Ortega	App Div, 1st Dept: 2019 NY Slip Op 84367(U) (NY)	denied reconsideration 8/16/20 (Wilson, J.)
People v Owens	4th Dept: 183 AD3d 1276 (Onondaga)	denied 8/19/20 (Stein, J.)
People v Parker	1st Dept: 167 AD3d 550 (Bronx)	denied 8/10/20 (Stein, J.)
People v Parra	1st Dept: 167 AD3d 550 (Bronx)	denied 8/10/20 (Stein, J.)

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People v Parton	App Div, 4th Dept, 6/1/20 (Onondaga)	dismissed 8/18/20 (Wilson, J.)
People v Peasley	3d Dept: 184 AD3d 911 (Clinton)	denied 8/13/20 (DiFiore, Ch. J.)
People v Perez (Eneida)	County Ct, 6/4/20 (Rensselaer)	denied 8/19/20 (Stein, J.)
People v Perez (Lorenzo)	1st Dept: 180 AD3d 563 (NY)	denied 8/10/20 (Stein, J.)
People v Person	1st Dept: 184 AD3d 447 (Bronx)	denied 8/31/20 (Stein, J.)
People v Pfail	2d Dept: 184 AD3d 675 (Nassau)	denied 8/20/20 (Garcia, J.)
People v Pizarro	2d Dept: 184 AD3d 676 (Kings)	denied 8/31/20 (Rivera, J.)
People v Porter	3d Dept: 184 AD3d 1014 (Broome)	denied 8/31/20 (DiFiore, Ch. J.)
People v Price	2d Dept: 183 AD3d 764 (Kings)	denied 8/19/20 (Stein, J.)
People v Richardson (Freddie)	App Term, 1st Dept: 2020 NY Slip Op 50376(U) (NY)	denied 8/19/20 (Stein, J.)
People v Richardson (Freddy)	App Term, 1st Dept: 2020 NY Slip Op 50376(U) (NY)	denied 8/19/20 (Stein, J.)
People v Riley (James)	4th Dept: 182 AD3d 1017 (Monroe)	denied 8/9/20 (Wilson, J.)
People v Riley (Lance)	4th Dept: 182 AD3d 998 (Wyoming)	denied 8/18/20 (Wilson, J.)
People v Rivera (Alfred)	1st Dept: 167 AD3d 550 (Bronx)	denied 8/10/20 (Stein, J.)
People v Rivera (Joel)	1st Dept: 183 AD3d 415 (Bronx)	denied 8/19/20 (Stein, J.)
People v Robinson (Anthony)	2d Dept: 183 AD3d 919 (Suffolk)	denied 8/5/20 (Fahey, J.)
People v Robinson (Kendale)	2d Dept: 179 AD3d 720 (Kings)	denied 8/9/20 (Wilson, J.)
People v Robinson (Kendale)	3d Dept: 183 AD3d 1118 (Washington)	denied 8/3/20 (DiFiore, Ch. J.)
People v Rodriguez (Danny)	1st Dept: 180 AD3d 435 (NY)	denied 8/16/20 (Wilson, J.)
People v Rodriguez (David)	1st Dept: 167 AD3d 550 (Bronx)	denied 8/10/20 (Stein, J.)
People v Rodriguez (Ramon)	App Div, 2d Dept: 2020 NY Slip Op 60967(U) (Queens)	denied reconsideration 8/7/20 (Stein, J.)
People v Rodriguez (Ruben)	1st Dept: 185 AD3d 445 (Bronx)	denied 8/18/20 (Feinman, J.)
People v Rodriguez- Medina	1st Dept: 185 AD3d 419 (Bronx)	denied 8/28/20 (DiFiore, Ch. J.)
People v Rogers	1st Dept: 185 AD3d 469 (NY)	denied 8/24/20 (Feinman, J.)
People v Rosario	2d Dept: 184 AD3d 676 (Richmond)	denied 8/25/20 (DiFiore, Ch. J.)

People v Rudge	3d Dept: 185 AD3d 1214 (Clinton)	denied 8/31/20 (Feinman, J.)
People v Russ	4th Dept: 183 AD3d 1238 (Ontario)	denied 8/7/20 (Stein, J.)
People v Santos	2d Dept: 183 AD3d 765 (Nassau)	denied 8/20/20 (Garcia, J.)
People v Schrock	App Div, 4th Dept, 6/9/20 (Cattaraugus)	dismissed 8/24/20 (Feinman, J.)
People v Scott	1st Dept: 185 AD3d 411 (NY)	denied 8/25/20 (Rivera, J.)
People v Sealy	2d Dept: 181 AD3d 893 (Westchester)	denied 8/4/20 (Fahey, J.)
People v Seiler	County Ct, 5/5/20 (Rensselaer)	denied 8/11/20 (Fahey, J.)
People v Sharpe	App Div, 2d Dept: 2020 NY Slip Op 66974(U) (Queens)	dismissed 8/27/20 (Garcia, J.)
People v Simmon	1st Dept: 183 AD3d 499 (NY)	denied 8/23/20 (Wilson, J.)
People v Simpson	2d Dept: 184 AD3d 677 (Queens)	denied 8/18/20 (Wilson, J.)
People v Singh	1st Dept: 183 AD3d 546 (NY)	denied 8/26/20 (DiFiore, Ch. J.)
People v Six Seven	3d Dept: 182 AD3d 776 (Albany)	denied 8/6/20 (Feinman, J.)
People v Smith	App Term, 1st Dept: 67 Misc 3d 145(A) (Bronx)	denied 8/31/20 (Rivera, J.)
People v Spencer	4th Dept: 183 AD3d 1258 (Monroe)	denied 8/4/20 (Fahey, J.)
People v Spinac	1st Dept: 185 AD3d 498 (NY)	denied 8/31/20 (Feinman, J.)
People v Stanford	1st Dept: 184 AD3d 463 (NY)	denied 8/31/20 (Fahey, J.)
People v Strong	App Div, 4th Dept, 5/20/20 (Onondaga)	dismissed 8/12/20 (Rivera, J.)
People v Sutton	2d Dept: 184 AD3d 236 (Kings)	denied 8/20/20 (Garcia, J.)
People v Szatanek	App Div, 4th Dept, 5/18/20 (Oswego)	dismissed 8/21/20 (DiFiore, Ch. J.)
People v Tallon	3d Dept: 175 AD3d 1598 (Franklin)	denied 8/23/20 (Wilson, J.)
People v Tavaréz	1st Dept: 184 AD3d 416 (NY)	denied 8/14/20 (DiFiore, Ch. J.)
People v Taylor	1st Dept: 183 AD3d 548 (NY)	denied 8/3/20 (Rivera, J.)
People v Tejada	App Term, 1st Dept: 67 Misc 3d 139(A) (NY)	denied 8/28/20 (DiFiore, Ch. J.)
People v Tetro	4th Dept: 181 AD3d 1286 (Oswego)	denied 8/25/20 (Stein, J.)
People v Thomas	4th Dept: 184 AD3d 1118 (Onondaga)	denied 8/20/20 (Rivera, J.)

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People v Thompson	2d Dept: 181 AD3d 833 (Queens)	denied 8/31/20 (Fahey, J.)
People v Timmons	4th Dept: 182 AD3d 1064 (Monroe)	denied 8/18/20 (DiFiore, Ch. J.)
People v Trammell	1st Dept: 183 AD3d 155 (NY)	denied 8/3/20 (Rivera, J.)
People v Urena	1st Dept: 183 AD3d 534 (NY)	denied 8/30/20 (Wilson, J.)
People v Vasquez	2d Dept: 183 AD3d 920 (Kings)	denied 8/18/20 (Feinman, J.)
People v Verneus	2d Dept: 184 AD3d 678 (Queens)	withdrawn 8/20/20 (Garcia, J.)
People v Viscaino	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 67 Misc 3d 138(A) (Queens)	denied 8/31/20 (DiFiore, Ch. J.)
People v Wahlers	App Term, 2d Dept, 9th & 10th Jud Dists: 67 Misc 3d 142(A) (Orange)	denied 8/31/20 (Fahey, J.)
People v Washington	2d Dept: 180 AD3d 1079 (Kings)	denied 8/17/20 (Feinman, J.)
People v Webb	4th Dept: 182 AD3d 1046 (Monroe)	denied 8/7/20 (Stein, J.)
People v Weberman	2d Dept: 183 AD3d 921 (Kings)	denied 8/14/20 (DiFiore, Ch. J.)
People v White-Span	3d Dept: 182 AD3d 909 (Albany)	denied 8/5/20 (Rivera, J.)
People v Williams (Jarquell)	3d Dept: 182 AD3d 776 (Albany)	denied 8/6/20 (Feinman, J.)
People v Williams (Leroy)	1st Dept: 185 AD3d 434 (NY)	denied 8/28/20 (Fahey, J.)
People v Wilson	2d Dept: 184 AD3d 881 (Queens)	denied 8/25/20 (DiFiore, Ch. J.)
People v Wingate	2d Dept: 184 AD3d 738 (Queens)	denied 8/28/20 (Garcia, J.)
People v Young (Jonathan)	4th Dept: 181 AD3d 1266 (Chautauqua)	denied 8/7/20 (Stein, J.)
People v Young (Shakur)	1st Dept: 184 AD3d 443 (NY)	denied 8/18/20 (Wilson, J.)

**JEFFREY P. FALK, on Behalf of Himself and All Others Similarly
Situated, Appellant, v NASSAU COUNTY et al., Respondents.**

Submitted June 22, 2020; decided September 15, 2020

Reported below, 175 AD3d 607.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of the Claim of MICHAEL JENSEN, Claimant.
PARTNERSHIP FOR RESPONSE AND RECOVERY, LLP, Appel-
lant. COMMISSIONER OF LABOR, Respondent.

Submitted June 22, 2020; decided September 15, 2020

Reported below, 178 AD3d 1258.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

In the Matter of DEREK LOCKLEAR, Appellant, v NEW YORK
CITY TRANSIT AUTHORITY et al., Respondents.

Submitted June 22, 2020; decided September 15, 2020

Reported below, 183 AD3d 739.

Motion for leave to appeal denied. Motion for ancillary relief dismissed as academic.

In the Matter of ANDRE T. McCANTS, Appellant, v JAMES A.
VAZZANNA, a Justice of the Monroe County Supreme Court,
Respondent.

Submitted April 27, 2020; decided September 15, 2020

Reported below, 2020 NY Slip Op 64598(U).

Motion, insofar as it seeks leave to appeal from that portion of the Appellate Division order that denied petitioner's motion for poor person relief, dismissed upon the ground that such portion of the order does not finally determine the proceeding within the meaning of the Constitution; motion for leave to appeal otherwise denied.

In the Matter of DANIEL MILLER, Appellant, v ANTHONY J. AN-
NUCCI, as Acting Commissioner of Corrections and Com-
munity Supervision, et al., Respondents.

Submitted March 9, 2020; decided September 15, 2020

Reported below, 2019 NY Slip Op 83776(U).

Motion for leave to appeal granted. Motion for poor person relief granted.

In the Matter of NATIONAL FUEL GAS SUPPLY CORPORATION, Appellant, v JOSEPH A. SCHUECKLER et al., Respondents, et al., Respondents.

Submitted August 10, 2020; decided September 15, 2020

Reported below, 167 AD3d 128.

Motion for reargument denied [*see* 35 NY3d 297 (2020)].

Judge GARCIA taking no part.

NYCTL 1998-2 TRUST et al., Respondents, v KRIS GOUNDEN, Appellant, et al., Defendants. POSR A. POSR et al., Nonparty-Appellants.

Submitted August 3, 2020; decided September 15, 2020

Motions by Posr A. Posr and Sati Mohan for reconsideration of this Court's transfer order denied [*see* 34 NY3d 1141 (2020)].

NYCTL 1998-2 TRUST et al., Respondents, v KRIS GOUNDEN, Appellant, et al., Defendants. POSR A. POSR et al., Nonparty-Appellants.

Submitted August 17, 2020; decided September 15, 2020

Motion by Kris Gounden for reconsideration of this Court's transfer order denied [*see* 34 NY3d 1141 (2020)].

In the Matter of PAUL JJ., Appellant, v HEATHER JJ., Respondent. (And Two Other Related Proceedings.)

Decided September 15, 2020

Reported below, 184 AD3d 956.

Appeal dismissed without costs, by the Court of Appeals sua sponte, upon the ground that no substantial constitutional question is directly involved.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v WILLIE HARRIS, Appellant.

Submitted July 20, 2020; decided September 15, 2020

Reported below, 174 AD3d 185.

Motion for reargument denied [*see* 35 NY3d 1010 (2020)].

THE PEOPLE OF THE STATE OF NEW YORK ex rel. ANGEL ORTIZ, Appellant, v DENNIS BRESLIN et al., Respondents.

Submitted September 8, 2020; decided September 15, 2020

Reported below, 183 AD3d 577.

Motion by Appellate Advocates for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served, an original and nine copies filed, and the brief submitted in digital format within seven days.

PHOENIX CAPITAL FINANCE LTD., Respondent, v AXIA REALTY, LLC, Respondent. SPIROS MILONAS, Intervenor-Respondent; ANTONIA MILONAS, Proposed Intervenor-Appellant.

Submitted July 13, 2020; decided September 15, 2020

Reported below, 184 AD3d 539.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

JEFFREY PRICE, Appellant, v TUNECORE, INC., Respondent.

Submitted June 1, 2020; decided September 15, 2020

Reported below, 182 AD3d 481; 2017 NY Slip Op 70026(U).

Motion deemed to seek leave to appeal solely from the 2020 Appellate Division order, insofar as it seeks review of the April 2017 Appellate Division order denying reargument or leave to appeal, dismissed upon the ground that the April 2017 order does not “necessarily affect” the final order sought to be appealed from within the meaning of CPLR 5602 (a) (1) (ii); motion for leave to appeal otherwise denied.

In the Matter of EDWARD RANDOLPH, Appellant, v ANTHONY J. ANNUCCI, as Acting Commissioner of Corrections and Community Supervision, Respondent.

Submitted June 15, 2020; decided September 15, 2020

Reported below, 2020 NY Slip Op 63801(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

DEEPIKA REDDY, Appellant, v GILLES R.R. ABITBOL, Respondent.

Submitted June 15, 2020; decided September 15, 2020

Reported below, 182 AD3d 1049.

On the Court's own motion, appeal dismissed, without costs, upon the ground that the order appealed from does not finally determine the action within the meaning of the Constitution. Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

DEEPIKA REDDY, Appellant, v WSYR NEWSCHANNEL 9 et al., Respondents.

Submitted June 15, 2020; decided September 15, 2020

Reported below, 181 AD3d 1330.

On the Court's own motion, appeal dismissed, without costs, upon the ground that the order appealed from does not finally determine the action within the meaning of the Constitution. Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of ROBERT REED, Appellant, v ANTHONY J. ANNUCCI, as Acting Commissioner of Corrections and Community Supervision, Respondent.

Submitted June 15, 2020; decided September 15, 2020

Reported below, 182 AD3d 883.

Motion, insofar as it seeks leave to appeal from that portion of the Appellate Division order as dismissed the appeal from the Supreme Court order denying reargument, dismissed upon the ground that such portion of the order does not finally determine the proceeding within the meaning of the Constitution; motion for leave to appeal otherwise denied.

DEBORAH ROSENTHAL, Respondent, v ROBERT ROSENTHAL, Appellant.

Submitted July 27, 2020; decided September 15, 2020

Motion for reconsideration of this Court's June 9, 2020 transfer order denied [*see* 35 NY3d 982 (2020)].

In the Matter of SHU JIAO ZHAO, Appellant, v WEI RONG, Respondent.

Submitted June 22, 2020; decided September 15, 2020

Reported below, 183 AD3d 895; 183 AD3d 898.

Motion, insofar as it seeks leave to appeal from so much of the Appellate Division order as affirmed the March 2019 Family Court dispositional order, denied; motion, insofar as it seeks leave to appeal from so much of the separate Appellate Division order as dismissed the appeal from the July 2019 Family Court order modifying visitation, dismissed upon the ground that appellant is not a party aggrieved (*see* CPLR 5511); motion for leave to appeal otherwise dismissed upon the ground that the remaining portions of the Appellate Division orders do not finally determine the proceedings within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

BURTON S. SULTAN, Appellant, v CITY OF NEW YORK et al., Respondents.

Submitted July 6, 2020; decided September 15, 2020

Reported below, 176 AD3d 554.

Motion for reargument of motion for leave to appeal denied with \$100 costs and necessary reproduction disbursements [*see* 35 NY3d 907 (2020)].

Judge FEINMAN taking no part.

TAX EQUITY NOW NY LLC, Appellant, v CITY OF NEW YORK et al., Respondents.

Decided September 15, 2020

Reported below, 182 AD3d 148.

Appeal dismissed without costs, by the Court of Appeals sua sponte, upon the ground that no substantial constitutional question is directly involved.

In the Matter of GARY ZAMBITO, an Attorney, Appellant. GRIEVANCE COMMITTEE FOR THE TENTH JUDICIAL DISTRICT, Respondent.

Submitted August 3, 2020; decided September 15, 2020

Motion for leave to appeal dismissed on the ground that the June 26, 2020 letter is not an appealable paper (*see* CPLR 5512). Motion for ancillary relief dismissed upon the ground that the Court lacks jurisdiction to entertain it.

Susan ARANOFF, Respondent, v GERALD ARANOFF, Appellant.

Submitted June 29, 2020; decided September 10, 2020

Motion for leave to appeal dismissed upon the ground that the paper sought to be appealed from is not an order or judgment appealable to the Court of Appeals (*see* CPLR 5512).

In the Matter of the Claim of MAJOR A. BARNETT, Appellant. BROOME COUNTY COMMUNITY COLLEGE, Respondent; COMMISSIONER OF LABOR, Respondent.

Submitted May 11, 2020; decided September 10, 2020

Reported below, 182 AD3d 763.

Motion for leave to appeal denied upon the ground that an appeal lies as of right (*see* CPLR 5601 [a]).

In the Matter of STANLEY DAVIS, Appellant, v GREAT AMERICAN E&S INSURANCE COMPANY et al., Respondents.

Decided September 10, 2020

Reported below, 184 AD3d 782.

Appeal dismissed without costs, by the Court of Appeals sua sponte, upon the ground that no appeal lies as of right from the unanimous order of the Appellate Division absent the direct involvement of a substantial constitutional question (*see* CPLR 5601).

In the Matter of D.P., Appellant, v N.T., Respondent.

Submitted June 15, 2020; decided September 10, 2020

Reported below, 183 AD3d 447.

Motion for leave to appeal denied. Motion for poor person relief dismissed as academic. Motion for a stay dismissed as academic.

In the Matter of PEDRO ENDARA-CAICEDO, Appellant, v NEW YORK STATE DEPARTMENT OF MOTOR VEHICLES et al., Respondents.

Submitted March 30, 2020; decided September 10, 2020

Reported below, 180 AD3d 499.

Motion for leave to appeal granted. Motion for poor person relief granted.

In the Matter of HARVEY GOLDBERG, Appellant, v MARYELLEN ELIA, etc., Respondent.

Submitted May 26, 2020; decided September 10, 2020

Reported below, 174 AD3d 1214; 2019 NY Slip Op 79429(U); 2019 NY Slip Op 83763(U).

Motion for reconsideration of this Court's March 24, 2020 dismissal order denied [*see* 34 NY3d 1174 (2020)].

In the Matter of KEVIN GRIFFIN, Appellant, v THOMAS P. DINAPOLI, as State Comptroller, et al., Respondents.

Submitted May 18, 2020; decided September 10, 2020

Reported below, 2019 NY Slip Op 85115(U).

Motion for reargument of motion for leave to appeal denied [see 35 NY3d 932 (2020)].

In the Matter of JANEEN MM., Respondent, v JEAN-PHILIPPE NN., Respondent, and CHRISTOPHER HAMMOND, Esq., Attorney for the Child, Appellant. (And Two Other Related Proceedings.)

Submitted June 8, 2020; decided September 10, 2020

Reported below, 183 AD3d 1029.

Motion for leave to appeal dismissed upon the ground that appellant, having taken no appeal to the Appellate Division, may not appeal to this Court from the Appellate Division order of affirmance.

BIJAN KARIMIAN, Appellant, v STEWART L. KARLIN et al., Respondents.

Submitted May 18, 2020; decided September 10, 2020

Reported below, 173 AD3d 614.

Motion for reargument of motion for leave to appeal denied [see 35 NY3d 932 (2020)].

R&R CAPITAL LLC et al., Respondents, v LINDA MERRITT, Appellant.

Submitted June 1, 2020; decided September 10, 2020

Reported below, 78 AD3d 533.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution. Cross motion for the imposition of sanctions denied.

JOEL RADEN et al., Appellants, v W7879, LLC, et al., Respondents.

Submitted May 18, 2020; decided September 10, 2020

Reported below, 164 AD3d 440.

Motion for reargument etc. denied [*see* 35 NY3d 332 (2020)].

JOEL RADEN et al., Appellants, v W7879, LLC, et al., Respondents.

Submitted June 8, 2020; decided September 10, 2020

Reported below, 164 AD3d 440.

Motion by The Legal Aid Society et al. for leave to appear *amici curiae* on the motion for reargument herein granted and the memorandum of law is accepted as filed.

In the Matter of UBALDO ROMERO, Appellant, v KAREN F. AGNIFILO et al., Respondents.

THE PEOPLE OF THE STATE OF NEW YORK ex rel. UBALDO ROMERO, Appellant, v ROBERT MORGENTHAU, Respondent.

Submitted May 26, 2020; decided September 10, 2020

Reported below, 2020 NY Slip Op 63185(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceedings within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

ROBERT L. SCHULZ, Appellant, v TOWN BOARD OF THE TOWN OF QUEENSBURY et al., Respondents.

Submitted May 11, 2020; decided September 10, 2020

Reported below, 178 AD3d 85.

Motion for reconsideration of this Court's March 24, 2020 dismissal order denied [*see* 34 NY3d 1177 (2020)]. Motion for leave to appeal denied.

SUTTON 58 ASSOCIATES LLC, Appellant, v PHILIP PILEVSKY et al., Respondents.

Submitted August 31, 2020; decided September 10, 2020

Reported below, 168 AD3d 477.

Motion by Melanie L. Cyganowski for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served, an original and nine copies filed, and the brief submitted in digital format within seven days.

SUTTON 58 ASSOCIATES LLC, Appellant, v PHILIP PILEVSKY et al., Respondents.

Submitted September 8, 2020; decided September 10, 2020

Reported below, 168 AD3d 477.

Motion by Bullard Law Group, PLLC for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. The brief must be submitted in digital format within seven days.

SUTTON 58 ASSOCIATES LLC, Appellant, v PHILIP PILEVSKY et al., Respondents.

Submitted September 8, 2020; decided September 10, 2020

Reported below, 168 AD3d 477.

Motion by Legal Services NYC Bankruptcy Assistance Project for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served, an original and nine copies filed, and the brief submitted in digital format within seven days.

JAMES TAYLOR et al., Respondents, v 72A REALTY ASSOCIATES, L.P., Appellant, et al., Defendant.

Submitted May 18, 2020; decided September 10, 2020

Reported below, 151 AD3d 95.

Motion for reargument etc. denied [*see* 35 NY3d 332 (2020)].

JAMES TAYLOR et al., Respondents, v 72A REALTY ASSOCIATES, L.P., Appellant, et al., Defendant.

Submitted June 1, 2020; decided September 10, 2020

Reported below, 151 AD3d 95.

Motion by The Legal Aid Society et al. for leave to appear amici curiae on the motion for reargument herein granted and the memorandum of law is accepted as filed.

XUE JIE HE, Appellant, v HAIRONG XUE, Respondent.

Submitted June 8, 2020; decided September 10, 2020

Reported below, 62 Misc 3d 126(A), 2018 NY Slip Op 51849(U).

Motion for reargument of motion for leave to appeal denied [see 35 NY3d 967 (2020)]. Motion for poor person relief dismissed as academic.

In the Matter of the Claim of SHLOMO S. ZION, Appellant. COMMISSIONER OF LABOR, Respondent.

Submitted May 26, 2020; decided September 10, 2020

Reported below, 175 AD3d 1683.

Motion for reargument of motion for leave to appeal denied [see 35 NY3d 938 (2020)].

[156 NE3d 274, 131 NYS3d 655]

In the Matter of JEREMY ZIELINSKI, Appellant, v DONALD VENETTOZZI, Director of Special Housing and Inmate Disciplinary Programs, Respondent.

Decided September 15, 2020

SUMMARY

APPEAL, by permission of the Court of Appeals, from a judgment of the Appellate Division of the Supreme Court in the Third Judicial Department, entered November 7, 2019, in a proceeding pursuant to CPLR article 78 (transferred to the Appellate Division by order of the Supreme Court, entered in Clinton County). The Appellate Division (1) confirmed a determination of the Commissioner of Corrections and Community Supervision, which had found petitioner guilty of violating a prison disciplinary rule; and (2) dismissed the petition.

Matter of Zielinski v Venettozzi, 177 AD3d 1047, affirmed.

HEADNOTE

Prisons and Prisoners — Discipline of Inmates — Violation of Prison Disciplinary Rule — Rational Basis

Substantial evidence supported the administrative determination finding petitioner inmate guilty of violating a prison disciplinary rule, as there was a rational basis for the conclusion adopted by the agency. The record proof, including the inmate misbehavior report, “razor check records,” and contraband receipt, was adequate to permit a reasonable person to conclude that petitioner was guilty of the charged infraction. Moreover, the hearing officer did not violate petitioner’s constitutional right to call witnesses, as implemented by the prison regulations in the State. The hearing officer explained that the requested witnesses’ testimony was not material and, in the circumstances presented, that conclusion was justified.

APPEARANCES OF COUNSEL

Jeremy Zielinski, appellant pro se.

Letitia James, Attorney General, Albany (*Sarah L. Rosenbluth*, *Barbara D. Underwood*, *Andrea Oser* and *Julie M. Sheridan* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The Appellate Division judgment should be affirmed, without costs. Substantial evidence supported the administrative determination because there was “a rational basis for the conclusion adopted by the agency” (*Matter of Marine Holdings, LLC v New York City Commn. on Human Rights*, 31 NY3d 1045, 1047 [2018] [internal quotation marks and brackets omitted]; see *People ex rel. Vega v Smith*, 66 NY2d 130, 139 [1985]). The record proof, including the inmate misbehavior report, “razor check records,”* and contraband receipt, was adequate to permit a reasonable person to conclude that petitioner was guilty of the charged infraction. In reaching the opposite conclusion, the dissent exceeds the judicial function by impermissibly crediting testimony rejected by the agency and re-weighting the record evidence in petitioner’s favor.

The hearing officer did not violate petitioner’s constitutional right to call witnesses, as “implemented by the prison regulations in this State” (*Matter of Laureano v Kuhlmann*, 75 NY2d 141, 146 [1990]; see *Matter of Cortorreal v Annucci*, 28 NY3d 54, 58 [2016]). The hearing officer explained that the requested witnesses’ testimony was not material and, in the circum-

* In response to petitioner’s request at the hearing for certain “razor check records,” he was provided “Interdepartmental Memorand[a]” containing the subject line “Cell Standards Inspection/Razor & ID Check.”

stances presented, that conclusion was justified. Petitioner's other arguments are unpersuasive.

WILSON, J. (dissenting). Correctional facilities face a hairy situation: inmates need shaves; shaves require razors; razors can be converted to weapons; weapons must be unavailable to prisoners. Consequently, prison officials choosing to issue razors to inmates must have policies in place to ensure that those razors are not converted to weapons. Strict adherence to those policies is essential for ensuring the safety of staff, inmates and visitors. Clinton Correctional Facility has a razor check policy. Prison officials log the initial delivery of a razor to an inmate. They also conduct weekly cell inspections, part of which involves verifying that each inmate initially issued a razor still has one. However, if an inmate loses a razor and is issued a replacement, that event is not logged. Also, inmates are not required to have a razor; if they do not request one, they are not issued one.

Mr. Zielinski, an inmate there, was punished twice in two months for lacking a razor upon inspection. He alleges his first razor was stolen, the prison never issued him a replacement, and he was thereafter punished for loss of the second razor—a razor he never had. At his disciplinary hearing, prison officials failed to provide any direct proof that Mr. Zielinski had received a replacement razor, relying instead on indirect evidence and inferences that were contradictory, inappropriately admitted, and legally insufficient to establish a necessary element of the infraction. When Mr. Zielinski sought to call clearly relevant witnesses who could testify to the unreliability of the prison's razor tracking practices, the hearing officer denied his request. Because the hearing officer's determination is unsupported by substantial evidence and was made in clear violation of Mr. Zielinski's right to call witnesses in his defense, I dissent.

On January 3, 2017, Mr. Zielinski failed to produce a razor at a weekly inspection. At a disciplinary hearing on January 9, Mr. Zielinski testified that his razor and several other possessions had been stolen the day before when a guard left his cell unlocked, and that he had immediately reported the theft to prison officials. Nonetheless, the hearing officer found Mr. Zielinski guilty of "los[ing] . . . State property" (7 NYCRR 270.2

[B] [17] [i]) and imposed several penalties, including 30 days of keeplock confinement.¹

On February 2, 2017, Mr. Zielinski was released from keeplock and returned to the general population. Two days later, Mr. Zielinski failed a second razor inspection, for which he was issued a misbehavior report. However, this time, the reason he failed—according to Mr. Zielinski—was that he had never asked for, and therefore never been issued, a replacement razor. Consistent with his claim, Mr. Zielinski was sporting more than five weeks of facial hair, indicating he had not shaved since the loss of his first razor.

At a disciplinary hearing that began on February 10, 2017, prison officials introduced several pieces of evidence, although none showed explicitly that Mr. Zielinski had ever been issued a new razor. The misbehavior report demonstrated that as of February 4, Mr. Zielinski did not have a razor, but the report did not attest to when, if ever, Mr. Zielinski received a second razor. No witnesses testified that they had given Mr. Zielinski a replacement razor, or seen him possess one. In lieu of direct testimony, the hearing officer relied upon three pieces of evidence. First, the hearing officer relied on her own statement that Clinton Correctional Facility had a “policy” regarding the reissuance of razors. Had this “standard protocol” been followed, the hearing officer asserted, Mr. Zielinski would have been issued a new razor following his disciplinary hearing on January 9. The hearing officer did not explain the basis for her statement or reference the source of any such policy or protocol—effectively, the hearing officer was serving as both judge and fact witness. (Imagine the difficulty in cross-examination posed by that situation.) Second, the hearing officer relied upon the prison’s cell inspection records from four consecutive weeks—January 7, 15, 21, and 28—which the hearing officer believed showed that Mr. Zielinski had been in possession of a razor. Those inspection records are not prepared for each inmate; instead, one standard-form interdepartmental memo is prepared for each company in a cellblock. The memo does not include a cell-by-cell itemization; instead, it contains a space for the officer inspecting the entire cellblock to certify that all cells in the company have been inspected for compliance with numerous requirements, one of which is the razor

1. Keeplock is “confinement to a cell or room continuously . . . or on certain days during certain hours for a specified period” (7 NYCRR 254.7 [a] [1] [v]).

check. The form also includes a space for the officer to initial next to the statement: "I have inspected all razors on above company and date and have verified that each inmate on the company has a razor . . . Any discrepancies are noted below." Reviewing the four razor check inspections, the hearing officer determined that because no mention of Mr. Zielinski had been made in the "discrepancies" section of any of the forms, Mr. Zielinski must have had a razor in each of the four weeks prior to the inspection he ultimately failed. Finally, the hearing officer stated that if Mr. Zielinski had not had a razor during any of the four previous inspections, he would have been issued a misbehavior report, which did not occur.

In his defense, Mr. Zielinski argued that the record checks were not reliable, and that the reason he was not listed in the "discrepancies" section of the records was that he had never been issued a replacement razor. Mr. Zielinski requested any records the prison kept on the issuance of razors, and requested several witnesses, including (1) an inmate records coordinator, (2) the officer who was in charge of razors, or, (3) if no single officer was in charge of razors, the Deputy Superintendent for Security, who could testify to "normal practices" around razor replacement. The hearing officer denied all requests for witnesses, explaining first that Clinton did not have a specific person in charge of its razor policy, and second that the other witnesses were not "relevant" because they were "not present in the incident noted in the misbehavior report." Having denied Mr. Zielinski's witnesses, the hearing officer proceeded to find Mr. Zielinski guilty of losing state property for a second time and imposed, among other penalties, 75 days of keeplock.

The fundamental issues before us are whether Mr. Zielinski should have been allowed to present evidence that Clinton's razor check verification is not reliable, and whether the hearing officer properly relied upon the absence of a discrepancy on a cell inspection form to conclude that Mr. Zielinski lost state property. If the records are reliable and show that Mr. Zielinski received a second razor which he lost, his punishment can stand. But if Clinton's record keeping is shoddy, or if the records do not establish that he was issued a replacement razor that he subsequently lost, he should not be punished for losing a razor he never had.

Due process and state regulations protect the right of inmates to call witnesses in disciplinary hearings (*see Matter of Teixeira v Fischer*, 26 NY3d 230, 233-234 [2015] ["The right to

call witnesses is codified in DOCCS regulations, which also provide additional protections above and beyond those minimum requirements for procedural due process recognized by the United States Supreme Court”). Rule 253.5 (a) of the Department of Corrections and Community Supervision, codified in title 7 of the NYCRR, states both the basic right and its three limitations. The rule provides:

“The inmate may call witnesses on his behalf provided their testimony is material, is not redundant, and doing so does not jeopardize institutional safety or correctional goals. If permission to call a witness is denied, the hearing officer shall give the inmate a written statement stating the reasons for the denial, including the specific threat to institutional safety or correctional goals presented” (7 NYCRR 253.5 [a]).

Those procedural protections are enforceable by courts, which regularly review the exclusion of witnesses by prison hearing officers (*see e.g. Matter of Bole v Coughlin*, 132 AD2d 70 [3d Dept 1987] [annulling guilty determination due to the exclusion of relevant witnesses]; *Matter of Santiago v Fischer*, 76 AD3d 1127 [3d Dept 2010] [holding a hearing officer improperly denied a rebuttal witness]; *Matter of Escoto v Goord*, 9 AD3d 518, 519 [3d Dept 2004] [noting that “a Hearing Officer is . . . obligated to abide by an inmate’s reasonable requests so long as the proposed testimony is not irrelevant, redundant or would pose a threat to institutional security”]; *Matter of Caldwell v Goord*, 34 AD3d 1173 [3d Dept 2006] [annulling determination after the denial of relevant witnesses]). Because the state rule provides an affirmative right for inmates to call witnesses, the “burden is on prison officials to prove that there is a valid reason for precluding a witness from testifying” (*Matter of McDermott v Scully*, 145 AD2d 421, 422 [2d Dept 1988]), and that burden cannot be met through mere “speculation” (*Matter of Fox v Dalsheim*, 112 AD2d 368, 369 [2d Dept 1985]).

The hearing officer ruled that the requested witnesses were not relevant. (No claim was made that the testimony of the witnesses would present a security risk or interfere with correctional goals.) Evidence is relevant if “it tends to prove the existence or non-existence of a material fact, i.e., a fact directly at issue in the case” (*People v Primo*, 96 NY2d 351, 355 [2001]). When reviewing whether a piece of evidence may be probative of the existence or non-existence of a material fact, our review is guided by a simple question: “Does learning of this evidence

make it either more or less likely that the disputed fact is true?” (1 McCormick on Evidence § 185 [8th ed & Jan. 2020 Update]).

Mr. Zielinski’s discipline entirely depended on one factual issue: did the prison issue Mr. Zielinski a razor between January 3, 2017 and February 4, 2017? Mr. Zielinski sought to call the Deputy Superintendent for Security to explain the policies and typical practices for tracking and issuing replacement razors, and to call the inmate records coordinator to testify whether misbehavior reports are in fact invariably issued each time an inmate does not have a razor at a cell inspection, as the hearing officer claimed.

These witnesses were undeniably relevant. The hearing officer herself referred to existence of a “standard protocol” to support the inference that “a razor would have been issued [to Mr. Zielinski] following [the disciplinary] hearing on 1/9/17.” The hearing officer cannot both be the sole source of evidence about the existence and reliability of the prison’s policies (which she described only hazily), and simultaneously deny Mr. Zielinski—as “irrelevant”—all witnesses with knowledge of those very same subjects (*see Escoto*, 9 AD3d at 519 [explaining that a witness becomes relevant, even if the witness may not have been initially, after a hearing officer introduces a related document into the record]).

As a separate matter, the regulations further oblige the hearing officer to provide a stated reason for the denial of any requested witnesses (7 NYCRR 253.5 [a]). Here, the officer’s stated explanation plainly fails to comport with basic principles of evidence. The hearing officer stated that the Deputy Superintendent of Security “was not relevant because the requested witness was not present in the incident noted in the misbehavior report.” But the misbehavior report shows only that Mr. Zielinski did not have a razor on February 4; it does not demonstrate that Mr. Zielinski had ever been reissued a razor in the first place. Moreover, Mr. Zielinski was not seeking to question prison officers who were present when he received or did not have a razor; he was seeking to pose questions to persons who could testify as to the prison’s policy and the reliability of the records. The hearing officer’s stated reason for denying the witnesses—that they were not present at the misbehavior incident—is simply a non sequitur, wholly unsupported by the record (*cf. Escoto*, 9 AD3d at 520 [annulling guilty determination because officer’s exclusion of witnesses was not “supported by a sufficient basis in the record”]).

On review, the Appellate Division did not adopt the hearing officer's rationale for denying the witnesses to Mr. Zielinski. Instead, it offered a different rationale, faulting Mr. Zielinski for failing "to demonstrate how his requested witnesses would have provided relevant or nonredundant testimony regarding the determination of guilt" (177 AD3d 1047, 1048 [3d Dept 2019]). That argument is belied by the record. Mr. Zielinski's explanation for the relevance of the requested witness was thorough and accurate. Mr. Zielinski explained that the witnesses he sought could provide "testimony as to what the policies are supposed to be and . . . whether or not they're actually followed in this case[, which] is certainly relevant to whether those razor check records . . . [were] accurate or reliable." Mr. Zielinski explained the kinds of questions he sought to ask regarding the issuance of razors ("What records are kept? What circumstances are they issued under? Who issues them?"). And Mr. Zielinski tied his requests directly both to disputed issues, and the reliability of the only evidence presented against him. The exclusion of the witnesses deprived Mr. Zielinski of his regulatory and due process rights to call relevant witnesses highly material to his defense.

Furthermore, the hearing officer's final determination was not supported by substantial evidence. Substantial evidence "means such relevant proof as a reasonable mind may accept as adequate to support a conclusion or ultimate fact" (300 Gramatan Ave. Assoc. v State Div. of Human Rights, 45 NY2d 176, 180 [1978]). Although the substantial evidence "standard 'demands only that "a given inference is reasonable and plausible, not necessarily the most probable" ' " (Matter of Ridge Rd. Fire Dist. v Schiano, 16 NY3d 494, 499 [2011], quoting Matter of Miller v DeBuono, 90 NY2d 783, 793 [1997]), substantial evidence "does not rise from bare . . . speculation" and must be "[m]arked by . . . its solid nature and ability to inspire confidence" (300 Gramatan Ave. Assoc., 45 NY2d at 180).

First, the hearing officer's "testimony" as to the razor check policy is internally inconsistent. Responding to Mr. Zielinski's protests that he had never asked for, and thus never received, a second razor, the hearing officer asserted that the "standard protocol" would have been for Mr. Zielinski to receive a new razor "following [the first disciplinary] hearing on 1/9/17." However, the hearing officer also stated that the cell inspection records will always note if an inmate is without a razor, and

she relied in part upon the inspection record from January 7, 2017 to show that Mr. Zielinski was “not without possession” of his razor in the weeks leading up to February 4. The hearing officer’s two assertions are contradictory. If the claimed standard protocol had been followed, Mr. Zielinski would not have been issued a new razor until January 9, and therefore the January 7 inspection record would have noted the absence of a razor. Because the hearing officer relied upon two pieces of contradictory evidence to support the inference that Mr. Zielinski had been given a new razor, the determination lacks substantial evidence and does not constitute “proof [that] a reasonable mind may accept” (*300 Gramatan Ave. Assoc.*, 45 NY2d at 180).² Finally, the hearing officer inappropriately shifted the burden of proof onto Mr. Zielinski. Inmates are not required to have a razor if they do not want one, and the violation Mr. Zielinski was charged with—losing state property—obliges prison officials to prove in the first instance that Mr. Zielinski was given the property prison officials now claim he lost. Put simply: inmates have no duty to maintain the prison’s records for it. In the absence of proper record keeping, prison officers may not presume an inmate took charge of state property. That point is

2. The hearing officer might have been able to resolve these inconsistencies by making a finding that, for example, the January 7 record was unreliable but the other records were reliable, or by finding that the standard protocol had not been followed in this instance. No such findings were made, and we are bound to review the determination of the hearing based on the record and findings made therein (*see Matter of Gitlin v Hostetter*, 27 NY2d 934, 935 [1970]). Furthermore, the hearing officer was not entitled to resolve this contradiction by making a credibility determination, as such a determination would be self-referential to her own testimony about the facility’s reissuance policy and her belief that the reissuance policy was followed despite evidence to the contrary. In other words, this was not a situation in which “there [was] substantial evidence on both sides” and the hearing officer was entitled to choose one side based upon a credibility determination (*Matter of Ridge Rd. Fire Dist. v Schiano*, 16 NY3d 494, 500 [2011]). Rather, one of two things must have been true: the razor check records were erroneous, or the hearing officer’s understanding of the prison’s razor policy was erroneous. The hearing officer’s decision, based on two completely incompatible positions, is thus unsupported by substantial evidence. Mr. Zielinski’s contentions were consistent and the underlying fact that he had lost a razor in January 2017 was undisputed. Finally, because no evidence concerning the reliability of the cell inspection records was ever presented, and no additional evidence was ever presented showing that Mr. Zielinski was reissued a razor, the hearing officer lacked a basis in the record to resolve those facts against Mr. Zielinski. All of this powerfully highlights why Mr. Zielinski should have been permitted to call witnesses who could accurately state the prison’s razor check policy and testify as to the reliability of the razor check information in the cell inspection records.

clearly articulated in *Matter of Betances v Leclaire* (47 AD3d 1044 [3d Dept 2008]). There, the Court annulled the determination of a hearing officer who found that the inmate, a recent arrival to the correctional facility, had lost a state-issued razor. The Court noted:

“[c]onspicuously absent from this record is any evidence that petitioner was, in fact, issued a razor. The misbehavior report is silent with respect to whether petitioner was issued a razor, no ‘razor issue log’ was presented at the hearing, and there is no other sufficiently relevant and probative hearsay [evidence] set forth in the record to suggest that petitioner was issued a razor.” (*Id.* at 1045 [internal quotation marks and citations omitted].)

The same holds true in Mr. Zielinski’s case. He was confined to keeplock for 30 days, and upon his hirsute release, was immediately recharged with losing a razor. No affirmative proof was ever offered that he was issued a second razor. Even if we ignore the regulatory and due process violations and the internal inconsistency of the hearing officer’s description of the razor check policy, we are left with speculation, not proof. No official established even the basic probative value of the omission of an inmate’s name from the “deficiency” section of the cell inspection records. What deficiency would there be if an inmate in keeplock declined to take charge of state property, as is his right?

Prison officials could have provided affirmative proof if they had followed their own policies. Quite sensibly, Clinton Correctional Facility requires inmates to sign for razors when they are initially issued one. Had prison officials followed that policy when issuing Mr. Zielinski a second razor, there would be clear documentation to support the charge and notice given to Mr. Zielinski about what witnesses he would need to call to challenge that documentation. Every person in Clinton Correctional Facility would be safer for it. Instead, Clinton Correctional Facility has apparently decided to log the initial issuance of a razor, but not any reissuance, even though the potential for harm is the same. In this case, the victim of this deficient record keeping may be Mr. Zielinski: if, as he says, he never received a replacement razor, he has been punished for the correctional facility’s failure to track the circulation of dangerous instruments it provides to inmates. The next victim may be someone harmed by a razor whose issuance the prison refused to track.

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), judgment affirmed, without costs, in a memorandum.

Chief Judge DiFiore and Judges Stein, Fahey, Garcia and Feinman concur; Judge Wilson dissents and votes to reverse in an opinion in which Judge Rivera concurs.

**APPEALS DISMISSED PURSUANT TO RULES OF PRACTICE OF
COURT OF APPEALS OR ON CONSENT**

(September 1, 2020 through September 30, 2020)

Laundry Mgt.—N. 3rd St., Inc. v BFN Realty Assoc., LLC	2d Dept: 179 AD3d 776	9/25/20
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APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL

(September 1, 2020 through September 30, 2020)

People v Addison	4th Dept: 184 AD3d 1099 (Erie)	denied 9/15/20 (Feinman, J.)
People v Aguilar-Contreras	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 68 Misc 3d 126(A) (Kings)	denied 9/10/20 (Feinman, J.)
People v Albert	4th Dept: 185 AD3d 1480 (Monroe)	denied 9/10/20 (Feinman, J.)
People v Alman	2d Dept: 185 AD3d 714 (Nassau)	denied 9/27/20 (Wilson, J.)
People v Apelles	3d Dept: 185 AD3d 1298 (Ulster)	denied 9/25/20 (Garcia, J.)
People v Atkinson (Seymour)	4th Dept: 185 AD3d 1438 (Erie)	denied 9/30/20 (Garcia, J.) (Appeal No. 1)
People v Atkinson (Seymour)	4th Dept: 185 AD3d 1440 (Erie)	denied 9/30/20 (Garcia, J.) (Appeal No. 2)
People v Baptiste (Anthony)	App Div, 2d Dept: 2020 NY Slip Op 67950(U) (Suffolk)	dismissed 9/30/20 (Fahey, J.)
People v Baptiste (Malik)	2d Dept: 181 AD3d 696 (Rockland)	denied 9/12/20 (DiFiore, Ch. J.)
People v Baxter	4th Dept: 185 AD3d 1452 (Niagara)	denied 9/27/20 (Wilson, J.)
People v Baxtrum	4th Dept: 181 AD3d 1283 (Monroe)	denied 9/16/20 (Stein, J.)
People v Beckerman	2d Dept: 184 AD3d 850 (Nassau)	denied 9/25/20 (Garcia, J.)
People v Best (Hilary)	2d Dept: 179 AD3d 1088 (Queens)	denied reconsideration 9/27/20 (Wilson, J.)

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People v Best (Hillary)	2d Dept: 179 AD3d 1088 (Queens)	denied reconsideration 9/27/20 (Wilson, J.)
People v Blacka	3d Dept: 174 AD3d 1039 (Broome)	denied 9/22/20 (Rivera, J.)
People v Blackshell	4th Dept: 178 AD3d 1355 (Monroe)	denied reconsideration 9/8/20 (Rivera, J.) (Appeal No. 1)
People v Blond	App Div, 3d Dept: 2020 NY Slip Op 69646(U) (Schenectady)	denied 9/30/20 (Fahey, J.)
People v Boldt	4th Dept: 185 AD3d 1551 (Ontario)	denied 9/30/20 (Garcia, J.)
People v Boyd	App Div, 4th Dept, 3/26/20 (Oneida)	withdrawn 9/4/20 (DiFiore, Ch. J.)
People v Boyer	1st Dept: 181 AD3d 516 (NY)	denied 9/10/20 (Stein, J.)
People v Brown (Edward)	2d Dept: 177 AD3d 763 (Nassau)	denied reconsideration 9/3/20 (Wilson, J.)
People v Brown (Larry)	4th Dept: 183 AD3d 1235 (Monroe)	denied 9/8/20 (Stein, J.)
People v Brown (Phillip)	1st Dept: 185 AD3d 414 (NY)	denied 9/21/20 (Garcia, J.)
People v Bush	3d Dept: 184 AD3d 1003 (Franklin)	denied 9/16/20 (Fahey, J.)
People v Butler (Joel)	1st Dept: 184 AD3d 466 (Bronx)	denied 9/8/20 (Rivera, J.)
People v Butler (Rayfus)	App Term, 1st Dept: 67 Misc 3d 144(A) (Bronx)	denied 9/15/20 (Garcia, J.)
People v Campbell	App Term, 1st Dept: 67 Misc 3d 144(A) (NY)	denied 9/15/20 (Fahey, J.)
People v Colon	4th Dept: 185 AD3d 1510 (Wayne)	denied 9/29/20 (Feinman, J.)
People v Daniel A.	2d Dept: 183 AD3d 909 (Kings)	denied reconsideration 9/29/20 (DiFiore, Ch. J.)
People v Davis	4th Dept: 185 AD3d 1456 (Onondaga)	denied 9/21/20 (Stein, J.)
People v Disieno	1st Dept: 184 AD3d 498 (NY)	denied 9/27/20 (Wilson, J.)
People v Doumbouya	1st Dept: 185 AD3d 461 (NY)	denied 9/27/20 (Wilson, J.)
People v DuBois	1st Dept: 182 AD3d 518 (NY)	denied 9/8/20 (Fahey, J.)
People v Dunton	1st Dept: 184 AD3d 473 (NY)	denied 9/30/20 (Fahey, J.)
People v Easley	2d Dept: 171 AD3d 785 (Queens)	granted 9/21/20 (Stein, J.)

People v Estevez	2d Dept: 181 AD3d 619 (Kings)	denied reconsideration 9/24/20 (Rivera, J.)
People v Evans	4th Dept: 185 AD3d 1447 (Onondaga)	denied 9/15/20 (Garcia, J.)
People v Fauntleroy	App Div, 2d Dept: 2020 NY Slip Op 67957(U) (Kings)	dismissed 9/10/20 (Stein, J.)
People v Forbes	App Term, 1st Dept: 67 Misc 3d 139(A) (NY)	denied 9/4/20 (Stein, J.)
People v Gardine	1st Dept: 185 AD3d 500 (NY)	denied 9/30/20 (Fahey, J.)
People v Gaston	1st Dept: 180 AD3d 429 (NY)	denied 9/16/20 (Stein, J.)
People v Gillie	4th Dept: 185 AD3d 1539 (Erie)	denied 9/8/20 (Rivera, J.)
People v Girdner	1st Dept: 185 AD3d 467 (NY)	denied 9/1/20 (Rivera, J.)
People v Giron	2d Dept: 181 AD3d 710 (Queens)	denied 9/29/20 (Feinman, J.)
People v Gonzalez (Andrew)	2d Dept: 183 AD3d 663 (Queens)	denied 9/27/20 (Wilson, J.)
People v Gonzalez (Luis)	4th Dept: 185 AD3d 1436 (Onondaga)	denied 9/30/20 (Rivera, J.)
People v Goodman (Keith)	1st Dept: 185 AD3d 418 (NY)	denied 9/15/20 (Fahey, J.)
People v Goodwine (Gregory)	2d Dept: 184 AD3d 736 (Westchester)	denied 9/15/20 (Feinman, J.)
People v Gotti	4th Dept: 185 AD3d 1480 (Monroe)	denied 9/10/20 (Feinman, J.)
People v Grayson	2d Dept: 184 AD3d 856 (Nassau)	denied 9/30/20 (Garcia, J.)
People v Greenspan	2d Dept: 186 AD3d 505 (Suffolk)	denied 9/30/20 (Rivera, J.)
People v Gregory	4th Dept: 185 AD3d 1437 (Onondaga)	denied 9/30/20 (Rivera, J.)
People v Grose	App Div, 2d Dept: 2020 NY Slip Op 67520(U) (Kings)	denied reconsideration 9/30/20 (Fahey, J.)
People v Haridat	2d Dept: 183 AD3d 838 (Queens)	denied 9/10/20 (Rivera, J.)
People v "Hawk"	4th Dept: 183 AD3d 1235 (Monroe)	denied 9/8/20 (Stein, J.)
People v Henry	2d Dept: 183 AD3d 607 (Kings)	denied 9/8/20 (Fahey, J.)
People v Hernandez	2d Dept: 185 AD3d 963 (Suffolk)	denied 9/29/20 (Feinman, J.)
People v Hickman	1st Dept: 185 AD3d 407 (NY)	denied 9/30/20 (DiFiore, Ch. J.)
People v Hill (Clement)	4th Dept: 184 AD3d 1086 (Ontario)	denied 9/15/20 (Fahey, J.)

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People v Hill (Stefan)	4th Dept: 185 AD3d 1438 (Onondaga)	denied 9/12/20 (DiFiore, Ch. J.)
People v Hilton	3d Dept: 185 AD3d 1147 (Rensselaer)	denied 9/29/20 (Feinman, J.)
People v Hobbs	2d Dept: 185 AD3d 720 (Westchester)	denied 9/28/20 (Fahey, J.)
People v Houston	2d Dept: 173 AD3d 1061 (Dutchess)	denied 9/29/20 (DiFiore, Ch. J.)
People v Irizarry	2d Dept: 184 AD3d 667 (Westchester)	denied 9/21/20 (Garcia, J.)
People v Jacobs	1st Dept: 182 AD3d 510 (NY)	denied 9/15/20 (Garcia, J.)
People v Jeffords	4th Dept: 185 AD3d 1417 (Erie)	denied 9/30/20 (Garcia, J.)
People v Jenkins (Terrell)	1st Dept: 186 AD3d 31 (NY)	denied 9/30/20 (Garcia, J.)
People v Jenkins (Tyriek)	App Term, 1st Dept: 67 Misc 3d 144(A) (Bronx)	denied 9/15/20 (Fahey, J.)
People v Jennings	App Div, 4th Dept: 2020 NY Slip Op 68396(U) (Onondaga)	dismissed 9/30/20 (Garcia, J.)
People v Johnson (Chad)	App Div, 2d Dept: 2019 NY Slip Op 85814(U) (Suffolk)	dismissed 9/22/20 (Feinman, J.)
People v Johnson (Dondi)	2d Dept: 185 AD3d 1057 (Dutchess)	denied 9/30/20 (Garcia, J.)
People v Jones	App Div, 4th Dept: 2020 NY Slip Op 68379(U) (Onondaga)	denied 9/15/20 (Fahey, J.)
People v Jusino	2d Dept: 185 AD3d 964 (Kings)	denied 9/16/20 (Fahey, J.)
People v Knighton	4th Dept: 181 AD3d 1184 (Onondaga)	denied 9/16/20 (Stein, J.)
People v Lewandowski	County Ct, 6/16/20 (Albany)	denied 9/18/20 (Wilson, J.)
People v Lewis	2d Dept: 182 AD3d 610 (Putnam)	denied reconsideration 9/16/20 (Rivera, J.)
People v Life	3d Dept: 174 AD3d 1039 (Broome)	denied 9/22/20 (Rivera, J.)
People v Long	4th Dept: 183 AD3d 1275 (Erie)	denied reconsideration 9/29/20 (DiFiore, Ch. J.)
People v Lowe	App Div, 2d Dept: 2020 NY Slip Op 64808(U) (Kings)	dismissed 9/27/20 (Wilson, J.)
People v Mack	2d Dept: 183 AD3d 916 (Orange)	denied 9/18/20 (Wilson, J.)
People v Marquez	4th Dept: 185 AD3d 1430 (Monroe)	denied 9/25/20 (Garcia, J.)
People v Matias	App Term, 1st Dept: 68 Misc 3d 126(A) (NY)	denied 9/16/20 (Rivera, J.)
People v McCoy	App Div, 3d Dept: 2020 NY Slip Op 69650(U) (Chemung)	dismissed 9/30/20 (Rivera, J.)

People v McDowell	2d Dept: 181 AD3d 716 (Kings)	denied 9/30/20 (Fahey, J.)
People v McMillian	4th Dept: 185 AD3d 1420 (Monroe)	denied 9/3/20 (Rivera, J.)
People v Mercado	2d Dept: 185 AD3d 965 (Westchester)	denied 9/30/20 (Fahey, J.)
People v Micolo	4th Dept: 171 AD3d 1484 (Seneca)	denied 9/30/20 (Rivera, J.)
People v Mikhail T.	2d Dept: 184 AD3d 880 (Queens)	denied 9/27/20 (Wilson, J.)
People v Moore (James)	1st Dept: 185 AD3d 472 (NY)	denied 9/18/20 (Fahey, J.)
People v Moore (Robert)	4th Dept: 185 AD3d 1544 (Monroe)	denied 9/29/20 (Feinman, J.)
People v Morocho	2d Dept: 184 AD3d 876 (Kings)	denied 9/10/20 (Rivera, J.)
People v Moses	3d Dept: 184 AD3d 910 (Clinton)	denied 9/15/20 (Garcia, J.)
People v Myers	County Ct, 6/3/20 (Greene)	dismissed 9/21/20 (Garcia, J.)
People v Navarro	4th Dept: 185 AD3d 1480 (Ontario)	denied 9/22/20 (Rivera, J.)
People v Ortega-Flores	App Term, 2d Dept, 9th & 10th Jud Dists: — Misc 3d —, 2020 NY Slip Op 20124 (Westchester)	denied 9/30/20 (Rivera, J.)
People v Ortiz	2d Dept: 184 AD3d 877 (Kings)	denied 9/27/20 (Wilson, J.)
People v Ostrowski	County Ct, 5/4/20 (Lewis)	denied 9/22/20 (Feinman, J.)
People v Ott	App Div, 4th Dept: 2020 NY Slip Op 68711(U) (Monroe)	dismissed 9/30/20 (Rivera, J.)
People v Patterson	3d Dept: 177 AD3d 1027 (Broome)	denied reconsideration 9/29/20 (Feinman, J.)
People v Pierce	4th Dept: 185 AD3d 1431 (Onondaga)	denied 9/29/20 (Feinman, J.)
People v Poppy	App Div, 3d Dept: 2020 NY Slip Op 69903(U) (Albany)	denied 9/29/20 (Feinman, J.)
People v Powell	1st Dept: 185 AD3d 495 (NY)	denied 9/29/20 (DiFiore, Ch. J.)
People v Reed	App Div, 4th Dept, 8/8/17 (Niagara)	dismissed 9/4/20 (Stein, J.)
People v Reibel	4th Dept: 181 AD3d 1268 (Erie)	denied reconsideration 9/21/20 (Garcia, J.)
People v Saalfeld	2d Dept: 185 AD3d 723 (Suffolk)	denied 9/29/20 (DiFiore, Ch. J.)
People v Sampson	4th Dept: 184 AD3d 1123 (Ontario)	denied 9/8/20 (Wilson, J.)

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People v Santiago	3d Dept: 185 AD3d 1151 (Chenango)	denied 9/16/20 (Fahey, J.)
People v Schilling	4th Dept: 185 AD3d 1433 (Genesee)	denied 9/28/20 (Fahey, J.)
People v Shabazz	App Div, 3d Dept: 2020 NY Slip Op 69388(U) (Broome)	dismissed 9/22/20 (Feinman, J.)
People v Smith (Nigel)	3d Dept: 174 AD3d 1039 (Broome)	denied 9/22/20 (Rivera, J.)
People v Smith (Roy)	2d Dept: 184 AD3d 771 (Kings)	denied 9/8/20 (Rivera, J.)
People v Sonam	2d Dept: 180 AD3d 717 (Queens)	denied reconsideration 9/10/20 (Feinman, J.)
People v Stone	2d Dept: 185 AD3d 967 (Suffolk)	denied 9/29/20 (Feinman, J.)
People v Thompson	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 68 Misc 3d 126(A) (Kings)	denied 9/28/20 (Fahey, J.)
People v Torres (Jose)	App Term, 1st Dept: 67 Misc 3d 139(A) (NY)	denied 9/16/20 (Fahey, J.)
People v Torres (Valentin)	2d Dept: 185 AD3d 971 (Kings)	denied 9/29/20 (Feinman, J.)
People v Tunstall	1st Dept: 185 AD3d 423 (NY)	denied 9/8/20 (Stein, J.)
People v Underdue	App Div, 3d Dept: 2019 NY Slip Op 67788(U) (Albany)	denied reconsideration 9/30/20 (Garcia, J.)
People v Valentin	App Div, 3d Dept: 2020 NY Slip Op 69903(U) (Albany)	denied 9/29/20 (Feinman, J.)
People v Vasquez	1st Dept: 185 AD3d 433 (NY)	denied 9/27/20 (Wilson, J.)
People v Vassar	App Div, 4th Dept, 6/15/20 (Onondaga)	dismissed 9/4/20 (DiFiore, Ch. J.)
People v Vega	1st Dept: 184 AD3d 468 (NY)	denied 9/27/20 (Wilson, J.)
People v Wakefield	3d Dept: 175 AD3d 158 (Schenectady)	granted 9/29/20 (Fahey, J.)
People v Walker	2d Dept: 184 AD3d 881 (Kings)	denied 9/25/20 (Garcia, J.)
People v Webb	App Term, 2d Dept, 9th & 10th Jud Dists: 67 Misc 3d 129(A) (Westchester)	denied 9/16/20 (Stein, J.)
People v Williams (Curtis)	3d Dept: 184 AD3d 1010 (Albany)	denied 9/15/20 (Garcia, J.)
People v Williams (Don)	4th Dept: 184 AD3d 1125 (Monroe)	granted 9/1/20 (Fahey, J.)
People v Williams (Jammeal)	County Ct, 5/8/20 (Erie)	denied 9/8/20 (Wilson, J.)
People v Williams (Jermaine)	1st Dept: 185 AD3d 449 (NY)	denied 9/30/20 (Stein, J.)
People v Willock	App Div, 2d Dept: 2020 NY Slip Op 68220(U) (Kings)	dismissed 9/30/20 (Stein, J.)

People v Wingfield (Jerome)	4th Dept: 181 AD3d 1253 (Niagara)	denied reconsideration 9/22/20 (Rivera, J.) (Appeal No. 1)
People v Wingfield (Jerome)	4th Dept: 181 AD3d 1254 (Niagara)	denied reconsideration 9/22/20 (Rivera, J.) (Appeal No. 2)

ANNA AYBAR et al., Appellants, v JOSE A. AYBAR, JR., et al., Defendants, and FORD MOTOR COMPANY et al., Respondents.
U.S. TIRES AND WHEELS OF QUEENS, LLC, Nonparty Respondent.

Submitted October 13, 2020; decided October 15, 2020

Reported below, 169 AD3d 137.

Motion by New York State Trial Lawyers' Association for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served, an original and nine copies filed, and the brief submitted in digital format within seven days.

In the Matter of ANN CORRIGAN et al., Appellants, v JOHNISHA MINTON et al., Respondents.

Decided October 15, 2020

Reported below, 185 AD3d 923.

Appeal, insofar as taken by Ann Corrigan, dismissed without costs, by the Court of Appeals sua sponte, upon the ground that Ann Corrigan is not aggrieved by the order appealed from; appeal, insofar as taken by Roland Nicholson, dismissed without costs, by the Court of Appeals sua sponte, upon the ground that no appeal lies as of right from the unanimous order of the Appellate Division absent the direct involvement of a substantial constitutional question (*see* CPLR 5601).

In the Matter of ELLEN TT., Respondent, v PARVAZ UU., Appellant.

Submitted July 20, 2020; decided October 15, 2020

Reported below, 178 AD3d 1294.

Motion for reargument of motion for leave to appeal denied [see 35 NY3d 905 (2020)].

In the Matter of JAYDEN J., a Child Alleged to be Neglected. FLORENCE J., Appellant; THE NEW YORK FOUNDLING HOSPITAL, Respondent.

Submitted August 3, 2020; decided October 15, 2020

Reported below, 184 AD3d 527.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

NELLA MANKO, Appellant, v LENOX HILL HOSPITAL, Respondent.

Decided October 15, 2020

Reported below, 2020 NY Slip Op 65624(U); 2020 NY Slip Op 65625(U); 2020 NY Slip Op 64874(U).

Appeal dismissed without costs, by the Court of Appeals sua sponte, upon the ground that the orders appealed from do not finally determine the action within the meaning of the Constitution.

Chief Judge DiFiore taking no part.

NELLA MANKO, Appellant, v LENOX HILL HOSPITAL, Respondent.

Decided October 15, 2020

Reported below, 2020 NY Slip Op 60861(U).

Appeal dismissed without costs, by the Court of Appeals sua sponte, upon the ground that the order appealed from does not finally determine the action within the meaning of the Constitution.

Chief Judge DiFIORE taking no part.

In the Matter of NELLA MANKO, Appellant, v WILLIAM F. MASTRO et al., Respondents.

Decided October 15, 2020

Reported below, 181 AD3d 504.

Appeal dismissed without costs, by the Court of Appeals sua sponte, upon the ground that no appeal lies from the unanimous order of the Appellate Division absent the direct involvement of a substantial constitutional question (*see* CPLR 5601).

Chief Judge DiFIORE taking no part.

In the Matter of CHARLES THOMAS MICHELSEN, Appellant, v CITY UNIVERSITY OF NEW YORK et al., Respondents.

Decided October 15, 2020

Reported below, 181 AD3d 536.

Appeal dismissed without costs, by the Court of Appeals sua sponte, upon the ground that no substantial constitutional question is directly involved.

Judge RIVERA taking no part.

In the Matter of the Claim of BRUCE MULLER, Claimant, v SQUARE DEAL MACHINING, INC., et al., Appellants. WORKERS' COMPENSATION BOARD, Respondent.

Decided October 15, 2020

Reported below, 183 AD3d 992.

Appeal dismissed without costs, by the Court of Appeals sua sponte, upon the ground that no appeal lies as of right from the unanimous order of the Appellate Division absent the direct involvement of a substantial constitutional question (*see* CPLR 5601).

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v KATHON ANDERSON, Appellant.

Submitted September 14, 2020; decided October 15, 2020

Reported below, 180 AD3d 923.

Motion for assignment of counsel granted and Paul Skip Lai-sure, Esq., Appellate Advocates, 111 John Street, 9th Floor, New York, NY 10038 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v RAFAEL GONZALEZ, Appellant.

Submitted September 28, 2020; decided October 15, 2020

Reported below, 185 AD3d 425.

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 granted and motion papers treated as a timely CPL 460.20 application.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v NOLIS OGANDO, Appellant.

Submitted October 5, 2020; decided October 15, 2020

Reported below, 178 AD3d 955.

Motion by New York State Defenders Association et al. for leave to appear amici curiae on the appeal herein granted only to the extent that the proposed letter brief is accepted as filed. An original and two copies of the letter brief must be filed and the letter brief submitted in digital format within seven days.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v KESTER SANDY, Appellant.

Submitted October 13, 2020; decided October 15, 2020

Reported below, 178 AD3d 960.

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 granted and motion papers treated as a timely CPL 460.20 application.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v CARLOS TORRES, Appellant.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v DAVE LEWIS, Appellant.

Submitted September 14, 2020; decided October 15, 2020

Reported below, 65 Misc 3d 19; 65 Misc 3d 141(A), 2019 NY Slip Op 51711(U).

Motion by City of New York for leave to appear amicus curiae on the appeals herein granted only to the extent that the proposed brief is accepted as filed. Two copies of the brief must be served, an original and nine copies filed, and the brief submitted in digital format within seven days.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ALONTE J. WHITE, Appellant.

Submitted October 13, 2020; decided October 15, 2020

Reported below, 185 AD3d 1355.

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 granted and motion papers treated as a timely CPL 460.20 application.

In the Matter of OMAR ROSALES, a Suspended Attorney, Appellant; GRIEVANCE COMMITTEE FOR THE SECOND, ELEVENTH AND THIRTEENTH JUDICIAL DISTRICTS, Respondent.

Decided October 15, 2020

Reported below, 184 AD3d 250.

Appeal dismissed without costs, by the Court of Appeals sua sponte, upon the ground that no substantial constitutional question is directly involved.

In the Matter of S.O., Appellant, v ESTHER MORGENSTERN et al., Respondents.

Decided October 15, 2020

Appeal dismissed without costs, by the Court of Appeals sua sponte, upon the ground that no appeal lies to this Court from the decision of an individual Justice of the Appellate Division.

In the Matter of STATE OF NEW YORK, Appellant, v DONALD G., Respondent.

Submitted September 28, 2020; decided October 15, 2020

Reported below, 186 AD3d 1127.

Motion for poor person relief granted.

In the Matter of STATE OF NEW YORK, Respondent, v JESUS H., Appellant.

Decided October 15, 2020

Reported below, 176 AD3d 646.

Appeal dismissed without costs, by the Court of Appeals sua sponte, upon the ground that no substantial constitutional question is directly involved.

SUTTON 58 ASSOCIATES LLC, Appellant, v PHILIP PILEVSKY et al., Respondents.

Submitted September 14, 2020; decided October 15, 2020

Reported below, 168 AD3d 477.

Motion by Brooklyn Bar Association Volunteer Lawyers Project for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served, an original and nine copies filed, and the brief submitted in digital format within seven days.

In the MATTER OF TOWN OF IRONDEQUOIT et al., Appellants, v COUNTY OF MONROE et al., Respondents.

Submitted October 5, 2020; decided October 15, 2020

Reported below, 175 AD3d 846.

Motion by Association of Towns of the State of New York for leave to appear amicus curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed. The brief must be submitted in digital format within seven days.

US BANK NATIONAL ASSOCIATION, Respondent, v KENYATTA NELSON et al., Appellants, et al., Defendants.

Submitted October 13, 2020; decided October 15, 2020

Reported below, 169 AD3d 110.

Motion by New York State Foreclosure Defense Bar for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. One copy of the brief must be served and the brief submitted in digital format within seven days.

In the Matter of the Claim of AMANDA K. VIGNONE, Respondent. PEREGRINE ENTERPRISES, INC., Doing Business as RICK'S CABARET, Appellant; COMMISSIONER OF LABOR, Respondent.

Decided October 15, 2020

Reported below, 182 AD3d 870.

Appeal dismissed without costs, by the Court of Appeals sua sponte, upon the ground that no substantial constitutional question is directly involved.

In the Matter of ALIAH J. ADMINISTRATION FOR CHILDREN'S SERVICES, Respondent; CANDICE J., Appellant.

In the Matter of ALIAH M.J.-N. EDWIN GOULD SERVICES FOR CHILDREN AND FAMILIES, Respondent; CANDICE J., Appellant-Respondent; ANNA J., Intervenor-Respondent-Appellant, et al., Respondent. (Proceeding No. 1.)

In the Matter of ANNA J., Respondent-Appellant, v CANDICE J., Appellant-Respondent, and ADMINISTRATION FOR CHILDREN'S SERVICES, Respondent, et al., Respondent. (Proceeding No. 2.)

Submitted July 20, 2020; decided October 20, 2020

Reported below, 174 AD3d 898; 182 AD3d 557.

Motion, insofar as it seeks leave to appeal from the July 2019 Appellate Division order as against petitioner Administration for Children's Services, dismissed as untimely (*see* CPLR 5513 [b]; 2103 [b] [2]); motion for leave to appeal otherwise denied. Motion for poor person relief dismissed as academic.

In the Matter of BABY BOY W., Also Known as MUHAMED UMAR W., an Infant. JESSICA W., Appellant; ADMINISTRATION FOR CHILDREN'S SERVICES, Respondent.

Submitted August 24, 2020; decided October 20, 2020

Reported below, 170 AD3d 538.

Motion for reargument denied [*see* 35 NY3d 976 (2020)].

BANK OF AMERICA, N.A., Respondent, v GERALD TERRY, Appellant, et al., Defendant.

Submitted June 29, 2020; decided October 20, 2020

Reported below, 177 AD3d 669.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

JESUS FERREIRA, Appellant, v CITY OF BINGHAMTON et al., Respondents.

Decided October 20, 2020

See 975 F3d 255.

Certification of a question by the United States Court of Appeals for the Second Circuit, pursuant to section 500.27 of the Rules of Practice of the Court of Appeals (22 NYCRR 500.27), accepted and the issues presented are to be considered after briefing and argument.

Concur: Chief Judge DiFiore and Judges Rivera, Stein, Fahreny, Garcia, Wilson and Feinman.

In the Matter of KPMG LLP, Appellant, v MARC S. KIRSCHNER,
as Trustee of the Millennium Corporate Claim Trust and
the Millennium Lender Claim Trust, Respondent.

Submitted August 30, 2020; decided October 20, 2020

Reported below, 182 AD3d 484.

Motion by New York State Society of CPAs et al. for leave to
appear amici curiae on the motion for leave to appeal herein
granted and the brief is accepted as filed.

In the Matter of LOCAL 621 et al., Respondents-Appellants, v
NEW YORK CITY DEPARTMENT OF TRANSPORTATION et al.,
Appellants-Respondents.

Submitted July 20, 2020; decided October 20, 2020

Reported below, 178 AD3d 78; 2020 NY Slip Op 33637(U).

Motion by appellants-respondents, insofar as it seeks leave
to appeal from the November 2019 Appellate Division order,
dismissed upon the ground that the order does not finally
determine the proceeding/action within the meaning of the
Constitution; motion for leave to appeal otherwise dismissed
upon the ground that appellants-respondents are not parties
aggrieved by the March 2020 Supreme Court order (*see* CPLR
5511; *Hogan v Blackburn*, 95 NY2d 845 [2000]). Motion by
respondents-appellants for leave to appeal dismissed upon the
ground that the order sought to be appealed from does not
finally determine the proceeding/action within the meaning of
the Constitution.

In the Matter of MICHAEL H., Respondent, v KRISTEN L., Appel-
lant.

Submitted July 27, 2020; decided October 20, 2020

Reported below, 2020 NY Slip Op 67214(U).

Motion for leave to appeal dismissed upon the ground that
the order sought to be appealed from does not finally determine
the proceeding within the meaning of the Constitution.

THE PEOPLE OF THE STATE OF NEW YORK ex rel. CHARU ANTHONY
COLE, Appellant, v WARDEN, RIKERS ISLAND, Respondent.

Submitted July 20, 2020; decided October 20, 2020

Reported below, 2011 NY Slip Op 60883(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

BHUPENDRA K. SHAH, Appellant, v STATE OF NEW YORK, Respondent.

Submitted July 20, 2020; decided October 20, 2020

Reported below, 178 AD3d 871.

Motion, insofar as it seeks leave to appeal from so much of the Appellate Division order as dismissed the appeal from that portion of the Court of Claims order denying reargument, dismissed upon the ground that such portion of the order does not finally determine the action within the meaning of the Constitution; motion for leave to appeal otherwise denied.

SHARESTATES INVESTMENTS, LLC, Respondent, v ANYEKACHE HERCULES et al., Respondents, and JAMES JULIUS, Appellant, et al., Defendants.

Submitted July 20, 2020; decided October 20, 2020

Reported below, 178 AD3d 1112.

Motion for reargument of motion for leave to appeal denied [see 35 NY3d 983 (2020)].

MACARIETO I. TRAYVILLA et al., Appellants, v JAPAN AIRLINES et al., Respondents.

Submitted July 27, 2020; decided October 20, 2020

Reported below, 178 AD3d 746.

On the Court's own motion, appeal dismissed, without costs, upon the ground that no substantial constitutional question is directly involved. Motion for leave to appeal denied with \$100 costs and necessary reproduction disbursements.

SUSAN ARANOFF, Respondent, v GERALD ARANOFF, Appellant.

Submitted September 28, 2020; decided October 22, 2020

Motion for reargument of motion for leave to appeal denied
[see 35 NY3d 1077 (2020)].

In the Matter of the Foreclosure of Tax Liens by COUNTY OF
BROOME, Respondent. JOHN CADORE et al., Appellants.

Submitted August 17, 2020; decided October 22, 2020

Reported below, 2020 NY Slip Op 67843(U).

Motion for leave to appeal dismissed upon the ground that
the order sought to be appealed from does not finally determine
the proceeding within the meaning of the Constitution. Motion
for a stay dismissed as academic.

GIBSON & CUSHMAN CONTRACTING, LLC, et al., Respondents, v
COOK MARAN & ASSOCIATES, INC., Appellant.

Submitted July 27, 2020; decided October 22, 2020

Reported below, 184 AD3d 755.

Motion for leave to appeal dismissed upon the ground that
the order sought to be appealed from does not finally determine
the action within the meaning of the Constitution.

BARBARA MIGLIONICO, Appellant, v ARBORS HOMEOWNERS' AS-
SOCIATION, INC., et al., Respondents, et al., Defendant.

Submitted August 17, 2020; decided October 22, 2020

Reported below, 184 AD3d 818.

Motion for leave to appeal dismissed upon the ground that
the order sought to be appealed from does not finally determine
the action within the meaning of the Constitution.

USMAN OYIBO, Appellant, v HUNTINGTON HOSPITAL MEDICAL
CENTER et al., Respondents.

Submitted August 17, 2020; decided October 22, 2020

Reported below, 2020 NY Slip Op 66930(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

In the Matter of ALLEN PATTERSON, Appellant, v CITY OF NEW YORK et al., Respondents.

Submitted August 3, 2020; decided October 22, 2020

Reported below, 173 AD3d 540.

Motion for reargument of motion for leave to appeal denied [see 35 NY3d 906 (2020)].

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v HOWARD GRIFFITH, Appellant.

Submitted August 17, 2020; decided October 22, 2020

Reported below, 166 AD3d 1518.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v RYAN LAWS, Respondent.

Submitted September 21, 2020; decided October 22, 2020

Reported below, 177 AD3d 1404.

Motion to vacate this Court's July 17, 2020 dismissal order denied [see 35 NY3d 1042 (2020)].

JOSEPH A.F. SADOWSKI, Appellant, v DAVID W. HARMON, Respondent.

Submitted August 17, 2020; decided October 22, 2020

Reported below, 171 AD3d 1116.

Motion for reargument of motion for leave to appeal denied [see 35 NY3d 950 (2020)]. Motion for a stay etc. dismissed as academic.

GREGORY SANDERS, Appellant, v ANTHONY J. SANGEMINO et al.,
Respondents.

Submitted August 31, 2020; decided October 22, 2020

Reported below, 185 AD3d 617.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

**APPEALS DISMISSED PURSUANT TO RULES OF PRACTICE
OF COURT OF APPEALS OR ON CONSENT**

(October 1, 2020 through October 31, 2020)

Tapp v State of New York	App Div, 3d Dept: 2020 NY Slip Op 69688(U)	10/27/20
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APPEALS WITHDRAWN AND DISCONTINUED

(October 1, 2020 through October 31, 2020)

Commissiong v State of New York	Ct Cl, 5/6/20	10/14/20
Key Bank, N.A. v King	App Div, 3d Dept: 2020 NY Slip Op 69639(U)	10/6/20
People v Alston	1st Dept: 169 AD3d 1	10/1/20
People v Fernandez	1st Dept: 180 AD3d 528	10/2/20

APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL

(October 1, 2020 through October 31, 2020)

People v Adeghe (Shepard)	2d Dept: 185 AD3d 952 (Westchester)	denied 10/13/20 (Rivera, J.)
People v Adeghe (Shepard)	2d Dept: 185 AD3d 952 (Westchester)	denied 10/13/20 (Rivera, J.)
People v Anderson	App Div, 3d Dept: 2020 NY Slip Op 69747(U) (Albany)	dismissed 10/13/20 (Feinman, J.)
People v Andino	3d Dept: 185 AD3d 1218 (Broome)	denied 10/8/20 (Fahey, J.)

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People v Animshaun	2d Dept: 186 AD3d 497 (Kings)	denied 10/29/20 (DiFiore, Ch. J.)
People v Atkinson	4th Dept: 185 AD3d 1447 (Genesee)	denied 10/19/20 (Garcia, J.)
People v Badillo	1st Dept: 184 AD3d 517 (NY)	denied 10/26/20 (Stein, J.)
People v Baines	1st Dept: 178 AD3d 476 (NY)	denied 10/30/20 (Wilson, J.)*
People v Basurto	1st Dept: 187 AD3d 411 (NY)	denied 10/30/20 (Rivera, J.)
People v Bautista	App Term, 1st Dept: 67 Misc 3d 132(A) (NY)	denied 10/15/20 (Stein, J.)
People v Beckstead	4th Dept: 186 AD3d 1068 (Jefferson)	denied 10/8/20 (DiFiore, Ch. J.)
People v Bethea	2d Dept: 186 AD3d 725 (Suffolk)	denied 10/22/20 (Garcia, J.)
People v Black	3d Dept: 184 AD3d 901 (Schenectady)	denied 10/29/20 (Wilson, J.)
People v Black (Leonard)	App Div, 4th Dept: 2020 NY Slip Op 69625(U) (Erie)	dismissed 10/8/20 (Stein, J.)
People v Blue	1st Dept: 185 AD3d 510 (NY)	denied 10/29/20 (Wilson, J.)
People v Bondoc-Gutierrez	2d Dept: 186 AD3d 726 (Kings)	denied 10/8/20 (Fahey, J.)
People v Bonton	App Div, 2d Dept: 2020 NY Slip Op 63648(U) (Kings)	denied reconsideration 10/29/20 (Wilson, J.)
People v Boria	App Term, 2d Dept, 9th & 10th Jud Dists: 2019 NY Slip Op 84230(U) (Rockland)	denied reconsideration 10/8/20 (Wilson, J.)
People v Boucarut	2d Dept: 186 AD3d 617 (Nassau)	denied 10/30/20 (Wilson, J.)
People v Bowers	App Div, 2d Dept: 2020 NY Slip Op 66932(U) (Queens)	dismissed 10/19/20 (Fahey, J.)
People v Bridges	4th Dept: 185 AD3d 1426 (Onondaga)	denied 10/14/20 (Feinman, J.)
People v Briere	App Div, 4th Dept: 2020 NY Slip Op 70048(U) (Onondaga)	dismissed 10/27/20 (Rivera, J.)
People v Brown (Kevon)	2d Dept: 186 AD3d 1239 (Kings)	denied 10/22/20 (DiFiore, Ch. J.)
People v Brown (Mark)	2d Dept: 186 AD3d 849 (Kings)	denied 10/14/20 (Feinman, J.)
People v Bryant	4th Dept: 186 AD3d 1110 (Wyoming)	denied 10/8/20 (DiFiore, Ch. J.)

* Denied, with leave to renew within 60 days after the Court of Appeals renders a decision in *People v Duval* (179 AD3d 62 [1st Dept 2019], *lv granted* 34 NY3d 1164 [2020]).

People v Caraballo	2d Dept: 184 AD3d 851 (Kings)	denied 10/27/20 (Rivera, J.)
People v Chaney	County Ct, 8/5/19 (Schenectady)	denied 10/8/20 (Fahey, J.)
People v “Cheff”	2d Dept: 185 AD3d 952 (Westchester)	denied 10/13/20 (Rivera, J.)
People v Coffey	App Div, 3d Dept: 2020 NY Slip Op 68596(U) (Albany)	dismissed 10/8/20 (Fahey, J.)
People v Corbett	2d Dept: 186 AD3d 620 (Kings)	denied 10/9/20 (Rivera, J.)
People v Cotton	4th Dept: 184 AD3d 1145 (Monroe)	denied 10/8/20 (Wilson, J.)
People v Crocker	2d Dept: 186 AD3d 500 (Kings)	denied 10/30/20 (Wilson, J.)
People v Cruz	3d Dept: 186 AD3d 932 (St. Lawrence)	denied 10/29/20 (Garcia, J.)
People v Cruz-Rodriguez	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 68 Misc 3d 126(A) (Kings)	denied 10/8/20 (Stein, J.)
People v Daniels	App Div, 2d Dept: 2020 NY Slip Op 69118(U) (Kings)	dismissed 10/2/20 (DiFiore, Ch. J.)
People v Davis	1st Dept: 184 AD3d 525 (Bronx)	denied 10/14/20 (Feinman, J.)
People v Dieckhoff	App Term, 2d Dept, 9th & 10th Jud Dists: 68 Misc 3d 133(A) (Suffolk)	denied 10/29/20 (Garcia, J.)
People v Downey	2d Dept: 181 AD3d 900 (Queens)	denied 10/15/20 (Stein, J.)
People v Duey	3d Dept: 185 AD3d 1208 (Ulster)	denied 10/25/20 (Wilson, J.)
People v Eugenio	2d Dept: 185 AD3d 1050 (Queens)	withdrawn 10/8/20 (Stein, J.)
People v Face	4th Dept: 185 AD3d 1542 (Erie)	denied 10/14/20 (Feinman, J.)
People v Faulk	2d Dept: 185 AD3d 953 (Suffolk)	denied 10/19/20 (Garcia, J.)
People v Fernandez	1st Dept: 185 AD3d 527 (NY)	denied 10/2/20 (Fahey, J.)
People v Fitch	4th Dept: 185 AD3d 1480 (Niagara)	denied 10/26/20 (Stein, J.)
People v Flores	2d Dept: 185 AD3d 958 (Kings)	denied 10/30/20 (Feinman, J.)
People v Frankie	4th Dept: 175 AD3d 1850 (Erie)	denied reconsideration 10/13/20 (Stein, J.)
People v Freeman	2d Dept: 186 AD3d 1243 (Queens)	denied 10/28/20 (Garcia, J.)
People v Garcia	2d Dept: 185 AD3d 1052 (Queens)	denied 10/29/20 (DiFiore, Ch. J.)
People v Gorocs	1st Dept: 185 AD3d 467 (NY)	denied 10/8/20 (Wilson, J.)

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People v Griswold	4th Dept: 186 AD3d 1104 (Steuben)	denied 10/15/20 (Rivera, J.)
People v Habersham	2d Dept: 186 AD3d 854 (Queens)	denied 10/14/20 (Feinman, J.)
People v Hart	App Div, 3d Dept: 2020 NY Slip Op 70261(U) (Albany)	denied 10/19/20 (Garcia, J.)
People v Hayes	4th Dept: 185 AD3d 1419 (Erie)	denied 10/30/20 (Wilson, J.) (Appeal No. 1)
People v Hicks	2d Dept: 186 AD3d 729 (Nassau)	denied 10/23/20 (Feinman, J.)
People v Hightower	3d Dept: 186 AD3d 926 (Warren)	denied 10/23/20 (Feinman, J.)
People v Howard	2d Dept: 183 AD3d 640 (Queens)	denied 10/23/20 (Feinman, J.)
People v Jackson (Bobby)	App Div, 3d Dept: 2020 NY Slip Op 70260(U) (Clinton)	dismissed 10/19/20 (Garcia, J.)
People v Jackson (Charles)	4th Dept: 185 AD3d 1454 (Monroe)	denied 10/20/20 (DiFiore, Ch. J.) (Appeal No. 1)
People v Jackson (Charles)	4th Dept: 185 AD3d 1456 (Monroe)	denied 10/20/20 (DiFiore, Ch. J.) (Appeal No. 2)
People v Jackson (Johnny)	County Ct, 5/18/20 (Monroe)	denied 10/4/20 (Wilson, J.)
People v Jeremiah	2d Dept: 186 AD3d 740 (Kings)	denied 10/22/20 (Garcia, J.)
People v Jhagroo	2d Dept: 186 AD3d 741 (Queens)	denied 10/23/20 (Feinman, J.)
People v Jimenez	2d Dept: 185 AD3d 1057 (Queens)	denied 10/16/20 (DiFiore, Ch. J.)
People v Jones (Massi)	3d Dept: 184 AD3d 901 (Schenectady)	denied 10/29/20 (Wilson, J.)
People v Jones (Shaking)	2d Dept: 184 AD3d 751 (Queens)	denied 10/29/20 (Wilson, J.)
People v Jones (Troy)	4th Dept: 186 AD3d 1127 (Erie)	denied 10/23/20 (DiFiore, Ch. J.)
People v Justiniano	2d Dept: 186 AD3d 1257 (Richmond)	denied 10/28/20 (Garcia, J.)
People v Kachadourian	3d Dept: 184 AD3d 1021 (Broome)	denied 10/23/20 (Feinman, J.)
People v Keating	2d Dept: 183 AD3d 595 (Kings)	denied 10/29/20 (Wilson, J.)
People v Kelley	4th Dept: 186 AD3d 1103 (Monroe)	denied 10/19/20 (Fahey, J.)
People v Kline	County Ct, 8/4/20 (Erie)	denied 10/24/20 (DiFiore, Ch. J.)

People v Kovalsky	2d Dept: 183 AD3d 914 (Dutchess)	denied reconsideration 10/13/20 (Stein, J.)
People v Lebron	2d Dept: 171 AD3d 1092 (Queens)	withdrawn 10/9/20 (Fahey, J.)
People v Lee	3d Dept: 183 AD3d 1183 (Broome)	denied 10/28/20 (DiFiore, Ch. J.)
People v Lewis (Diamond)	4th Dept: 185 AD3d 1542 (Erie)	denied 10/14/20 (Feinman, J.)
People v Lewis (Lionel)	1st Dept: 185 AD3d 415 (NY)	denied 10/20/20 (Stein, J.)
People v Little	2d Dept: 186 AD3d 857 (Kings)	denied 10/8/20 (DiFiore, Ch. J.)
People v Lopez	2d Dept: 186 AD3d 1259 (Westchester)	denied 10/30/20 (Feinman, J.)
People v Lugo	1st Dept: 185 AD3d 481 (Bronx)	denied 10/15/20 (Stein, J.)
People v Macon	1st Dept: 186 AD3d 430 (Bronx)	denied 10/27/20 (Rivera, J.)
People v Mangiarelli	County Ct, 7/16/20 (Yates)	denied 10/19/20 (Garcia, J.)
People v Marchetti	2d Dept: 185 AD3d 839 (Queens)	denied 10/8/20 (Fahey, J.)
People v Martinez	1st Dept: 184 AD3d 512 (Bronx)	denied 10/22/20 (Garcia, J.)
People v Mavour	2d Dept: 186 AD3d 1260 (Kings)	denied 10/27/20 (Rivera, J.)
People v McKeller	2d Dept: 186 AD3d 747 (Kings)	denied 10/30/20 (DiFiore, Ch. J.)
People v McMillan	3d Dept: 185 AD3d 1208 (Ulster)	denied 10/25/20 (Wilson, J.)
People v Mendez	App Div, 2d Dept: 2020 NY Slip Op 68263(U) (Richmond)	dismissed 10/2/20 (DiFiore, Ch. J.)
People v Mendez-Huales	2d Dept: 186 AD3d 859 (Rockland)	denied 10/29/20 (Wilson, J.)
People v Mitchell	4th Dept: 185 AD3d 1533 (Onondaga)	denied 10/28/20 (DiFiore, Ch. J.)
People v Moore (John)	4th Dept: 175 AD3d 1850 (Erie)	denied reconsideration 10/13/20 (Stein, J.)
People v Moore (Melvin)	4th Dept: 185 AD3d 1479 (Monroe)	denied 10/8/20 (DiFiore, Ch. J.)
People v Morales	1st Dept: 184 AD3d 532 (NY)	denied 10/26/20 (Stein, J.)
People v Najera	App Div, 2d Dept: 2020 NY Slip Op 67885(U) (Rockland)	dismissed 10/22/20 (Garcia, J.)
People v Newman	2d Dept: 183 AD3d 605 (Queens)	denied 10/21/20 (DiFiore, Ch. J.)

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People v Nunes	App Div, 3d Dept: 2020 NY Slip Op 68605(U) (Schenectady)	denied 10/13/20 (Feinman, J.)
People v Oliver	2d Dept: 186 AD3d 1261 (Nassau)	denied 10/28/20 (DiFiore, Ch. J.)
People v Owens	4th Dept: 183 AD3d 1276 (Onondaga)	denied reconsideration 10/26/20 (Stein, J.)
People v Perkins	2d Dept: 184 AD3d 776 (Queens)	denied 10/20/20 (Stein, J.)
People v Phelps	App Div, 1st Dept: 2020 NY Slip Op 69597(U) (NY)	denied 10/27/20 (Rivera, J.)
People v Prince	2d Dept: 186 AD3d 1262 (Queens)	denied 10/22/20 (DiFiore, Ch. J.)
People v Quick	2d Dept: 184 AD3d 879 (Kings)	denied 10/30/20 (DiFiore, Ch. J.)
People v Raghna	4th Dept: 185 AD3d 1411 (Onondaga)	denied 10/30/20 (Rivera, J.)
People v Redden	3d Dept: 182 AD3d 926 (Warren)	denied 10/15/20 (Stein, J.)
People v Redmon	2d Dept: 184 AD3d 775 (Kings)	denied 10/20/20 (Stein, J.)
People v Ricciardi	2d Dept: 186 AD3d 1264 (Richmond)	denied 10/22/20 (DiFiore, Ch. J.)
People v Rivera	App Term, 1st Dept: 66 Misc 3d 5 (NY)	denied reconsideration 10/14/20 (Stein, J.)
People v Rodriguez	1st Dept: 184 AD3d 420 (NY)	denied 10/14/20 (Stein, J.)
People v Romero	2d Dept: 184 AD3d 587 (Suffolk)	denied 10/8/20 (Stein, J.)
People v Rose	3d Dept: 185 AD3d 1228 (Tioga)	denied 10/29/20 (Wilson, J.)
People v Ross	4th Dept: 185 AD3d 1537 (Monroe)	denied 10/8/20 (Stein, J.)
People v Russell	2d Dept: 184 AD3d 780 (Kings)	denied 10/27/20 (Rivera, J.)
People v Sanders	3d Dept: 185 AD3d 1280 (Broome)	denied 10/30/20 (DiFiore, Ch. J.)
People v Shaw	2d Dept: 186 AD3d 508 (Orange)	denied 10/29/20 (Wilson, J.)
People v "Shep"	2d Dept: 185 AD3d 952 (Westchester)	denied 10/13/20 (Rivera, J.)
People v Simons	2d Dept: 186 AD3d 872 (Queens)	denied 10/27/20 (Rivera, J.)
People v Snow	4th Dept: 185 AD3d 1400 (Monroe)	denied 10/19/20 (Garcia, J.)
People v Stephens	2d Dept: 186 AD3d 751 (Westchester)	denied 10/23/20 (Feinman, J.)

People v Szatanek	App Div, 4th Dept, 9/10/20 (Oswego)	dismissed 10/23/20 (Feinman, J.)
People v Talbert	2d Dept: 186 AD3d 508 (Kings)	denied 10/15/20 (Rivera, J.)
People v Tan	2d Dept: 183 AD3d 552 (Richmond)	denied 10/2/20 (Fahey, J.)
People v Thompson	2d Dept: 185 AD3d 970 (Kings)	denied 10/19/20 (Garcia, J.)
People v Tolbert (Perry)	4th Dept: 181 AD3d 1321 (Onondaga)	denied 10/8/20 (DiFiore, Ch. J.)
People v Tolbert (Perry)	4th Dept: 185 AD3d 1513 (Wyoming)	denied 10/8/20 (DiFiore, Ch. J.)
People v Tomko	3d Dept: 185 AD3d 1356 (Warren)	denied 10/29/20 (Wilson, J.)
People v Truth	3d Dept: 185 AD3d 1218 (Broome)	denied 10/8/20 (Fahey, J.)
People v Velez-Garriga	2d Dept: 185 AD3d 971 (Kings)	denied 10/24/20 (DiFiore, Ch. J.)
People v Waddell	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 2020 NY Slip Op 69200(U) (Kings)	withdrawn 10/16/20 (Fahey, J.)
People v Wagoner	App Div, 4th Dept: 2020 NY Slip Op 71130(U) (Cattaraugus)	dismissed 10/30/20 (DiFiore, Ch. J.)
People v Walters	1st Dept: 183 AD3d 496 (NY)	denied 10/26/20 (Stein, J.)
People v White (Anthony)	2d Dept: 182 AD3d 612 (Richmond)	denied 10/22/20 (Garcia, J.)
People v White (Erik)	2d Dept: 185 AD3d 842 (Kings)	denied 10/13/20 (Feinman, J.)
People v White (Shakeem)	1st Dept: 185 AD3d 417 (NY)	denied 10/26/20 (Stein, J.)
People v Williams (Christopher)	3d Dept: 185 AD3d 1352 (Ulster)	denied 10/29/20 (Wilson, J.)
People v Williams (Eddie)	4th Dept: 185 AD3d 1535 (Monroe)	denied 10/14/20 (Feinman, J.)
People v Williams (Edmond)	App Div, 3d Dept: 2020 NY Slip Op 67834(U) (Albany)	denied 10/20/20 (Stein, J.)
People v Williams (Nehemiah)	App Term, 1st Dept: 67 Misc 3d 145(A) (NY)	denied 10/28/20 (DiFiore, Ch. J.)
People v Williams (Terrance)	4th Dept: 181 AD3d 1213 (Onondaga)	denied 10/15/20 (Stein, J.)
People v Wilson (Darrien)	4th Dept: 181 AD3d 1318 (Monroe)	denied 10/15/20 (Stein, J.)
People v Wilson (Edgar)	2d Dept: 183 AD3d 921 (Orange)	denied 10/29/20 (Wilson, J.)
People v Wilson (John)	2d Dept: 186 AD3d 628 (Queens)	denied 10/22/20 (Garcia, J.)
People v Xochimiltl	2d Dept: 186 AD3d 629 (Kings)	denied 10/14/20 (Feinman, J.)

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People v Younger	2d Dept: 182 AD3d 612 (Kings)	denied 10/19/20 (Garcia, J.)
People v Zalevsky	2d Dept: 186 AD3d 754 (Kings)	denied 10/30/20 (Feinman, J.)
People v Zi	1st Dept: 178 AD3d 591 (NY)	denied 10/4/20 (Wilson, J.)

APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL

Decisions of Appellate Division Justices *

(October 1, 2020 through October 31, 2020)

People v Vasquez	1st Dept: 182 AD3d 438 (Bronx)	granted 10/5/20 (Manzanet-Daniels, J.)
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[158 NE3d 892, 134 NYS3d 1]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v RUSSELL SMITH, Appellant.

Decided November 19, 2020

SUMMARY

APPEAL, by permission of the Chief Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered December 12, 2019. The Appellate Division affirmed an amended judgment of the Supreme Court, Bronx County (Barbara F. Newman, J. at jury trial; Robert E. Torres, J. at CPL 330.30 motion and sentencing), which had convicted defendant of rape in the first degree.

People v Smith, 178 AD3d 524, reversed.

HEADNOTE

Crimes — Verdict — Setting Verdict Aside — Improper Juror Conduct

In a criminal prosecution, the motion court abused its discretion in denying defendant's CPL 330.30 (2) motion without first conducting a hearing.

APPEARANCES OF COUNSEL

Robert S. Dean, Center for Appellate Litigation, New York City (*Mark W. Zeno* of counsel), for appellant.

Darcel D. Clark, District Attorney, Bronx (*Kyle R. Silverstein* of counsel), for respondent.

* Includes only applications that were granted.

OPINION OF THE COURT

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order reversed and case remitted to Supreme Court, Bronx County, for a hearing on defendant's CPL 330.30 motion. The motion court abused its discretion in denying defendant's CPL 330.30 (2) motion without first conducting a hearing (*see* CPL 330.40 [2] [d]-[f]; *People v Maragh*, 94 NY2d 569, 573-575 [2000]).

Concur: Chief Judge DiFiore and Judges Rivera, Stein, Fahey, Garcia, Wilson and Feinman.

In the Matter of ANONYMOUS, Appellant. ATTORNEY GRIEVANCE COMMITTEE FOR THE FIRST JUDICIAL DEPARTMENT, Respondent.

Submitted July 13, 2020; decided November 19, 2020

On the Court's own motion, appeal dismissed, without costs, upon the ground that the orders appealed from do not finally determine the proceeding within the meaning of the Constitution. Motion for leave to appeal dismissed upon the ground that the orders sought to be appealed from do not finally determine the proceeding within the meaning of the Constitution. Motion for a stay dismissed as academic.

ESTATE OF THEODORE LIPIN et al., Respondents, v JOAN C. LIPIN, Appellant.

Decided November 19, 2020

Reported below, 184 AD3d 464.

Appeal dismissed without costs, by the Court of Appeals sua sponte, upon the ground that it does not lie (*see* NY Const, art VI, § 3 [b]; CPLR 5601).

HUNTERS FOR DEER, INC. et al., Respondents, v TOWN OF SMITH-TOWN, Appellant.

Submitted October 26, 2020; decided November 19, 2020

Reported below, 186 AD3d 682.

Motion for leave to appeal granted. Motion for a stay granted.

RAHAMIM KATTAN et al., Appellants, v 119 CHRISTOPHER LLC,
Respondent.

Submitted July 27, 2020; decided November 19, 2020

Reported below, 180 AD3d 566.

Motion for reargument of motion for leave to appeal denied
[see 35 NY3d 1004 (2020)].

LOUIS KESTENBAUM et al., Respondents, v JULIE GLOBUS, De-
fendant. EUGENE VOLOKH, Nonparty Appellant.

Submitted June 29, 2020; decided November 19, 2020

Reported below, 2020 NY Slip Op 66321(U).

On the Court's own motion, appeal dismissed, without costs,
upon the ground that no substantial constitutional question is
directly involved. Motion for leave to appeal denied with \$100
costs and necessary reproduction disbursements.

In the Matter of LAERTES SOLAR, LLC et al., Respondents, v
ASSESSOR OF THE TOWN OF HARFORD et al., Respondents,
and DRYDEN CENTRAL SCHOOL DISTRICT, Appellant.

Submitted August 10, 2020; decided November 19, 2020

Reported below, 182 AD3d 826.

Motion, insofar as it seeks leave to appeal from that portion
of the Appellate Division order as affirmed the November 2018
Supreme Court order, dismissed upon the ground that such
portion of the order does not finally determine the proceeding
within the meaning of the Constitution; motion for leave to ap-
peal otherwise denied.

JOAN C. LIPIN, Appellant, v DANSKE BANK et al., Respondents,
et al., Defendants.

Decided November 19, 2020

Reported below, 184 AD3d 464.

Appeal dismissed without costs, by the Court of Appeals sua
sponte, upon the ground that it does not lie (*see* NY Const, art
VI, § 3 [b]; CPLR 5601).

In the Matter of MARGARET M.M. ADMINISTRATION FOR CHILDREN'S SERVICES, Respondent; ROBERT M., Appellant. (Proceeding No. 1.)

In the Matter of JOE P.I. ADMINISTRATION FOR CHILDREN'S SERVICES, Respondent; ROBERT M., Appellant. (Proceeding No. 2.)

In the Matter of ROBERT M., Appellant, v MARGARET I., Respondent.

Decided November 19, 2020

Reported below, 2020 NY Slip Op 69968(U).

Appeal dismissed without costs, by the Court of Appeals sua sponte, upon the ground that the order appealed from does not finally determine the proceedings within the meaning of the Constitution.

FRANCIS NEMETH, Individually and as Personal Representative of the Estate of FLORENCE NEMETH, Deceased, Respondent, v BRENN TAG NORTH AMERICA et al., Defendants, and WHITTAKER, CLARK & DANIELS, INC., Appellant.

Submitted November 9, 2020; decided November 19, 2020

Reported below, 183 AD3d 211.

Motion by Chamber of Commerce of the United States of America et al. for leave to file a letter brief amici curiae on the appeal herein granted and the proposed brief is accepted as filed. A copy of the letter brief must be filed and the letter brief submitted in digital format within seven days.

Judge WILSON taking no part.

FRANCIS NEMETH, Individually and as Personal Representative of the Estate of FLORENCE NEMETH, Deceased, Respondent, v BRENN TAG NORTH AMERICA et al., Defendants, and WHITTAKER, CLARK & DANIELS, INC., Appellant.

Submitted November 9, 2020; decided November 19, 2020

Reported below, 183 AD3d 211.

Motion by Colgate Palmolive Company, et al. for leave to file a letter brief amici curiae on the appeal herein granted and the proposed letter brief is accepted as filed. An original and two copies of the letter brief must be filed and the letter brief submitted in digital format within seven days.

Judge WILSON taking no part.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JAMES FORBES, Appellant.

Submitted November 9, 2020; decided November 19, 2020

Reported below, 166 AD3d 414.

On the Court's own motion, appeal dismissed upon the ground that the criminal prosecution abated by reason of defendant's death (*see People v Mintz*, 20 NY2d 753 [1967]; *see also People v Mason*, 29 NY3d 972 [2017]).

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v GREGGORY PITTMAN, Also Known as "BIGGIE," Also Known as GREGORY PITTMAN, Appellant.

Submitted November 16, 2020; decided November 19, 2020

Reported below, 176 AD3d 1236.

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 granted and motion papers treated as a timely CPL 460.20 application.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v LANCE RODRIGUEZ, Appellant.

Submitted October 19, 2020; decided November 19, 2020

Reported below, 176 AD3d 1111.

Motion by New York State Association of Criminal Defense Lawyers et al. for leave to appear amici curiae on the appeal herein granted only to the extent that the proposed letter brief is accepted as filed. A copy of the letter brief must be filed and the letter brief submitted in digital format within seven days.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v LUIS
VASQUEZ, Appellant.

Submitted November 16, 2020; decided November 19, 2020

Reported below, 182 AD3d 438.

Motion for assignment of counsel granted and Stephen Chu, Esq., Office of the Appellate Defender, 11 Park Place, Suite 1601, New York, NY 10007 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v KEITH
WILKINSON, Appellant.

Submitted November 9, 2020; decided November 19, 2020

Reported below, 185 AD3d 734.

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 granted and motion papers treated as a timely CPL 460.20 application.

Chief Judge DiFiore taking no part.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v DON
WILLIAMS, Appellant.

Submitted October 26, 2020; decided November 19, 2020

Reported below, 184 AD3d 1125.

Motion for assignment of counsel granted and Timothy P. Donaher, Esq., Monroe County Public Defender, 10 N. Fitzhugh Street, Rochester, NY 14614 assigned as counsel to the appellant on the appeal herein.

GLENN SEAMAN, JR., et al., Appellants, v NEW YORK UNIVERSITY
et al., Defendants/Third-Party Plaintiffs-Respondents. PE-
TER SCALAMANDRE & SONS, INC., Third-Party Defendant-
Respondent.

Submitted July 13, 2020; decided November 19, 2020

Reported below, 175 AD3d 1578.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of SPACE RACE, LLC, Respondent, v ALABAMA SPACE SCIENCE EXHIBIT COMMISSION, Doing Business as U.S. SPACE & ROCKET CENTER, Appellant.

Decided November 19, 2020

Reported below, 185 AD3d 403.

Appeal dismissed without costs, by the Court of Appeals sua sponte, upon the ground that no substantial constitutional question is directly involved.

In the Matter of TAKODA G. et al. ONTARIO COUNTY DEPARTMENT OF SOCIAL SERVICES CHILD PROTECTIVE UNIT, Respondent; JUAN T., Appellant.

Submitted July 27, 2020; decided November 19, 2020

Reported below, 177 AD3d 1345.

Motion for reargument of motion for leave to appeal denied [see 35 NY3d 955 (2020)].

WEISMAN LAW GROUP, P.C., Respondent, v JOSEPH KLEINMAN, Appellant.

Submitted August 3, 2020; decided November 19, 2020

Reported below, 2019 NY Slip Op 69608(U).

Motion for leave to appeal dismissed upon the ground that the Court of Appeals does not have jurisdiction to entertain this motion for leave to appeal from the order of the Appellate Division entered in this action commenced in District Court, Nassau County (see NY Const, art VI, § 3 [b] [7]; CPLR 5602).

WELLS FARGO BANK, N.A., Appellant, v DONNA FERRATO, Respondent, et al., Defendants.

WELLS FARGO BANK, N.A., Appellant, v DONNA FERRATO, Respondent, et al., Defendants.

Submitted November 16, 2020; decided November 19, 2020

Reported below, 183 AD3d 529.

Motion by Francis M. Caesar, Esq. for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served, an original and nine copies filed, and the brief submitted in digital format within seven days.

ALDA LIZZETTE BONILLA ARZU, Appellant, v JULIA BELITSKY, Respondent.

Submitted August 17, 2020; decided November 23, 2020

Motion for leave to appeal dismissed upon the ground that it does not lie (*see* CPLR 5602 [a]).

ALDA BONILLA, Appellant, v SUPREME COURT OF THE STATE OF NEW YORK, APPELLATE DIVISION, SECOND DEPARTMENT, Respondent.

Submitted August 17, 2020; decided November 23, 2020

Reported below, 2019 NY Slip Op 82983(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of ROLAND GREEN, Respondent, v DARWIN LA-CLAIR, as Superintendent of Franklin Correctional Facility, Appellant.

Submitted September 21, 2020; decided November 23, 2020

Reported below, 182 AD3d 877.

Motion to vacate stay granted [*see* 35 NY3d 1052 (2020)].

MERCHANT FACTORS CORP., Respondent, v DAVID CLEARY, Defendant, and BANYAN MEZZANINE FUND II, L.P., Appellant.

Submitted August 24, 2020; decided November 23, 2020

Reported below, 180 AD3d 520.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

BRIAN MOONEY, Appellant, v BP/CG CENTER II, LLC, et al.,
Respondents. (And Third-Party Actions.)

Submitted August 17, 2020; decided November 23, 2020

Reported below, 179 AD3d 490.

Motion for leave to appeal dismissed for failure to demonstrate timeliness as required by the Rules of the Court of Appeals (*see* 22 NYCRR 500.22 [b] [2]).

THE PEOPLE OF THE STATE OF NEW YORK ex rel. FRED JOHNSON,
Appellant, v SUPERINTENDENT, ADIRONDACK CORRECTIONAL
FACILITY et al., Respondents.

Submitted October 13, 2020; decided November 23, 2020

Reported below, 174 AD3d 992.

Motion to strike granted to the extent the challenged extrajudicial material in appellant's addendum and reply brief to which objection is taken is deemed stricken.

THE PEOPLE OF THE STATE OF NEW YORK ex rel. ANGEL ORTIZ,
Appellant, v DENNIS BRESLIN et al., Respondents.

Submitted August 31, 2020; decided November 23, 2020

Reported below, 183 AD3d 577.

Motion to strike granted to the extent the challenged extrajudicial material in appellant's compendium and brief to which objection is taken is deemed stricken.

In the Matter of CHARLES ROCHESTER, Appellant, v CITY OF
NEW YORK POLICE DEPARTMENT-FOIL et al., Respondents.

Submitted August 10, 2020; decided November 23, 2020

Reported below, 2019 NY Slip Op 85389(U).

Motion for reargument of motion for leave to appeal denied [*see* 35 NY3d 966 (2020)].

KIM E. SCHOCH, Respondent, v LAKE CHAMPLAIN OB-GYN, P.C.,
Appellant.

Submitted September 14, 2020; decided November 23, 2020

Reported below, 184 AD3d 338.

Motion by Samaritan Medical Center et al. for leave to appear amici curiae on the motion for leave to appeal herein granted and the brief is accepted as filed.

TRM ARCHITECTURE, DESIGN AND PLANNING, P.C., Appellant, v
DESTINY USA HOLDINGS, LLC, et al., Respondents. (Appeal
No. 1.)

Submitted August 17, 2020; decided November 23, 2020

Reported below, 178 AD3d 1443.

Motion for reargument of motion for leave to appeal denied
[see 35 NY3d 1002 (2020)].

WELLS FARGO BANK, N.A., Respondent, v RANDALL OPPITZ, Also
Known as RANDALL M. OPPITZ, Appellant, et al., Defendants.

Submitted September 8, 2020; decided November 23, 2020

Reported below, 182 AD3d 746.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

DIGEST-INDEX

ABUSE OF PROCESS.

See PROCESS; TORTS

ACCOUNTS AND ACCOUNTING.

See, also, BROKERS; EXECUTORS AND ADMINISTRATORS; GUARDIAN AND WARD; INCAPACITATED AND MENTALLY DISABLED PERSONS; JOINT VENTURES; LIMITATION OF ACTIONS; PARTNERSHIP; TRUSTS, and other specific titles

ACTIONS.

See, also, ABATEMENT AND REVIVAL; DISMISSAL AND NONSUIT, and other specific titles

ADMINISTRATORS.

See EXECUTORS AND ADMINISTRATORS

AGENCY.

See BROKERS; INSURANCE; PRINCIPAL AND AGENT

ALIMONY.

See HUSBAND AND WIFE AND OTHER DOMESTIC RELATIONSHIPS

ANIMALS.

KNOWLEDGE OF VICIOUS PROPENSITY.

1. Liability of Veterinary Clinic — Notice Not Required.—The vicious propensity notice rule, which has been applied to animal owners who are held to a strict liability standard as well as to certain non-pet owners under a negligence standard, did not apply to defendant veterinary clinic in an action to recover damages brought by plaintiff, a client in defendant's waiting room who was injured by another client's dog, which had just received medical treatment at the clinic. Defendant, whose agents had specialized knowledge relating to animal behavior and the treatment of animals who may be ill, injured, in pain, or otherwise distressed, was uniquely well-equipped to anticipate and guard against the risk of aggressive animal behavior that might occur in its practices—an environment over which it had substantial control, and which potentially might be designed to mitigate this risk. Here, a veterinarian introduced the dog into a purportedly crowded waiting room, where the dog was in close proximity to strangers and their pets—allegedly creating a volatile environment for an animal that had just undergone a medical procedure and may have been in pain. While defendant would not be subject to the same strict liability as the owner of a domestic animal, under the circumstances presented here a negligence claim could lie despite defendant's lack of notice of the dog's vicious propensities. *Hewitt v Palmer Veterinary Clinic, PC*, 35 NY3d 541.

ANNULMENT OF MARRIAGE.

See MARRIAGE

APPEAL.

See, also, COSTS; COURTS; CRIMES; UNEMPLOYMENT INSURANCE; WORKERS' COMPENSATION, and other specific titles

COURT OF APPEALS.

1. Dismissal.—An appeal from an Appellate Division order, which affirmed a Supreme Court order dismissing petitioner's application to review a determination

APPEAL—Cont'd

of respondent denying petitioner a two-year leave of absence pursuant to Civil Service Law § 71, was dismissed by the Court of Appeals upon the ground that the two-Justice dissent at the Appellate Division was not on a question of law (*see* CPLR 5601 [a]). *Matter of Froehlich v New York State Dept. of Corr. & Community Supervision*, 35 NY3d 1031.

PRESERVATION OF ISSUE FOR REVIEW.

2. Sworn Petition Alleging Domestic Violence.—In a matrimonial action, defendant failed to preserve for review her arguments regarding Domestic Relations Law § 240 (1) (a). As a result, the parties never litigated, and Supreme Court did not pass upon, or make any findings with respect to, whether a withdrawn family offense petition constitutes “a sworn petition” for purposes of the statute or whether defendant proved allegations of domestic violence “by a preponderance of the evidence” (Domestic Relations Law § 240 [1] [a])—issues that were essential to the arguments defendant raised on appeal. *Cole v Cole*, 35 NY3d 1012.

ARBITRATION.

See, also, INSURANCE

CONFIRMING OR VACATING AWARD.

1. Reconsideration of Prior Partial Final Award.—In an arbitration arising out of an insurance coverage dispute in which the arbitration panel issued a “partial final award” resolving the issue of liability but ordered an evidentiary hearing as to defense costs, the arbitration panel acted within its authority by reconsidering its initial determination and issuing a “corrected partial final award,” where the record was devoid of evidence that the parties to the arbitration mutually agreed to the issuance of a partial decision that would have the effect of a final award. The doctrine of *functus officio*, which restricts the authority of arbitrators by precluding them from taking additional actions after issuing a final award, applies only to final awards. In New York, final awards are those that are coextensive with the issues submitted to the arbitrators by the parties. Judicial review of arbitration awards is typically limited to final determinations upon the matters submitted to the arbitrators. Under federal case law, partial determinations may be treated as final awards where the parties expressly agree both that certain issues submitted to the arbitrators should be decided in separate partial awards and that such awards will be considered final. Plaintiff never consented to bifurcate the proceeding or agreed that any resulting partial decision would be treated as a final award. Neither the parties nor the arbitrators ever discussed or otherwise demonstrated any mutual understanding regarding whether the proposed severance of the calculation of defense costs would result in a partial final award. Absent an express, mutual agreement between the parties to the issuance of a partial and final award, the *functus officio* doctrine did not apply. *American Intl. Specialty Lines Ins. Co. v Allied Capital Corp.*, 35 NY3d 64.

ARTICLE 78 PROCEEDING.

See PROCEEDING AGAINST BODY OR OFFICER

ATTORNEY AND CLIENT.**MISCONDUCT BY ATTORNEY.**

1. Inducing Client to Bring Meritless Lawsuit — Intentional Deceit or Collusion.—Defendant, an attorney and his law firm, were entitled to summary judgment dismissing plaintiffs’ claim that defendants induced them to bring a meritless federal trademark action and concealed its dismissal for approximately nine months in order to generate a legal fee, where plaintiffs failed to allege that defendants engaged in deceit or collusion during the course of the underlying lawsuit as required by Judiciary Law § 487 (1). Under the statute, an attorney “who . . . [i]s guilty of any deceit or collusion, or consents to any deceit or collusion, with intent to deceive the court or any party” is guilty of a misdemeanor and may be liable for damages in a civil action. Liability does not depend on whether the court

ATTORNEY AND CLIENT—Cont'd

or party to whom the statement is made is actually misled by the attorney's intentional false statement. Given the requirement that the conduct involve "deceit or collusion" and be intentional, liability under the statute does not extend to negligent acts or conduct that constitutes only legal malpractice, evincing a lack of professional competency. The statute does not encompass the filing of a pleading or brief containing nonmeritorious legal arguments, as such statements cannot support a claim under the statute. Similarly, even assuming it constituted deceit or collusion, defendants' alleged months-long delay in informing plaintiffs that their federal lawsuit had been dismissed occurred after the litigation had ended and therefore fell outside the scope of Judiciary Law § 487 (1). *Bill Birds, Inc. v Stein Law Firm, P.C.*, 35 NY3d 173.

BANKS AND BANKING.

See, also, **BILLS, NOTES AND CHECKS**

BILLS, NOTES AND CHECKS.

See, also, **BANKS AND BANKING**

CERTIORARI.

See **PROCEEDING AGAINST BODY OR OFFICER**

CHIROPRACTORS.

See **LICENSES; PHYSICIANS AND SURGEONS**

CHURCHES.

See **RELIGIOUS CORPORATIONS AND ASSOCIATIONS**

CITIES.

See **MUNICIPAL CORPORATIONS**

CIVIL SERVICE.

See, also, **ARBITRATION; LABOR UNIONS; MUNICIPAL CORPORATIONS; PUBLIC OFFICERS; SCHOOLS**, and other specific titles

POLICE.

1. Discipline of Police.—In a proceeding to review a determination terminating petitioner's employment as a police officer, an order of the Appellate Division, which vacated the penalty of dismissal and forfeiture of petitioner's retirement benefits and remanded the matter to respondents for determination of a lesser penalty, was reversed and the petition dismissed because, under the circumstances of the case, the penalty imposed did not shock one's sense of fairness. *Matter of Arroyo v O'Neill*, 35 NY3d 1030.

RETIREMENT AND PENSION BENEFITS.

2. Unpaid Childcare Leave Service Credit Benefit for New York City Police Officers.—Administrative Code of the City of New York § 13-218 (h) renders officers of the New York City Police Department who are members of the tier 3 state retirement system eligible for credit for certain periods of unpaid childcare leave. Under the second subdivision (h) of Administrative Code § 13-218, "any member who is absent without pay for child care le[a]ve of absence . . . shall be eligible for credit for such period of child care leave." None of the pertinent parts of the statute is ambiguous. The reference to "any member" is unbounded and unfixed to employees of a particular tier, and the absence of an exception applicable to tier 3 employees cannot reasonably be attributed to carelessness or mistake. It is irrelevant that there were no tier 3 police officers when that part of the Administrative Code was passed. Inasmuch as it does not distinguish between tiers of officers, and simply provides that "any member," regardless of retirement tier, is eligible for the childcare leave service credit benefit, the second subdivision (h) of Administrative

CIVIL SERVICE—Cont'd

Code §13-218 necessarily opens that benefit to tier 3 officers. *Lynch v City of New York*, 35 NY3d 517.

3. Unpaid Childcare Leave Service Credit Benefit for New York City Police Officers — Consistency with Retirement and Social Security Law.—Retirement and Social Security Law § 513 (h), which affords childcare service credit benefits to “any general member in the uniformed correction force,” does not prohibit the childcare leave service credit benefit conferred by Administrative Code of the City of New York § 13-218 (h) to officers of the New York City Police Department who are members of the tier 3 retirement system. Retirement and Social Security Law § 513 (h) also contains a supremacy clause providing that, “[i]n the event there is a conflict between the provisions of [Retirement and Social Security Law § 513 (h)] and the provisions of any other law or code to the contrary, the provisions of [Retirement and Social Security Law § 513 (h)] shall govern.” Neither the allocative component of section 513 (h) nor its supremacy clause addresses the part of the Administrative Code at issue. The relevant portion of the Administrative Code allows police pension fund members to purchase service credit for time that otherwise would have been lost to childcare leave by contributing an amount equal to what would have been supplied if the employee had not taken childcare leave. The Retirement and Social Security Law, by contrast, is silent with respect to that point. Legislative silence, in this context, is acquiescence. Therefore, the childcare service credit benefits conferred upon members by the Administrative Code survive. *Lynch v City of New York*, 35 NY3d 517.

CLUBS.

See ASSOCIATIONS

CONDEMNATION.

See EMINENT DOMAIN

CONSUMER PROTECTION.**DECEPTIVE ACTS AND PRACTICES.**

1. Consumer-Oriented Conduct.—Plaintiff insured sufficiently alleged consumer-oriented conduct to assert claims under General Business Law §§ 349 and 350 for damages incurred due to defendant insurance company’s alleged materially misleading representations made directly to the City of New York’s employees and retirees about the terms of its insurance plan to induce them to select its plan from among the 11 health insurance plans made available to over 600,000 current and former City employees. Although there was an underlying insurance contract negotiated by defendant and nonparty employer, both of whom were sophisticated entities, neither plaintiff, nor any of the other hundreds of thousands of employees and retirees who participated in defendant’s plan, were participants in its negotiation and, critically, that negotiation was followed by an open enrollment period which exposed the employees and retirees to marketing resembling a traditional consumer sales environment. The open enrollment period, during which defendant allegedly leveraged its information advantage in order to gain the business of the employees and retirees over other insurers, resembled the sort of sales marketplace that General Business Law claims were intended to address. Further, the complaint alleged claims that arose from the allegedly deceptive marketing materials distributed to plaintiff and other employees in order to induce them to select defendant’s plan over the other options available. Defendant’s alleged dissemination of information to hundreds of thousands of employees in order to solicit their selection of its plan was precisely the sort of consumer-oriented conduct that is targeted by General Business Law §§ 349 and 350. Finally, there was no requirement under General Business Law §§ 349 and 350 that the consumer-oriented conduct be directed at all members of the public. *Plavin v Group Health Inc.*, 35 NY3d 1.

2. Misrepresentation of Apartment’s Exemption from Rent Regulation Following Deregulation.—Supreme Court properly dismissed plaintiff tenant’s General Busi-

CONSUMER PROTECTION—Cont’d

ness Law § 349 claim alleging that defendant landlords represented to the public at large that the apartments in question were exempt from rent regulation, as plaintiffs failed to allege more than bare legal conclusions regarding the existence of prohibited consumer-oriented “deceptive acts or practices” (General Business Law § 349 [a]). The statute cannot fairly be understood to mean that everyone who acts unlawfully, and does not admit the transgression, is being “deceptive” within the meaning of section 349. Assuming that a claim may lie under General Business Law § 349 based upon a landlord’s alleged misrepresentation to the public that an apartment was exempt from rent regulation following deregulation in violation of the Rent Stabilization Law, plaintiffs alleged only that defendants failed to admit that they violated the Rent Stabilization Law in deregulating plaintiffs’ apartments—three of which were, in fact, never deregulated—rather than any affirmative conduct that would tend to deceive consumers. *Collazo v Netherland Prop. Assets LLC*, 35 NY3d 987.

CONTRACTS.

See, also, ARBITRATION; BILLS, NOTES AND CHECKS; BROKERS; FRAUDS, STATUTE OF; INFANTS; INSURANCE; LANDLORD AND TENANT; MORTGAGES; MUNICIPAL CORPORATIONS; SALES; SPECIFIC PERFORMANCE; STATE; VENDOR AND PURCHASER, and other specific titles

COUNTIES.

See, also, MUNICIPAL CORPORATIONS

COURT OF CLAIMS.

See STATE

CRIMES.

See, also, BAIL; CONSTITUTIONAL LAW; CONTEMPT; COURTS; DISTRICT AND PROSECUTING ATTORNEYS; EXTRADITION; GRAND JURY; HABEAS CORPUS; INFANTS (JUVENILE DELINQUENTS, YOUTHFUL OFFENDERS); MOTOR VEHICLES; PAROLE; PRISONS AND PRISONERS, and other specific titles

ACCUSATORY INSTRUMENT.

1. Validity — Nonwaivable Jurisdictional Issue.—In defendant’s prosecution for criminal contempt in which the accusatory instrument mistakenly alleged that the crime had occurred nine months in the future and after the expiration of complainant’s order of protection, defendant did not forfeit his right to challenge the legality of the People’s oral amendment of the date of the incident by pleading guilty to the charges in the amended complaint. A valid and sufficient accusatory instrument is a nonwaivable jurisdictional prerequisite to a criminal prosecution. Defendant was charged with violating a two-year order of protection, but the date of the alleged incident fell outside the bounds of the order of protection. Absent the challenged amendment, the accusatory instrument would have failed to state a crime. Because the amendment implicated a fundamental defect and purportedly converted a facially insufficient accusatory instrument into a facially sufficient instrument, its legality presented a nonwaivable jurisdictional issue. *People v Hardy*, 35 NY3d 466.

APPEAL.

2. Matters Reviewable — Issue Not Decided Adversely to Defendant.—In defendant’s prosecution for criminally possessing stolen property, the Appellate Division erred in determining that exigent circumstances justified the warrantless search of a suitcase defendant was carrying at the time of his arrest, as Supreme Court denied defendant’s suppression motion on other grounds and made no findings regarding the existence of exigent circumstances. CPL 470.15 (1) is a legislative restriction on the Appellate Division’s power to review issues either decided in an appellant’s favor, or not ruled upon, by the trial court. The statute bars the Appellate Division from affirming a judgment, sentence or order on a ground not decided adversely to the appellant by the trial court. This restriction applies in

CRIMES—Cont'd

equal force to the Court of Appeals, which itself has no broader review powers. Because the suppression court did not deny the motion on the ground that there were exigent circumstances, that issue was not decided adversely to defendant and it could not be invoked by the Appellate Division. *People v Harris*, 35 NY3d 1010.

3. Matters Reviewable — Suppression Order Related to Satisfied Count within Same Accusatory Instrument as Count to Which Defendant Pleaded Guilty.—CPL 710.70 (2) grants a defendant the right to review of a suppression order “upon an appeal from an ensuing judgment of conviction” entered upon a guilty plea, notwithstanding that the order related exclusively to a count that was satisfied by a guilty plea but was not one to which the defendant pleaded guilty. Accordingly, in a criminal prosecution in which defendant pleaded guilty to one burglary count related to a laptop computer in satisfaction of a second burglary count in the same indictment related to jewelry taken from the same dwelling on a different date, the Appellate Division erred in holding that Supreme Court’s denial of defendant’s motion to suppress the jewelry was not reviewable because the judgment of conviction on appeal did not ensue from the denial of the motion to suppress. In using the word “ensuing” in CPL 710.70 (2), the legislature chose the broadest of relational terms to convey the connection between the suppression order and the judgment of conviction. To now inject the requirement of a narrow causal relationship between suppression order and guilty plea into the statute would conflict with the broad language of the statute. Moreover, to conclude that the Appellate Division lacks jurisdiction to review a trial court’s determination on a suppression matter when the evidence in question is not directly related to the count of conviction would insulate erroneous decisions from review and could lead to a proliferation of unreviewable legal errors at the trial level. *People v Holz*, 35 NY3d 55.

COMPLAINT.

4. Prosecutor’s Oral Amendment to Date of Incident.—*People v Easton* (307 NY 336 [1954]), which was decided when the Code of Criminal Procedure governed criminal prosecutions and established the rule that factual amendments to informations were permitted provided the amendment did not surprise or prejudice the defendant, was displaced by the passage of the Criminal Procedure Law and is no longer good law. Accordingly, in defendant’s prosecution for criminal contempt in which the misdemeanor complaint mistakenly alleged that the crime had occurred nine months in the future and after the expiration of the complainant’s order of protection, the trial court erred in permitting the People to orally amend the date of the incident based on *Easton*. In the Criminal Procedure Law, the legislature adopted rules for amending accusatory instruments, which varied by the type of instrument. For complaints and informations, the legislature did not permit factual amendments for time, place, or names. Instead, CPL 100.45 (3) permits the prosecutor to amend only the accusatory part of an information to add additional charges, provided those charges are supported by the original factual allegations. *Easton* interpreted the permissibility of amendments to accusatory instruments under a substantially different statutory landscape, now defunct. In the Criminal Procedure Law, the legislature expressly stated which amendments to complaints and informations are permissible and expressly authorized date, time, and place amendments for only a select subset of accusatory instruments, which does not include misdemeanor complaints and informations. Because the court lacked the authority to permit the amendment, the accusatory instrument—which failed to allege a crime occurring within the bounds of the two-year order of protection—was jurisdictionally defective. *People v Hardy*, 35 NY3d 466.

EVIDENCE.

5. DNA Identification Tests — Admission of Low Copy Number DNA Evidence and Analysis Using Forensic Statistical Tool without *Frye* Hearing.—In a criminal prosecution, the trial court abused its discretion as a matter of law in admitting low copy number (LCN) DNA evidence and the results of an analysis conducted using the proprietary forensic statistical tool (FST) developed and controlled by the New York City Office of Chief Medical Examiner (OCME) linking defendant to the gun used in a fatal shooting without first holding a *Frye* hearing. Judicial prece-

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dent finding that LCN testing, as performed by OCME, was generally accepted as reliable in the forensic scientific community was based on review of what was OCME's own, internal support for its process, as well as evidence reflecting that such methodology had been used worldwide. Therefore, the analysis did not adequately assess whether OCME's LCN testing was generally accepted within the relevant scientific community. Defendant was not required to establish, in his motion papers, that LCN evidence was generally not accepted by the relevant scientific community in order to obtain a hearing to resolve the question of general acceptance. Defendant's submissions raised sufficient questions regarding the general acceptance of the LCN evidence, based on its lack of use by other laboratories, the absence of prior meaningful review, and the scientific articles proffered by defendant questioning the reliability of the evidence for criminal prosecution. Similarly, the insular endorsement of FST by the DNA Subcommittee of the New York State Commission on Forensic Science was no substitute for the scrutiny of the relevant scientific community. The FST should be supported by those with no professional interest in its acceptance. *Frye* demands an objective, unbiased review. *People v Williams*, 35 NY3d 24.

6. DNA Identification Tests — Admission of Low Copy Number DNA Evidence and Analysis Using Forensic Statistical Tool without *Frye* Hearing.—In a criminal prosecution, the trial court abused its discretion as a matter of law in admitting low copy number DNA evidence and the results of an analysis conducted using the proprietary forensic statistical tool linking defendant to the gun used in a shooting without first holding a *Frye* hearing, given defendant's showing that there was uncertainty regarding whether such proof was generally accepted in the relevant scientific community at the time of his motion to preclude that evidence. *People v Foster-Bey*, 35 NY3d 959.

7. Sufficient Foundation to Authenticate Video.—In a homicide prosecution arising from an incident in which defendant was alleged to have shot and killed an individual in the territory of a rival group, a redacted version of a YouTube music video entitled "Mobbin Out" and depicting defendant rapping about "run[nin]g up" into a rival crew's "house," which was admitted at trial as probative of his motive related to territorial gang activity, was sufficiently authenticated to demonstrate that the video accurately represented the subject matter depicted. The foundation necessary to establish authenticity may differ according to the nature of the evidence sought to be admitted. Here, it was significant that defendant did not dispute that he was the individual who appeared in the video reciting certain words. In addition, the video contained distinctive identifying characteristics; it depicted defendant and two of the other individuals who, as indicated by surveillance footage from the night of the shooting, were in the vehicle used during the shooting and in similar attire to what they were wearing that night, and the video's background demonstrated that it was filmed in defendant's neighborhood. The video was uploaded close in time to the homicide, and the driver of the vehicle testified that defendant called him the morning after the shooting to declare that the victim was dead and to invite him to attend the filming of a video later that day, establishing the timing of the making of the video. While the driver did not attend the filming, he stated his belief that the name of the video was "Mobbing Out," affirmed that the admitted video accurately represented what he had previously viewed on YouTube, identified defendant and the two passengers from the video, and confirmed that a social media handle that appeared as text on the video was associated with defendant's nickname and his group's name. *People v Goldman*, 35 NY3d 582.

8. Tape Recordings — Admission of Recording of Telephone Call Made by Defendant while Incarcerated.—The trial court in defendant's criminal prosecution did not abuse its discretion as a matter of law in admitting into evidence a recording of a telephone call defendant made while incarcerated before trial. Defendants who use the public telephone system in a correctional facility while warned of the potential that such calls may be recorded impliedly consent to the taping of those conversations. *People v Williams*, 35 NY3d 24.

FAIR TRIAL.

9. Evidentiary Rulings.—The trial court in defendant's murder prosecution did not abuse its discretion in its evidentiary rulings concerning evidence relating to

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defendant's claim of third-party culpability, counsel's attempted impeachment of a witness, and admission of photographs of the victim's body. The trial court did not abuse its discretion by admitting evidence that the allegedly culpable third party pleaded guilty to possessing a firearm other than the murder weapon. Nor did the court abuse its discretion in its treatment of a controversy concerning counsel's attempt to impeach a witness with her prior grand jury testimony. Counsel failed to request that the witness be recalled for questioning relating to the particular appearance on which counsel relied. The trial court also acted within its discretion in admitting photographs of the victim's body as not simply introduced to inflame the jury, and in determining that their relevance was not outweighed by danger of undue prejudice to defendant. *People v Hemphill*, 35 NY3d 1035.

HARMLESS AND PREJUDICIAL ERROR.

10. Admission of Low Copy Number DNA Evidence and Analysis Using Forensic Statistical Tool without *Frye* Hearing.—In defendant's prosecution for shooting a police officer, the trial court's errors in admitting low copy number DNA evidence and forensic statistical tool results linking defendant to the gun used in the shooting were harmless in light of the eyewitness testimony as to the shooting and defendant's admission to his involvement in that incident. The incident was described for the jury by the victim as well as another police officer eyewitness. Two more police witnesses, respectively, linked defendant to the gun and established that defendant admitted to having shot the victim. *People v Foster-Bey*, 35 NY3d 959.

11. Admission of Low Copy Number DNA Evidence and Analysis Using Forensic Statistical Tool without *Frye* Hearing — Overwhelming Evidence of Guilt.—In a criminal prosecution, the trial court's errors in admitting expert testimony with respect to low copy number DNA evidence and forensic statistical tool results linking defendant to the gun used in a fatal shooting without first holding a *Frye* hearing were harmless, as the evidence of defendant's guilt was overwhelming and there was no significant probability that the jury would have acquitted defendant had it not been for the errors. The People presented video evidence of the shooting, eyewitness testimony identifying defendant as the shooter, and testimony of defendant's former girlfriend explaining that defendant forced her to stow the gun used in the shooting in her apartment immediately after the incident and admitted to her that "he had just shot somebody." *People v Williams*, 35 NY3d 24.

JURORS.

12. Discharge of Juror — Failure to Make Requisite Inquiry before Replacement by Alternate.—The trial court failed to satisfy the requirement that it conduct a reasonably thorough inquiry into a sitting juror's unavailability or place on the record facts supporting a finding that the juror was unavailable for service (see CPL 270.35 [2]) before substituting an alternate juror on the ninth day of defendant's murder trial. The trial court merely stated its belief that the sitting juror had an appointment for a family member, and incorrectly claimed that the sitting juror had stated during voir dire that she had a medical appointment for her son in another city. Not only did the court provide only limited, and inaccurate, reasons to support a finding of unavailability, there was nothing on the record reflecting that it made any inquiry into the sitting juror's whereabouts or likelihood of appearing prior to ordering the substitution of the sitting juror with the alternate juror. *People v Lang*, 35 NY3d 222.

13. Discharge of Sworn Juror — Juror's Reaction to Counsel's Use of Racial Slur Did Not Render Her Grossly Unqualified.—The trial court did not abuse its discretion as a matter of law in giving the jury a curative instruction and forgoing an inquiry pursuant to *People v Buford* (69 NY2d 290 [1987]) of a sworn juror after her mid-trial exclamation that she was "very offen[ded]" by the repetitive use of a racial slur by a codefendant's counsel while cross-examining the victim. *Buford* set forth a framework for trial courts to determine, pursuant to CPL 270.35 (1), whether a sworn juror must be discharged as grossly unqualified to serve due to facts unknown at the time of selection or where the juror has engaged in misconduct of a substantial nature. A sworn juror is not grossly unqualified and subject to removal merely because the juror is irritated with one of the attorneys

CRIMES—Cont'd

or disagrees with the way the evidence is presented, and a juror's declaration of being emotional about the case is not equivalent to a declaration of actual bias or state of mind preventing the juror from deciding the case solely on the evidence. The record supported the trial court's findings that the juror's reaction was caused by counsel's fifth and gratuitous use of the epithet, and provided no basis to indicate she was grossly unqualified. There was no indication that the juror's ability to maintain her sworn oath to render an impartial verdict was hampered by exposure to any facts outside the four corners of the evidence. Thus, no probing *Buford* inquiry was needed as all pertinent facts were already before the court, providing a sound basis for its conclusion that her outburst was due to a natural frustration wholly unrelated to her state of mind in evaluating the evidence. The court's curative instruction was a thorough and sensible approach that addressed each of the concerns raised by counsel and appreciated the outburst for what it was—not an act of substantial misconduct, but a spontaneous outcry prompted by the repetitive use of a racial slur. *People v Batticks*, 35 NY3d 561.

MURDER.

14. Sufficiency of Evidence — Third-Party Culpability Defense.—In defendant's murder prosecution in which the defense was third-party guilt, the evidence presented at trial was sufficient to support his conviction. While there was evidence of third-party culpability, a rational jury nevertheless could have concluded that defendant was guilty. The jury was free to reject defendant's claims about the witnesses' initial identifications of someone else as the shooter. Moreover, the People were not obligated to present evidence to the grand jury that someone else was initially identified as the shooter. *People v Hemphill*, 35 NY3d 1035.

OFFICIAL MISCONDUCT.

15. Correctional Facility Employee's Intentional Disclosure of Information to Inmate in Violation of Employee Manual.—The information charging defendant with official misconduct was not jurisdictionally defective, where the allegations that, while working as a substance abuse treatment program aide at a correctional facility, she disclosed information to an inmate about an "unusual incident" in violation of the employee manual she had signed established both that defendant "commit[ted] an act relating to [her] office but constituting an unauthorized exercise of [her] official functions," and that she knew that the disclosure to the inmate was unauthorized (Penal Law § 195.00). The information, supported by defendant's admissions in her statement to police, sufficiently alleged that she knowingly left documents regarding the unusual incident which she had printed on a facility computer in a place where they could be accessed by an inmate who defendant knew was not authorized to receive them. From those allegations, coupled with defendant's admissions in her statement regarding inappropriate contact with and favors conducted for inmates involved in the unusual incident and the disclosure, one could reasonably infer that defendant committed the unauthorized disclosure with the intent to benefit herself or the inmates involved. A "benefit" is defined as "any gain or advantage to the beneficiary and includes any gain or advantage to a third person pursuant to the desire or consent of the beneficiary" (Penal Law § 10.00 [17]). Accordingly, the People were not required to specify in the information whether defendant intended to benefit herself or the inmates, because either or both would have satisfied this element of the statute and both theories were supported by defendant's statement to police. *People v Middleton*, 35 NY3d 952.

PLEA OF GUILTY.

16. Deportation Consequences — Preservation of Issue for Review.—The narrow exception to the preservation requirement where a defendant has no practical ability to object to an error in a plea allocution which is clear from the face of the record did not apply to noncitizen defendant's claim that counsel was ineffective for failing to inform him of potential immigration consequences resulting from his burglary conviction. Accordingly, where counsel provided defendant a "Notice of Immigration Consequences" unambiguously informing him of the immigration con-

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sequences of his plea deal and defendant did not express concerns to the court during his plea allocation or move to withdraw his guilty plea, his claim was unpreserved as a matter of law. The detailed notice, in English and Spanish—physically handed, as the record made plain, to defendant by counsel in open court months before his plea—gave defendant the opportunity to raise any questions he might have had regarding possible immigration consequences of his conviction. The first sentence of the notice explicitly told defendant that “a plea of guilty to any offense” could “subject[] [him] to a risk that adverse consequences w[ould] be imposed on [him] by the United States immigration authorities, including, but not limited to, removal from the United States.” It further noted that a conviction for “burglary . . . or any other theft-related offense . . . for which a sentence of one year or more is imposed” would be deportable. *People v Delorbe*, 35 NY3d 112.

RIGHT OF CONFRONTATION.

17. Testimonial DNA Evidence.—An analyst’s hearsay testimony in separate criminal prosecutions as to the DNA profiles developed from the post-arrest buccal swabs and the admission of those DNA profiles into evidence, over defendants’ objections, violated defendants’ confrontation rights. The testifying analyst did not participate in the generation of the testimonial DNA profile or use her independent analysis on the raw data to arrive at her own conclusions. The errors were not harmless because, in both cases, the People relied solely on the evidence of the DNA profile generated from the post-arrest buccal swabs to prove defendants’ guilt at trial. *People v Tsintzelis*, 35 NY3d 925.

RIGHT TO COUNSEL.

18. Effective Representation — Challenge to Prospective Juror for Bias Based on Media Coverage.—Defendant failed to establish on direct appeal that trial counsel was constitutionally ineffective based on a single purported error—the failure to challenge a prospective juror who made statements during voir dire that, upon reading pretrial publicity about the case, he “made up [his] mind then” that he “[d]idn’t like the circumstances,” and failed to unequivocally guarantee that he could be impartial when the trial court questioned him immediately following those statements. A juror who reads about a crime in the news must be able to lay aside his or her impression or opinion and render a verdict based on the evidence. It is not necessary that jurors be totally ignorant of the facts and issues involved, and it should be expected that jurors will have formed some impression or opinion as to the merits. The prospective juror’s statements during voir dire did not reflect actual bias against defendant predicated on any evidence precluding the juror from rendering an impartial verdict, as opposed to general discomfort with the case based on media coverage. The juror’s verbatim statements did not reveal what about the case gave rise to his uneasiness, nor did the juror convey that his uneasiness was connected to any particular personal experience or relationship, or whether his impressions risked predisposition toward the prosecution or defense. As the trial record did not reveal that the juror was actually partial to one side, defendant could not use the absence of a challenge to the juror in question to argue that counsel was ineffective on an incomplete record. Rather, a CPL 440.10 motion was the proper mechanism for the litigation of the claim. *People v Maffei*, 35 NY3d 264.

19. Effective Representation — Failure to Advance Argument with Little Chance of Success — Initial Aggressor Exception to Justification Defense.—In defendant’s prosecution arising from an altercation in which he fatally shot the victim after the victim swung a baseball bat at another person involved in the dispute, trial counsel was not ineffective for failing to object to the part of the jury instruction containing the “initial aggressor” exception to the justification defense. A person may not use physical force upon another person to defend himself or herself when that person is the initial aggressor. Where there is a reasonable view of the evidence that the defendant is the initial aggressor, the court may instruct the jury with respect to that exception to the justification defense. The People adduced testimony that defendant shot the victim after the baseball bat held by the victim had shattered and no longer presented a threat, meaning that the initial

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aggressor instruction was appropriate. Inasmuch as an objection to that instruction was unlikely to succeed, and inasmuch as trial counsel cannot be ineffective for failing to make a motion that has little or no chance of success, defendant's contention with respect to ineffective assistance of counsel lacked merit. *People v Williams*, 35 NY3d 24.

20. Effective Representation — Failure to Advance Argument with Little Chance of Success — Justification Defense.—In defendant's prosecution arising from an altercation in which he fatally shot the victim after the victim swung a baseball bat at another person involved in the dispute, trial counsel was not ineffective for failing to object to the instruction that the jury must determine whether the use of deadly physical force was justified with respect to each of the two gunshots that struck the victim. An objection on that point was unlikely to have succeeded, and trial counsel cannot be ineffective for failing to advance an argument that has little or no chance of success. Defendant argued that because the People's medical expert testified that each of the two gunshots that struck the victim was fatal, the second gunshot necessarily was academic with respect to the justification analysis because the first shot killed the victim. The jury, however, was free to reject the testimony of that expert with respect to the conclusion that the victim could have been killed solely by the first gunshot. To the extent the jury believed the second gunshot was at least partially responsible for the victim's death, the challenged jury instruction would have been appropriate. *People v Williams*, 35 NY3d 24.

21. Effective Representation — Summary Denial of CPL 440.10 Motion.—Supreme Court did not abuse its discretion in summarily rejecting defendant's CPL 440.10 motion alleging that his counsel had provided ineffective assistance for failing to inform him of the possible immigration consequences of his guilty plea, where defendant's motion did not "contain sworn allegations" alleging his conviction was obtained due to constitutionally deficient attorney performance as required by CPL 440.30 (1) (a). The court may deny a CPL 440.10 motion without conducting a hearing if "the moving papers do not contain sworn allegations substantiating or tending to substantiate all the essential facts" (CPL 440.30 [4] [b]). Defendant's sworn affidavits supporting his motion contained only conclusory allegations, which, even if taken as true, did not include "all the essential facts" required to establish that he was entitled to any relief (CPL 440.30 [4] [b]). *People v Delorbe*, 35 NY3d 112.

SEARCH WARRANT.

22. Compelling Suspect to Provide DNA Evidence through Buccal Swab — Discovery and Hearing Requirements.—Defendant's constitutional rights were not violated when a neutral magistrate issued a search warrant to obtain DNA evidence from defendant's body by buccal swab as defendant, provided with an opportunity to be heard on the application, other than on the issue of probable cause, directed no argument as to the reasonable nature of the bodily intrusion sought. The three-prong standard set forth in *Matter of Abe A.* (56 NY2d 288 [1982]) for the use of a search warrant pursuant to CPL article 690 for the seizure of corporeal evidence from an uncharged suspect requires the People to demonstrate probable cause to believe the individual committed the crime, a clear indication that material and relevant evidence will be found, and that the means of obtaining the evidence is safe and reliable. *Abe A.* should not be interpreted as creating a mandatory discovery procedure affording defendant access to the supporting affidavit demonstrating the requisite probable cause set forth in CPL article 690, as a matter of constitutional law. Access to that information must first depend on the magnitude of the bodily intrusion sought by the warrant. Given the undisputed utility of DNA identification in the criminal justice system, defendant could not credibly claim that the DNA evidence was unlikely to provide material evidence. Moreover, the buccal swab, a simple and common method for securing DNA, is undeniably safe, consists of a minimal intrusion and involves no discomfort. The constitutional role of the neutral magistrate to determine whether the warrant application set forth probable cause of defendant's commission of the crime and the

CRIMES—Cont'd

factual basis for the DNA comparative evidence required no supplemental adversarial process. *People v Goldman*, 35 NY3d 582.

SEX OFFENDERS.

23. Sex Offender Registration Act — Assessment of Risk Level Points for Prior Foreign Conviction — Essential Elements Test.—When assessing points for prior crimes under risk factor 9 of the Sex Offender Registration Act (Correction Law art 6-C [SORA]) risk assessment instrument for purposes of making a risk level determination, the New York State Board of Examiners of Sex Offenders and courts should apply the “essential elements” test when assessing whether a foreign conviction is comparable to endangering the welfare of a child under New York law. With respect to registrable offenses, the “essential elements” provision of SORA requires registration whenever an individual is convicted of criminal conduct in a foreign jurisdiction that, if committed in New York, would have amounted to a registrable New York offense. In circumstances where the offenses overlap but the foreign offense also criminalizes conduct not covered under the New York offense, the Board must review the conduct underlying the foreign conviction to determine if that conduct is within the scope of the New York offense. The ultimate and paramount concern of SORA risk level assessment is an accurate determination of the risk a sex offender poses to the public. Thus, assessing points under risk factor 9 for foreign convictions similarly warrants a less rigid approach than strict equivalency to allow for an individualized determination that fully captures the offender’s potential risk to the public. Examining, where necessary under the “essential elements” test, the underlying conduct of a foreign conviction effectuates the remedial purposes of SORA and adheres to the plain language of the Correction Law and the SORA guidelines. *People v Perez*, 35 NY3d 85.

24. Sex Offender Registration Act — Risk Level Determination — Assessment of Points for Prior Foreign Conviction.—Defendant’s New Jersey lewdness conviction for exposing himself to a 12-year-old girl through a window, blowing her kisses and “fondling and stroking his penis in view of [the victim] to sexually gratify himself,” was comparable to the crime of endangering the welfare of a child in New York, warranting the assessment of 30 points under risk factor 9 of the Sex Offender Registration Act (Correction Law art 6-C) risk assessment instrument. Because the offenses overlap but the New Jersey offense also criminalizes conduct that may not be covered under the New York offense, courts must review the conduct underlying the foreign conviction to determine if that conduct is within the scope of the New York offense. It was undisputed that defendant knowingly exposed himself to the 12-year-old victim and made sexual and offensive gestures toward her and her teenage family members. The record similarly reflected that defendant understood that his actions as directed toward the victim were “likely to be injurious to the physical, mental or moral welfare of a child” (Penal Law § 260.10 [1]). Thus, the conduct underlying defendant’s New Jersey conviction was within the scope of endangering the welfare of a child under New York law. *People v Perez*, 35 NY3d 85.

UNLAWFUL SEARCH AND SEIZURE.

25. Traffic Stop by Customs and Border Protection Agent.—Defendant was not entitled under *People v Williams* (4 NY3d 535 [2005]) to suppression of physical evidence recovered during a traffic stop made by a federal marine interdiction agent with the United States Customs and Border Protection (CBP) because the agent was not a peace officer within the meaning of CPL 2.10 and 2.15. On its face, CPL 2.15 does not include “marine interdiction agents” as among the “federal law enforcement officers” awarded certain peace officer powers under CPL 140.25. The statute does, however, include “United States Customs and Border Protection Officers and United States Customs and Border Protection Border Patrol agents” (CPL 2.15 [7]). In general, CPL 2.10 and 2.15 are exclusive lists, describing with relative precision the positions which meet the statutory definition of “peace officer” and “federal law enforcement officer,” respectively. Subdivision (7) of CPL 2.15 itself includes only two positions: CBP “Officers” and “Border Patrol agents,” while other subdivisions of the statute either broadly describe an agency’s membership, or are

CRIMES—Cont'd

careful to specify which members within an agency are included. Thus, if subdivision (7) were intended to refer to all CBP agents, including those employed with air and marine operations, the legislature would not have used the term “Border Patrol” as a qualifier in the statutory text, and it would not have clarified that CBP “Officers” are peace officers as well. *People v Page*, 35 NY3d 199.

26. Traffic Stop — Stop of Vehicle Based on License Plate Check Indicating Previous Impoundment.—The stop of defendant’s vehicle by a State Trooper based solely on a license plate check indicating that the car had previously been impounded was unlawful, as the Trooper lacked an objectively reasonable suspicion that a crime had occurred or probable cause to stop defendant’s vehicle for a traffic infraction. In contrast to the Fourth Amendment, which permits brief investigative stops when a law enforcement officer has a particularized and objective basis for suspecting the particular person stopped of criminal activity, the Court of Appeals has adopted greater protections for pedestrian stops by the police. New York also provides greater protections for traffic infraction vehicle stops—in New York, an officer must have probable cause to stop a vehicle for a traffic infraction. The Trooper did not observe any violations of the Vehicle and Traffic Law and “everything looked good.” Putting aside the result of the license plate inquiry, the Trooper candidly testified that he had had no reason to stop defendant. The result of the license plate check provided neither probable cause to conclude a traffic infraction had occurred nor any basis for an objectively reasonable belief that criminal behavior had occurred or was afoot. That defendant’s car had at one point been impounded did not provide the Trooper a reasonable suspicion of criminality. Moreover, there were no facts establishing an objective basis to believe that the apparent removal or release of the vehicle from the impound lot was indicative of criminality. Because there was not even a suggestion that the conduct of defendant or his companion had been furtive in character before the police interfered with their car’s progress and the record was bare of any objective evidence of criminal activity as of the time of the stop, the stop of defendant’s vehicle was invalid. *People v Hinshaw*, 35 NY3d 427.

27. Vehicle Stop — “Similarity Hit” from License Plate Check.—In defendant’s prosecution for criminally possessing a handgun observed on the floor of the passenger seat where defendant was sitting in a vehicle stopped by police as a result of a “similarity hit” indicating something similar between the registered owner of the vehicle and a person with an outstanding warrant, defendant’s motion to suppress the evidence obtained from the stop should have been granted because the People failed to meet their burden of presenting evidence sufficient to establish that the stop was lawful. A vehicle stop based on reasonable suspicion will be upheld so long as the intruding officer can point to specific and articulable facts which, along with any logical deductions, reasonably prompted the intrusion. When police stop a vehicle based solely on information generated by running a license-plate number through a government database, the People must present evidence of the content of the information. Where an arrest or search is made without a warrant, the reviewing court must be supplied with the description upon which the police acted and sufficient evidence to make its own independent determination of whether the person arrested or the item seized reasonably fit that description. The People presented no evidence about the content of the “similarity hit”—neither what particular data of the registered owner of the vehicle and the person with the warrant matched, nor what kinds of data matches, in general, result in “similarity hits.” Without such evidence, the suppression court could not independently evaluate whether the officer had reasonable suspicion to make the stop. *People v Balkman*, 35 NY3d 556.

VERDICT.

28. Setting Verdict Aside — Improper Juror Conduct.—In a criminal prosecution, the motion court abused its discretion in denying defendant’s CPL 330.30 (2) motion without first conducting a hearing. *People v Smith*, 35 NY3d 1117.

DEBTOR AND CREDITOR.

See ASSIGNMENTS FOR BENEFIT OF CREDITORS; ATTACHMENT; CREDITORS’ SUITS; EXECUTION; FRAUDULENT CONVEYANCES; LIENS; LIS PENDENS; MORTGAGES, and other specific titles

DECEDENTS' ESTATES.

See ALIENS; COURTS (SURROGATE'S COURT); DEAD BODIES; DEATH; DESCENT AND DISTRIBUTION; DOMICILE; EXECUTORS AND ADMINISTRATORS; GIFTS; INSURANCE; POWERS; TAXATION; TRUSTS; WILLS, and other specific titles

DENTISTS.

See LICENSES; PHYSICIANS AND SURGEONS

DEPOSITIONS.

See DISCLOSURE

DISCONTINUANCE.

See DISMISSAL AND NONSUIT

DISCOVERY AND INSPECTION.

See DISCLOSURE

DIVORCE.

See HUSBAND AND WIFE AND OTHER DOMESTIC RELATIONSHIPS

DOUBLE JEOPARDY.

See CRIMES

ELDER LAW.

See HEALTH; INCAPACITATED AND MENTALLY DISABLED PERSONS; INSURANCE; SOCIAL SERVICES; TRUSTS

ELECTIONS.**DESIGNATING PETITIONS.**

1. Cover Sheets.—In two Election Law proceedings, the Appellate Division erred in granting petitioners' petitions to validate their designating petitions, since the failure to timely file a cover sheet accompanying a designating petition constitutes a fatal defect. *Matter of Mejia v Board of Elections in the City of N.Y.*, 35 NY3d 1040.

2. Fatal Defect — Untimely Filing of Cover Sheet or Certificate of Acceptance during COVID-19 Public Health Crisis.—Petitioners' failure to timely file a cover sheet with a designating petition or a certificate of acceptance relating to their candidacies for public office constituted inexcusable "fatal defect[s]" under Election Law § 1-106 (2), notwithstanding the unique circumstances presented by the COVID-19 pandemic. Strict compliance with the Election Law reduces the likelihood of unequal enforcement. Moreover, the provisions of the Election Law make it clear that the time limitations for filing are mandatory and foreclose the judiciary from fashioning exceptions, however reasonable they might appear to be. Accordingly, strict compliance with the time limitations imposed by the Election Law is mandatory, notwithstanding a candidate's unique or extenuating circumstances. Untimely filings dilute the integrity of the election process and jeopardize enforcement of the mandatory filing requirements set forth in the Election Law. While several of the legislature's directives had been expressly suspended or modified in response to the public health crisis, and the legislature had itself modified the filing deadlines applicable in the appeals, candidates had not been relieved from the consequences of a late filing. Nor had any measures been implemented that purported to confer judicial discretion or equitable authority to fashion further relief. *Matter of Seawright v Board of Elections in the City of N.Y.*, 35 NY3d 227.

3. Fraud — Backdated Signatures.—The lower courts should have declared invalid the designating petition submitted by respondent State Assembly candidate as it was permeated by fraud as a matter of law. While the bar for establishing fraud is high, a court may conclude that, because of its magnitude, fraud and irregularity established by clear and convincing evidence so permeated the designat-

ELECTIONS—Cont'd

ing petition as a whole as to call for its invalidation. Such was the case here, where it was undisputed that 512 out of 944 signatures in the designating petition were backdated to dates preceding respondent's receipt of the blank petition pages, and that 14 of the 28 subscribing witnesses swore that those signatures were placed on the designating petition before the blank petition pages were obtained from the printer. *Matter of Ferreyra v Arroyo*, 35 NY3d 127.

EMINENT DOMAIN.**EXEMPTION FROM PUBLIC HEARING.**

1. Conditional Approval by Federal Energy Regulatory Commission.—Where a gas company holds a valid certificate of public convenience and necessity from the Federal Energy Regulatory Commission (FERC) for the proposed construction of a pipeline and that certificate places no relevant conditions on the eminent domain power and has not been stayed or revoked by FERC or a federal court properly reviewing its issuance, compliance with the public notice and hearing provisions of EDPL article 2 is excused under EDPL 206 (A). Accordingly, in petitioner gas company's EDPL article 4 vesting proceeding seeking to acquire, by eminent domain, easements over respondent landowners' property in order to facilitate construction and operation of a natural gas pipeline, the certificate of public convenience and necessity issued to petitioner by FERC exempted petitioner from compliance with EDPL article 2 pursuant to EDPL 206 (A), as the certificate did not condition petitioner's eminent domain power on receipt of a water quality certification and remained valid and operative despite an intervening denial of petitioner's application for such certification. Petitioner did exactly as EDPL 206 (A) dictates in order to obtain the benefit of the statutory exemption from article 2 procedures; it submitted materials to FERC concerning the public benefit, use, and need for the proposed pipeline. The certificate was incontrovertibly premised upon a meaningful review of substantial information, alternatives, and viewpoints of various stakeholders, and FERC's analysis focused largely on the factors delineated in EDPL 204 (B). Given that FERC made a reasoned determination regarding the public benefit to be served, as envisioned by EDPL 204 (B), the certificate satisfied the plain language of EDPL 206 (A). While petitioner's certificate contained numerous "conditions," they were not conditions precedent to the validity of the certificate itself. *Matter of National Fuel Gas Supply Corp. v Schueckler*, 35 NY3d 297.

EMPLOYMENT RELATIONSHIPS.

See, also, CIVIL SERVICE; LABOR; LABOR UNIONS; MUNICIPAL CORPORATIONS; SCHOOLS; STATE; UNEMPLOYMENT INSURANCE; WORKERS' COMPENSATION, and other specific titles

EVIDENCE.

See, also, AFFIDAVITS; CRIMES; DISCLOSURE; SEARCHES AND SEIZURES; STIPULATIONS; WITNESSES, and other specific titles

OPINION EVIDENCE.

1. Expert Testimony Regarding Nonmandatory Standards.—The trial court in plaintiff's personal injury action against defendant transit authority properly admitted plaintiff's expert testimony regarding nonmandatory gap standards promulgated by the American Public Transit Association and the Public Transportation Safety Board. *Daniels v New York City Tr. Auth.*, 35 NY3d 938.

EXAMINATION BEFORE TRIAL.

See DISCLOSURE

FILIATION PROCEEDINGS.

See CHILDREN BORN OUT OF WEDLOCK

FORMER ADJUDICATION.

See JUDGMENTS

FORMER JEOPARDY.

See CRIMES (DOUBLE JEOPARDY)

FRATERNAL ORDERS.

See ASSOCIATIONS

GAS AND OIL.

See, also, PUBLIC UTILITIES

GRAND JURY.

DEFECTIVE PROCEEDING.

1. In defendant's prosecution for fatally shooting decedent during an altercation at defendant's home, an Appellate Division order which affirmed a County Court order dismissing the indictment was affirmed for reasons stated in the memorandum at the Appellate Division. *People v Ball*, 35 NY3d 1009.

GUARANTEE.

See SURETYSHIP AND GUARANTEE

HOTELS.

See INNKEEPERS

HUSBAND AND WIFE AND OTHER DOMESTIC RELATIONSHIPS.

See, also, ADOPTION; COURTS (FAMILY COURT); INFANTS; MARRIAGE; PARENT, CHILD AND FAMILY; SOCIAL SERVICES; TENANTS BY THE ENTIRETY, and other specific titles

IMMIGRATION.

See ALIENS

INFANTS.

See, also, ADOPTION; CHILDREN BORN OUT OF WEDLOCK; COURTS (FAMILY COURT); GUARDIAN AND WARD; HUSBAND AND WIFE AND OTHER DOMESTIC RELATIONSHIPS; PARENT, CHILD AND FAMILY; SCHOOLS; SOCIAL SERVICES, and other specific titles

INSURANCE.

See, also, ARBITRATION; UNEMPLOYMENT INSURANCE; WORKERS' COMPENSATION, and other specific titles

INTELLECTUAL PROPERTY LAW.

See COPYRIGHTS; PATENTS; TRADEMARKS, TRADE NAMES AND UNFAIR COMPETITION

INTERVENTION.

See PARTIES

JUDGES.

DISCIPLINARY PROCEEDINGS.

1. Referee's Findings.—In a proceeding to review a determination by respondent State Commission on Judicial Conduct that petitioner Family Court Judge committed certain acts of misconduct and should be removed from office, any findings made by respondent that differed from those made by the Referee were not set aside and a review of the record indicated that the charges were properly sustained. With respect to respondent's factual findings, neither respondent nor the Court of Appeals is bound to accept a referee's findings. The record did not support petitioner's argument that respondent ignored or rejected any of the Referee's findings that were based on an assessment of witness credibility. *Matter of Miller (New York State Commn. on Jud. Conduct)*, 35 NY3d 484.

JUDGES—Cont'd

2. Removal from Office.—Respondent New York State Commission on Judicial Conduct's determination that petitioner Village Court Justice be removed from office for his repeated use of profane, vulgar and sexist terms in emails to clients he represented in his private law practice that denigrated participants in the legal proceeding and used a crude gender-based slur to describe opposing counsel was accepted. Petitioner's statements were manifestly vulgar and offensive, and his repeated use of such language in written communications to insult and demean others involved in the legal process showed a pervasive disrespect for the system, conveyed a perception of disdain for the legal system, and indicated that he was unable to maintain the high standard of conduct demanded of judges. His derogatory comments impugned not just the particular referee involved in the case but all judges, and with it, the judiciary. Petitioner's conduct therefore undermined the dignity and integrity of the judicial system. The fact that petitioner's comments were contained in emails which he believed would not be shared did not excuse the wrongfulness of his conduct, as judges are accountable for their conduct at all times, including in conversations off the bench. Moreover, petitioner's conduct warranted removal notwithstanding the fact that he was not functioning in his judicial capacity at the time that it occurred. Petitioner's derogatory statements directly targeted the legal system and its participants writ large, and, thus, could not be divorced from his judicial role. *Matter of Senzer*, 35 NY3d 216.

REMOVAL FROM OFFICE.

3. The determination of respondent State Commission on Judicial Conduct that petitioner Family Court Judge should be removed from office was accepted. Petitioner's conduct toward court employees as proved through testimony that he made sexualized and demeaning comments toward certain staff members violated Rules Governing Judicial Conduct (22 NYCRR) §§ 100.1 and 100.3 (B) (3). Having conceded that he had his court secretary draft a letter seeking payment for work performed in his former private practice, petitioner also violated section 100.2 (C). Moreover, upon receiving that payment, petitioner delayed for years in filing required financial disclosure forms and amending his tax returns to report that and other extrajudicial income until he was under investigation, thus violating sections 100.2 (A), 100.3 (C) (1), and 100.4 (H) (2) and (I). Petitioner's conduct, when considered in the aggregate as required, was sufficiently egregious in light of his three separate categories of misconduct, his prior censure by respondent, his failure to take responsibility for his actions, and the message that another censure would send to the public. While the comments to employees were not numerous, the misconduct was compounded by petitioner's retaliation against one employee when she complained of his conduct and his attempt at mitigation by arguing that his unprofessional sexualized comments were an attempt at humor. *Matter of Miller (New York State Commn. on Jud. Conduct)*, 35 NY3d 484.

SUSPENSION FROM OFFICE.

4. The Court of Appeals, on its own motion, pursuant to New York Constitution, article VI, § 22 and Judiciary Law § 44 (8), suspended a Family Court and Surrogate's Court Judge from office, with pay, effective immediately, pending review of a determination of the State Commission on Judicial Conduct. *Matter of McGuire*, 35 NY3d 951.

JUDGMENTS.

See, also, EXECUTION, and other specific titles

SUMMARY JUDGMENT.

1. Triable Issues of Fact.—An order of the Appellate Division, which had reversed a Supreme Court judgment dismissing the complaint and denied defendants' motion for summary judgment and reinstated the complaint, was affirmed, where triable questions of fact precluded summary judgment in favor of defendants. Plaintiff's submissions rebutted defendants' prima facie showing of entitlement to summary judgment and raised triable issues of fact. *Barry v Lee*, 35 NY3d 1050.

JUDICIAL NOTICE.

See EVIDENCE

LABOR.

See, also, ARBITRATION; CIVIL SERVICE; EMPLOYMENT RELATIONSHIPS; LABOR UNIONS; MUNICIPAL CORPORATIONS; SCHOOLS; STATE; UNEMPLOYMENT INSURANCE; WORKERS' COMPENSATION, and other specific titles

LANDLORD AND TENANT.

See, also, NEGLIGENCE (MAINTENANCE OF PREMISES)

RENT REGULATION.

1. Concurrent Jurisdiction of Supreme Court and Division of Housing and Community Renewal over Rent Overcharge Claims.—In an action by plaintiff tenants seeking a declaration that their apartments were subject to rent stabilization laws, damages and recovery of overcharges stemming from defendant landlords' receipt of tax benefits under the Rent Stabilization Law notwithstanding that plaintiffs' apartments were registered as permanently exempt, high rent vacancies, Supreme Court erred in finding that it lacked jurisdiction over plaintiffs' claims. The provisions of the Housing Stability and Tenant Protection Act of 2019 that relate to the enforcement of certain claims state that "[t]he courts and the [New York State Division of Housing and Community Renewal] shall have concurrent jurisdiction, subject to the tenant's choice of forum" and therefore applied to the primary jurisdiction issue raised on appeal (L 2019, ch 36, Part F, §§ 1, 3, amending Emergency Tenant Protection Act of 1974 [L 1974, ch 576, § 4] § 12 [a] [1] [f]; [b] [McKinney's Uncons Laws of NY § 8632 (a) (1) (f); (b)]). Plaintiffs' choice of forum controlled under the circumstances presented, and the claims should have been adjudicated in Supreme Court. *Collazo v Netherland Prop. Assets LLC*, 35 NY3d 987.

2. Improper Deregulation — Rent Overcharges Calculated Pursuant to Method in Effect When Overcharges Occurred.—The appeals in petitioner and plaintiff tenants' rent overcharge actions arising from the improper removal of their apartments from rent stabilization during receipt of J-51 benefits prior to the decision in *Roberts v Tishman Speyer Props., L.P.* (13 NY3d 270 [2009]), which were pending when the Housing Stability and Tenant Protection Act of 2019 (L 2019, ch 36, § 1, part F [HSTPA]) was enacted and altered the method for determining legal regulated rent and expanded the nature and scope of owner liability in Rent Stabilization Law (RSL) overcharge cases, were governed by the four-year look-back rule and standard calculation method in effect at the time the alleged overcharges occurred, rather than by the HSTPA's new rent overcharge calculation provisions. Retroactive application of the overcharge calculation amendments would create or considerably enlarge owners' financial liability for conduct that occurred many years or even decades before the HSTPA was enacted and for which the prior statutory scheme conferred on owners clear repose. Because such application of the amendments to past conduct would not comport with retroactivity jurisprudence or requirements of due process, the claims were resolved pursuant to the law in effect when the purported overcharges occurred. Even if employed in a manner compatible with the lookback rule, nothing in the RSL indicates that the tenants' proposed alternative methods to determine base date rent applied. The RSL makes no distinction between improper deregulation and an improperly high increase to a stabilized rent, and there is no indication that, under the pre-HSTPA law, an overcharge resulting from improper (but nonfraudulent) luxury deregulation warranted anything but the application of the standard lookback provisions. *Matter of Regina Metro. Co., LLC v New York State Div. of Hous. & Community Renewal*, 35 NY3d 332.

3. Rent Overcharge — Legislative Intent to Retroactively Apply New Calculation Provisions under Housing Stability and Tenant Protection Act of 2019.—In enacting the Housing Stability and Tenant Protection Act of 2019 (L 2019, ch 36, § 1, part F [HSTPA]), the legislature expressed a sufficiently clear intent to retroactively apply provisions amending the method for calculating legal regulated rent and substantially expanding the nature and scope of owner liability in Rent

LANDLORD AND TENANT—Cont'd

Stabilization Law rent overcharge cases where the calculation issue was unresolved at the time the HSTPA was enacted. Application of a new statute to conduct that has already occurred may have retroactive effect upsetting reliance interests and triggering fundamental concerns about fairness. If applied to past conduct, the part F amendments would impose new liability and thus have a retroactive effect, altering substantive rights in multiple ways and thereby triggering the presumption against retroactivity. However, the presumption may be overcome by either an express prescription of the statute's temporal reach or a less explicit but comparably firm conclusion of legislative intent to apply the enactment to conduct that occurred previously. Each of the HSTPA's 15 parts contains its own effective date provision, indicating the legislature considered the issue of temporal scope for each. Moreover, part F relates almost entirely to the calculation of overcharge claims, and any such claim that was pending at the time the HSTPA was enacted necessarily involved conduct that occurred prior to the statute's enactment. Therefore, although there was no clear directive to revive time-barred claims, the legislature evinced a sufficiently clear intent to apply part F to timely pending claims where the overcharge calculation issue was unresolved at the time of its enactment. *Matter of Regina Metro. Co., LLC v New York State Div. of Hous. & Community Renewal*, 35 NY3d 332.

4. Rent Overcharge — Retroactive Application of New Calculation Provisions under Housing Stability and Tenant Protection Act of 2019 — Due Process Concerns.—Retroactive application of the Housing Stability and Tenant Protection Act of 2019 (L 2019, ch 36, § 1, part F [HSTPA]) provisions extending the statute of limitations, altering the method for determining legal regulated rent for overcharge purposes and expanding the nature and scope of owner liability in Rent Stabilization Law rent overcharge cases to alleged overcharges that occurred prior to HSTPA's enactment is unsupported by rational means and would therefore violate constitutional due process protections. Whether a retroactive statute comports with due process principles is a question of degree that turns on the length of the retroactivity period, the forewarning of a change in legislation as relevant to reliance interests, and the public purpose for retroactive application. The HSTPA amendments directing review of all available rental history to reconstruct the legal regulated rent on the base date may be applied to incorporate increases in the apartment's distant rental history, thereby expanding a tenant's total overcharge recovery well beyond what was provided under the prior law. Such a vast period of retroactivity upends owners' expectations of repose relating to conduct that may have occurred many years prior to the recovery period. Having reasonably relied on pre-HSTPA statutory and regulatory provisions to destroy records, owners may be held liable under the HSTPA for purported historical overcharges that were once supported by documentation. Moreover, the treble damages provisions either increase the penalty or impose a new penalty for damages that previously were not trebled. In the retroactivity context, a rational justification is one commensurate with the degree of disruption to settled, substantial rights and, in this instance, that standard had not been met. *Matter of Regina Metro. Co., LLC v New York State Div. of Hous. & Community Renewal*, 35 NY3d 332.

LIBEL AND SLANDER.

See, also, NEWSPAPERS, and other specific titles

LICENSES.

See, also, BROKERS; DRUGS AND PHARMACISTS; INTOXICATING LIQUORS; MOTOR VEHICLES; PHYSICIANS AND SURGEONS, and other specific titles

LIMITATION OF ACTIONS.**TOLLING.**

1. Affect of Non-Merits Dismissal of Class Certification.—Tolling of the statute of limitations ends, as a matter of law, when there is a clear dismissal of a putative class action, including a dismissal for forum non conveniens, or denial of class

LIMITATION OF ACTIONS—Cont'd

certification for any reason. Under those circumstances, future plaintiffs are on notice that they must take steps to protect their rights because the litigation no longer compels the court to address class certification or the named plaintiffs to advance absent class members' interests. At that point, it is no longer objectively reasonable for absent class members to rely upon the existence of a putative class action to vindicate their rights, and tolling is extinguished. Accordingly, Texas orders dismissing, on forum non conveniens grounds, a putative class action advancing the same claims as those in the New York individual lawsuits advanced by plaintiffs, who were absent class members belonging to the Texas action's putative class, ended tolling of the statute of limitations, as a matter of law. *Chavez v Occidental Chem. Corp.*, 35 NY3d 492.

2. Cross-Jurisdictional Tolling for Absent Class Members.—New York recognizes cross-jurisdictional tolling of the statute of limitations for absent class members of putative class actions filed in other state and federal courts. A determination that tolling is not available cross-jurisdictionally would subvert CPLR article 9, the primary function of which is to allow named plaintiffs to bring representative lawsuits without necessitating a multiplicity of litigation that squanders resources and undermines judicial economy, while still ensuring that defendants receive fair notice of the specific claims advanced against them. Such a rule would promote putative class members to initiate parallel individual claims in New York and other jurisdictions nearing expiration of the statute of limitations in order to protect against the risk of a subsequent denial of class certification or other non-merits termination—the very result CPLR article 9 was created to avoid. Moreover, CPLR 201 makes clear that courts do not have discretion to excuse late filings by plaintiffs who slept on their rights. Cross-jurisdictional tolling does not implicate this concern because injured individuals who rely on a representative class action have not slept on their rights and such tolling involves no exercise of judicial discretion—it turns entirely upon the existence of a class action. Recognition of cross-jurisdictional tolling harmonizes any tension between two statutory schemes adopted by the legislature, CPLR articles 2 and 9, and is not an exercise of judicial discretion. *Chavez v Occidental Chem. Corp.*, 35 NY3d 492.

LITTORAL RIGHTS.

See ENVIRONMENTAL CONSERVATION; NAVIGABLE WATERS; WATERS AND WATERCOURSES, and other specific titles

MANDAMUS.

See PROCEEDING AGAINST BODY OR OFFICER

MASTER AND SERVANT.

See EMPLOYMENT RELATIONSHIPS

MEDICAL REPORTS.

See DISCLOSURE

MOTELS.

See INNKEEPERS

MOTOR VEHICLES.

REVOCATION OR SUSPENSION OF OPERATOR'S LICENSE.

1. Failure to Exercise Due Care with Serious Physical Injury to Pedestrian Resulting.—Respondent Department of Motor Vehicles' determination that clear and convincing evidence demonstrated that petitioner bus driver caused serious physical injury to a pedestrian while failing to exercise due care in violation of Vehicle and Traffic Law § 1146 (c) was supported by substantial evidence. The evidence at the administrative hearing included an investigative report from the accident-reconstruction specialist who investigated the incident, a report from a

MOTOR VEHICLES—Cont'd

police officer who responded to the scene, and a statement provided by petitioner after the accident. The accident-reconstruction specialist also testified at the hearing, reiterating his report's conclusion concerning the victim's injuries. *Matter of Seon v New York State Dept. of Motor Vehs.*, 35 NY3d 1032.

MUNICIPAL CORPORATIONS.

See, also, BRIDGES; CIVIL SERVICE; COUNTIES; ELECTIONS; EMINENT DOMAIN; ENVIRONMENTAL CONSERVATION; HIGHWAYS; LICENSES; NEGLIGENCE; PROCEEDING AGAINST BODY OR OFFICER; PUBLIC HOUSING; PUBLIC UTILITIES; SCHOOLS; TAXATION; WORKERS' COMPENSATION, and other specific titles

EXAMINATION OF CLAIMS.

1. Oral Examination — No Right for Cocclaimant to be Present Where Municipality Objects.—A claimant does not have the right to observe a cocclaimant's General Municipal Law § 50-h oral examination over the municipality's objection. No person other than a claimant's attorney is expressly permitted to attend a section 50-h oral examination when the municipality objects. Pursuant to the last antecedent rule of statutory construction, the phrase "such examination" in section 50-h (1), which provides that "the examination shall be upon oral questions . . . and may include a physical examination" and that a claimant "is entitled to have such examination in the presence of his or her own personal physician and such other person as he or she may elect," refers to the "physical examination," the last examination in the list of examinations contemplated by that provision. The legislative history corroborates this result making clear that the legislature intended the oral and physical examinations to be separate undertakings at which claimants are afforded different rights. *Colon v Martin*, 35 NY3d 75.

NEGLIGENCE.

See, also, ANIMALS; AVIATION; CARRIERS; DEATH; DRUGS AND PHARMACISTS; EMPLOYMENT RELATIONSHIPS; HOSPITALS; INDEMNITY; INSURANCE; LABOR; LANDLORD AND TENANT; MOTOR VEHICLES; MUNICIPAL CORPORATIONS; PHYSICIANS AND SURGEONS; PUBLIC AUTHORITIES; PUBLIC UTILITIES; SCHOOLS; STATE, and other specific titles

NEGOTIABLE INSTRUMENTS.

See BILLS, NOTES AND CHECKS

NEWSPAPERS.

See, also, LIBEL AND SLANDER, and other specific titles

OPTICIANS.

See LICENSES; PHYSICIANS AND SURGEONS

OPTOMETRISTS.

See LICENSES; PHYSICIANS AND SURGEONS

PARENT, CHILD AND FAMILY.

See, also, ADOPTION; CHILDREN BORN OUT OF WEDLOCK; COURTS (FAMILY COURT); HUSBAND AND WIFE AND OTHER DOMESTIC RELATIONSHIPS; INFANTS; SCHOOLS; SOCIAL SERVICES, and other specific titles

PAROLE.**RESCISSION.**

1. Judicial Intervention.—Judicial intervention in respondent parole board's determination to rescind petitioner's parole release was not warranted, where petitioner failed to make a showing of irrationality bordering on impropriety with regard to the determination. *Matter of Benson v New York State Bd. of Parole*, 35 NY3d 1007.

PATERNITY PROCEEDINGS.

See CHILDREN BORN OUT OF WEDLOCK

PHYSICAL EXAMINATIONS.

See DISCLOSURE

PLEADING.

STRIKING OUT MATTER CONTAINED IN PLEADING.

1. Claim Raised in Supplemental Bill of Particulars.—In an action to recover damages brought by plaintiff, a client at defendant veterinary clinic who was injured by another client's dog while in defendant's waiting room, the striking of the allegations in plaintiff's supplemental bills of particulars that defendant was negligent based on a purported failure to use anesthesia or otherwise follow the standard of care in its treatment of the dog did not constitute an abuse of discretion. Those allegations, raised for the first time several years after commencement of the action, introduced a new theory of liability into the case relating to defendant's medical treatment of the dog and the standard of care owed to the patient dog and its owner, as compared with the duty that defendant owed to plaintiff. *Hewitt v Palmer Veterinary Clinic, PC*, 35 NY3d 541.

PODIATRISTS.

See LICENSES; PHYSICIANS AND SURGEONS

POLITICAL PARTIES.

See ELECTIONS

PRINCIPAL AND AGENT.

See, also, BROKERS; INSURANCE, and other specific titles

PRISONS AND PRISONERS.

DISCIPLINE OF INMATES.

1. Violation of Prison Disciplinary Rule — Rational Basis.—Substantial evidence supported the administrative determination finding petitioner inmate guilty of violating a prison disciplinary rule, as there was a rational basis for the conclusion adopted by the agency. The record proof, including the inmate misbehavior report, "razor check records," and contraband receipt, was adequate to permit a reasonable person to conclude that petitioner was guilty of the charged infraction. Moreover, the hearing officer did not violate petitioner's constitutional right to call witnesses, as implemented by the prison regulations in the State. The hearing officer explained that the requested witnesses' testimony was not material and, in the circumstances presented, that conclusion was justified. *Matter of Zielinski v Venetozzi*, 35 NY3d 1082.

PROHIBITION.

See PROCEEDING AGAINST BODY OR OFFICER

PSYCHIATRISTS.

See LICENSES; PHYSICIANS AND SURGEONS

PUBLIC OFFICERS.

See, also, ATTORNEY GENERAL; CIVIL RIGHTS; CIVIL SERVICE; DISTRICT AND PROSECUTING ATTORNEYS; ELECTIONS; GOVERNOR; JUDGES; MUNICIPAL CORPORATIONS; PROCEEDING AGAINST BODY OR OFFICER; SCHOOLS; SHERIFFS AND CONSTABLES; STATE, and other specific titles

RAILROADS.

See, also, CARRIERS

REAL ESTATE BROKERS.

See BROKERS

REAL PROPERTY.

See ADVERSE POSSESSION; BOUNDARIES; BROKERS; COVENANTS; DEEDS; EASEMENTS; EMINENT DOMAIN; ENVIRONMENTAL CONSERVATION; LANDLORD AND TENANT; LIENS; MORTGAGES; MUNICIPAL CORPORATIONS (ZONING); PARTITION; RECORDS; STATE; TAXATION; VENDOR AND PURCHASER, and other specific titles

RES JUDICATA.

See JUDGMENTS

RESCISSION.

See CONTRACTS; FRAUD; INSURANCE; SALES; VENDOR AND PURCHASER, and other specific titles

RESIDENCE.

See DOMICILE

RETIREMENT AND PENSION BENEFITS.

See CIVIL SERVICE; EMPLOYMENT RELATIONSHIPS; LABOR UNIONS; SCHOOLS, and other specific titles

RIPARIAN RIGHTS.

See ENVIRONMENTAL CONSERVATION; NAVIGABLE WATERS; WATERS AND WATERCOURSES, and other specific titles

SALES.

See, also, CONTRACTS; DAMAGES; FRAUDS, STATUTE OF; SPECIFIC PERFORMANCE; VENDOR AND PURCHASER, and other specific titles

SCHOOLS.

See, also, CIVIL SERVICE; COLLEGES AND UNIVERSITIES, and other specific titles

SEPARATION.

See HUSBAND AND WIFE AND OTHER DOMESTIC RELATIONSHIPS

SLANDER.

See LIBEL AND SLANDER

SPORTING EVENTS.

See THEATRES AND SHOWS

STATUTE OF FRAUDS.

See CONTRACTS; FRAUDS, STATUTE OF

STATUTE OF LIMITATIONS.

See LIMITATION OF ACTIONS

SUBPOENA.

See WITNESSES

SUMMONS.

See PROCESS

SYNAGOGUES.

See RELIGIOUS CORPORATIONS AND ASSOCIATIONS

TOWNS.

See MUNICIPAL CORPORATIONS

TRIAL.**EVIDENCE.**

1. Admitting Evidence of Prior Accidents was Abuse of Discretion.—Supreme Court abused its discretion as a matter of law in plaintiff's personal injury action against defendant transit authority by admitting evidence of prior accidents at New York City subway stations involving the gap between the train car and platform in the absence of a showing that the relevant conditions of those accidents were substantially the same as plaintiff's accident. *Daniels v New York City Tr. Auth.*, 35 NY3d 938.

UNEMPLOYMENT INSURANCE.**EMPLOYEE OR INDEPENDENT CONTRACTOR.**

1. Couriers of Pickup and Delivery Service.—The Unemployment Insurance Appeal Board's determination that respondent, a delivery business that used a smartphone application to dispatch couriers to pick up and deliver goods to customers, exercised control over its couriers sufficient to render them employees rather than independent contractors was supported by substantial evidence. Under the Labor Law, "employment" is broadly defined as "any service under any contract of employment for hire, express or implied, written, or oral" (Labor Law § 511 [1] [a]). In determining whether a worker is an employee or an independent contractor, the touchstone of the analysis is whether the employer exercised control over the results produced by the worker or the means used to achieve the results. That the couriers retained some independence to choose their work schedule and delivery route did not mean that they had actual control over their work or the service respondent provided its customers; rather, there was substantial evidence for the Board's conclusion that respondent dominated the significant aspects of its couriers' work by dictating to which customers they could deliver, where to deliver the requested items, effectively limiting the time frame for delivery and controlling all aspects of pricing and payment. Respondent had complete control over the means by which it obtained customers, how the customer was connected to the delivery person, and whether and how its couriers were compensated. Therefore, there was record support for the Board's conclusion that respondent exercised more than incidental control over its couriers. *Matter of Vega (Postmates Inc.—Commissioner of Labor)*, 35 NY3d 131.

UNFAIR COMPETITION.

See MONOPOLIES; TRADEMARKS, TRADE NAMES AND UNFAIR COMPETITION, and other specific titles

VENDOR AND PURCHASER.

See, also, BROKERS; CONTRACTS; FRAUDS, STATUTE OF; SALES; SPECIFIC PERFORMANCE, and other specific titles

VETERANS.

See CIVIL SERVICE; INCAPACITATED AND MENTALLY DISABLED PERSONS; INSURANCE; TAXATION

VILLAGES.

See MUNICIPAL CORPORATIONS

WELFARE.

See SOCIAL SERVICES

WITNESSES.

See, also, CONTEMPT; CRIMES; DISCLOSURE; EVIDENCE; TRIAL; WILLS, and other specific titles

WORKERS' COMPENSATION.**REDUCED EARNING BENEFITS.**

1. Permanent Partial Disability — Requirement to Demonstrate Ongoing Attachment to Labor Market.—A 2017 amendment to Workers' Compensation Law § 15 (3) (w) eliminated any post-classification obligation on the part of a permanent partial disability claimant who was eligible for benefits when classified to demonstrate ongoing attachment to the labor market, but did not change the statutory framework pre-classification or the pre-classification application of the holding in *Matter of Zamora v New York Neurologic Assoc.* (19 NY3d 186 [2012]). A claimant who suffers a permanent partial disability may receive a reduced earnings award under section 15 (3) (w) upon proving that there exists a causal link between the claimant's disability and reduced earning capacity. However, under *Zamora*, the Workers' Compensation Board must find that the reduction in income is due to the disability and not to an unwillingness to work again. If the Board determines that a claimant classified with a permanent partial disability involuntarily retired from his or her job due to that disability, the Board may, but need not, draw an inference that the claimant's reduced future earnings resulted from the disability rather than from unwillingness to work. The language of the statutory amendment, speaking of "continuance of such permanent partial disability" and "ongoing attachment," made clear that it addressed the period after classification. The canon disfavoring interpreting statutes so as to overrule the common law weighed in favor of retaining the part of the court-imposed rule that requires a claimant to show labor-market attachment at the time of classification. *Matter of O'Donnell v Erie County*, 35 NY3d 14.

2. Permanent Partial Disability — Requirement to Demonstrate Ongoing Attachment to Labor Market.—In a workers' compensation case in which it was undisputed that claimant, who was injured as a result of a slip and fall in the course of her job with respondent County, was permanently partially disabled and that her retirement was involuntary, the Workers' Compensation Board's change of position, after leave to appeal to the Court of Appeals had been granted, regarding claimant's need to demonstrate attachment to the labor market required remittal of the matter, without decision, to the Appellate Division for further remand to the Board. Respondents had challenged claimant's labor-market attachment because claimant testified at the hearing that since her retirement she had not looked for work, gone back to school or sought retraining. While respondents' request for full Board review was pending, Workers' Compensation Law § 15 (3) (w) was amended to eliminate any post-classification obligation on the part of a permanent partial disability claimant who was eligible for benefits when classified to demonstrate ongoing attachment to the labor market, but did not change the statutory framework pre-classification or the pre-classification application of common law. The Board, having initially concluded, based on that amendment, that claimant was not obligated to demonstrate an ongoing attachment to the labor market during the continuance of her permanent partial disability, subsequently argued that it departed from its established purported precedent requiring claimant to establish efforts to work or retrain, or provide evidence explaining her failure to do so. Under the circumstances, remittal of the matter was appropriate to allow the Board to develop a record of its purported precedent as applied to claimant and clarify its determination, and to permit claimant to challenge any adverse decision. *Matter of O'Donnell v Erie County*, 35 NY3d 14.

ZONING.

See MUNICIPAL CORPORATIONS

**NEW YORK REPORTS
CUMULATIVE ERRATA TABLE**

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|--|---|
| 1. 19 NY2d 159 (Thrasher v United States Liab. Ins. Co.) | At 19 NY2d 168, line 4 from the bottom of the page, change insurer's to insured's. |
| 2. 33 NY2d 846 (Petrie v Chase Manhattan Bank) | Change appellant's name in title from James A. Pertie, Jr. to James A. Petrie, Jr. |
| 3. 35 NY2d 179 (Matter of Lutfy v Gangemi) | Change plaintiff's name in title from Edward R. Lufy to Edward R. Lutfy. |
| 4. 45 NY2d 233 (Simonds v Simonds) | At 45 NY2d 241, line 3 of last full paragraph, change constructive to constructive. |
| 5. 53 NY2d 499 (Weinberg v D-M Rest. Corp.) | At 53 NY2d 500, line 35, change running line citation from 73 AD2d 1067 to 73 AD2d 1066. |
| 6. 54 NY2d 137 (People v Baldi) | At 54 NY2d 147, lines 3 and 4, change meaninful to meaningful. |
| 7. 64 NY2d 966 (Slatt v Slatt) | At 64 NY2d 967, line 15, change <i>Marlee Sales Corp. v Manufactur-ers Trust Co.</i> to <i>Morlee Sales Corp. v Manufacturers Trust Co.</i> |
| 8. 66 NY2d 667 (Matter of Lewis Tree Serv. v Fire Dept. of City of N.Y.) | At 66 NY2d 669, line 15, change citation from 66 NY2d 718 to 66 NY2d 713. |
| 9. 69 NY2d 601 (Matter of Rose Assoc. v State Div. of Hous. & Community Renewal, Off. of Rent Admin.) | Add the word denied in the result column of the motion for leave to appeal table. |

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| 10. 75 NY2d 927 (Matter of David T.) | At 75 NY2d 929, line 20, change effect to defect. |
| 11. 77 NY2d 806 (Dowd v Ahr) | Change denied to granted in the result column of the motion for leave to appeal table. |
| 12. 80 NY2d 1030 (People v Sallito) | Change the title entry from Salito to Sallito. |
| 13. 85 NY2d 139 (British Land [Maryland] v Tax Appeals Trib. of State of N.Y.) | At 85 NY2d 146, second paragraph, line 13, change lead to led. |
| 14. 88 NY2d 41 (Town of Orangetown v Magee) | At 88 NY2d 41, change running line citation from as amended 218 AD2d 343 to as amended 218 AD2d 733. |
| 15. 88 NY2d 400 (People v Huston) | At 88 NY2d 402, line 1, change citation from CPL 210.20 [c] to CPL 210.20 [1] [c]. |
| 16. 90 NY2d 717 (Panepinto v New York Life Ins. Co.) | At 90 NY2d 720, line 1, change date of October 28, 1996 to October 28, 1986 and at 90 NY2d 720, line 5, change date of October 28, 1996 to October 28, 1986. |
| 17. 93 NY2d 382 (BDO Seidman v Hirshberg) | At 93 NY2d 391, line 25, change former employer to former employee. |
| 18. 97 NY2d 709 | In Criminal Leave Table, first 13 entries on this page (from <i>People v Santos</i> through and including <i>People v Stallone</i>), change the year within the decision date from “/01” to “/02.” |
| 19. 100 NY2d 960 (Vernon v Vernon) | At 100 NY2d 967, line 7 of second paragraph, change degree to decree. |

Errata

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20. **1 NY3d 174** (People v Taylor) At 1 NY3d 177, line 10 of first full paragraph, change (People v Ryan, 93 NY2d at 823-824) to (People v Ryan, 90 NY2d at 823-824), and on line 13 of same paragraph, change (People v Tonge, 90 NY2d at 840) to (People v Tonge, 93 NY2d at 840).
21. **1 NY3d 541** (People v Sanchez) In Criminal Leave Table, middle column, change App Div, 1st Dept, 5/22/03 (NY) to 2d Dept: 306 AD2d 296 (Kings).
22. **4 NY3d 739** (Matter of Peter R. [Stacey R.]) Change the reported below citation from 8 AD3d 567 to 8 AD3d 576.
23. **4 NY3d 857** (People v Smith [DeJesus]) Change the reported below citation from 15 AD3d 1016 (NY) to 15 AD3d 1015 (NY).
24. **5 NY3d 864** (Matter of Kadeem W.) At end of first paragraph on page 865, insert the following: (2) vacated the fact-finding order, and (3) dismissed the petition.
25. **6 NY3d 427** (People v Boyer) At 6 NY3d 432, line 31, change 79 NY2d at 922 to 74 NY2d at 922.
26. **7 NY3d 703** (Matter of Park v Kapica) Change the page number of the reported below citation from 802 to 801.
27. **8 NY3d 944** (People v Charriez) In Criminal Leave Table, middle column, change 2007 NY Slip Op 81340(U) to 2006 NY Slip Op 81340(U).
28. **9 NY3d 923** (People v Jacobs) In Criminal Leave Table, middle column, change 37 AD3d 866 to 37 AD3d 868.
29. **11 NY3d 875** (People v Ford) On line 5 of the Summary, change Bronx County to New York County.

30. **13 NY3d 511** (Matter of Goldstein v New York Urban Dev. Corp.) At 13 NY3d 534, lines 13 and 14 from the bottom of the page, change deposition to [disposition].
31. **18 NY3d 667** (People v Rodriguez) At 18 NY3d 671, second line from bottom of the page, change CPL 410.30 to CPL 430.10.
32. **19 NY3d 1058** (Matter of 677 New Loudon Corp. v State of N.Y. Tax Appeals Trib.) At 19 NY3d 1058, line 4 of the headnote, and at page 1159, third paragraph, line 4 of the Memorandum, change 10% to 10¢.
33. **21 NY3d 1043** (People v Mackey-Meggs) Change defendant's name in title from Mackey-Meggs to Marquan M.
34. **22 NY3d 648** (Union Sq. Park Community Coalition, Inc. v New York City Dept. of Parks & Recreation) At 22 NY3d 654, eighth line of third paragraph, change 22,000 acres to 22,000 square feet.
35. **23 NY3d 455** (People v Golb) At 23 NY3d 461, in second full paragraph the email address "newsmedia.ucla.edu" should read "newsmedia@ucla.edu"
At 23 NY3d 461, in third full paragraph the email address "steve.goransongmail.com" should read "steve.goranson@gmail.com"
At 23 NY3d 462, in the first paragraph the email address "frank.cross2gmail.com" should read "frank.cross2@gmail.com"
At 23 NY3d 462, in the second full paragraph the email address "larry.schiffmangmail.com" should read "larry.schiffman@gmail.com"
At 23 NY3d 463, in the second full paragraph the email address "seidel.jonathangmail.com" should read "seidel.jonathan@gmail.com"
36. **23 NY3d 665** (Norex Petroleum Ltd. v Blavatnik) At 23 NY3d 668, footnote 3, last sentence on page should read For purposes of discussion in this opinion, we simply assume that, within the meaning of section 205 (a), Norex's federal action was not

terminated on the merits, and Norex's state court action alleges claims "upon the same transaction or occurrence" as its federal predecessor

37. **24 NY3d 294** (People v Silva) At 24 NY3d 296, change attorney's name for appellant in the second above-entitled action from Steven R. Bernard to Steven R. Bernhard.
38. **25 NY3d 906** (Richard H. v State of New York) Change 1324 to 1306 in the middle column of the motion for leave to appeal table.
39. **26 NY3d - 28 NY3d** Change the spelling of "irrevelant" to "irrelevant" throughout.
40. **26 NY3d 903** (McMillin v Grimditch) Change the reported below citation from 130 AD3d 150 to 131 AD3d 150.
41. **26 NY3d 903** (Town of N. Elba v Grimditch) Change the reported below citation from 130 AD3d 150 to 131 AD3d 150.
42. **27 NY3d 1079** (People ex rel. Monte v Mingo) Change respondents' name in title from *Warden* to *Warden Maxsolaine Mingo*.
43. **28 NY3d 1123** (People v Faeth) In Criminal Leave Table, middle column, change App Div, 4th Dept: 2016 NY Slip Op 68866(U) (Wayne) to App Div, 4th Dept, 9/6/16 (Wayne).
44. **32 NY3d 1222** (People v Javon Loney) Change appellant's name in title from Javon Loney to J.L.
45. **33 NY3d 950** (People v Loney) Change appellant's name in title from Loney to J.L.